

STATE OF NEW YORK

9005 - - B

IN SENATE

January 21, 2026

A BUDGET BILL, submitted by the Governor pursuant to article seven of the Constitution -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 268 of the laws of 1996 amending the education law and the state finance law relating to providing a recruitment incentive and retention program for certain active members of the New York army national guard, New York air national guard, and New York naval militia, in relation to making such chapter permanent (Part A); to amend the tax law, in relation to extending the suspension of the subsidy to state emergency services revolving loan fund from the public safety communications surcharge (Part B); to amend the penal law and the criminal procedure law, in relation to three-dimensional printed guns (Subpart A); and to amend the executive law and the general business law, in relation to firearm prevention technology requirements for three-dimensional printers (Subpart B)(Part C); intentionally omitted (Part D); to amend the public health law, in relation to sexual offense evidence collection kit procedures (Part E); intentionally omitted (Part F); intentionally omitted (Part G); to amend the criminal procedure law and the family court act, in relation to extending orders of protection (Part H); intentionally omitted (Part I); to amend the executive law, in relation to authorities and responsibilities during disaster emergencies and in relation to establishing the international emergency management assistance compact (Part J); to amend the penal law, in relation to establishing the crime of unlawful obstruction of a place of religious worship (Part K); intentionally omitted (Part L); intentionally omitted (Part M); to amend chapter 396 of the laws of 2010 amending the alcoholic beverage control law relating to liquidator's permits and temporary retail permits, in relation to the effectiveness thereof (Part N); to amend the alcoholic beverage control law, in relation to allowing temporary retail permit holders to purchase stock on credit (Subpart A); to amend the alcoholic beverage control law, relating to banning alcoholic beverage brand labels designed to appeal to children (Subpart B); to amend the alcoholic beverage control law, in relation to authoriz-

EXPLANATION--Matter in *italics* (underscored) is new; matter in brackets [-] is old law to be omitted.

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ing the liquor authority to change the duration of certain licenses (Subpart C); to amend the alcoholic beverage control law, in relation to expanding the ability of certain persons who sell alcohol to set the price of said alcohol (Subpart D); to amend the alcoholic beverage control law, in relation to direct shipment enforcement (Subpart E); to amend part CC of chapter 55 of the laws of 2024 amending the alcoholic beverage control law, relating to alcohol in certain motion picture theatres, in relation to making motion picture theater licenses permanent (Subpart F); to repeal subdivision 9 of section 106 of the alcoholic beverage control law, in relation to access to a licensed premises (Subpart G); to amend the alcoholic beverage control law, in relation to lowering the food requirements at bona-fide hotels (Subpart H); to amend the alcoholic beverage control law, in relation to expanding privileges for certain manufacturers (Subpart I); to amend the alcoholic beverage control law, in relation to banning wholesalers from assessing certain fees on retailers (Subpart J); and to amend the alcoholic beverage control law, in relation to authorizing manufacturers to have up to three retail licenses under the same name as the manufacturer (Subpart K) (Part O); to amend the alcoholic beverage control law, in relation to establishing an adult care facility on-premises license (Subpart A); to amend the alcoholic beverage control law, in relation to establishing an airline lounge license (Subpart B); to amend the alcoholic beverage control law, in relation to establishing a cafe license (Subpart C); to amend the alcoholic beverage control law, in relation to establishing a higher education on-premises license (Subpart D); to amend the alcoholic beverage control law, in relation to establishing a hotel concessionaire license and permit (Subpart E); to amend the alcoholic beverage control law, in relation to establishing an early morning sports bar permit (Subpart F); intentionally omitted (Subpart G); and to amend the alcoholic beverage control law, in relation to making conforming changes (Subpart H) (Part P); to amend the alcoholic beverage control law, in relation to establishing a restaurant dine and dance license (Part Q); to amend the election law, in relation to prohibiting the suppression of voters (Part R); intentionally omitted (Part S); intentionally omitted (Part T); to amend the executive law and the legislative law, in relation to education and training in ethics and lobbying (Part U); to amend the public officers law, in relation to the annual statement of financial disclosure; and to amend the tax law, the administrative code of the city of New York, the executive law and the legislative law, in relation to making conforming technical changes (Part V); to amend the workers' compensation law, in relation to the assessment of workers' compensation fraud and establishing the fraud assessment commission; and to amend the state finance law, in relation to establishing the workers' compensation fraud investigation and prosecution fund (Part W); to amend the workers' compensation law, in relation to specifying which providers are authorized to render certain medical care; and to repeal certain provisions of such law related thereto (Part X); intentionally omitted (Part Y); to amend the legislative law, in relation to lobbyist and client registration fees (Part Z); to amend the executive law, in relation to requiring the superintendent of state police to develop, maintain, and disseminate to all members of the division of state police a critical incident paid leave policy (Part AA); to amend chapter 1 of the laws of 2005 amending the state finance law relating to restricting contacts in the procurement process and the recording of contacts relating thereto, in

relation to extending the effectiveness thereof; and to amend the state finance law, in relation to the definition of procurement contracts (Part BB); to amend the state finance law, in relation to no longer requiring certain commodities be purchased through the correctional industries program; and to amend chapter 83 of the laws of 1995 amending the state finance law and other laws relating to bonds, notes and revenues, in relation to the effectiveness of certain provisions thereof (Part CC); intentionally omitted (Part DD); intentionally omitted (Part EE); in relation to providing for the administration of certain funds and accounts related to the 2026--2027 budget, authorizing certain payments and transfers; to amend the state finance law, in relation to the school tax relief fund; to amend the private housing finance law, in relation to housing program bonds and notes; to amend part D of chapter 389 of the laws of 1997, relating to the financing of the correctional facilities improvement fund and the youth facility improvement fund, in relation to the issuance of bonds and notes for the youth facilities improvement fund; to amend the public authorities law, in relation to the issuance of bonds and notes for city university facilities; to amend the public authorities law, in relation to the issuance of bonds for library construction projects; to amend the public authorities law, in relation to the issuance of bonds for state university educational facilities; to amend the public authorities law, in relation to the issuance of bonds and notes for locally sponsored community colleges; to amend part D of chapter 63 of the laws of 2005, relating to the composition and responsibilities of the New York state higher education capital matching grant board, in relation to the amount of award matching capital grants; to amend chapter 392 of the laws of 1973 constituting the New York state medical care facilities finance agency act, in relation to the issuance of mental health services facilities improvement bonds and notes; to amend part K of chapter 81 of the laws of 2002, relating to providing for the administration of certain funds and accounts related to the 2002-2003 budget, in relation to the issuance of bonds and notes to finance capital costs related to homeland security; to amend the urban development corporation act, in relation to financing project costs for the office of information technology services and department of law; to amend chapter 329 of the laws of 1991, amending the state finance law and other laws relating to the establishment of the dedicated highway and bridge trust fund, in relation to the issuance of funds to the thruway authority; to amend the urban development corporation act, in relation to the issuance of bonds and notes to fund costs for statewide equipment; to amend the public authorities law, in relation to the issuance of bonds for purposes of financing environmental infrastructure projects; to amend part D of chapter 389 of the laws of 1997, relating to the financing of the correctional facilities improvement fund and the youth facility improvement fund, in relation to the issuance of bonds and notes for the youth facilities improvement fund; to amend the public authorities law, in relation to the issuance of bonds and notes for the purpose of financing peace bridge projects and capital costs of state and local highways; to amend the urban development corporation act, in relation to the issuance of bonds for economic development initiatives; to amend part Y of chapter 61 of the laws of 2005, relating to providing for the administration of certain funds and accounts related to the 2005-2006 budget, in relation to the issuance of bonds and notes for the purpose of financing capital projects for the division of military and naval affairs; to amend the urban

development corporation act, in relation to issuance of bonds for project costs undertaken by or on behalf of the state education department, special act school districts, state-supported schools for the blind and deaf, approved private special education schools, non-public schools, community centers, day care facilities, residential camps, day camps, Native American Indian Nation schools; to amend the public authorities law, in relation to the issuance of bonds and notes for the purpose of financing the construction of the New York state agriculture and markets food laboratory; to amend the public authorities law, in relation to authorization for the issuance of bonds for the capital restructuring financing program, the health care facility transformation programs, and the essential health care provider program; to amend part Y of chapter 61 of the laws of 2005, relating to providing for the administration of certain funds and accounts related to the 2005-2006 budget, in relation to the issuance of bonds and notes for the purpose of financing capital projects for initiatives of the state police; to amend the state finance law, in relation to the calculation of total outstanding principal amount of debt; and providing for the repeal of certain provisions upon expiration thereof (Part FF); in relation to establishing the New York state aid and incentives for municipalities redesign task force; and providing for the repeal of such provisions upon expiration thereof (Part GG); to amend the election law, in relation to establishing the election security navigator program (Part HH); to amend the general municipal law and the executive law, in relation to extending the term and authority of the independent monitor for the Orange county industrial development agency, and modifying the applicability of certain tax exemptions based on population; to amend part III of chapter 58 of the laws of 2023, amending the general municipal law and the executive law relating to directing the state inspector general to appoint an independent monitor for the Orange county industrial development agency, in relation to the effectiveness thereof; and providing for the repeal of certain provisions upon the expiration thereof (Part II); to amend the military law, in relation to authorizing additional paid leave for public employees who are absent on military duty (Part JJ); to amend the correction law, in relation to creating an identification card program for incarcerated individuals in local correctional facilities; and to amend the vehicle and traffic law, in relation to issuance of and waiver of fees for identification cards issued pursuant to identification card programs under the correction law (Part KK); to amend the correction law, in relation to promoting the health, safety, and human rights of incarcerated pregnant individuals, incarcerated birthing parents of children and their children (Part LL); to amend the state finance law, in relation to the usage of funds in the New York state cannabis revenue fund (Part MM); to amend the veterans' services law, in relation to establishing a searchable database of veteran-owned businesses (Part NN); to amend the retirement and social security law, in relation to the treatment of prior service with certain agencies by the New York city police pension fund (Part OO); to amend the retirement and social security law, in relation to the retirement of state, county and municipal 911 operators and dispatchers (Part PP); to amend the retirement and social security law, in relation to the restoration of 20 year service retirement for certain New York city corrections officers and sanitation workers (Part QQ); to amend the workers' compensation law, in relation to the parties' rights to a hearing upon application to the workers' compensation

board and requiring a record of all hearings held (Part RR); to amend the retirement and social security law, in relation to the eligibility of certain participants in the New York city employees' retirement system to opt into the twenty-five year retirement program for EMT members (Part SS); to amend the retirement and social security law, in relation to increasing the earning limitations for retired persons in positions of public service (Part TT); to amend the civil service law, in relation to ensuring identical health benefits for skilled nursing care for public retirees (Part UU); to amend the state finance law, in relation to authorizing local government citizens re-organization empowerment grants to be used for school district reorganization for costs of studies and plans necessary for school district reorganization that are not otherwise aidable (Part VV); to amend the retirement and social security law and the administrative code of the city of New York, in relation to the establishment of twenty-five year retirement programs for members of the New York city employees' retirement system employed as water supply police; and in relation to providing for employer pick up, pursuant to provisions of the internal revenue code, of certain additional member contributions required to be made by certain participants in the twenty-five year retirement programs; and providing for the repeal of certain provisions upon expiration thereof (Part WW); to amend the retirement and social security law, in relation to service rendered by police officers in the agency police services unit (Part XX); to amend the executive law, in relation to establishing the office of Native American affairs (Part YY); to amend the real property tax law, in relation to including all lands in Ulster county as being subject to taxation (Part ZZ); to amend the state finance law, in relation to aid and incentives for municipalities to the city of New York (Part AAA); and to amend the real property tax law, in relation to assessment and taxation of lessees and users of certain tax exempt property (Part BBB)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act enacts into law major components of legislation
2 necessary to implement the state public protection and general govern-
3 ment budget for the 2026-2027 state fiscal year. Each component is whol-
4 ly contained within a Part identified as Parts A through BBB. The effec-
5 tive date for each particular provision contained within such Part is
6 set forth in the last section of such Part. Any provision in any section
7 contained within a Part, including the effective date of the Part, which
8 makes a reference to a section "of this act", when used in connection
9 with that particular component, shall be deemed to mean and refer to the
10 corresponding section of the Part in which it is found. Section three of
11 this act sets forth the general effective date of this act.

12 PART A

13 Section 1. Section 5 of chapter 268 of the laws of 1996 amending the
14 education law and the state finance law relating to providing a recruit-
15 ment incentive and retention program for certain active members of the
16 New York army national guard, New York air national guard, and New York
17 naval militia, as amended by section 1 of part P of chapter 55 of the
18 laws of 2021, is amended to read as follows:

§ 5. This act shall take effect January 1, 1997 [~~and shall expire and be deemed repealed September 1, 2026; provided that any person who has begun to receive the benefits of this act prior to its expiration and repeal shall be entitled to continue to receive the benefits of this act after its expiration and repeal until completion of a baccalaureate degree or cessation of status as an active member, whichever occurs first~~].

§ 2. This act shall take effect immediately.

PART B

Section 1. Paragraph (b) of subdivision 6 of section 186-f of the tax law, as amended by section 1 of part E of chapter 55 of the laws of 2024, is amended to read as follows:

(b) The sum of one million five hundred thousand dollars must be deposited into the New York state emergency services revolving loan fund annually; provided, however, that such sums shall not be deposited for any state fiscal [~~years~~] year between two thousand eleven--two thousand twelve, [~~two thousand twelve--two thousand thirteen, two thousand fourteen--two thousand fifteen, two thousand fifteen--two thousand sixteen, two thousand sixteen--two thousand seventeen, two thousand seventeen--two thousand eighteen, two thousand eighteen--two thousand nineteen, two thousand nineteen--two thousand twenty, two thousand twenty--two thousand twenty-one, two thousand twenty-one--two thousand twenty-two, two thousand twenty-two--two thousand twenty-three, two thousand twenty-three--two thousand twenty-four, two thousand twenty-four--two thousand twenty-five,~~] and [~~two thousand twenty-five--two thousand twenty-six~~] two thousand twenty-nine--two thousand thirty;

§ 2. This act shall take effect April 1, 2026; provided, however, if this act shall become a law after such date it shall take effect immediately and shall be deemed to have been in full force and effect on and after April 1, 2026.

PART C

Section 1. This Part enacts into law components of legislation relating to three-dimensional printed guns. Each component is wholly contained within a Subpart identified as Subparts A through B. The effective date for each particular provision contained within such Subpart is set forth in the last section of such Subpart. Any provision in any section contained within a Subpart, including the effective date of the Subpart, which makes reference to a section "of this act", when used in connection with that particular component, shall be deemed to mean and refer to the corresponding section of the Subpart in which it is found. Section three of this Part sets forth the general effective date of this Part.

SUBPART A

Section 1. Subdivision 3-a of section 265.00 of the penal law, as added by chapter 134 of the laws of 2019, is amended and two new subdivisions 37 and 38 are added to read as follows:

3-a. "Major component of a firearm, rifle or shotgun" means the barrel, the slide or cylinder, the frame, or receiver of the firearm, rifle, or shotgun, regardless of whether such component is privately or publicly manufactured.

1 37. "Three-dimensional printer" means:

2 (a) any machine capable of rendering a three-dimensional object from a
3 digital design file using additive manufacturing; or

4 (b) any machine capable of making three-dimensional modifications to
5 an object from a digital design file using subtractive manufacturing.

6 38. "Digital firearm manufacturing code" means any digital
7 instructions in the form of computer-aided design files or other code or
8 instructions stored and displayed in electronic format as a digital
9 model that may be used to program a three-dimensional printer or a
10 computer numerical control (CNC) milling machine to manufacture or
11 produce any firearm, rifle, shotgun, ghost gun, unfinished frame or
12 receiver, firearm silencer, rapid-fire modification device or major
13 component of a firearm.

14 § 2. Section 265.10 of the penal law is amended by adding two new
15 subdivisions 10 and 11 to read as follows:

16 10. Any person who sells, offers to sell, transfers, distributes, or
17 otherwise disposes of a digital firearm manufacturing code to any person
18 who does not hold both (a) a gunsmith license as provided in section
19 400.00 of this chapter and (b) a valid type seven federal firearms
20 license, is guilty of a class E felony.

21 11. Any person who possesses digital firearm manufacturing code with
22 the intent to (a) illegally manufacture any item described in section
23 265.00 of this article; (b) distribute to a person in the state of New
24 York for whom the sender has reason to believe would be prohibited from
25 possessing the manufactured or produced product under section 265.02 of
26 this chapter or subsection (G) of section 922 of title 18 of the United
27 States Code; or (c) distribute to a person in the state of New York who
28 does not hold both (i) a gunsmith license as provided in section 400.00
29 of this chapter and (ii) a valid type seven federal firearms license, is
30 guilty of a class E felony.

31 § 3. Intentionally omitted.

32 § 4. Paragraph (b) of subdivision 8 of section 700.05 of the criminal
33 procedure law, as amended by chapter 23 of the laws of 2024, is amended
34 to read as follows:

35 (b) Any of the following felonies: assault in the second degree as
36 defined in section 120.05 of the penal law, assault in the first degree
37 as defined in section 120.10 of the penal law, reckless endangerment in
38 the first degree as defined in section 120.25 of the penal law, promot-
39 ing a suicide attempt as defined in section 120.30 of the penal law,
40 strangulation in the second degree as defined in section 121.12 of the
41 penal law, strangulation in the first degree as defined in section
42 121.13 of the penal law, criminally negligent homicide as defined in
43 section 125.10 of the penal law, manslaughter in the second degree as
44 defined in section 125.15 of the penal law, manslaughter in the first
45 degree as defined in section 125.20 of the penal law, murder in the
46 second degree as defined in section 125.25 of the penal law, murder in
47 the first degree as defined in section 125.27 of the penal law, rape in
48 the third degree as defined in section 130.25 of the penal law, rape in
49 the second degree as defined in section 130.30 of the penal law, rape in
50 the first degree as defined in section 130.35 of the penal law, a crime
51 formerly defined in section 130.40 of the penal law, a crime formerly
52 defined in section 130.45 of the penal law, a crime formerly defined in
53 section 130.50 of the penal law, sexual abuse in the first degree as
54 defined in section 130.65 of the penal law, unlawful imprisonment in the
55 first degree as defined in section 135.10 of the penal law, kidnapping
56 in the second degree as defined in section 135.20 of the penal law,

1 kidnapping in the first degree as defined in section 135.25 of the penal
2 law, labor trafficking as defined in section 135.35 of the penal law,
3 aggravated labor trafficking as defined in section 135.37 of the penal
4 law, custodial interference in the first degree as defined in section
5 135.50 of the penal law, coercion in the first degree as defined in
6 section 135.65 of the penal law, criminal trespass in the first degree
7 as defined in section 140.17 of the penal law, burglary in the third
8 degree as defined in section 140.20 of the penal law, burglary in the
9 second degree as defined in section 140.25 of the penal law, burglary in
10 the first degree as defined in section 140.30 of the penal law, criminal
11 mischief in the third degree as defined in section 145.05 of the penal
12 law, criminal mischief in the second degree as defined in section 145.10
13 of the penal law, criminal mischief in the first degree as defined in
14 section 145.12 of the penal law, criminal tampering in the first degree
15 as defined in section 145.20 of the penal law, arson in the fourth
16 degree as defined in section 150.05 of the penal law, arson in the third
17 degree as defined in section 150.10 of the penal law, arson in the
18 second degree as defined in section 150.15 of the penal law, arson in
19 the first degree as defined in section 150.20 of the penal law, grand
20 larceny in the fourth degree as defined in section 155.30 of the penal
21 law, grand larceny in the third degree as defined in section 155.35 of
22 the penal law, grand larceny in the second degree as defined in section
23 155.40 of the penal law, grand larceny in the first degree as defined in
24 section 155.42 of the penal law, health care fraud in the fourth degree
25 as defined in section 177.10 of the penal law, health care fraud in the
26 third degree as defined in section 177.15 of the penal law, health care
27 fraud in the second degree as defined in section 177.20 of the penal
28 law, health care fraud in the first degree as defined in section 177.25
29 of the penal law, robbery in the third degree as defined in section
30 160.05 of the penal law, robbery in the second degree as defined in
31 section 160.10 of the penal law, robbery in the first degree as defined
32 in section 160.15 of the penal law, unlawful use of secret scientific
33 material as defined in section 165.07 of the penal law, criminal
34 possession of stolen property in the fourth degree as defined in section
35 165.45 of the penal law, criminal possession of stolen property in the
36 third degree as defined in section 165.50 of the penal law, criminal
37 possession of stolen property in the second degree as defined by section
38 165.52 of the penal law, criminal possession of stolen property in the
39 first degree as defined by section 165.54 of the penal law, trademark
40 counterfeiting in the second degree as defined in section 165.72 of the
41 penal law, trademark counterfeiting in the first degree as defined in
42 section 165.73 of the penal law, forgery in the second degree as defined
43 in section 170.10 of the penal law, forgery in the first degree as
44 defined in section 170.15 of the penal law, criminal possession of a
45 forged instrument in the second degree as defined in section 170.25 of
46 the penal law, criminal possession of a forged instrument in the first
47 degree as defined in section 170.30 of the penal law, criminal
48 possession of forgery devices as defined in section 170.40 of the penal
49 law, falsifying business records in the first degree as defined in
50 section 175.10 of the penal law, tampering with public records in the
51 first degree as defined in section 175.25 of the penal law, offering a
52 false instrument for filing in the first degree as defined in section
53 175.35 of the penal law, issuing a false certificate as defined in
54 section 175.40 of the penal law, criminal diversion of prescription
55 medications and prescriptions in the second degree as defined in section
56 178.20 of the penal law, criminal diversion of prescription medications

1 and prescriptions in the first degree as defined in section 178.25 of
2 the penal law, residential mortgage fraud in the fourth degree as
3 defined in section 187.10 of the penal law, residential mortgage fraud
4 in the third degree as defined in section 187.15 of the penal law, resi-
5 dential mortgage fraud in the second degree as defined in section 187.20
6 of the penal law, residential mortgage fraud in the first degree as
7 defined in section 187.25 of the penal law, escape in the second degree
8 as defined in section 205.10 of the penal law, escape in the first
9 degree as defined in section 205.15 of the penal law, absconding from
10 temporary release in the first degree as defined in section 205.17 of
11 the penal law, promoting prison contraband in the first degree as
12 defined in section 205.25 of the penal law, hindering prosecution in the
13 second degree as defined in section 205.60 of the penal law, hindering
14 prosecution in the first degree as defined in section 205.65 of the
15 penal law, sex trafficking as defined in section 230.34 of the penal
16 law, sex trafficking of a child as defined in section 230.34-a of the
17 penal law, criminal possession of a weapon in the third degree as
18 defined in subdivisions two, three and five of section 265.02 of the
19 penal law, criminal possession of a weapon in the second degree as
20 defined in section 265.03 of the penal law, criminal possession of a
21 weapon in the first degree as defined in section 265.04 of the penal
22 law, manufacture, transport, disposition and defacement of weapons and
23 dangerous instruments and appliances defined as felonies in subdivisions
24 one, two, [and] three, ten or eleven of section 265.10 of the penal law,
25 sections 265.11, 265.12 and 265.13 of the penal law, or prohibited use
26 of weapons as defined in subdivision two of section 265.35 of the penal
27 law, relating to firearms and other dangerous weapons, criminal manufac-
28 ture, sale or transport of an undetectable firearm, rifle or shotgun as
29 defined in section 265.50 of the penal law, or failure to disclose the
30 origin of a recording in the first degree as defined in section 275.40
31 of the penal law;

32 § 5. Intentionally omitted.

33 § 6. This act shall take effect on the ninetieth day after it shall
34 have become a law.

35 SUBPART B

36 Section 1. The executive law is amended by adding a new section 837-aa
37 to read as follows:

38 § 837-aa. Firearm prevention technology requirements for three-dimen-
39 sional printers. 1. As used in this section, the following terms shall
40 have the following meanings:

41 (a) "Three-dimensional printer" means:

42 (i) any machine capable of rendering a three-dimensional object from a
43 digital design file using additive manufacturing; or

44 (ii) any machine capable of making three-dimensional modifications to
45 an object from a digital design file using subtractive manufacturing.

46 (b) "Blocking technology" means hardware, software, firmware, or other
47 integrated technological measures capable of ensuring a three-dimension-
48 al printer will not proceed to print any print job unless the underlying
49 three-dimensional printing file has been evaluated by a firearms blue-
50 print detection algorithm and determined not to be a printing file that
51 would produce a firearm or illegal firearm parts.

52 (c) "Firearms blueprint detection algorithm" means a software service
53 that evaluates three-dimensional printing files, whether in the form of
54 stereolithography (STL) files or other computer aided design files or

geometric code, to determine if they can be used to program a three-dimensional printer to produce a firearm or illegal firearm parts, and flag any such files to prevent their use to manufacture said firearm or illegal firearm parts.

(d) "Illegal firearm parts" means an unfinished frame or receiver, a major component of a firearm, or any part designed and intended for use in converting a semi-automatic weapon into a machine gun, including, but not limited to, a pistol converter.

(e) All other terms shall have the same meaning given to such terms in section 265.00 of the penal law.

2. Within ninety days of the effective date of this section, the division, the department of state, and the state university of New York shall convene a working group which shall include experts in additive manufacturing technology, artificial intelligence and digital security, firearms regulation, public safety, consumer product safety, and any other relevant disciplines determined by the division to be necessary to perform the functions prescribed herein. No later than one year after the working group convenes, the working group shall make recommendations regarding the minimum safety standards a three-dimensional printer's blocking technology must meet in order to comply with the requirements of section three hundred ninety-six-eeee of the general business law. Such recommendations shall address, at a minimum, available and appropriate types of blocking technology, including minimum performance standards for those technologies and for firearms blueprint detection algorithms, necessary safeguards to reduce the risk of circumvention of blocking technology, and alignment with existing state and federal law. Provided, however, that if the working group determines that it is not technologically feasible to require three-dimensional printers sold in the state of New York to include blocking technology, the working group shall so report, and no regulations shall be required to be promulgated pursuant to this section, until such time as the working group determines that it is technologically feasible.

3. The division shall:

(a) within nine months of receiving the recommendations from the working group pursuant to subdivision two of this section, unless the working group reports that it is not technologically feasible to require three-dimensional printers sold in New York to include blocking technology, in consultation with the department of state, promulgate and publish rules or regulations establishing performance standards for blocking technology and any other rules and regulations as may be necessary to carry out the provisions of this section, section three hundred ninety-six-eeee, and article thirty-nine-DDD of the general business law; and

(b) be authorized to create and maintain a library of firearms blueprint files and illegal firearm parts blueprint files, and maintain and update the library, including by adding new files that enable the three-dimensional printing of firearms or illegal firearm parts. In furtherance of this authorization, the division may designate another government agency or an academic or research institution in this state to assist with the creation and maintenance of the file library. The library shall be made available to three-dimensional printer manufacturers, vendors with demonstrated expertise in software development, or experts in computational design or public safety, for the development or improvement of blocking technology and firearm blueprint detection algorithms. The division shall establish safeguards to prevent unauthorized access to and misuse of the library and shall prohibit all persons who

1 are granted access to the library from misusing, selling, disseminating,
2 or otherwise publishing its contents.

3 § 2. The general business law is amended by adding a new section 396-
4 eeee to read as follows:

5 § 396-eeee. Three-dimensional printers. 1. No person, firm or corpo-
6 ration shall sell or deliver any three-dimensional printer in the state
7 of New York unless such printer is equipped with blocking technology,
8 and except as provided in subdivision two of this section, no such sale
9 or delivery shall be permitted unless the transferee meets in person
10 with the transferor to accomplish such sale or delivery. As used in this
11 section, the terms "three-dimensional printer" and "blocking technology"
12 shall have the same meaning as such terms are defined in subdivision one
13 of section eight hundred thirty-seven-aa of the executive law.

14 2. The provisions of subdivision one of this section regarding in
15 person sale or delivery shall not apply to purchases made by federal,
16 state, or local government agencies for the purpose of furnishing such
17 three-dimensional printers to employees in eligible professions.

18 3. Whenever the attorney general shall believe from evidence satisfac-
19 tory to them that any person, firm, corporation or association or agent
20 or employee thereof has engaged in or is about to engage in conduct
21 prohibited by this chapter they may bring an action in the name and on
22 behalf of the people of the state of New York to enjoin such unlawful
23 acts or practices and to obtain restitution of any moneys or property
24 obtained directly or indirectly by any such unlawful acts or practices.
25 In such action preliminary relief may be granted under article sixty-
26 three of the civil practice law and rules.

27 4. Any gun industry member determined by a court to have violated this
28 article shall be liable to the people of the state of New York for a
29 civil penalty of five thousand dollars for each qualified product that
30 is unlawfully sold, transferred, imported, distributed, manufactured,
31 marketed, or offered for wholesale or retail sale in New York state.

32 5. Any person, firm, corporation or association that has been damaged
33 as a result of any person, firm or corporation whose acts or omissions
34 that violate the provisions of this section shall be entitled to bring
35 an action for recovery of damages or to enforce this article.

36 § 2-a. Section 898-a of the general business law, as added by chapter
37 237 of the laws of 2021, subdivision 2 as amended by chapter 429 of the
38 laws of 2024 and subdivision 6 as amended by chapter 123 of the laws of
39 2024, is amended to read as follows:

40 § 898-a. Definitions. For purposes of this article, the following
41 terms shall have the following meanings:

42 1. [~~"Deceptive"~~] "Unfair, deceptive, or abusive acts or practices"
43 shall have the same meaning as defined in article twenty-two-A of this
44 chapter.

45 2. "Reasonable controls and procedures" shall mean policies that
46 include, but are not limited to: (a) instituting screening, security,
47 inventory and other business practices to prevent thefts of qualified
48 products as well as sales or distribution of qualified products to straw
49 purchasers, traffickers, persons prohibited from possessing firearms
50 under state or federal law, or persons at risk of injuring themselves or
51 others; (b) preventing unfair, deceptive, or abusive acts and practices
52 and false advertising and otherwise ensuring compliance with all
53 provisions of article twenty-two-A of this chapter; and (c) taking
54 reasonable steps to prevent the installation and use of a pistol
55 converter, as defined in section 265.00 of the penal law, on qualified
56 products.

1 3. "False advertising" shall have the same meaning as defined in arti-
2 cle twenty-two-A of this chapter.

3 4. "Gun industry member" shall mean a person, firm, corporation,
4 company, partnership, society, joint stock company or any other entity
5 or association engaged in the sale, manufacturing, distribution, import-
6 ing or marketing of firearms, ammunition, ammunition magazines, [and]
7 firearms accessories, firearm component parts, digital firearm manufac-
8 turing code, or computer numerical control (CNC) milling machines or
9 three-dimensional printers that have the sole or primary function of
10 manufacturing firearms.

11 5. The terms "knowingly" and "recklessly" shall have the same meaning
12 as defined in section 15.05 of the penal law.

13 6. "Qualified product" shall mean a firearm, as defined in subpara-
14 graph (A) or (B) of 18 U.S.C. section 921(a)(3), including any antique
15 firearm, as defined in 18 U.S.C. section 921(a)(16), or ammunition, as
16 defined in 18 U.S.C. section 921(a)(17)(A), or a component part of a
17 firearm or ammunition, or digital firearm manufacturing code, or a
18 computer numerical control (CNC) milling machine or three-dimensional
19 printer that has the sole or primary function of manufacturing firearms.

20 7. "Digital firearm manufacturing code" shall mean any digital
21 instructions in the form of computer-aided design files or other code or
22 instructions stored and displayed in electronic format as a digital
23 model that may be used to program a three-dimensional printer or a
24 computer numerical control (CNC) milling machine to manufacture or
25 produce any firearm, rifle, shotgun, ghost gun, unfinished frame or
26 receiver, firearm silencer, rapid-fire modification device or major
27 component of a firearm, as those terms are defined in section 265.00 of
28 the penal law.

29 § 2-b. Section 898-b of the general business law, as added by chapter
30 237 of the laws of 2021, is amended to read as follows:

31 § 898-b. Prohibited activities. 1. No gun industry member, by conduct
32 either unlawful in itself or unreasonable under all the circumstances
33 shall knowingly or recklessly create, maintain or contribute to a condi-
34 tion in New York state that endangers the safety or health of the public
35 through the sale, manufacturing, importing, distribution, or marketing
36 of a qualified product.

37 2. All gun industry members who manufacture, market, import, distrib-
38 ute, or offer for wholesale or retail sale any qualified product in
39 New York state shall establish and utilize reasonable controls and
40 procedures to prevent its qualified products from being possessed,
41 used, marketed or sold unlawfully in New York state.

42 § 2-c. Section 898-d of the general business law, as added by chapter
43 237 of the laws of 2021, is amended to read as follows:

44 § 898-d. Enforcement. Whenever there shall be a violation of this
45 article, the attorney general, in the name of the people of the state of
46 New York, or a city corporation counsel on behalf of the locality, may
47 bring an action in the supreme court or federal district court to enjoin
48 and restrain such violations and to obtain appropriate monetary relief,
49 including restitution and damages. In addition, any gun industry member
50 determined by a court to have violated this article shall be liable to
51 the people of the state of New York for a civil penalty of five thousand
52 dollars for each qualified product that is unlawfully sold, transferred,
53 imported, distributed, manufactured, marketed, or offered for wholesale
54 or retail sale in New York state.

55 § 3. This act shall take effect immediately; provided, however, that
56 section two of this act shall take effect one year after the promulga-

tion of rules as provided for in subdivision 3 of section 837-aa of the executive law, as added by section one of this act; provided further, that the commissioner of the division of criminal justice services shall notify the legislative bill drafting commission upon the promulgation of such rules in order that the commission may maintain an accurate and timely effective database of the official text of the laws of the state of New York in furtherance of effectuating the provisions of section 44 of the legislative law and section 70-b of the public officers law.

§ 2. Severability. If any clause, sentence, paragraph, section or subpart of this act shall be adjudged by any court of competent jurisdiction to be invalid and after exhaustion of all further judicial review, the judgment shall not affect, impair, or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, section or subpart of this act directly involved in the controversy in which the judgment shall have been rendered.

§ 3. This act shall take effect immediately provided, however, that the applicable effective date of Subparts A through B of this Part shall be as specifically set forth in the last section of such Subparts.

PART D

Intentionally Omitted

PART E

Section 1. Subdivision 2 of section 2805-i of the public health law, as amended by section 1 of part II of chapter 56 of the laws of 2021, paragraph (j) as amended by chapter 646 of the laws of 2025, is amended to read as follows:

2. Sexual offense evidence shall be collected and maintained as follows:

(a) All sexual offense evidence shall be kept in a locked, separate and secure area for twenty years from the date of collection or until the victim's fortieth birthday, whichever is later; provided that such evidence shall be transferred to a new location(s) pursuant to this subdivision.

(b) Sexual offense evidence shall include, but not be limited to, slides, cotton swabs, clothing and other items. Where appropriate, such items shall be refrigerated and the clothes and swabs shall be dried, stored in paper bags, and labeled. Each item of evidence shall be marked and logged with a code number corresponding to the alleged sexual offense victim's medical record.

(c) Upon collection, the hospital shall notify the alleged sexual offense victim that, after twenty years or until the victim's fortieth birthday, whichever is later, the sexual offense evidence will be discarded in compliance with state and local health codes and that the alleged sexual offense victim's clothes or personal effects will be returned to the alleged sexual offense victim at any time upon request. The alleged sexual offense victim shall be given the option of providing contact information for purposes of receiving notice of the planned destruction of such evidence after the expiration of the twenty-year period or until the victim's fortieth birthday, whichever is later.

(d) Until September thirtieth, two thousand twenty-two, or earlier if determined feasible by the director of budget, hospitals shall be responsible for securing long-term sexual offense evidence pursuant to

1 this section, after which such storage shall be the responsibility of
2 the office of victim services. Hospitals may enter into contracts with
3 other entities that will ensure appropriate and secure long-term storage
4 of sexual offense evidence pursuant to this section until September
5 thirtieth, two thousand twenty-two.

6 (e) Beginning April first, two thousand eighteen, the department, the
7 office of victim services, the division of criminal justice services and
8 the division of state police shall jointly study, evaluate and make
9 recommendations concerning the storage and monitoring of sexual offense
10 evidence for twenty years, including studying options for the use of:
11 state-owned or operated facilities; facilities owned or operated by
12 local government or law enforcement agencies; and facilities owned or
13 operated by private entities.

14 (f) Between thirty and ten days prior to the transfer of sexual
15 offense evidence to the office of victim services, hospitals shall make
16 diligent efforts to notify the alleged sexual offense victim of the
17 transfer of custody for the remainder of the twenty-year storage period
18 or until the victim's fortieth birthday, whichever is later.

19 (g) On September thirtieth, two thousand twenty-two, or earlier if
20 determined feasible by the director of budget, responsibility for long-
21 term storage of sexual offense evidence shall transfer to the office of
22 victim services.

23 (h) After September thirtieth, two thousand twenty-two, or earlier if
24 determined feasible by the director of budget, hospitals shall ensure
25 transfer of sexual offense evidence collected pursuant to this section
26 to the office of victim services within ten days of collection of such
27 evidence, while maintaining chain of custody.

28 (i) At least ninety days prior to the expiration of the twenty-year
29 storage period for any sexual offense evidence or until the victim's
30 fortieth birthday, whichever is later, the office of victim services
31 shall make diligent efforts to contact the alleged sexual offense victim
32 to notify the alleged sexual offense victim that the sexual offense
33 evidence will be discarded in compliance with state and local health
34 codes and that the alleged sexual offense victim's clothes and personal
35 effects will be returned to the alleged sexual offense victim upon
36 request.

37 (j) (1) Notwithstanding any other provision in this section, sexual
38 offense evidence shall not continue to be stored where:

39 (i) such evidence is not privileged and law enforcement requests its
40 release, in which case the custodian or custodians shall comply with
41 such request; or

42 (ii) such evidence is privileged and either (A) the alleged sexual
43 offense victim gives permission to release the evidence to law enforce-
44 ment, upon which law enforcement must retrieve the evidence within seven
45 days of such permission and report such evidence in the statewide elec-
46 tronic tracking system pursuant to subdivision eight of this section, or
47 (B) the alleged sexual offense victim signs a statement directing the
48 custodian or custodians to dispose of the evidence, in which case the
49 sexual offense evidence will be discarded in compliance with state and
50 local health codes. Where the alleged sexual offense victim is under
51 the age of eighteen, a vulnerable elderly person, or an incompetent or
52 physically disabled person as defined in section 260.31 of the penal
53 law, the office of victim services shall not destroy sexual offense
54 evidence at the direction of a parent, guardian, conservator, or other
55 party.

(2) Where the alleged sexual offense victim is under the age of eighteen and had capacity to independently consent to a forensic rape exam, such victim may independently request the destruction of sexual offense evidence or may independently make decisions impacting the status of their kit as "reported" or "unreported" as defined in subparagraphs three and four of paragraph (g) of subdivision eight of this section.

(k) Where the alleged sexual offense victim was under the age of eighteen at the time of the alleged sexual offense, the office of victim services shall, upon the victim's eighteenth birthday, make diligent efforts to contact the alleged sexual offense victim and provide information described in section six hundred forty-one of the executive law and subparagraphs one, five, six, seven and eight of paragraph (a) of subdivision six of this section.

§ 2. Subparagraph 6 of paragraph (a) of subdivision 6 of section 2805-i of the public health law, as added by chapter 407 of the laws of 2018, is amended to read as follows:

(6) be notified between thirty and ten days prior to the transfer of a sexual offense evidence kit from the hospital to another storage facility in accordance with paragraph (h) of subdivision two of this section, the right to have a sexual offense evidence kit maintained at an appropriate storage facility for twenty years from the date of collection or until the victim's fortieth birthday, whichever is later, the right, if not previously consented to, to consent to release the evidence to law enforcement at any time during the twenty years from collection, and the right to be notified by such facility at least ninety days prior to the expiration of the twenty-year storage period in accordance with paragraph (k) of subdivision two of this section; and

§ 3. Subdivision 7 of section 2805-i of the public health law, as added by chapter 1 of the laws of 2000 and as renumbered by chapter 407 of the laws of 2018, is amended to read as follows:

~~7. [On or before November thirtieth, two thousand two, the commissioner shall make a report to the governor, the temporary president of the senate and the speaker of the assembly concerning the sexual assault forensic examiner program established under subdivision four-b of this section. Such report shall include an evaluation of the efficacy of such program in obtaining useful forensic evidence in sexual offense cases and assuring quality treatment to sex offense victims. Such report shall also recommend whether this program should be expanded and shall estimate the financial cost, if any, of such expansion.]~~ (a) The division of criminal justice services and the office of victim services, in consultation with the division of state police forensic investigations center and the department, shall convene a working group to:

(1) address the creation of a coordinated tracking system for sexual offense evidence kits;

(2) assess and make recommendations related to the forensic testing of sexual offense evidence collection kits when a survivor declines to report to law enforcement; and

(3) make recommendations to strengthen existing sexual offense evidence collection and testing for all sexual offense evidence kits.

(b) The working group shall report its findings and recommendations to the governor, the temporary president of the senate, and the speaker of the assembly on or before November thirtieth, two thousand twenty-six.

§ 4. Subdivision 8 of section 2805-i of the public health law, as amended by chapter 646 of the laws of 2025, is amended to read as follows:

1 8. (a) The division of criminal justice services in consultation with
2 the department, the office of victim services, the division of state
3 police, and the New York State Coalition Against Sexual Assault shall
4 develop a statewide electronic tracking system for reported evidence
5 collection kits used to collect and preserve evidence of a sexual
6 assault or other sex offense. [~~Such statewide electronic tracking system~~
7 ~~shall not include unreported evidence collection kits, provided, howev-~~
8 ~~er, that any unreported evidence collection kits released by the office~~
9 ~~of victim services to law enforcement pursuant to clause (A) of subpara-~~
10 ~~graph (ii) of paragraph j of subdivision two of this section shall be~~
11 ~~designated as reported evidence collection kits subject to the tracking~~
12 ~~requirements set forth in this subdivision.~~]

13 (b) The division of criminal justice services shall promulgate rules
14 and guidelines to ensure that sexual assault evidence collection kits
15 are trackable on a statewide electronic tracking system developed pursu-
16 ant to this subdivision, and that survivors are given notice of how they
17 may track their own reported evidence collection kit. Such rules and
18 guidelines shall require that (i) hospitals collecting evidence
19 collection kits record the collection of any reported evidence
20 collection kits in the electronic tracking system and notify the appro-
21 priate law enforcement agency within forty-eight hours of such
22 collection, and (ii) law enforcement retrieve any reported evidence
23 collection kit from a hospital within seven days of being notified by a
24 hospital that a reported evidence collection kit has been collected. Any
25 hospital, law enforcement agency, forensic laboratory, or prosecutor
26 that has taken custody of an evidence collection kit used for a forensic
27 medical examination shall comply with the established protocols, rules
28 and guidelines established by the division of criminal justice services
29 pursuant to this paragraph.

30 (c) The statewide electronic tracking system shall:

31 (1) Track the location and status of each reported evidence collection
32 kit from collection to final disposition;

33 (2) Allow a hospital, law enforcement agency, accredited crime labora-
34 tory, prosecutor, employees of the long-term sexual offense evidence
35 storage facility, or any other entity providing a chain of custody for a
36 reported evidence collection kit, to update and track the status and
37 location of the reported evidence collection kits; [and]

38 (3) Allow a survivor to anonymously track or receive updates regarding
39 the status and location of such survivor's reported evidence collection
40 kit[-]; and

41 (4) Incorporate any relevant findings from the working group refer-
42 enced in subdivision seven of this section.

43 (d) No later than [~~January~~] December first, two thousand [~~twenty-five~~]
44 twenty-seven, any hospital, law enforcement agency, accredited crime
45 laboratory, prosecutor, employee of the long-term sexual offense
46 evidence storage facility, or any other entity providing a chain of
47 custody for a reported evidence collection kit to update and track the
48 status and location of such kit, shall participate in the tracking
49 system and comply with all established protocols, rules and guidelines.
50 A participating entity shall be permitted to access the entity's track-
51 ing information through the statewide electronic tracking system.

52 (e) Records entered into the tracking system are confidential. Records
53 relating to a reported evidence collection kit shall be accessed only by
54 the survivor for whom the reported evidence collection kit was
55 completed.

(f) The provisions of this subdivision shall apply to all reported evidence collection kits submitted prior to, on, or after the effective date of this subdivision.

(g) For purposes of this section:

(1) "evidence collection kit" shall mean a human biological specimen or specimens collected by a healthcare provider during a forensic medical examination from the victim of a sexual assault or other sex offense;

(2) "survivor" shall mean an individual who is the victim of a sexual offense from whom a human biological specimen or specimens were collected by a healthcare provider during a forensic medical examination;

(3) "reported evidence collection kit" means a sexual assault evidence kit in which the survivor has consented to evidence collection and ~~[reporting the sexual assault or other sex offense to law enforcement]~~ forensic testing; and

(4) "unreported evidence collection kit" means ~~[evidence collection kits controlled by the office of victims services pursuant to paragraph (d) of subdivision two of this section]~~ a sexual offense evidence collection kit for which the survivor has not consented or has withdrawn consent to either forensic testing or reporting to law enforcement.

§ 5. This act shall take effect immediately; provided, however, that sections one and two of this act shall take effect on the five hundred forty-fifth day after it shall have become a law.

PART F

Intentionally Omitted

PART G

Intentionally Omitted

PART H

Section 1. Subdivision 4 of section 530.12 of the criminal procedure law, as amended by chapter 589 of the laws of 1997, is amended to read as follows:

4. The court may issue or extend a temporary order of protection ex parte or on notice simultaneously with the issuance of a warrant for the arrest of defendant. Such temporary order of protection ~~[may]~~ shall continue in effect until the day the defendant subsequently appears in court pursuant to such warrant or voluntarily or otherwise, and the court shall so inform the defendant when issuing the order of protection.

§ 2. Subdivision 3 of section 530.13 of the criminal procedure law, as amended by chapter 589 of the laws of 1997, is amended to read as follows:

3. The court may issue or extend a temporary order of protection under this section ex parte simultaneously with the issuance of a warrant for the arrest of the defendant. Such temporary order of protection ~~[may]~~ shall continue in effect until the day the defendant subsequently appears in court pursuant to such warrant or voluntarily or otherwise.

1 and the court shall so inform the defendant when issuing the order of
2 protection.

3 § 3. Subdivision 3 of section 828 of the family court act, as amended
4 by chapter 530 of the laws of 1980, is amended to read as follows:

5 3. The court may issue or extend a temporary order of protection ex
6 parte or on notice simultaneously with the issuance of a warrant,
7 directing that the respondent be arrested and brought before the court,
8 pursuant to section eight hundred twenty-seven of this article. When
9 the respondent first appears in court, the court shall inform the
10 respondent that such temporary order of protection shall continue in
11 effect until the respondent subsequently appears in court.

12 § 4. This act shall take effect on the ninetieth day after it shall
13 have become a law.

14 PART I

15 Intentionally Omitted

16 PART J

17 Section 1. Subdivision 1 of section 29-b of the executive law, as
18 amended by section 7 of part B of chapter 56 of the laws of 2010, is
19 amended to read as follows:

20 1. State use of disaster emergency response personnel and non-state
21 resource providers. a. The governor may, in [~~his or her~~] their
22 discretion, direct the state disaster preparedness commission to conduct
23 an emergency exercise or drill, under its direction, in which all or any
24 of the personnel and resources of the agencies of the commission of the
25 state may be utilized to perform the duties assigned to them in a disas-
26 ter, for the purpose of protecting and preserving human life or property
27 in a disaster. During a disaster or such drill or exercise, disaster
28 emergency response personnel in the state shall operate under the direc-
29 tion and command of the chair of such commission, and shall possess the
30 same powers, duties, rights, privileges and immunities as are applicable
31 in a civil defense drill held at the direction of the state civil
32 defense commission under the provisions of the New York state defense
33 emergency act.

34 b. The governor may deploy non-state resource providers to another
35 compact member jurisdiction under any compact in this article. When
36 authorized to provide assistance and deployed by the legally designated
37 state official or officials, non-state resource providers shall be
38 deemed agents of the state for purposes of the deployment and shall be
39 entitled to the rights and benefits provided to state resource providers
40 by the compact, subject to any terms and conditions of the requesting
41 state. Non-state resource providers shall not offer assistance to, or
42 request assistance from, another compact member jurisdiction. The divi-
43 sion of homeland security and emergency services shall serve as the
44 coordinator for offers and requests for assistance and facilitator of
45 the reimbursement of non-state resource providers by the requesting
46 state. The division of homeland security and emergency services shall
47 not be responsible for reimbursement until the division receives payment
48 from the requesting compact member jurisdiction.

49 § 2. The executive law is amended by adding a new section 29-k to read
50 as follows:

§ 29-k. Northern emergency management assistance compact. Notwithstanding any other law, the state, through the governor, may enter the northern emergency management assistance compact (P.L. 112-282, ratified by Congress on January fourteenth, two thousand thirteen). Such compact shall be deemed ratified by the legislature upon the governor's certification to the temporary president of the senate, the speaker of the assembly, and the secretary of state, that New York has entered into the compact.

§ 3. The executive law is amended by adding a new section 29-l to read as follows:

§ 29-l. International Emergency Management Assistance Compact. Notwithstanding any other law, the state, through the governor, may enter the compact established by the emergency management assistance memorandum of understanding (executed on July eighteenth, two thousand by the states of Connecticut, Maine, Massachusetts, New Hampshire, Rhode Island, and Vermont and the Canadian provinces of New Brunswick, Newfoundland, Nova Scotia, Prince Edward Island, and Quebec) at the twenty-fifth conference of New England Governors and Eastern Canadian Premiers, as authorized by Article II(j) of the Agreement between the Government of the United States and the Government of Canada on Cooperation in Comprehensive Emergency Planning and Management renewed on December second, nineteen ninety-eight. Such compact shall be deemed ratified by the legislature upon the governor's certification to the temporary president of the senate, the speaker of the assembly, and the secretary of state, that New York has entered into the compact.

§ 4. This act shall take effect immediately.

PART K

Section 1. The penal law is amended by adding a new section 240.69 to read as follows:

§ 240.69 Unlawful obstruction of a place of religious worship.

1. A person is guilty of unlawful obstruction of a place of religious worship when such person knowingly or intentionally occupies, obstructs, or otherwise interferes with the entryway into or exit from a place of religious worship in a manner that renders passage by another person unreasonably difficult, hazardous, or effectively impracticable.

2. For purposes of this section:

(a) "Place of religious worship" means any building or structure that a reasonable person would know that religious adherents collectively recognize as a place to regularly gather for or to hold religious worship activities or provide religious education or instruction.

(b) "Entryway into or exit from a place of religious worship" includes any driveway, parking lot entrance or exit, public way, and sidewalk adjacent to a place of religious worship.

Unlawful obstruction of a place of religious worship is a class B misdemeanor.

§ 2. This act shall take effect immediately.

PART L

Intentionally Omitted

PART M

Intentionally Omitted

PART N

Section 1. Section 5 of chapter 396 of the laws of 2010 amending the alcoholic beverage control law relating to liquidator's permits and temporary retail permits, as amended by section 1 of part Q of chapter 55 of the laws of 2025, is amended to read as follows:

§ 5. This act shall take effect on the sixtieth day after it shall have become a law, provided that paragraph (b) of subdivision 1 of section 97-a of the alcoholic beverage control law as added by section two of this act shall expire and be deemed repealed October 12, [2026] 2027.

§ 2. This act shall take effect immediately.

PART O

Section 1. This act enacts into law components of legislation relating to alcoholic beverage control licenses. Each component is wholly contained within a Subpart identified as Subparts A through K. The effective date for each particular provision contained within such Subpart is set forth in the last section of such Subpart. Any provision in any section contained within a Subpart, including the effective date of the Subpart, which makes a reference to a section "of this act", when used in connection with that particular component, shall be deemed to mean and refer to the corresponding section of the Subpart in which it is found. Section three of this Part sets forth the general effective date of this Part.

SUBPART A

Section 1. Subdivision 6 of section 97-a of the alcoholic beverage control law, as added by chapter 396 of the laws of 2010, is amended to read as follows:

6. The holder of a temporary retail permit shall ~~[purchase alcoholic beverages only by payment in currency or check for such alcoholic beverages on or before the day such alcoholic beverages are delivered, provided, however, that the holder of a temporary permit issued pursuant to this section who also holds one or more retail licenses and is operating under such retail license or licenses in addition to the temporary retail permit, and who is not delinquent under the provisions of section one hundred one aa of this chapter as to any retail license under which he operates, may purchase alcoholic beverages on credit under the temporary permit]~~ be subject to sections one hundred one-aa and one hundred one-aaa of this chapter.

§ 2. This act shall take effect immediately.

SUBPART B

Section 1. Paragraph (c) of subdivision 5 of section 107-a of the alcoholic beverage control law, as added by chapter 354 of the laws of 2013, is amended to read as follows:

(c) No brand or trade name label, or any separate label on the front or back of the container shall contain:

(i) any statement that is false or untrue in any particular manner;

(ii) any statement that is disparaging of a competitor's product;
(iii) any statement, design, device or representation that is likely to mislead the consumer; ~~[or]~~
(iv) any statement or claim of health benefits to be derived from consumption by the consumer~~[.]; or~~

(v) any statement, design, device, or representation that in the opinion of the authority is intended to appeal to children and/or persons under twenty-one years of age. For purposes of this paragraph, factors for determining whether labelling is directed at a child and/or persons under twenty-one years of age may include, but not be limited to:

(A) subject matter;
(B) visual content;
(C) representations of children;
(D) presence of child and teen celebrities or celebrities who appeal to children and teens; and
(E) language including claims, buzzwords, sayings, and/or phrases that are trending such as common colloquial words specific to the age group.

§ 2. This act shall take effect immediately.

SUBPART C

Section 1. Section 57-a of the alcoholic beverage control law, as amended by chapter 523 of the laws of 2023, is amended to read as follows:

§ 57-a. Change in duration of licenses. The liquor authority is authorized to change the periods during which the licenses authorized by sections fifty-one, fifty-one-a, fifty-three, fifty-three-a, fifty-four, fifty-four-a, fifty-five and fifty-five-a of this article shall be effective and to establish the commencement dates, duration and expiration dates thereof, provided that no such license shall be effective for a period in excess of three years. When any change or changes are made in the duration of any such license, the license fee shall be equal to the annual license fee specified in this article multiplied by the number of years for which such license is issued. The liquor authority may make such rules as shall be appropriate to carry out the purpose of this section.

§ 2. This act shall take effect immediately.

SUBPART D

Section 1. Section 101-b of the alcoholic beverage control law, as amended by chapter 531 of the laws of 1964, subdivision 2 as amended by chapter 669 of the laws of 1989, paragraph (a) of subdivision 3 as amended and paragraph (e) of subdivision 3 as added by chapter 24 of the laws of 2024, paragraph (b) of subdivision 3 as amended by section 1 and paragraph (d) of subdivision 3 as added by section 2 of part E of chapter 56 of the laws of 2006, subdivision 4 as amended by chapter 102 of the laws of 1979, subdivision 4-a as added by chapter 891 of the laws of 1986, subdivision 5 as added and subdivisions 6 and 7 as renumbered by chapter 769 of the laws of 1986, paragraphs (a) and (b) of subdivision 5 as amended by chapter 315 of the laws of 2022, and subdivision 6 as amended by chapter 919 of the laws of 1976, is amended to read as follows:

§ 101-b. Unlawful discriminations prohibited~~[-; filing of schedules; schedule listing fund]~~. 1. ~~[It is the declared policy of the state that it is necessary to regulate and control the manufacture, sale, and~~

~~distribution within the state of alcoholic beverages for the purpose of fostering and promoting temperance in their consumption and respect for and obedience to the law.]~~ In order to eliminate ~~[the undue stimulation of sales of alcoholic beverages and]~~ the practice of manufacturers and wholesalers in granting discounts, rebates, allowances, free goods, and other inducements to selected licensees, which contribute to a disorderly distribution of alcoholic beverages, and which are detrimental to the proper regulation of the liquor industry and contrary to the interests of temperance, it is hereby further declared as the policy of the state that the sale of alcoholic beverages should be subjected to certain restrictions, prohibitions and regulations. The necessity for the enactment of the provisions of this section is, therefore, declared as a matter of legislative determination.

2. It shall be unlawful for any person who sells liquors or wines to wholesalers or retailers ~~[(a)]~~ to discriminate, directly or indirectly, in price, in discounts for time of payment or in discounts on quantity of merchandise sold, between one wholesaler and another wholesaler, or between one retailer and another retailer purchasing liquor or wine bearing the same brand or trade name and of like age and quality~~[(b) to grant, directly or indirectly, any discount, rebate, free goods, allowance or other inducement of any kind whatsoever, except a discount or discounts for quantity of liquor or for quantity of wine and a discount not in excess of one per centum for payment on or before ten days from date of shipment].~~

3. ~~[(a) No brand of liquor or wine shall be sold to or purchased by a wholesaler, irrespective of the place of sale or delivery, unless a schedule, as provided by this section, is transmitted to and received by the liquor authority, and is then in effect. Such schedule shall be transmitted to the authority in such form, manner, medium and format as the authority may direct; shall be deemed duly verified by the person submitting such schedule upon its transmission to the authority; and shall contain, with respect to each item, the exact brand or trade name, capacity of package, nature of contents, age and proof where stated on the label, the number of bottles contained in each case, the bottle and case price to wholesalers, the net bottle and case price paid by the seller, which prices, in each instance, shall be individual for each item and not in "combination" with any other item, the discounts for quantity, if any, and the discounts for time of payment, if any. Such brand of liquor or wine shall not be sold to wholesalers except at the price and discounts then in effect unless prior written permission of the authority is granted for good cause shown and for reasons not inconsistent with the purpose of this chapter. Such schedule shall be transmitted by (1) the owner of such brand, or (2) a wholesaler selling such brand and who is designated as agent for the purpose of filing such schedule if the owner of the brand is not licensed by the authority, or (3) with the approval of the authority, by a wholesaler, in the event that the owner of the brand is unable to transmit a schedule or designate an agent for such purpose.]~~

~~[(b) No brand of liquor or wine shall be sold to or purchased by a retailer unless a schedule, as provided by this section, is transmitted to and received by the liquor authority, and is then in effect. Such schedule shall be transmitted to the authority in such form, manner, medium and format as the authority may direct; shall be deemed duly verified by the person submitting such schedule upon its transmission to the authority; and shall contain, with respect to each item, the exact brand or trade name, capacity of package, nature of contents, age and~~

~~proof where stated on the label, the number of bottles contained in each case, the bottle and case price to retailers, the net bottle and case price paid by the seller, which prices, in each instance, shall be individual for each item and not in "combination" with any other item, the discounts for quantity, if any, and the discounts for time of payment, if any. Such brand of liquor or wine shall not be sold to retailers except at the price and discounts then in effect unless prior written permission of the authority is granted for good cause shown and for reasons not inconsistent with the purpose of this chapter. Such schedule shall be transmitted by each manufacturer selling such brand to retailers and by each wholesaler selling such brand to retailers.~~

~~(c) Provided however, nothing contained in this section shall require any manufacturer or wholesaler to list in any schedule to be filed pursuant to this section any item offered for sale to a retailer under a brand which is owned exclusively by one retailer and sold at retail within the state exclusively by such retailer.~~

~~(d) The authority may make available the schedules in paragraphs (a) and (b) of this subdivision to all licensed wholesaler or retail establishments by way of controlled internet access.~~

~~(e) As used in this subdivision the term "item" shall be deemed to include a sealed, pre-wrapped package consisting of a sealed container or containers of liquor, wine or wine products and other merchandise reasonably used in connection with the preparation, storage, promotion, gifting, or service of liquor, wine or wine products provided that such other merchandise shall not be potable or edible; provided however that any such wine, liquor or wine products sealed or pre-wrapped in combination with other items shall also be available individually for sale. For the purposes of this section, gift and promotional items shall only include those items that are complementary and directly associated with the sale of wine or liquor they are gifting or promoting and shall mean: (1) items that are de minimis in value, but in no instance shall merchandise be valued at more than fifteen dollars in total; (2) items that are imprinted with the wine or liquor brand logo on the gift or promotional item; and (3) items that are included as part of a manufactured pre-sealed package with the wine or liquor that is being gifted or promoted. Further, for the purposes of this section, gift or promotional items shall not include any food, non-alcoholic beverage, or other drink or food mix, nor shall these items be offered for sale to the general public as individual items.~~

~~4. Each such schedule required by paragraph (a) of subdivision three of this section shall be filed on or before the twenty fifth day of each month and the prices and discounts set forth therein shall become effective on the first day of the second succeeding calendar month and shall be in effect for such second succeeding calendar month. Each such schedule required by paragraph (b) of subdivision three of this section shall be filed on or before the fifth day of each month, and the prices and discounts set forth therein shall become effective on the first day of the calendar month following the filing thereof, and shall be in effect for such calendar month. Within ten days after the filing of such schedule the authority shall make them or a composite thereof available for inspection by licensees. Within three business days after such inspection is provided for, a wholesaler may amend his filed schedule for sales to retailers in order to meet lower competing prices and discounts for liquor or wine of the same brand or trade name, and of like age and quality, filed pursuant to this section by any licensee selling such brand, provided such amended prices are not lower and~~

~~discounts are not greater than those to be met. Any amended schedule so filed shall become effective on the first day of the calendar month following the filing thereof and shall be in effect for such calendar month. All schedules filed shall be subject to public inspection, from the time that they are required to be made available for inspection by licensees, and shall not be considered confidential. Each manufacturer and wholesaler shall retain in his licensed premises for inspection by licensees a copy of his filed schedules as then in effect. The liquor authority may make such rules as shall be appropriate to carry out the purpose of this section.~~

4-a.] No licensee shall refuse to sell any brand of liquor or wine to any licensee authorized to purchase such brand of liquor or wine from such licensee at the price listed in the schedule of prices of such brand of liquor or wine [~~required to be filed~~] maintained by such licensee [~~with the authority pursuant to this section~~] on their retailer ordering platform or other price list such licensee makes available to retailers, provided the purchaser pays cash therefor, and except as herein provided.

(a) [~~A schedule of prices to wholesalers filed by the brand owner or its agent with the authority, pursuant to this section, may limit the distribution or resale of a brand to wholesalers by the filing by the brand owner or its agent with the authority of the names, addresses and license numbers of such wholesalers. Such list shall be filed each month together with the schedule of prices, and no name shall be added thereto or removed therefrom after filing except with permission of the authority.~~

~~(b) Only those wholesalers listed, pursuant to paragraph (a) of this subdivision, may schedule the price to retailers for such brand, except that when not inconsistent with the purpose of this section, the authority may authorize any other wholesaler to schedule a price after furnishing the quantity, source of purchase and any other information the authority may require.~~

~~(c) When distribution or resale of a brand has been restricted, pursuant to paragraph (a) of this subdivision, such brand shall not be sold or purchased by any wholesalers who are not listed in accordance with paragraph (a) of this subdivision.~~

~~(d) For good cause shown to the satisfaction of the authority, permission may be granted for the filing of schedules limiting the distribution or resale of a brand to retailers.~~

~~(e)]~~ Manufacturers and wholesalers may not require or compel retailers to purchase other brands in order to be able to buy a particular brand.

[~~(f)~~] (b) Nothing contained in this subdivision shall be construed as authority for permitting any conduct or activity by any brand owner or its agent or any wholesaler of liquor or wine proscribed by the anti-trust laws of this state or the United States.

[~~(g)~~] (c) If any provision of any paragraph of this subdivision or any subdivision of this section or the application thereof to any person or circumstance shall be adjudged invalid by a court of competent jurisdiction, such order or judgment shall be confined in its operation to the controversy in which it was rendered and shall not affect or invalidate the remainder of any provision of this subdivision or any subdivision of this section or the application of any part thereof to any other person or circumstance and to this end the provisions of each paragraph of this subdivision and each subdivision of this section are hereby declared to be severable.

~~5. (a) (i) Notwithstanding any other provision of law, each such schedule required by paragraph (a) of subdivision three of this section which is filed by a micro winery, winery, or farm winery, or a class A, A-1, B, B-1, C, or D distiller shall be filed annually on or before the twenty-fifth day of November. The prices and discounts set forth therein shall become effective on the first day of the second succeeding calendar month and shall remain in effect for such twelve succeeding calendar months, unless a price change filing is made pursuant to subparagraph (ii) of this paragraph.~~

~~(ii) A micro winery, winery, or farm winery, or a class A, A-1, B, B-1, C, or D distiller licensee may file a price schedule change at any time between the required annual filings. Each such price schedule change shall be filed on or before the twenty-fifth day of each month for a change in prices to become effective on the first day of the second succeeding calendar month and shall remain in effect until the effective date of the next filing.~~

~~(b) (i) Notwithstanding any other provision of law, each such schedule required by paragraph (b) of subdivision three of this section which is filed by a micro winery, winery, or farm winery licensee, or a class A, A-1, B, B-1, C, or D distiller shall be filed annually on or before the fifth day of December. The prices and discounts set forth therein shall become effective on the first day of the calendar month following the filing thereof, and shall remain in effect for such twelve succeeding calendar months, unless a price change filing is made pursuant to subparagraph (ii) of this paragraph.~~

~~(ii) A micro winery, winery, or farm winery, or a class A, A-1, B, B-1, C, or D distiller licensee may file a price schedule change at any time between the required annual filings. Each such price schedule change shall be filed on or before the fifth day of each month for a change in prices to become effective on the first day of the calendar month following the filing thereof and shall remain in effect until the effective date of the next filing.~~

~~(c) Within ten days after the filing of such schedules the authority shall make them or a composite thereof available for inspection by licensees. Within three business days after such inspection is provided for, a wholesaler may amend his filed schedule for sales to retailers in order to meet lower competing prices and discounts for wine of the same brand or trade name, and of like age and quality, filed pursuant to this section by any licensee selling such brand, provided such amended prices are not lower and discounts are not greater than those to be met. Any amended schedule so filed shall become effective on the first day of the calendar month following the filing thereof and shall be in effect until the effective date of the next filing.~~

~~(d) All schedules filed shall be subject to public inspection, from the time that they are required to be made available for inspection by licensees, and shall not be considered confidential. Each manufacturer and wholesaler shall retain in his licensed premises for inspection by licensees a copy of his filed schedules as then in effect. The liquor authority may make such rules as shall be appropriate to carry out the purpose of this subdivision.~~

~~6. For the purpose of raising the moneys necessary to defray the expenses incurred in the administration of this section, on or before the tenth day after this act becomes a law, there shall be paid to the liquor authority by each manufacturer and wholesaler licensed under this chapter to sell to retailers liquors and/or wines, a sum equivalent to fifteen per centum of the annual license fee prescribed by this chapter~~

~~for each such licensee. A like sum shall be paid by each person hereafter applying for any such license or the renewal of any such license, and such sum shall accompany the application and the license fee prescribed by this chapter for such license or renewal as the case may be. In the event that any other law requires the payment of a fee by any such licensee or applicant as set forth in this section for schedule listing, then and in such event the total fee imposed by this section and such other law or laws on each such licensee shall not exceed in the aggregate a sum equivalent to fifteen per centum of the annual license fee prescribed by this chapter for such license.~~

~~7-]~~ 4. The authority may revoke, cancel or suspend any license issued pursuant to this chapter, and may recover (as provided in section one hundred twelve of this chapter) the penal sum of the bond filed by a licensee, or both, for any sale or purchase in violation of any of the provisions of this section or ~~[for making a false statement in any schedule filed pursuant to this section or]~~ for failing or refusing in any manner to comply with any of the provisions of this section.

§ 2. The opening paragraph of subdivision 4 of section 107-a of the alcoholic beverage control law, as amended by chapter 354 of the laws of 2013, is amended to read as follows:

An application for registration of a brand or trade name label shall be filed by (1) the owner of the brand or trade name if such owner is licensed by the authority, or (2) a wholesaler selling such brand who is appointed as exclusive agent, in writing, by the owner of the brand or trade name for the purpose of filing such application, if the owner of the brand or trade name is not licensed by the authority, or (3) any wholesaler, with the approval of the authority, in the event that the owner of the brand or trade name does not file or is unable to file such application or designate an agent for such purposes, or (4) any wholesaler, with the approval of the authority, in the event that the owner of the brand or trade name is a retailer who does not file such application, provided that the retailer shall consent to such filing by such wholesaler. Such retailer may revoke his consent at any time, upon written notice to the authority and to such wholesaler.

~~[Unless otherwise permitted or required by the authority, the application for registration of a liquor or wine brand or trade name label filed pursuant to this section shall be filed by the same licensee filing schedules pursuant to section one hundred one b of this article.]~~

Cordials and wines which differ only as to fluid content, age, or vintage year, as defined by such regulations, shall be considered the same brand; and those that differ as to type or class may be considered the same brand by the authority where consistent with the purposes of this section.

§ 3. This act shall take effect immediately.

SUBPART E

Section 1. Subdivision 1 of section 102 of the alcoholic beverage control law, as amended by chapter 242 of the laws of 1970, paragraphs (a), (b) and (c) as amended and paragraph (d) as relettered by chapter 210 of the laws of 2005, is amended to read as follows:

1. (a) Except as provided in ~~[section]~~ sections thirty-five, fifty-nine-b, sixty-eight, seventy-nine-c, ninety-four or ninety-six of this chapter, no alcoholic beverages shall be shipped into the state unless the same shall be consigned to a person duly licensed hereunder to traffic in alcoholic beverages. This prohibition shall apply to all ship-

ments of alcoholic beverages into New York state and includes importation or distribution for commercial purposes, for personal use, or otherwise, and irrespective of whether such alcoholic beverages were purchased within or without the state, provided, however, this prohibition shall not apply to any shipment consigned to a New York resident who has personally purchased alcoholic beverages for ~~[his]~~ personal use while outside the United States for a minimum period of forty-eight consecutive hours and which ~~[he]~~ such person has shipped as consignor to ~~[himself]~~ themselves as consignee. Purchases made outside the United States by persons other than the purchaser ~~[himself]~~ themselves, regardless whether made as ~~[his]~~ such person's agent, or by ~~[his]~~ their authorization or on ~~[his]~~ their behalf, are deemed not to have been personally purchased within the meaning of this paragraph. Violations of this subdivision are punishable as a class E felony.

(b) Except as provided in ~~[section]~~ sections thirty-five, fifty-nine-b, sixty-eight, seventy-nine-c, ninety-four or ninety-six of this chapter, no common carrier or other person shall bring or carry into the state any alcoholic beverages, unless the same shall be consigned to a person duly licensed hereunder to traffic in alcoholic beverages, provided, however, that alcoholic beverages may be delivered by a trucking permittee from a steamship or railroad station or terminal to a New York resident who has personally purchased alcoholic beverages for ~~[his]~~ personal use while outside the United States for a minimum period of forty-eight consecutive hours, and which ~~[he]~~ such person has shipped as consignor to ~~[himself]~~ themselves as consignee, and except as so stated, no trucking permittee shall accept for delivery, deliver or transport from a steamship or railroad station or terminal any shipment of alcoholic beverages consigned to a non-licensed person having ~~[his]~~ their home or business in New York state. Purchases of alcoholic beverages made outside the United States by persons other than the purchaser ~~[himself]~~ themselves, regardless whether made as ~~[his]~~ their agent, or by ~~[his]~~ their authorization or on ~~[his]~~ their behalf, are deemed not to have been personally purchased within the meaning of this paragraph.

(c) Paragraphs (a) and (b) of this subdivision shall apply to alcoholic beverages, either in the original package or otherwise, whether intended for commercial or personal use, as well as otherwise, and to foreign, interstate, as well as intrastate, shipments or carriage, irrespective of whether such alcoholic beverages were purchased within or without the state.

(d) Nothing in this chapter shall be deemed to exempt from taxation the sale or use of any alcoholic beverages subject to any tax imposed under or pursuant to the authority of the tax law or to grant any other exemption from the provisions of such law.

§ 2. Section 94 of the alcoholic beverage control law is amended by adding six new subdivisions 4, 5, 6, 7, 8 and 9 to read as follows:

4. No trucking permittee shall make deliveries of alcoholic beverages to a non-licensed person in New York state except as provided for in sections thirty-five, thirty-six, fifty-nine-b, fifty-nine-c, sixty-eight, sixty-nine, seventy-nine-c, seventy-nine-d or ninety-six of this chapter, or on behalf of a retail licensee licensed pursuant to this chapter.

5. No trucking permittee shall make deliveries of alcoholic beverages to a non-licensed person unless the driver and/or delivery staff shall have successfully completed alcohol training and awareness program (ATAP) training and hold a valid certificate issued by an approved ATAP

1 school pursuant to subdivision twelve of section seventeen or subdivi-
2 sion ten of section eighteen of this chapter.

3 6. Trucking permittees shall in connection with the acceptance of any
4 order for a delivery of alcoholic beverages to a non-licensed person in
5 New York:

6 (a) require the non-licensed person to represent that they have
7 attained the age of twenty-one years or more by providing a valid form
8 of photographic identification authorized by section sixty-five-b of
9 this chapter; and

10 (b) require the non-licensed person to sign an electronic or paper
11 form or other acknowledgement of receipt as approved by the authority;
12 and

13 (c) certify that the alcoholic beverages being purchased will not be
14 resold or introduced back into the stream of commerce; and

15 (d) refuse delivery when the proposed recipient appears to be under
16 twenty-one years of age and/or refuses to present valid identification
17 as required by subparagraph (a) of this paragraph.

18 7. Trucking permittees shall report twice annually to the authority in
19 such manner and form as the authority may direct, the total amount of
20 alcoholic beverages shipped to non-licensed persons in New York during
21 the reporting period, the names and addresses of the non-licensed
22 persons to whom the alcoholic beverages were shipped, the date of deliv-
23 ery, the name and license number of the licensee on whose behalf the
24 alcoholic beverages were delivered, and the quantity and value of each
25 shipment.

26 8. The authority and the department of taxation and finance may
27 promulgate rules and regulations necessary to effectuate the purposes
28 of this section.

29 9. The authority may enforce the requirements of this section by
30 administrative proceedings to suspend or revoke a trucking permit and
31 the authority may accept payment of an administrative fine in lieu of
32 suspension. In addition, the authority or the attorney general of the
33 state of New York shall report violations of this section, where appro-
34 priate, to the department of taxation and finance, to other state
35 licensing authorities, and/or the United States department of treas-
36 ury, tax and trade bureau, for administrative action to suspend or
37 revoke the federal basic permit.

38 § 3. Section 96 of the alcoholic beverage control law is amended by
39 adding four new subdivisions 4, 5, 6 and 7 to read as follows:

40 4. Any person holding a valid warehouse permit pursuant to this
41 section with the exception of a person defined as a marketplace provid-
42 er, may apply to the authority for an additional permit to operate as a
43 fulfillment warehouse. The fulfillment warehouse permit holder may
44 package and ship alcoholic beverages sold by licensed New York retailers
45 and/or New York manufacturers and/or direct shipper licensees to non-li-
46 icensed persons within this state. The fee for a fulfillment warehouse
47 permit shall be two thousand one hundred dollars for three years.

48 (a) Fulfillment warehouses shall report twice annually to the New York
49 State liquor authority in such manner and form as the authority may
50 direct:

51 (i) a current list of all licensed retailers, licensed manufacturers,
52 licensed wholesalers, and direct shipper licensees on whose behalf the
53 fulfillment warehouse ships or allows to be shipped alcoholic beverages
54 to non-licensed persons in this state; and

55 (ii) the total gallons of each type of alcoholic beverages shipped to
56 non-licensed persons from the fulfillment warehouse during the reporting

1 period, categorized in accordance with the state's tax classification
2 for alcoholic beverages; and

3 (iii) the name, business address, and license number of each licensed
4 retailer and direct shipper on whose behalf the fulfillment warehouse
5 packages or ships or allows to be shipped alcoholic beverages to non-li-
6 icensed persons in this state, with each licensee's name stated as it
7 appears on the retailer's or direct shipper's license; and

8 (iv) the names and addresses of the non-licensed persons to whom the
9 alcoholic beverages were shipped, the date of delivery, the name and
10 license number of the retailer or direct shipper licensee on whose
11 behalf the alcoholic beverages were delivered, and the quantity and
12 value of each shipment.

13 (b) A fulfillment warehouse may ship alcoholic beverages to a non-li-
14 icensed person within this state only if the package containing the alco-
15 holic beverages is conspicuously labeled with the words "CONTAINS ALCO-
16 HOLIC BEVERAGES - SIGNATURE OF PERSON AGE 21 OR OLDER REQUIRED FOR
17 DELIVERY - NOT FOR RESALE", or with other language specifically approved
18 by the New York State liquor authority, and clearly indicates on the
19 shipping label the name and address of the fulfillment warehouse as well
20 as the name and address of the non-licensed person within this state as
21 the intended recipient; and the name and license number of the licensed
22 retailer or direct shipper licensee that provided the alcoholic beverag-
23 es to the fulfillment warehouse; and the shipment is authorized under
24 this chapter.

25 5. For purposes of this section, a "marketplace provider" is a person
26 who meets the definition set forth in paragraph one of subdivision (e)
27 of section eleven hundred one of the tax law.

28 6. The authority and the department of taxation and finance may
29 promulgate rules and regulations to effectuate the purposes of this
30 section.

31 7. The authority may enforce the requirements of this section, by
32 administrative proceedings to suspend or revoke a warehouse permit or
33 fulfillment warehouse permit and the authority may accept payment of an
34 administrative fine in lieu of suspension. In addition, the authority or
35 the attorney general of the state of New York shall report violations of
36 this section, where appropriate, to the New York State department of
37 taxation and finance, to other state licensing authorities, and/or the
38 United States department of treasury, tax and trade bureau, for
39 administrative action to suspend or revoke the federal basic permit.

40 § 4. Paragraph (d) of subdivision 3 of section 35 of the alcoholic
41 beverage control law, as added by chapter 226 of the laws of 2024, is
42 amended to read as follows:

43 (d) shall ~~[maintain records]~~ report twice annually to the New York
44 State liquor authority in such manner and form as the authority may
45 direct, showing the total amount of mead and/or braggot shipped into the
46 state each calendar year; the names and addresses of the purchasers to
47 whom the mead and/or braggot was shipped, the date purchased, the name
48 of the common carrier used to deliver the mead and/or braggot, and the
49 quantity and value of each shipment;

50 § 5. Paragraph (d) of subdivision 3 of section 59-b of the alcoholic
51 beverage control law, as added by chapter 226 of the laws of 2024, is
52 amended to read as follows:

53 (d) shall ~~[maintain records]~~ report twice annually to the New York
54 State liquor authority in such manner and form as the authority may
55 direct, showing the total amount of cider shipped into the state each
56 calendar year; the names and addresses of the purchasers to whom the

1 cider was shipped, the date purchased, the name of the common carrier
2 used to deliver the cider, and the quantity and value of each shipment;
3 § 6. Paragraph (d) of subdivision 3 of section 68 of the alcoholic
4 beverage control law, as added by chapter 226 of the laws of 2024, is
5 amended to read as follows:

6 (d) shall ~~[maintain records]~~ report twice annually to the New York
7 State liquor authority in such manner and form as the authority may
8 direct, showing the total amount of liquor shipped into the state each
9 calendar year; the names and addresses of the purchasers to whom the
10 liquor was shipped, the date purchased, the name of the common carrier

11 used to deliver the liquor, and the quantity and value of each shipment;
12 § 7. Paragraph (d) of subdivision 3 of section 79-c of the alcoholic
13 beverage control law, as amended by chapter 226 of the laws of 2024, is
14 amended to read as follows:

15 (d) shall ~~[maintain records]~~ report twice annually to the New York
16 State liquor authority in such manner and form as the authority may
17 direct, showing the total amount of wine shipped into the state each
18 calendar year; the names and addresses of the purchasers to whom the
19 wine was shipped, the date purchased, the name of the common carrier
20 used to deliver the wine, and the quantity and value of each shipment;

21 § 8. This act shall take effect on the one hundred eightieth day after
22 it shall have become a law.

23 SUBPART F

24 Section 1. Section 5 of part CC of chapter 55 of the laws of 2024
25 amending the alcoholic beverage control law, relating to alcohol in
26 certain motion picture theatres, is amended to read as follows:

27 § 5. This act shall take effect immediately ~~[and shall expire and be~~
28 ~~deemed repealed 3 years after such date]~~.

29 § 2. This act shall take effect immediately.

30 SUBPART G

31 Section 1. Subdivision 9 of section 106 of the alcoholic beverage
32 control law is REPEALED.

33 § 2. This act shall take effect immediately.

34 SUBPART H

35 Section 1. Subdivision 6 of section 64-a of the alcoholic beverage
36 control law, as amended by section 2 of part CC of chapter 55 of the
37 laws of 2024, is amended to read as follows:

38 6. No special on-premises license shall be granted except for premises
39 in which the principal business shall be (a) the sale of food or beverages
40 at retail for consumption on the premises ~~[or]~~, (b) the operation
41 of a legitimate theatre, including a motion picture theatre that is a
42 building or facility which is regularly used and kept open primarily for
43 the exhibition of motion pictures for at least five out of seven days a
44 week, or on a regular seasonal basis of no less than six contiguous
45 weeks, to the general public where all auditorium seating is permanently
46 affixed to the floor and at least sixty-five percent of the motion
47 picture theatre's annual gross revenues is the combined result of admis-
48 sion revenue for the showing of motion pictures and the sale of food and
49 non-alcoholic beverages, (c) a bona-fide hotel, or such other lawful
50 adult entertainment or recreational facility as the liquor authority,

1 giving due regard to the convenience of the public and the strict avoid-
2 ance of sales prohibited by this chapter, shall by regulation classify
3 for eligibility.

4 § 2. This act shall take effect on the one hundred eightieth day
5 after it shall have become a law. Effective immediately, the addition,
6 amendment and/or repeal of any rule or regulation necessary for the
7 implementation of this act on its effective date are authorized to be
8 made and completed on or before such effective date.

9 SUBPART I

10 Section 1. Section 51 of the alcoholic beverage control law is amended
11 by adding a new subdivision 5-b to read as follows:

12 5-b. (a) A brewer licensed pursuant to this section that qualifies for
13 the micro-brewery fee pursuant to section fifty-six of this article may,
14 at the licensed premises, sell at retail for consumption on or off the
15 licensed premises:

16 (i) beer manufactured by the licensee;

17 (ii) New York state labeled beer, wine, cider, spirits and mead manu-
18 factured by a person licensed to manufacture such product under this
19 chapter.

20 (b) A micro-brewery licensee may conduct tastings of alcoholic bever-
21 ages and sell alcoholic beverages at retail for consumption on or off
22 the licensed premises pursuant to this subdivision; provided, however,
23 that for tastings and sales for on-premises consumption, the licensee
24 shall regularly keep food available for sale or service to its retail
25 customers for consumption on the premises. A licensee providing the
26 following shall be deemed in compliance with this provision: (i) sand-
27 wiches, soups or other such foods, whether fresh, processed, pre-cooked
28 or frozen; and/or (ii) food items intended to complement the tasting of
29 alcoholic beverages, which shall mean a diversified selection of food
30 that is ordinarily consumed without the use of tableware and can be
31 conveniently consumed while standing or walking, including but not
32 limited to: cheeses, fruits, vegetables, chocolates, breads, mustards
33 and crackers.

34 (c) A micro-brewery licensee may sell beer manufactured by the licen-
35 see or any other brewer licensed pursuant to this chapter at retail for
36 consumption off the premises at the state fair, at recognized county
37 fairs and at farmers markets operated on a not-for-profit basis, subject
38 to such rules and regulations as the authority may prescribe.

39 (d) A micro-brewery license shall authorize the holder thereof to
40 manufacture, bottle and sell food condiments and products such as
41 mustards, sauces, hop seasonings, beer nuts, and other hops and beer
42 related foods in addition to beer and to store and sell gift items in a
43 tax-paid room upon the licensed premises incidental to the sale of beer.
44 Such gift items shall be limited to the categories authorized for a farm
45 brewery pursuant to subdivision seven of section fifty-one-a of this
46 chapter.

47 (e) The holder of a license authorized by this subdivision may operate
48 up to five branch offices located away from the licensed premises. Such
49 locations shall be considered part of the licensed premises and all
50 activities allowed at and limited to the micro-brewery may be conducted
51 at the branch offices. Such branch offices shall not be located within,
52 share a common entrance and exit with, or have any interior access to
53 any other business, including premises licensed to sell alcoholic bever-
54 ages at retail. Prior to commencing operation of any such branch office,

the licensee shall notify the authority of the location of such branch office and the authority may issue a permit for the operation of same.

§ 2. Subdivision 1-a of section 61 of the alcoholic beverage control law, as amended by chapter 431 of the laws of 2014, is amended to read as follows:

1-a. (a) A class A-1 distiller's license shall authorize the holder thereof to operate a distillery which has a production capacity of no more than seventy-five thousand gallons per year for the manufacture of liquors by distillation or redistillation at the premises specifically designated in the license. Such a license shall also authorize the sale in bulk by such licensee from the licensed premises of the products manufactured under such license to any person holding a winery license, farm winery license, distiller's class A license, a distiller's class B license or a permittee engaged in the manufacture of products which are unfit for beverage use. It shall also authorize the sale from the licensed premises and from one other location in the state of New York of liquors manufactured by such licensee to a wholesale or retail liquor licensee or permittee in sealed containers of not more than one quart each. In addition, it shall authorize such licensee to sell from the licensed premises New York state labelled liquors to licensed farm wineries, farm breweries, farm distilleries and farm cideries in sealed containers of not more than one quart for retail sale for off-premises consumption. Such license shall also include the privilege to operate a rectifying plant under the same terms and conditions as the holder of a class B-1 distiller's license without the payment of any additional fee.

(b) A distiller licensed pursuant to this subdivision that qualifies for the micro-distillery fee pursuant to section sixty-six of this article may, at the licensed premises, sell at retail for consumption on or off the licensed premises:

(i) liquor manufactured by the licensee;

(ii) New York state labeled beer, wine, cider, spirits and mead manufactured by a person licensed to manufacture such product under this chapter.

(c) A micro-distillery licensee may conduct tastings of alcoholic beverages and sell alcoholic beverages at retail for consumption on or off the licensed premises pursuant to this subdivision; provided, however, that for tastings and sales for on-premises consumption, the licensee shall regularly keep food available for sale or service to its retail customers for consumption on the premises. A licensee providing the following shall be deemed in compliance with this provision: (i) sandwiches, soups or other such foods, whether fresh, processed, pre-cooked or frozen; and/or (ii) food items intended to complement the tasting of alcoholic beverages, which shall mean a diversified selection of food that is ordinarily consumed without the use of tableware and can be conveniently consumed while standing or walking, including but not limited to: cheeses, fruits, vegetables, chocolates, breads, mustards and crackers.

(d) A micro-distillery licensee may sell liquor manufactured by the licensee or any other distiller licensed pursuant to this chapter at retail for consumption off the premises at the state fair, at recognized county fairs and at farmers markets operated on a not-for-profit basis, subject to such rules and regulations as the authority may prescribe.

(e) A micro-distillery license shall authorize the holder thereof to manufacture, bottle and sell food condiments and products such as nuts, popcorn, mulling spices and other spirits related food in addition to other such food and crafts on and from the licensed premises. Such

license shall authorize the holder thereof to store and sell gift items in a tax-paid room upon the licensed premises incidental to the sale of liquor. These gift items shall be limited to the following categories:

(i) non-alcoholic beverages for consumption on or off premises, including but not limited to bottled water, juice and soda beverages;

(ii) food items for the purpose of complementing liquor tastings, which shall mean a diversified selection of food that is ordinarily consumed without the use of tableware and can be conveniently consumed while standing or walking. Such food items shall include but not be limited to: cheeses, fruits, vegetables, chocolates, breads, mustards and crackers;

(iii) food items, which shall include locally produced farm products and any food or food product not specifically prepared for immediate consumption upon the premises. Such food items may be combined into a package containing liquor related products;

(iv) liquor supplies and accessories, which shall include any item utilized for the storage, serving or consumption of liquor or for decorative purposes. These supplies may be sold as single items or may be combined into a package containing liquor;

(v) liquor-making equipment and supplies including, but not limited to, filters, bottling equipment, and books or other written material to assist spirits makers to produce and bottle liquor; and

(vi) souvenir items, which shall include, but not be limited to artwork, crafts, clothing, agricultural products and any other articles which can be construed to propagate tourism within the region.

(vii) Notwithstanding any provision of law to the contrary, another business or other businesses may operate on the licensed premises subject to such rules and regulations as the liquor authority may prescribe. Such rules and regulations shall determine which businesses will be compatible with the policy and purposes of this chapter and shall consider the effect of particular businesses on the community and area in the vicinity of the micro-distillery premises, provided however that a retailer business licensed under this chapter shall not be permitted to operate at a licensed manufacturing premises.

(f) The holder of a license authorized by this subdivision may operate up to five branch offices located away from the licensed premises. Such locations shall be considered part of the licensed premises and all activities allowed at and limited to the micro-distillery may be conducted at the branch offices. Such branch offices shall not be located within, share a common entrance and exit with, or have any interior access to any other business, including premises licensed to sell alcoholic beverages at retail. Prior to commencing operation of any such branch office, the licensee shall notify the authority of the location of such branch office and the authority may issue a permit for the operation of same.

§ 3. Subdivision 2-b of section 61 of the alcoholic beverage control law, as amended by chapter 431 of the laws of 2014, is amended to read as follows:

2-b. (a) A class B-1 distiller's license shall authorize the holder thereof to operate a rectifying plant which has a production capacity of no more than seventy-five thousand gallons per year for the manufacture of the products of rectification by purifying or combining alcohol, spirits, wine, or beer and the manufacture of cordials by the redistillation of alcohol or spirits over or with any materials. Such a license shall also authorize the holder thereof to blend, reduce proof and bottle on ~~his~~ licensed premises or in a United States customs bonded

1 warehouse for which a warehouse permit has been issued under this chap-
2 ter for wholesale liquor licensees or for persons authorized to sell
3 liquor at wholesale pursuant to the laws and regulation of any other
4 state, territorial possession of the United States or foreign country
5 liquor received in bulk by such wholesalers from other states, territo-
6 rial possessions of the United States or a foreign country, and to
7 rebottle or recondition for wholesale liquor or wine licensees or for
8 persons authorized to sell liquor or wine at wholesale pursuant to the
9 laws and regulations of any other state, territorial possession of the
10 United States or foreign country, liquor or wine manufactured outside
11 the state, which was purchased and received by such wholesalers in
12 sealed containers not exceeding one quart each of liquor or fifteen
13 gallons each of wine. Such a license shall also authorize the sale from
14 the licensed premises of the products manufactured by such licensee to a
15 wholesale or retail licensee in sealed containers of not more than one
16 quart each. In addition, it shall authorize such licensee to sell from
17 the licensed premises New York state labelled liquors to a farm winery
18 licensee in sealed containers of not more than one quart for retail sale
19 for off-premises consumption.

20 (b) A distiller licensed pursuant to this subdivision that qualifies
21 for the micro-rectifier fee pursuant to section sixty-six of this arti-
22 cle may, at the licensed premises, sell at retail for consumption on or
23 off the licensed premises:

24 (i) liquor manufactured by the licensee;

25 (ii) New York state labeled beer, wine, cider, spirits and mead manu-
26 factured by a person licensed to manufacture such product under this
27 chapter.

28 (c) A micro-rectifier licensee may conduct tastings of alcoholic
29 beverages and sell alcoholic beverages at retail for consumption on or
30 off the licensed premises pursuant to this subdivision; provided, howev-
31 er, that for tastings and sales for on-premises consumption, the licen-
32 see shall regularly keep food available for sale or service to its
33 retail customers for consumption on the premises. A licensee providing
34 the following shall be deemed in compliance with this provision: (i)
35 sandwiches, soups or other such foods, whether fresh, processed, pre-
36 cooked or frozen; and/or (ii) food items intended to complement the
37 tasting of alcoholic beverages, which shall mean a diversified selection
38 of food that is ordinarily consumed without the use of tableware and can
39 be conveniently consumed while standing or walking, including but not
40 limited to: cheeses, fruits, vegetables, chocolates, breads, mustards
41 and crackers.

42 (d) A micro-rectifier licensee may sell liquor manufactured by the
43 licensee or any other distiller licensed pursuant to this chapter at
44 retail for consumption off the premises at the state fair, at recognized
45 county fairs and at farmers markets operated on a not-for-profit basis,
46 subject to such rules and regulations as the authority may prescribe.

47 (e) A micro-rectifier license shall authorize the holder thereof to
48 manufacture, bottle and sell food condiments and products such as nuts,
49 popcorn, mulling spices and other spirits related food in addition to
50 other such food and crafts on and from the licensed premises. Such
51 license shall authorize the holder thereof to store and sell gift items
52 in a tax-paid room upon the licensed premises incidental to the sale of
53 liquor. These gift items shall be limited to the following categories:

54 (i) non-alcoholic beverages for consumption on or off premises,
55 including but not limited to bottled water, juice and soda beverages;

(ii) food items for the purpose of complementing liquor tastings, which shall mean a diversified selection of food that is ordinarily consumed without the use of tableware and can be conveniently consumed while standing or walking. Such food items shall include but not be limited to: cheeses, fruits, vegetables, chocolates, breads, mustards and crackers;

(iii) food items, which shall include locally produced farm products and any food or food product not specifically prepared for immediate consumption upon the premises. Such food items may be combined into a package containing liquor related products;

(iv) liquor supplies and accessories, which shall include any item utilized for the storage, serving or consumption of liquor or for decorative purposes. These supplies may be sold as single items or may be combined into a package containing liquor;

(v) liquor-making equipment and supplies including, but not limited to, filters, bottling equipment, and books or other written material to assist spirits makers to produce and bottle liquor; and

(vi) souvenir items, which shall include, but not be limited to artwork, crafts, clothing, agricultural products and any other articles which can be construed to propagate tourism within the region.

(vii) Notwithstanding any provision of law to the contrary, another business or other businesses may operate on the licensed premises subject to such rules and regulations as the liquor authority may prescribe. Such rules and regulations shall determine which businesses will be compatible with the policy and purposes of this chapter and shall consider the effect of particular businesses on the community and area in the vicinity of the micro distillery premises, provided however that a retailer business licensed under this chapter shall not be permitted to operate at a licensed manufacturing premises.

(f) The holder of a license authorized by this subdivision may operate up to five branch offices located away from the licensed premises. Such locations shall be considered part of the licensed premises and all activities allowed at and limited to the micro-distillery may be conducted at the branch offices. Such branch offices shall not be located within, share a common entrance and exit with, or have any interior access to any other business, including premises licensed to sell alcoholic beverages at retail. Prior to commencing operation of any such branch office, the licensee shall notify the authority of the location of such branch office and the authority may issue a permit for the operation of same.

§ 4. Paragraph (g) of subdivision 2-c of section 61 of the alcoholic beverage control law, as added by chapter 431 of the laws of 2014, is amended to read as follows:

(g) The holder of a license issued under this subdivision may operate up to ~~[one]~~ five branch ~~[office]~~ offices located away from the licensed farm distillery. Such ~~[location]~~ locations shall be considered part of the licensed premises and all activities allowed at and limited to the farm distillery may be conducted at the branch ~~[office]~~ offices. Such branch ~~[office]~~ offices shall not be located within, share a common entrance and exit with, or have any interior access to any other business, including premises licensed to sell alcoholic beverages at retail. Prior to commencing operation of any such branch ~~[office]~~ offices, the licensee shall notify the authority of the location of such branch ~~[office]~~ offices and the authority may issue a permit for the operation of same.

§ 5. This act shall take effect immediately.

1 SUBPART J

2 Section 1. Section 104 of the alcoholic beverage control law is
3 amended by adding a new subdivision 12 to read as follows:

4 12. Notwithstanding any provision of law to the contrary, no whole-
5 saler shall assess any fee, including but not limited to fees for stor-
6 age, interest, collections, attorneys, split cases, breakage and deliv-
7 ery, upon any New York state licensed retailer other than the purchase
8 price of alcoholic beverages, provided, however, that the authority may,
9 by rule or regulation, permit the assessment of one or more categories
10 of fees or charges and may impose such limitations, conditions, and
11 record keeping requirements it deems appropriate.

12 § 2. This act shall take effect on the ninetieth day after it shall
13 have become a law. Effective immediately, the addition, amendment and/or
14 repeal of any rule or regulation necessary for the implementation of
15 this act on its effective date are authorized to be made and completed
16 on or before such effective date.

17 SUBPART K

18 Section 1. The opening paragraph of paragraph (a) of subdivision 1 of
19 section 101 of the alcoholic beverage control law, as amended by chapter
20 318 of the laws of 2016, is amended to read as follows:

21 Be interested directly or indirectly in any premises where any alco-
22 holic beverage is sold at retail; or in any business devoted wholly or
23 partially to the sale of any alcoholic beverage at retail by stock
24 ownership, interlocking directors, mortgage or lien or any personal or
25 real property, or by any other means, except that nothing in this
26 section shall prohibit a licensed manufacturer or any owner of any out-
27 of-state premises where liquors, wines, or beer are manufactured from
28 owning up to three licensed retail premises for on-premises consumption
29 where such manufacturer is owned by the same person or corporate entity
30 as such retailer or retailers and where such retailer or retailers
31 utilize a substantially similar corporate name and/or d/b/a as the
32 manufacturer. For purposes of this chapter, said licensed manufacturer
33 or owner of any out-of-state premises where liquors, wines, or beer are
34 manufactured shall be deemed to be owned by the same corporate entity as
35 such retailer or retailers if a majority of each class of stock of each
36 such corporation is owned by the same person. The provisions of this
37 paragraph shall not apply to

38 § 2. Paragraph (e) of subdivision 1 of section 101 of the alcoholic
39 beverage control law, as added by chapter 557 of the laws of 1964, is
40 amended to read as follows:

41 (e) The prohibitions and restrictions contained in paragraphs [~~b, c~~
42 ~~and d above~~] (b), (c) and (d) of this subdivision shall not apply to any
43 contractual arrangements between a licensed manufacturer [~~or wholesaler~~]
44 or any owner of any out-of-state premises where liquors, wines, or beer
45 are manufactured and [~~a~~] up to three licensed [retailer] retail premises
46 for on-premises consumption where such manufacturer [~~or wholesaler has~~
47 ~~made a substantial investment, directly or through such retailer, in the~~
48 ~~construction, capitalization or furnishing of any exhibit, facility or~~
49 ~~installation in the area leased by the city of New York to New York~~
50 ~~World's Fair 1964-1965 Corporation, pursuant to chapter four hundred~~
51 ~~twenty-eight of the laws of nineteen hundred sixty, as amended, and such~~
52 ~~retailer is conducting his business as a part of such exhibit or instal-~~
53 ~~lation or is responsible to such corporation for the construction, oper-~~

~~ation or maintenance of such exhibit, facility or installation. This modification to the prohibitions and restrictions contained in this paragraph shall continue until November first, nineteen hundred sixty-five]~~ is owned by the same person or corporate entity as such retailer or retailers.

§ 3. The opening paragraph of paragraph (a) of subdivision 13 of section 106 of the alcoholic beverage control law, as amended by chapter 453 of the laws of 2018, is amended to read as follows:

No retail licensee for on-premises consumption shall be interested, directly or indirectly, in any premises where liquors, wines or beer are manufactured or sold at wholesale, by stock ownership, interlocking directors, mortgage or lien on any personal or real property or by any other means, except that nothing shall prohibit a licensed manufacturer or any owner of any out-of-state premises where liquors, wines, or beer are manufactured, from holding up to three licensed retail premises for on-premises consumption where such manufacturer is owned by the same person or corporate entity as such retailer or retailers, and except that liquors, wines or beer may be manufactured or sold wholesale by the person licensed as a manufacturer or wholesaler thereof:

§ 4. This act shall take effect on the ninetieth day after it shall have become a law.

§ 2. Severability clause. If any clause, sentence, paragraph, subdivision, section or part of this act shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, subdivision, section or part thereof directly involved in the controversy in which such judgment shall have been rendered. It is hereby declared to be the intent of the legislature that this act would have been enacted even if such invalid provisions had not been included herein.

§ 3. This act shall take effect immediately provided, however, that the applicable effective date of Subparts A through K of this part shall be as specifically set forth in the last section of such Subparts.

PART P

Section 1. This act enacts into law components of legislation relating to alcoholic beverage licensing. Each component is wholly contained within a Part identified as Subparts A through H. The effective date for each particular provision contained within such Subpart is set forth in the last section of such Subpart. Any provision in any section contained within a Subpart, including the effective date of the Subpart, which makes reference to a section "of this act", when used in connection with that particular component, shall be deemed to mean and refer to the corresponding section of the Subpart in which it is found. Section three of this act sets forth the general effective date of this Part.

SUBPART A

Section 1. The alcoholic beverage control law is amended by adding a new section 64-g to read as follows:

§ 64-g. License to sell liquor on premises at an adult care facility. 1. Any adult care facility licensed by the department of health may make an application to the state liquor authority for an adult care facility license.

2. Such application shall be in such form and shall contain such information as shall be required by the liquor authority and shall be accompanied by a check or draft in the amount required by this article for such license.

3. Section fifty-four of this chapter shall control so far as applicable to the procedure in connection with such application.

4. Such adult care facility license shall in form and in substance be a license to the adult care facility to operate one or more food and drinking establishments on its premises as defined by article forty-six-B of the public health law. Such license shall also be deemed to include a license to sell liquor, wine, beer, cider, mead and/or braggot at retail for consumption on its premises so licensed exclusively to residents and guests of residents of the adult care facility, and also to sell alcoholic beverages for service on its premises for residents and guests of residents in areas designated by the applicant for alcoholic beverage consumption in the manner prescribed by rule or regulation of the authority.

5. All of the provisions of this chapter relative to licenses to sell liquor, wine, beer, cider, mead and/or braggot at retail for consumption on the premises shall apply as far as applicable to such application.

§ 2. Section 66 of the alcoholic beverage control law is amended by adding a new subdivision 11 to read as follows:

11. The fee for an original and renewal adult care facility on-premises license shall be five hundred dollars. Such license shall run for a period of three years. In addition to the license fees provided for in this subdivision, there shall be paid to the authority with each original application a filing fee of two hundred dollars and with each renewal application a filing fee of one hundred dollars.

§ 3. This act shall take effect on the one hundred eightieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

SUBPART B

Section 1. Section 3 of the alcoholic beverage control law is amended by adding a new subdivision 2-a to read as follows:

2-a. "Airline lounge" means and includes any premises located within an airport and such premises is owned, leased, or operated by a United States certificated airline which regularly and in a bona fide manner furnishes provisions and services therein.

§ 2. Section 106 of the alcoholic beverage control law is amended by adding a new subdivision 8-a to read as follows:

8-a. A license issued for premises being conducted as an airline lounge shall authorize the holder thereof to provide alcoholic beverages for on-premises consumption only to persons with lounge access privileges as authorized by the airline. Food shall be made regularly available to such persons for consumption on the premises. The availability of sandwiches, soups or other foods, whether fresh, processed, pre-cooked or frozen, shall be deemed compliance with this requirement. The licensed premises shall comply at all times with all the regulations of the local department of health. Nothing contained in this subdivision, however, shall be construed to require that any food be sold or purchased with any liquor, nor shall any rule, regulation or standard be promulgated or enforced requiring that the sale of food be substantial

1 or that the receipts of the business other than from the sale of liquor
2 equal any set percentage of total receipts from sales made therein.

3 § 3. This act shall take effect on the one hundred eightieth day after
4 it shall have become a law. Effective immediately, the addition, amend-
5 ment and/or repeal of any rule or regulation necessary for the implemen-
6 tation of this act on its effective date are authorized to be made and
7 completed on or before such effective date.

8 SUBPART C

9 Section 1. Section 3 of the alcoholic beverage control law is amended
10 by adding a new subdivision 7-aa to read as follows:

11 7-aa. "Cafe" means a place which is regularly and in a bona fide
12 manner open for the service of light fare but not necessarily full
13 entrees to guests for compensation and featuring adequate food prepara-
14 tion facilities for keeping of food on said premises in compliance with
15 all the regulations of the local department of health, and where food is
16 prepared and served for consumption on the premises in such quantities
17 as to satisfy the liquor authority that the sale of alcoholic beverages
18 intended is incidental to and not the prime source of revenue from the
19 operation of such premises. For the purposes of a cafe, "guests" means
20 persons who, during the hours when meals are regularly served therein,
21 come to a cafe for the purpose of obtaining, and actually order and
22 obtain at such time, in good faith, freshly prepared light fare therein.
23 Nothing contained in this subdivision shall be construed to require that
24 any food be sold or purchased with any beverage.

25 § 2. This act shall take effect on the one hundred eightieth day after
26 it shall have become a law. Effective immediately, the addition, amend-
27 ment and/or repeal of any rule or regulation necessary for the implemen-
28 tation of this act on its effective date are authorized to be made and
29 completed on or before such effective date.

30 SUBPART D

31 Section 1. The alcoholic beverage control law is amended by adding a
32 new section 64-h to read as follows:

33 § 64-h. Higher education on-premises license. 1. Any college, univer-
34 sity, or other institution for higher education authorized to confer
35 degrees by the board of regents or the commissioner of education may
36 make an application to the state liquor authority for a higher education
37 license.

38 2. Such application shall be in such form and shall contain such
39 information as shall be required by the liquor authority and shall be
40 accompanied by a check or draft in the amount required by this section
41 for such license.

42 3. Section fifty-four of this chapter shall control so far as applica-
43 ble to the procedure in connection with such application.

44 4. Such higher education license shall in form and in substance be a
45 license to the college, university, or other institution for higher
46 education to periodically provide food and beverages for events held on
47 its campus as defined by section two of the education law, and to sell
48 liquor, wine, beer and cider at retail for consumption on the premises
49 so licensed. The event spaces so designated need not be contiguous to
50 one another. Upon notice to the authority, a higher education licensee
51 may also host events, meetings, seminars, or conferences where food and
52 alcoholic beverages are served or available to attendees and where the

alcoholic beverages are incidental to the event, at locations on its campus other than those designated as food and drinking establishments in the application, such events may be catered by a licensed caterer. Servers at such events must be persons holding a certificate of completion issued by an alcohol training awareness program pursuant to subdivision twelve of section seventeen or subdivision ten of section eighteen of this chapter. All of the provisions of this chapter relative to licenses to sell liquor, wine, beer, cider, mead and/or braggot at retail for consumption on the premises shall apply so far as applicable to such application.

5. Such license shall also be deemed to include a license to manufacture liquor, wine, beer, cider, mead and/or braggot on the premises specifically licensed, under the same terms and without payment of any additional fee. Provided, however, that no such licensee shall manufacture annually in excess of ten thousand barrels of beer, seventy-five thousand gallons of wine, seventy-five thousand gallons of cider, or thirty-seven thousand five hundred gallons of distilled spirits.

6. A higher education licensee may conduct tastings of any alcoholic beverages it produces:

(a) upon its licensed premises;

(b) at the state fair, at recognized county fairs and at farmers markets operated on a not-for-profit basis; and

(c) at outdoor or indoor gatherings, functions, occasions or events, within the hours fixed by or pursuant to subdivision fourteen of section one hundred five of this chapter, sponsored by a bona fide charitable organization. For the purposes of this paragraph, a bona fide charitable organization shall mean and include any bona fide religious or charitable organization or bona fide educational, fraternal or service organization or bona fide organization of veterans or volunteer firefighters, which by its charter, certificate of incorporation, constitution, or act of the legislature, shall have among its dominant purposes one or more of the lawful purposes as defined in subdivision five of section one hundred eighty-six of the general municipal law.

7. Notwithstanding any other provision of law to the contrary, all alcoholic beverages produced by a higher education licensee and sold on the premises of said higher education licensee, or utilized for tastings as otherwise provided for by this section, shall be exempt from the provisions of sections fifty-five-b, one hundred seven-a, one hundred one-aa, and one hundred one-aaa of this chapter.

8. A higher education licensee may sell alcoholic beverages produced by the licensee to another retail licensee where such other license is held by the college, university, or other institution for higher education.

9. For purposes of sections one hundred one and one hundred six of this chapter, the licensee under this section shall be considered a "retailer" as that term is defined within section three of this chapter. Provided, however, that the provisions of subdivision one of section one hundred one and subdivision thirteen of section one hundred six of this chapter shall only apply to the licensee's alcoholic beverage officer, as designated pursuant to subdivision four of section one hundred twenty-six of this chapter.

10. A higher education licensee shall report to the authority no less than five days prior to all events featuring sales or tastings of alcoholic beverages conducted pursuant to their license during the license period in such manner and format as the authority shall direct.

§ 2. Subdivision 1 of section 101 of the alcoholic beverage control law is amended by adding a new paragraph (g) to read as follows:

(g) In the case of a college, university, or other institution for higher education authorized to confer degrees by the board of regents or the commissioner of education holding a retail license under this chapter, the provisions and restrictions contained in paragraphs (b) and (d) of this subdivision shall only apply to such licensee's alcoholic beverage officer, as designated pursuant to subdivision four of section one hundred twenty-six of this article.

§ 3. Paragraph (a) of subdivision 1 of section 110 of the alcoholic beverage control law is amended by adding a new clause (iv) to read as follows:

(iv) If the applicant is a college, university, or other institution for higher education authorized to confer degrees by the board of regents or the commissioner of education, the corporate name of the applicant, its place of incorporation, its main business address (and if such main business address is not within the state, the address of its main place of business within the state), other names by which it has been known or has conducted business at any time, its telephone number, its federal employer identification number, and the name of its alcoholic beverage officer.

§ 4. Subdivision 4 of section 126 of the alcoholic beverage control law, as amended by chapter 669 of the laws of 2022, is amended to read as follows:

4. A copartnership or a corporation, unless each member of the partnership, or each of the principal officers and directors of the corporation, is a citizen of the United States or a noncitizen lawfully admitted for permanent residence in the United States, not less than twenty-one years of age, and has not been convicted of any felony or any of the misdemeanors, specified in section eleven hundred forty-six of the former penal law as in force and effect immediately prior to September first, nineteen hundred sixty-seven, or of an offense defined in section 230.20 or 230.40 of the penal law, or if so convicted has received, subsequent to such conviction, an executive pardon therefor removing this disability a certificate of good conduct granted by the department of corrections and community supervision, or a certificate of relief from disabilities granted by the department of corrections and community supervision or a court of this state pursuant to the provisions of article twenty-three of the correction law to remove the disability under this section because of such conviction; provided however: that a corporation which otherwise conforms to the requirements of this section and chapter may be licensed if each of its principal officers and more than one-half of its directors are citizens of the United States or noncitizens lawfully admitted for permanent residence in the United States; and provided further that a corporation organized under the not-for-profit corporation law or the education law which otherwise conforms to the requirements of this section and chapter may be licensed if each of its principal officers and more than one-half of its directors are not less than twenty-one years of age and none of its directors are less than eighteen years of age; and provided further that a corporation organized under the not-for-profit corporation law or the education law and located on the premises of a college as defined by section two of the education law which otherwise conforms to the requirements of this section and chapter may be licensed if each of its principal officers and each of its directors are not less than eighteen years of age; and that a college, university, or other institution for

higher education authorized to confer degrees by the board of regents or the commissioner of education may be licensed if it appoints an alcoholic beverage officer from among its officers who otherwise conforms to the requirements of this section and chapter and who shall be responsible for filing all applications and other documents required to be submitted to the authority.

§ 5. Section 66 of the alcoholic beverage control law is amended by adding a new subdivision 12 to read as follows:

12. The fee for an original and renewal higher education on-premises license shall be one thousand five hundred dollars. Such license shall run for a period of three years. In addition to the license fees provided for in this subdivision, there shall be paid to the authority with each original application a filing fee of two hundred dollars and with each renewal application a filing fee of one hundred dollars.

§ 6. This act shall take effect on the one hundred eightieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

SUBPART E

Section 1. The alcoholic beverage control law is amended by adding a new section 79-e to read as follows:

§ 79-e. Hotel concessionaire license. 1. Any person may apply to the authority for a license to sell unopened alcoholic beverages to go from a shop or concession stand located within a hotel.

2. (a) Such hotel concessionaire license shall in form and in substance enable the person specifically licensed to sell wine, beer, cider, mead, braggot, and wine products at not more than fifteen percent alcohol by volume and in sealed containers not to exceed seven hundred fifty milliliters.

(b) Any person holding a hotel concessionaire license shall only sell alcoholic beverages described in paragraph (a) of this subdivision above at retail exclusively to registered overnight guests staying at the hotel at the time of the sale.

3. A license issued under this section shall be confined to a clearly defined area within a hotel as disclosed to the authority. Provided, however, that a hotel concessionaire licensee may use space shared with the hotel in which the licensed premises is located to keep and maintain any books and records required by this chapter and to store alcoholic beverages. Such shared space shall be disclosed to and approved by the authority.

4. The holder of a hotel concessionaire license shall take the following actions to prevent the occurrence of prohibited sales as described in section sixty-five of this chapter:

(a) The hotel shop or concession stand licensed under this section must be directly supervised by the licensee, a hired manager, or an employee of the licensee during all hours of operation;

(b) All sales of alcoholic beverages in the licensed hotel shop or concession stand must be made by a person holding a certificate of completion issued by an alcohol training awareness program pursuant to subdivision twelve of section seventeen or subdivision ten of section eighteen of this chapter;

(c) The holder of a hotel concessionaire license must obtain an age verification scanner and keep it in the hotel shop or concession stand licensed under this section;

(d) The persons making the sale of alcohol in the licensed hotel shop or concession stand must use a scanner to verify the age of customers before completing the transaction;

(e) The person making the sale of alcohol must obtain proof that the customer is a registered overnight guest staying at the hotel at the time of the sale by checking the customer's keycard or another item or document that would prove the customer is a registered guest at that time; and

(f) All other preventative measures as deemed necessary by the authority.

5. Every hotel concessionaire licensee shall regularly keep food available for sale in the shop or concession stand located within the hotel. The availability of sandwiches, soups or other foods, whether fresh, processed, pre-cooked or frozen, shall be deemed compliance with this requirement.

6. (a) Any person receiving a hotel concessionaire license under this section shall be subject to the provisions of sections one hundred five and one hundred five-b of this chapter, unless determined otherwise by the authority pursuant to subdivision ten of this section.

(b) Any premises licensed under this section and any space shared with a hotel in which said premises is located shall be subject to inspection by any peace officer described in subdivision four of section 2.10 of the criminal procedure law acting pursuant to their special duties, or police officer or any duly authorized representative of the state liquor authority, during the hours when said premises are open for the transaction of business.

7. Notwithstanding any other provisions of this chapter, any hotel business operator with a license issued under this chapter to sell alcoholic beverages at retail for consumption on the premises at such hotel may apply to the authority for a hotel concessionaire license.

8. The fee for a hotel concessionaire license shall be one thousand nine hundred twenty dollars in the counties of New York, Kings, Bronx, and Queens; nine hundred sixty dollars in the county of Richmond and in cities having a population of more than one hundred thousand and less than one million; and four hundred thirty-five dollars elsewhere. Said license shall run for a period of three years. In addition to the license fees provided for in this subdivision, there shall be paid to the authority with each initial application a non-refundable filing fee of one hundred dollars and with each renewal application a non-refundable filing fee of twenty-five dollars.

9. Such application shall be in such form and shall contain such information as shall be required by the rules of the authority and shall be accompanied by a check or draft in the amount required by subdivision eight of this section.

10. The authority may promulgate such rules and regulations as may be deemed necessary to carry out the provisions of this section.

§ 2. This act shall take effect on the one hundred eightieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

1 Section 1. The alcoholic beverage control law is amended by adding a
2 new section 99-i to read as follows:

3 § 99-i. Early morning sports bar on-premises permit. 1. Notwithstand-
4 ing any provision of law or rule to the contrary, anyone licensed pursu-
5 ant to this chapter with the privilege of selling alcoholic beverages at
6 retail for on-premises consumption may make an application to the
7 authority for an early morning sports bar on-premises permit.

8 2. Such application shall be in such form as the authority shall
9 prescribe and shall contain such information as shall be required by the
10 authority and shall be accompanied by a check or draft in the amount of
11 one thousand dollars for such permit. A filing fee of twenty dollars
12 shall be assessed for permits issued pursuant to this section. If
13 approved, such permit term shall run for the same license period as the
14 underlying on-premises retail license.

15 3. Such permit shall authorize the operation of the underlying
16 licensed premises for on-premises retail sales during the hours of seven
17 o'clock a.m. to eight o'clock a.m. Monday through Saturday, and seven
18 o'clock a.m. to ten o'clock a.m. on Sundays, on days when a live tele-
19 vised major professional or international sporting event is played
20 during those hours in the eastern daylight time/eastern standard time
21 time zone on that date.

22 4. Section fifty-four of this chapter shall control so far as applica-
23 ble to the procedure in connection with such application.

24 5. An applicant for a permit under this section shall provide notice
25 to the local municipality of such application as provided in section one
26 hundred ten-b of this chapter.

27 6. Such permit and the exercise of the privileges granted thereunder
28 shall be subject to such rules that the authority may deem necessary.

29 § 2. Paragraphs (a) and (b) of subdivision 5 of section 106 of the
30 alcoholic beverage control law, paragraph (a) as amended by chapter 160
31 of the laws of 2024 and paragraph (b) as amended by section 1 of part FF
32 of chapter 55 of the laws of 2020, are amended to read as follows:

33 (a) Except as provided in paragraph (c) of this subdivision, on
34 Sunday, from four ante meridiem to ten o'clock a.m., except pursuant to
35 a permit issued under section ninety-nine-h [~~or~~], subdivision five of
36 section ninety-seven [~~of this chapter~~] or a permit issued under section
37 ninety-nine-i of this chapter.

38 (b) Except as provided in paragraph (c) of this subdivision, on any
39 other day between four ante meridiem and eight ante meridiem, except
40 pursuant to a permit issued under section ninety-nine-i of this chapter.

41 § 3. This act shall take effect on the one hundred eightieth day after
42 it shall have become a law. Effective immediately, the addition, amend-
43 ment and/or repeal of any rule or regulation necessary for the implemen-
44 tation of this act on its effective date are authorized to be made and
45 completed on or before such effective date.

46 SUBPART G

47 Intentionally omitted.

48 SUBPART H

49 Section 1. Subdivision 3 of section 17 of the alcoholic beverage
50 control law, as separately amended by section 3 of chapter 342 and
51 section 1 of chapter 656 of the laws of 2025, is amended to read as
52 follows:

1 3. To revoke, cancel or suspend for cause any license or permit issued
2 under this chapter and/or to impose a civil penalty for cause against
3 any holder of a license or permit issued pursuant to this chapter. Any
4 civil penalty so imposed shall not exceed the sum of ten thousand
5 dollars as against the holder of any retail permit issued pursuant to
6 sections ninety-five, ninety-seven, ninety-eight, ninety-nine-d, nine-
7 ty-nine-i and paragraph f of subdivision one of section ninety-nine-b of
8 this chapter, and as against the holder of any retail license issued
9 pursuant to sections fifty-three-a, fifty-four, fifty-four-a, fifty-
10 five, fifty-five-a, sixty-three, sixty-four, sixty-four-a, sixty-four-b,
11 sixty-four-c, sixty-four-d, sixty-four-e, sixty-four-f, sixty-four-g,
12 sixty-four-h, seventy-six-f, seventy-nine, eighty-one and eighty-one-a
13 of this chapter, and the sum of thirty thousand dollars as against the
14 holder of a license issued pursuant to sections thirty, thirty-one,
15 thirty-five, fifty-three, fifty-nine-b, sixty-one-a, sixty-one-b,
16 sixty-one-c, sixty-eight, seventy-six, seventy-six-a, [and]
17 seventy-six-c, seventy-six-d, seventy-six-f, seventy-seven, seventy-
18 eight and seventy-nine-c of this chapter, provided that the civil penal-
19 ty against the holder of a wholesale license issued pursuant to section
20 fifty-three of this chapter shall not exceed the sum of ten thousand
21 dollars where that licensee violates provisions of this chapter during
22 the course of the sale of beer at retail to a person for consumption at
23 home, and the sum of one hundred thousand dollars as against the holder
24 of any license issued pursuant to sections fifty-one, sixty-one, and
25 sixty-two of this chapter. Any civil penalty so imposed shall be in
26 addition to and separate and apart from the terms and provisions of the
27 bond required pursuant to section one hundred twelve of this chapter.
28 Provided that no appeal is pending on the imposition of such civil
29 penalty, in the event such civil penalty imposed by the division remains
30 unpaid, in whole or in part, more than forty-five days after written
31 demand for payment has been sent by first class mail to the address of
32 the licensed premises, a notice of impending default judgment shall be
33 sent by first class mail to the licensed premises and by first class
34 mail to the last known home address of the person who signed the most
35 recent license application. The notice of impending default judgment
36 shall advise the licensee: (a) that a civil penalty was imposed on the
37 licensee; (b) the date the penalty was imposed; (c) the amount of the
38 civil penalty; (d) the amount of the civil penalty that remains unpaid
39 as of the date of the notice; (e) the violations for which the civil
40 penalty was imposed; and (f) that a judgment by default will be entered
41 in the supreme court of the county in which the licensed premises are
42 located, or other court of civil jurisdiction or any other place
43 provided for the entry of civil judgments within the state of New York
44 unless the division receives full payment of all civil penalties due
45 within twenty days of the date of the notice of impending default judg-
46 ment. If full payment shall not have been received by the division with-
47 in thirty days of mailing of the notice of impending default judgment,
48 the division shall proceed to enter with such court a statement of the
49 default judgment containing the amount of the penalty or penalties
50 remaining due and unpaid, along with proof of mailing of the notice of
51 impending default judgment. The filing of such judgment shall have the
52 full force and effect of a default judgment duly docketed with such
53 court pursuant to the civil practice law and rules and shall in all
54 respects be governed by that chapter and may be enforced in the same
55 manner and with the same effect as that provided by law in respect to
56 execution issued against property upon judgments of a court of record. A

1 judgment entered pursuant to this subdivision shall remain in full force
2 and effect for eight years notwithstanding any other provision of law.

3 § 2. Subdivision 6 of section 64-a of the alcoholic beverage control
4 law, as amended by section 2 of part CC of chapter 55 of the laws of
5 2024, is amended to read as follows:

6 6. No special on-premises license shall be granted except for premises
7 in which the principal business shall be (a) the sale of food or beverages
8 at retail for consumption on the premises; (b) an airline lounge;
9 (c) a cafe; or ~~[(b)]~~ (d) the operation of a legitimate theatre, including
10 a motion picture theatre that is a building or facility which is
11 regularly used and kept open primarily for the exhibition of motion
12 pictures for at least five out of seven days a week, or on a regular
13 seasonal basis of no less than six contiguous weeks, to the general
14 public where all auditorium seating is permanently affixed to the floor
15 and at least sixty-five percent of the motion picture theatre's annual
16 gross revenues is the combined result of admission revenue for the showing
17 of motion pictures and the sale of food and non-alcoholic beverages,
18 or such other lawful adult entertainment or recreational facility as the
19 liquor authority, giving due regard to the convenience of the public and
20 the strict avoidance of sales prohibited by this chapter, shall by regulation
21 classify for eligibility.

22 § 3. Subdivision 6 of section 64-a of the alcoholic beverage control
23 law, as amended by chapter 475 of the laws of 2011, is amended to read
24 as follows:

25 6. No special on-premises license shall be granted except for premises
26 in which the principal business shall be (a) the sale of food or beverages
27 at retail for consumption on the premises; (b) an airline lounge;
28 (c) a cafe; or ~~[(b)]~~ (d) the operation of a legitimate theatre or such
29 other lawful adult entertainment or recreational facility as the liquor
30 authority, giving due regard to the convenience of the public and the
31 strict avoidance of sales prohibited by this chapter, shall by regulation
32 classify for eligibility. Nothing contained in this subdivision
33 shall be deemed to authorize the issuance of a license to a motion
34 picture theatre, except those meeting the definition of restaurant and
35 meals, and where all seating is at tables where meals are served.

36 § 4. This act shall take effect on the one hundred eightieth day after
37 it shall have become a law; provided however, that the amendments to
38 subdivision 3 of section 17 of the alcoholic beverage control law made
39 by section one of this act shall be subject to the expiration of such
40 subdivision and shall expire and be deemed repealed therewith; provided
41 further, however, that the amendments to subdivision 6 of section 64-a
42 of the alcoholic beverage control law made by section two of this act
43 shall be subject to the expiration and reversion of such subdivision
44 pursuant to section 5 of part CC of chapter 55 of the laws of 2024, as
45 amended, when upon such date the provisions of section three of this act
46 shall take effect. Effective immediately, the addition, amendment
47 and/or repeal of any rule or regulation necessary for the implementation
48 of this act on its effective date are authorized to be made and
49 completed on or before such effective date.

50 § 2. Severability clause. If any clause, sentence, paragraph, subdivision,
51 section or part of this act shall be adjudged by any court of
52 competent jurisdiction to be invalid, such judgment shall not affect,
53 impair, or invalidate the remainder thereof, but shall be confined in
54 its operation to the clause, sentence, paragraph, subdivision, section
55 or part thereof directly involved in the controversy in which such judgment
56 shall have been rendered. It is hereby declared to be the intent of

the legislature that this act would have been enacted even if such invalid provisions had not been included herein.

§ 3. This act shall take effect immediately, provided, however, that the applicable effective date of Subparts A through H of this Part shall be as specifically set forth in the last section of such Subparts.

PART Q

Section 1. The alcoholic beverage control law is amended by adding a new section 64-g to read as follows:

§ 64-g. Dine and dance license. 1. Any person may make an application to the state liquor authority for a license to sell liquor at retail to be consumed on the premises of a dine and dance licensee. Such licenses shall be issued except for good cause shown and shall in form and in substance be a license to the person specifically licensed to sell liquors at retail, to be consumed upon the premises. Such license shall also be deemed to include a license to sell wine, beer, cider, mead and/or braggot at retail to be consumed under the same terms and conditions, without the payment of any additional fee. All of the provisions of this chapter relative to licenses to sell liquor, wine, beer, cider, mead and/or braggot at retail for consumption on the premises shall apply so far as applicable to such application.

2. Such application shall be in such form and shall contain such information as shall be required by the liquor authority and shall be accompanied by a check or draft in the amount required by this chapter for such licenses.

3. Section fifty-four of this chapter shall control, so far as applicable, the procedure in connection with such application.

4. Under this section, permissible methods of operation include live and/or recorded and/or DJ music and shall also specifically provide for patron and/or employee dancing, provided that such dancing shall not include exotic dancing. The liquor authority may promulgate such rules and regulations as deemed necessary to carry out the provisions of this section.

5. Every dine and dance licensee shall keep food available for sale to its customers for consumption on the premises. The availability of sandwiches, soups or comparable foods, whether fresh, processed, pre-cooked or frozen, during such hours of operation shall be deemed compliance with this requirement. Nothing contained in this subdivision, however, shall be construed to require that any food be sold or purchased with any liquor.

6. The authority may consider any or all of the following in determining whether public convenience and advantage and the public interest will be promoted by the granting of licenses under this section:

(a) the number, classes and character of licenses in proximity to the location and in the particular municipality or subdivision thereof;

(b) evidence that applicants have secured all necessary licenses and permits from the state and all other governing bodies;

(c) the effect that the granting of the license will have on vehicular traffic and parking in the proximity of the location;

(d) the existing noise level at the location and any increase in noise level that would be generated by the proposed premises;

(e) the history of liquor violations and reported criminal activity at the proposed premises; and

1 (f) any other factors specified by law or regulation that are relevant
2 to determine the public convenience or advantage and necessary to find
3 that the granting of such license shall be in the public interest.

4 7. No restaurant dine and dance license shall be granted for any prem-
5 ises which shall be:

6 (a) on the same street or avenue and within two hundred feet of a
7 building occupied exclusively as a school, church, synagogue or other
8 place of worship; or

9 (b) in a city, town or village having a population of twenty thousand
10 or more within five hundred feet of three or more existing premises
11 licensed and operating pursuant to this section and sections sixty-four,
12 sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d, and/or sixty-
13 four-f of this article;

14 (c) the measurements in paragraphs (a) and (b) of this subdivision are
15 to be taken in straight lines from the center of the nearest entrance of
16 the premises sought to be licensed to the center of the nearest entrance
17 of such school, church, synagogue or other place of worship or to the
18 center of the nearest entrance of each such premises licensed and oper-
19 ating pursuant to this section and sections sixty-four, sixty-four-a,
20 sixty-four-b, sixty-four-c, sixty-four-d, and/or sixty-four-f of this
21 article; except, however, that no renewal license shall be denied
22 because of such restriction to any premises so located which were main-
23 tained as a bona fide hotel, restaurant, catering establishment or club
24 on or prior to December fifth, nineteen hundred thirty-three; and,
25 except that no license shall be denied to any premises at which a
26 license under this chapter has been in existence continuously from a
27 date prior to the date when a building on the same street or avenue and
28 within two hundred feet of said premises has been occupied exclusively
29 as a school, church, synagogue or other place of worship; and except
30 that no license shall be denied to any premises, which is within five
31 hundred feet of three or more existing premises licensed and operating
32 pursuant to this section and sections sixty-four, sixty-four-a, sixty-
33 four-b, sixty-four-c, sixty-four-d, and/or sixty-four-f of this article,
34 at which a license under this chapter has been in existence continuously
35 on or prior to November first, nineteen hundred ninety-three. The liquor
36 authority, in its discretion, may authorize the removal of any such
37 licensed premises to a different location on the same street or avenue,
38 within two hundred feet of said school, church, synagogue or other place
39 of worship, provided that such new location is not within a closer
40 distance to such school, church, synagogue or other place of worship.

41 (d) within the context of this subdivision, the word "entrance" shall
42 mean a door of a school, of a house of worship, or of premises licensed
43 and operating pursuant to this section and sections sixty-four, sixty-
44 four-a, sixty-four-b, sixty-four-c, sixty-four-d, and/or sixty-four-f of
45 this article or of the premises sought to be licensed, regularly used to
46 give ingress to students of the school, to the general public attending
47 the place of worship, and to patrons or guests of the premises licensed
48 and operating pursuant to this section and sections sixty-four, sixty-
49 four-a, sixty-four-b, sixty-four-c, sixty-four-d and/or sixty-four-f of
50 this article or of the premises sought to be licensed, except that where
51 a school or house of worship or premises licensed and operating pursuant
52 to this section and sections sixty-four, sixty-four-a, sixty-four-b,
53 sixty-four-c, sixty-four-d, and/or sixty-four-f of this article or the
54 premises sought to be licensed is set back from a public thoroughfare,
55 the walkway or stairs leading to any such door shall be deemed an
56 entrance; and the measurement shall be taken to the center of the walk-

1 way or stairs at the point where it meets the building line or public
2 thoroughfare. A door which has no exterior hardware, or which is used
3 solely as an emergency or fire exit, or for maintenance purposes, or
4 which leads directly to a part of a building not regularly used by the
5 general public or patrons, is not deemed an "entrance".

6 (d-1) within the context of this subdivision, a building occupied as a
7 place of worship does not cease to be "exclusively" occupied as a place
8 of worship by incidental uses that are not of a nature to detract from
9 the predominant character of the building as a place of worship, such
10 uses which include, but which are not limited to: the conduct of legally
11 authorized games of bingo or other games of chance held as a means of
12 raising funds for the not-for-profit religious organization which
13 conducts services at the place of worship or for other not-for-profit
14 organizations or groups; use of the building for fund-raising perform-
15 ances by or benefitting the not-for-profit religious organization which
16 conducts services at the place of worship or other not-for-profit organ-
17 izations or groups; the use of the building by other religious organiza-
18 tions or groups for religious services or other purposes; the conduct of
19 social activities by or for the benefit of the congregants; the use of
20 the building for meetings held by organizations or groups providing
21 bereavement counseling to persons having suffered the loss of a loved
22 one, or providing advice or support for conditions or diseases includ-
23 ing, but not limited to, alcoholism, drug addiction, cancer, cerebral
24 palsy, Parkinson's disease, or Alzheimer's disease; the use of the
25 building for blood drives, health screenings, health information meet-
26 ings, yoga classes, exercise classes or other activities intended to
27 promote the health of the congregants or other persons; and use of the
28 building by non-congregant members of the community for private social
29 functions. The building occupied as a place of worship does not cease to
30 be "exclusively" occupied as a place of worship where the not-for-profit
31 religious organization occupying the place of worship accepts the
32 payment of funds to defray costs related to another party's use of the
33 building.

34 8. Any license issued pursuant to this section shall be subject to 9
35 NYCRR §48.3.

36 § 2. Subdivision 4 of section 66 of the alcoholic beverage control
37 law, as amended by chapter 703 of the laws of 2022, is amended to read
38 as follows:

39 4. The annual fee for a license, under section sixty-four ~~[or]~~,
40 sixty-four-a, sixty-four-b, sixty-four-d, or sixty-four-g of this arti-
41 cle, to sell liquor at retail to be consumed on the premises where sold
42 shall be twenty-one hundred seventy-six dollars in the counties of New
43 York, Kings, Bronx and Queens; fifteen hundred thirty-six dollars in the
44 county of Richmond and in cities having a population of more than one
45 hundred thousand and less than one million; twelve hundred sixteen
46 dollars in cities having a population of more than fifty thousand and
47 less than one hundred thousand; and the sum of eight hundred ninety-six
48 dollars elsewhere; except that the license fees for catering establish-
49 ments and off-premises catering establishments shall be two-thirds the
50 license fee specified herein and for clubs, except luncheon clubs and
51 golf clubs, shall be seven hundred fifty dollars in counties of New
52 York, Kings, Bronx and Queens; five hundred dollars in the county of
53 Richmond and in cities having a population of more than one hundred
54 thousand and less than one million; three hundred fifty dollars in
55 cities having a population of more than fifty thousand and less than one
56 hundred thousand; and the sum of two hundred fifty dollars elsewhere.

1 The annual fees for luncheon clubs shall be three hundred seventy-five
2 dollars, and for golf clubs in the counties of New York, Kings, Bronx,
3 Queens, Nassau, Richmond and Westchester, two hundred fifty dollars, and
4 elsewhere one hundred eighty-seven dollars and fifty cents. Notwith-
5 standing any other provision of law to the contrary, there shall be no
6 annual fee for a license, under section sixty-four, to sell liquor at
7 retail to be consumed on the premises where the applicant is an organ-
8 ization organized under section two hundred sixty of the military law
9 and incorporated pursuant to the not-for-profit corporation law.
10 Provided, however, that where any premises for which a license is issued
11 pursuant to section sixty-four ~~[or]~~, sixty-four-a, or sixty-four-g of
12 this article remain open only within the period commencing April first
13 and ending October thirty-first of any one year, or only within the
14 period commencing October first and ending the following April thirti-
15 eth, the liquor authority may, in its discretion, grant a summer or
16 winter license effective only for such appropriate period of time, for
17 which a license fee shall be paid to be pro-rated for the period for
18 which such license is effective, at the rate provided for in the city,
19 town or village in which such premises are located, except that no such
20 license fee shall be less than one-half of the regular annual license
21 fee; provided further that where the premises to be licensed are a race
22 track or a golf course or are licensed pursuant to section sixty-four or
23 sixty-four-a of this article, the period of such summer license may
24 commence March first and end November thirtieth.

25 Where a hotel, restaurant, club, golf course or race track is open
26 prior to April first and/or subsequent to October thirty-first by reason
27 of the issuance of a caterer's permit or permits issued by the authori-
28 ty, such fact alone shall not affect the eligibility of the premises or
29 the person owning or operating such hotel, restaurant, club, golf course
30 or race track for a summer license.

31 § 3. Section 67 of the alcoholic beverage control law, as amended by
32 chapter 523 of the laws of 2023, is amended to read as follows:

33 § 67. License fees, duration of licenses; fee for part of year.
34 Effective April first, nineteen hundred eighty-three, licenses issued
35 pursuant to sections sixty-one, sixty-two, sixty-three, sixty-four,
36 sixty-four-a, sixty-four-b, sixty-four-c and sixty-four-e of this arti-
37 cle shall be effective for three years at three times that annual fee,
38 except that, in implementing the purposes of this section, the liquor
39 authority shall schedule the commencement dates, duration and expiration
40 dates thereof to provide for an equal cycle of license renewals issued
41 under each such section through the course of the fiscal year. Effective
42 December first, nineteen hundred ninety-eight, licenses issued pursuant
43 to sections sixty-four, sixty-four-a ~~[and]~~, sixty-four-b, sixty-four-d,
44 sixty-four-f, and sixty-four-g of this article shall be effective for
45 two years at two times that annual fee, except that, in implementing the
46 purposes of this section, the liquor authority shall schedule the
47 commencement dates, duration and expiration dates thereof to provide for
48 an equal cycle of license renewals issued under each such section
49 through the course of the fiscal year. Notwithstanding the foregoing,
50 commencing on December first, nineteen hundred ninety-eight and conclud-
51 ing on July thirty-first, two thousand two, a licensee issued a license
52 pursuant to section sixty-four, sixty-four-a or sixty-four-b of this
53 article may elect to remit the fee for such license in equal annual
54 installments. Such installments shall be due on dates established by the
55 liquor authority and the failure of a licensee to have remitted such
56 annual installments after a due date shall be a violation of this chap-

1 ter. For licenses issued for less than the three-year licensing period,
2 the license fee shall be levied on a pro-rated basis. The entire license
3 fee shall be due and payable at the time of application. The liquor
4 authority may make such rules as shall be appropriate to carry out the
5 purpose of this section.

6 § 4. Subdivision 1 of section 110-a of the alcoholic beverage control
7 law, as added by chapter 77 of the laws of 1999, is amended to read as
8 follows:

9 1. Every person applying for a license to sell alcoholic beverages
10 pursuant to subdivision four of section fifty-one, or section fifty-
11 five, sixty-four, sixty-four-a, sixty-four-b, sixty-four-c,
12 sixty-four-d, sixty-four-f, sixty-four-g, eighty-one or eighty-one-a of
13 this chapter shall publish notice thereof pursuant to subdivision two of
14 this section.

15 § 5. Subdivision 1 of section 110-b of the alcoholic beverage control
16 law, as amended by chapter 342 of the laws of 2025, is amended to read
17 as follows:

18 1. Not more than two hundred seventy days before filing any of the
19 following applications, an applicant shall notify the municipality in
20 which the premises is located of such applicant's intent to file such an
21 application:

22 (a) for a license issued pursuant to section fifty-five, fifty-five-a,
23 sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d,
24 sixty-four-f, sixty-four-g, eighty-one or eighty-one-a of this chapter;

25 (b) for a renewal under section one hundred nine of this chapter of a
26 license issued pursuant to section fifty-five, fifty-five-a, sixty-four,
27 sixty-four-a, sixty-four-c, sixty-four-d, sixty-four-f, sixty-four-g,
28 eighty-one or eighty-one-a of this chapter if the premises is located
29 within the city of New York;

30 (c) for approval of an alteration under section ninety-nine-d of this
31 chapter if the premises is located within the city of New York and
32 licensed pursuant to section fifty-five, fifty-five-a, sixty-four,
33 sixty-four-a, sixty-four-c, sixty-four-d, sixty-four-f, sixty-four-g,
34 eighty-one or eighty-one-a of this chapter;

35 (d) for approval of a substantial corporate change under section nine-
36 ty-nine-d of this chapter if the premises is located within the city of
37 New York and licensed pursuant to section fifty-five, fifty-five-a,
38 sixty-four, sixty-four-a, sixty-four-c, sixty-four-d, sixty-four-f,
39 sixty-four-g, eighty-one or eighty-one-a of this chapter; or

40 (e) for a temporary retail permit issued under paragraph (b) of subdi-
41 vision one of section ninety-seven-a of this chapter where the estab-
42 lishment is to be licensed pursuant to section fifty-five, fifty-five-a,
43 sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d,
44 sixty-four-f, sixty-four-g, eighty-one or eighty-one-a of this chapter
45 located in a city with a population of one million or more people. If an
46 applicant subject to this paragraph shall, after filing an application
47 for a retail license and providing proper notice for such application
48 pursuant to paragraph (a) of this subdivision, subsequently file an
49 application for a temporary retail permit pursuant to section ninety-
50 seven-a of this chapter at the same premises, such applicant must file
51 additional notice pursuant to this paragraph; provided, however, such
52 notice will be effective at the later of its proper service under this
53 section or thirty days from the date proper notice was served under
54 paragraph (a) of this subdivision for the license at the same premises.

55 § 6. This act shall take effect on the one hundred eightieth day after
56 it shall have become a law and shall apply to all applications received

1 by the authority on or after such effective date; provided, however,
2 that if chapter 342 of the laws of 2025 shall not have taken effect on
3 or before such date then section five of this act shall take effect on
4 the same date and in the same manner as such chapter of the laws of 2025
5 takes effect. Effective immediately, the addition, amendment, and/or
6 repeal of any rule or regulation necessary for the implementation of
7 this act on its effective date are authorized to be made and completed
8 on or before such effective date.

9

PART R

10 Section 1. This act shall be known and may be cited as the "deceptive
11 practices and voter suppression prevention act".

12 § 2. The election law is amended by adding a new section 17-151 to
13 read as follows:

14 § 17-151. Deceptive practices. 1. Any person, political committee,
15 labor organization, corporation, or other entity, whether acting under
16 color of law or otherwise, who knowingly communicates or knowingly caus-
17 es to be communicated deceptive information, knowing such information to
18 be false and, in acting in the manner described, prevents or deters
19 another person from exercising the right to vote in any election, is
20 guilty of a misdemeanor.

21 2. The following definitions are applicable to this section: (a)
22 "deceptive information" means false information regarding: (i) the time,
23 place, or manner of any election; (ii) the qualifications for or
24 restrictions on voter eligibility for any election, including any penal-
25 ties associated with voting by ineligible voters; (iii) information
26 regarding a voter's registration status or eligibility; or (iv) the
27 political party affiliation of any candidate; and

28 (b) "election" as used in this article shall be deemed to apply to and
29 include all elections administered by the state or city of New York
30 boards of elections, or any county board of elections, including any
31 general, primary, run-off, or special election for any state or local
32 office or ballot proposition.

33 3. Any person aggrieved by a violation of subdivision one of this
34 section may institute a civil action or other proper proceeding for
35 preventative relief, or may apply for a permanent or temporary injunc-
36 tion, restraining order, declaratory judgment, or other order in any
37 court with jurisdiction pursuant to section 16-100 of this chapter.

38 4. Any attempt to commit an offense described in subdivision one of
39 this section, in accordance with the applicable provision of the penal
40 law, is a class B misdemeanor.

41 5. The provisions of article twenty and article one hundred five of
42 the penal law, relating to criminal liability for conduct of another and
43 conspiracy, shall apply to prosecutions under this section.

44 6. Notwithstanding any other provision of law, the attorney general
45 shall have concurrent jurisdiction with any district attorney in the
46 prosecution of any offenses under this section relating to deceptive
47 practices as well as any offenses arising out of such prosecution.

48 § 3. The election law is amended by adding a new section 17-153 to
49 read as follows:

50 § 17-153. Suppression of voters. 1. Any person, political committee,
51 labor organization, corporation, or other entity who suppresses or
52 threatens to suppress the right of any person to lawfully exercise their
53 franchise, or in any other manner compels such person to vote or to
54 refrain from voting for or against a particular candidate for public

1 office or for or against a particular ballot proposition is guilty of a
2 class A misdemeanor.

3 2. For purposes of this section, the term "suppress" shall mean to use
4 force, authority or an abuse of power to prevent, restrain, inhibit or
5 compel another from acting in such person's own interests or intentions,
6 or into not acting at all.

7 3. Any person, political committee, labor organization, or corporation
8 who attempts to commit an offense described in subdivision one of this
9 section is guilty of a class B misdemeanor.

10 4. The provisions of article twenty and article one hundred five of
11 the penal law, relating to criminal liability for conduct of another and
12 conspiracy shall apply to prosecutions under this section.

13 5. Notwithstanding any other provision of law, the attorney general
14 shall have concurrent jurisdiction with any district attorney in the
15 prosecution of any offenses under this section relating to deceptive
16 practices as well as any offenses arising out of such prosecution.

17 § 4. Section 17-166 of the election law is amended to read as follows:

18 § 17-166. Penalty. Any person convicted of a misdemeanor under this
19 article shall for a first offense be punished by a sentence of imprison-
20 ment for not more than one year, or by a fine of not less than one
21 hundred dollars nor more than five hundred dollars, or by both such fine
22 and imprisonment, unless otherwise provided by law. Any person who,
23 having been convicted of a misdemeanor under this article, shall there-
24 after be convicted of another misdemeanor under this article, shall be
25 guilty of a class E felony. For any subsequent offense, such person
26 shall be guilty of a class D felony.

27 § 5. This act shall take effect immediately.

28 PART S

29 Intentionally Omitted

30 PART T

31 Intentionally Omitted

32 PART U

33 Section 1. Paragraph (d) of subdivision 8 of section 94 of the execu-
34 tive law, as added by section 2 of part QQ of chapter 56 of the laws of
35 2022, is amended and a new paragraph (d-1) is added to read as follows:

36 (d) The commission shall develop and administer training courses for
37 lobbyists and clients of lobbyists and adopt regulations and procedures
38 related to such training courses including, but not limited to, estab-
39 lishing deadlines for training course completion.

40 (d-1) The commission may impose a fee upon lobbyists and clients of
41 lobbyists for late completion of the training course required by this
42 subdivision, as set forth in section one-d of the legislative law.

43 § 2. Subdivision (h) of section 1-d of the legislative law, as added
44 by section 7 of part A of chapter 399 of the laws of 2011, is amended
45 and a new subdivision (i) is added to read as follows:

46 (h) provide an online ethics training course for ~~[individuals regis-~~
47 ~~tered as]~~ lobbyists and clients listed on a statement of registration
48 submitted pursuant to section one-e of this article. The curriculum for

the course shall include, but not be limited to, explanations and discussions of the statutes and regulations of New York concerning ethics in the public officers law, the election law, the legislative law, summaries of advisory opinions, underlying purposes and principles of the relevant laws, and examples of practical application of these laws and principles. The commission shall prepare those methods and materials necessary to implement the curriculum. ~~[Each individual~~

~~registered as a]~~ Through calendar year two thousand twenty-six, each lobbyist [pursuant to section one-e of this article] and client shall complete such training course at least once in any three-year period during which [he or she is registered as a] the lobbyist or client is listed on a statement of registration submitted pursuant to section one-e of this article in accordance with procedures adopted by the commission. Commencing with the two thousand twenty-seven--two thousand twenty-eight biennial period and thereafter, each lobbyist and client shall complete such training course at least once in each biennial period and at least once every two years during which the lobbyist or client is listed on a statement of registration submitted pursuant to section one-e of this article, in accordance with procedures adopted by the commission.

(i) impose a fee for failure to complete the online ethics training course in a timely manner as required by this section, not to exceed twenty-five dollars for each day that the lobbyist or client is late, in accordance with procedures adopted by the commission.

§ 3. This act shall take effect immediately.

PART V

Section 1. Section 73-a of the public officers law, as amended by section 5 of part A of chapter 399 of the laws of 2011, paragraphs (c), (d) and (d-1) of subdivision 1 as amended by section 5, paragraph (e-1) of subdivision 1 as added by section 6, subdivision 2 as amended by section 7, subdivision 3 as amended by section 18, subparagraphs (b), (b-2), and (c) of paragraph 8 of subdivision 3 as separately amended by section 8 and subdivisions 4 and 7 as amended by section 9 of part QQ of chapter 56 of the laws of 2022, paragraph (l) of subdivision 1 as amended by chapter 643 of the laws of 2023 and paragraph 16-a of subdivision 3 as added by chapter 591 of the laws of 2023, is amended to read as follows:

§ 73-a. Financial disclosure. 1. As used in this section, terms shall have the same meanings as defined in section seventy-three of this article except:

~~(a) [The term "statewide elected official" shall mean the governor, lieutenant governor, comptroller, or attorney general.~~

~~(b) The term "state agency" shall mean any state department, or division, board, commission, or bureau of any state department, any public benefit corporation, public authority or commission at least one of whose members is appointed by the governor, or the state university of New York or the city university of New York, including all their constituent units except community colleges of the state university of New York and the independent institutions operating statutory or contract colleges on behalf of the state.~~

~~(c)]~~ The term "state officer or employee" shall mean:

(i) heads of state departments and their deputies and assistants;

(ii) officers and employees of statewide elected officials, officers and employees of state departments, boards, bureaus, divisions, commis-

sions, councils or other state agencies, who receive annual compensation in excess of the filing rate established by paragraph (l) of this subdivision or who hold policy-making positions, as annually determined by the appointing authority and set forth in a written instrument which shall be filed with the commission on ethics and lobbying in government established by section ninety-four of the executive law during the month of February, provided, however, that the appointing authority shall amend such written instrument after such date within thirty days after the undertaking of policy-making responsibilities by a new employee or any other employee whose name did not appear on the most recent written instrument; and

(iii) members or directors of public authorities, other than multi-state authorities, public benefit corporations and commissions at least one of whose members is appointed by the governor, and employees of such authorities, corporations and commissions who receive annual compensation in excess of the filing rate established by paragraph (l) of this subdivision or who hold policy-making positions, as determined annually by the appointing authority and set forth in a written instrument which shall be filed with the commission on ethics and lobbying in government established by section ninety-four of the executive law during the month of February, provided, however, that the appointing authority shall amend such written instrument after such date within thirty days after the undertaking of policy-making responsibilities by a new employee or any other employee whose name did not appear on the most recent written instrument.

~~[(d)]~~ (b) The term "legislative employee" shall mean any officer or employee of the legislature who receives annual compensation in excess of the filing rate established by paragraph (l) below or who is determined to hold a policy-making position by the appointing authority as set forth in a written instrument which shall be filed with the legislative ethics commission ~~[and the commission on ethics and lobbying in government]~~.

~~[(d-1)]~~ (c) The term "relative" shall mean such individual's spouse, child, stepchild, stepparent, or any person who is a direct descendant of the grandparents of the reporting individual or of the reporting individual's spouse.

1-a. In addition, as used in this section:

(a) A financial disclosure statement required pursuant to section seventy-three of this article and this section shall be deemed "filed" with the commission on ethics and lobbying in government upon its filing, in accordance with this section, with the legislative ethics commission for all purposes including, but not limited to, section ninety-four of the executive law, subdivision nine of section eighty of the legislative law and subdivision four of this section.

~~[(e)]~~ (b) The term "spouse" shall ~~[mean]~~ not include the ~~[husband or wife]~~ spouse of the reporting individual ~~[unless]~~ if the spouse is living separate and apart from the reporting individual with the intention of terminating the marriage or providing for permanent separation or unless separated pursuant to: (i) a judicial order, decree or judgment, or (ii) a legally binding separation agreement.

~~[(e-1)] The term "domestic partner" shall mean a person who, with respect to another person, is formally a party in a domestic partnership or similar relationship with the other person, entered into pursuant to the laws of the United States or any state, local or foreign jurisdiction, or registered as the domestic partner of the other person with any~~

~~registry maintained by the employer of either party or any state, municipality, or foreign jurisdiction.~~

~~(f) The term "relative" shall mean such individual's spouse, child, stepchild, stepparent, or any person who is a direct descendant of the grandparents of the reporting individual or of the reporting individual's spouse.~~

~~(g)~~ (c) The term "unemancipated child" shall mean any ~~[son, daughter, stepson or stepdaughter]~~ child or stepchild who is under age eighteen, unmarried and living in the household of the reporting individual.

~~[(h) The term "political party chairman" shall have the same meaning as ascribed to such term by subdivision one of section seventy-three of this article.~~

~~(i)~~ (d) The term "local agency" shall mean:

(i) any county, city, town, village, school district or district corporation, or any agency, department, division, board, commission or bureau thereof; and

(ii) any public benefit corporation or public authority not included in the definition of a state agency.

~~[(j) The term "regulatory agency" shall have the same meaning as ascribed to such term by subdivision one of section seventy-three of this article.~~

~~(k) The term "ministerial matter" shall have the same meaning as ascribed to such term by subdivision one of section seventy-three of this article.~~

~~(l)~~ (e) The term "filing rate" shall mean the higher of the job rates of SG-24 as set forth in paragraph a or c of subdivision one of section one hundred thirty of the civil service law as of April first of the year in which an annual financial disclosure statement shall be filed.

~~[(m)~~ (f) The term "lobbyist" shall have the same meaning as ascribed to such term in subdivision (a) of section one-c of the legislative law.

2. (a) Every statewide elected official, state officer or employee, member of the legislature, legislative employee and political party chair and every candidate for statewide elected office or for member of the legislature shall file an annual statement of financial disclosure containing the information and in the form set forth in subdivision three of this section. On or before the fifteenth day of May with respect to the preceding calendar year: (1) every member of the legislature, every candidate for member of the legislature and legislative employee shall file such statement with the legislative ethics commission which shall provide such statement along with any requests for exemptions or deletions to the commission on ethics and lobbying in government for filing and rulings with respect to such requests for exemptions or deletions, on or before the thirtieth day of June; and (2) all other individuals required to file such statement shall file it with the commission on ethics and lobbying in government, except that:

(i) a person who is subject to the reporting requirements of this subdivision and who timely filed with the internal revenue service an application for automatic extension of time in which to file ~~[his or her]~~ such individual's individual income tax return for the immediately preceding calendar or fiscal year shall be required to file such financial disclosure statement on or before May fifteenth but may, without being subjected to any civil penalty on account of a deficient statement, indicate with respect to any item of the disclosure statement that information with respect thereto is lacking but will be supplied in a supplementary statement of financial disclosure, which shall be filed on or before the seventh day after the expiration of the period of such

1 automatic extension of time within which to file such individual income
2 tax return, provided that failure to file or to timely file such supple-
3 mentary statement of financial disclosure or the filing of an incomplete
4 or deficient supplementary statement of financial disclosure shall be
5 subject to the notice and penalty provisions of this section respecting
6 annual statements of financial disclosure as if such supplementary
7 statement were an annual statement;

8 (ii) a person who is required to file an annual financial disclosure
9 statement with the commission on ethics and lobbying in government, and
10 who is granted an additional period of time within which to file such
11 statement due to justifiable cause or undue hardship, in accordance with
12 required rules and regulations adopted pursuant to section ninety-four
13 of the executive law shall file such statement within the additional
14 period of time granted; and the legislative ethics commission shall
15 notify the commission on ethics and lobbying in government of any exten-
16 sion granted pursuant to this paragraph;

17 (iii) candidates for statewide office who receive a party designation
18 for nomination by a state committee pursuant to section 6-104 of the
19 election law shall file such statement within ten days after the date of
20 the meeting at which they are so designated;

21 (iv) candidates for statewide office who receive twenty-five percent
22 or more of the vote cast at the meeting of the state committee held
23 pursuant to section 6-104 of the election law and who demand to have
24 their names placed on the primary ballot and who do not withdraw within
25 fourteen days after such meeting shall file such statement within ten
26 days after the last day to withdraw their names in accordance with the
27 provisions of such section of the election law;

28 (v) candidates for statewide office and candidates for member of the
29 legislature who file party designating petitions for nomination at a
30 primary election shall file such statement within ten days after the
31 last day allowed by law for the filing of party designating petitions
32 naming them as candidates for the next succeeding primary election;

33 (vi) candidates for independent nomination who have not been desig-
34 nated by a party to receive a nomination shall file such statement with-
35 in ten days after the last day allowed by law for the filing of inde-
36 pendent nominating petitions naming them as candidates in the next
37 succeeding general or special election;

38 (vii) candidates who receive the nomination of a party for a special
39 election shall file such statement within ten days after the date of the
40 meeting of the party committee at which they are nominated;

41 (viii) a candidate substituted for another candidate, who fills a
42 vacancy in a party designation or in an independent nomination, caused
43 by declination, shall file such statement within ten days after the last
44 day allowed by law to file a certificate to fill a vacancy in such party
45 designation or independent nomination;

46 (ix) with respect to all candidates for member of the legislature, the
47 legislative ethics commission shall within five days of receipt provide
48 the commission on ethics and lobbying in government the statement filed
49 pursuant to subparagraphs (v), (vi), (vii) and (viii) of this paragraph.

50 (b) As used in this subdivision, the terms "party", "committee" (when
51 used in conjunction with the term "party"), "designation", "primary",
52 "primary election", "nomination", "independent nomination" and "ballot"
53 shall have the same meanings as those contained in section 1-104 of the
54 election law.

55 (c) If the reporting individual is a senator or member of assembly,
56 candidate for the senate or member of assembly or a legislative employ-

1 ee, such statement shall be filed with both the legislative ethics
2 commission established by section eighty of the legislative law and the
3 commission on ethics and lobbying in government in accordance with para-
4 graph (d-1) of subdivision one of this section. If the reporting indi-
5 vidual is a statewide elected official, candidate for statewide elected
6 office, a state officer or employee or a political party chair, such
7 statement shall be filed with the commission on ethics and lobbying in
8 government established by section ninety-four of the executive law.

9 (d) The commission on ethics and lobbying in government shall obtain
10 from the state board of elections a list of all candidates for statewide
11 office and for member of the legislature, and from such list, shall
12 determine and publish a list of those candidates who have not, within
13 ten days after the required date for filing such statement, filed the
14 statement required by this subdivision.

15 (e) Any person required to file such statement who commences employ-
16 ment after May fifteenth of any year and political party chair shall
17 file such statement within thirty days after commencing employment or of
18 taking the position of political party chair, as the case may be. In the
19 case of members of the legislature and legislative employees, such
20 statements shall be filed with the legislative ethics commission within
21 thirty days after commencing employment, and the legislative ethics
22 commission shall provide such statements to the commission on ethics and
23 lobbying in government within forty-five days of receipt.

24 (f) A person who may otherwise be required to file more than one annu-
25 al financial disclosure statement with both the commission on ethics and
26 lobbying in government and the legislative ethics commission in any one
27 calendar year may satisfy such requirement by filing one such statement
28 with either body and by notifying the other body of such compliance.

29 (g) A person who is employed in more than one employment capacity for
30 one or more employers certain of whose officers and employees are
31 subject to filing a financial disclosure statement with the same ethics
32 commission, as the case may be, and who receives distinctly separate
33 payments of compensation for such employment shall be subject to the
34 filing requirements of this section if the aggregate annual compensation
35 for all such employment capacities is in excess of the filing rate
36 notwithstanding that such person would not otherwise be required to file
37 with respect to any one particular employment capacity. A person not
38 otherwise required to file a financial disclosure statement hereunder
39 who is employed by an employer certain of whose officers or employees
40 are subject to filing a financial disclosure statement with the commis-
41 sion on ethics and lobbying in government and who is also employed by an
42 employer certain of whose officers or employees are subject to filing a
43 financial disclosure statement with the legislative ethics commission
44 shall not be subject to filing such statement with either such commis-
45 sion on the basis that ~~his~~ such person's aggregate annual compensation
46 from all such employers is in excess of the filing rate.

47 (h) A statewide elected official or member of the legislature, who is
48 simultaneously a candidate for statewide elected office or member of the
49 legislature, shall satisfy the filing deadline requirements of this
50 subdivision by complying only with the deadline applicable to one who
51 holds a statewide elected office or who holds the office of member of
52 the legislature.

53 (i) A candidate whose name will appear on both a party designating
54 petition and on an independent nominating petition for the same office
55 or who will be listed on the election ballot for the same office more

than once shall satisfy the filing deadline requirements of this subdivision by complying with the earliest applicable deadline only.

(j) A member of the legislature who is elected to such office at a special election prior to May fifteenth in any year shall satisfy the filing requirements of this subdivision in such year by complying with the earliest applicable deadline only.

(k) The commission on ethics and lobbying in government shall post for at least five years beginning for filings made on January first, two thousand thirteen the annual statement of financial disclosure and any amendments filed by each person subject to the reporting requirements of this subdivision who is an elected official, candidate for statewide elected office or candidate for a member of the legislature, on its website for public review within thirty days of its receipt of such statement or within ten days of its receipt of such amendment that reflects any corrections of deficiencies identified by the commission or by the reporting individual after the reporting individual's initial filing. Except upon an individual determination by the commission that certain information may be ~~[deleted]~~ redacted from a reporting individual's annual statement of financial disclosure, none of the information in the statement posted on the commission's website shall be otherwise ~~[deleted]~~ redacted.

3. The annual statement of financial disclosure shall contain the information and shall be in the form set forth hereinbelow:

ANNUAL STATEMENT OF FINANCIAL DISCLOSURE - (For calendar year _____)

1. Name _____

2. (a) Title of Position _____

(b) Department, Agency or other Governmental Entity _____

(c) Address of Present Office _____

(d) Office Telephone Number _____

3. (a) Marital Status _____. If married, please give spouse's full name.

(b) Full name of domestic partner (if applicable).

(c) List the names of all unemancipated children.

Answer each of the following questions completely, with respect to calendar year _____, unless another period or date is otherwise specified. If additional space is needed, attach additional pages.

Whenever a "value" or "amount" is required to be reported herein, such value or amount ~~[shall]~~ may be reported as being within ~~[one of the following categories in Table I or Table II of this subdivision as called for in the question: A reporting individual shall indicate the category by letter only]~~ the letter category as indicated in the categorical table of values at the end of this form.

Whenever "income" is required to be reported herein, the term "income" shall mean the aggregate net income before taxes from the source identified.

The term "calendar year" shall mean the year ending the December 31st preceding the date of filing of the annual statement.

4. ~~[(a)]~~ List any ~~[office, trusteeship, directorship, partnership, or]~~ position of any nature, including but not limited to any office, trusteeship, directorship or partnership, whether compensated or not, you, your spouse, domestic partner, or unemancipated child held ~~[by the reporting individual]~~ with any ~~[firm, corporation, association, partnership, or other]~~ organization other than the State of New York. Include positions held for only a portion of the year and compensated honorary positions[; do]. Do NOT list general membership in an organization, positions with political parties, trusteeships for a family member, or uncompensated honorary positions. If the listed entity was licensed or regulated by any state or local agency~~[; was regulated by any state regulatory agency or local agency,]~~ or, as a regular and significant part of the business or activity of said entity, did business with, or had matters other than ministerial matters before, any state or local agency, list the name of any such agency.

	State or Position Local Agency
<u>Self, Spouse, Domestic Partner, or Child</u>	
Organization	

- ~~[(b) List any office, trusteeship, directorship, partnership, or position of any nature, whether compensated or not, held by the spouse, domestic partner or unemancipated child of the reporting individual, with any firm, corporation, association, partnership, or other organization other than the State of New York. Include compensated honorary positions; do NOT list membership or uncompensated honorary positions. If the listed entity was licensed by any state or local agency, was regulated by any state regulatory agency or local agency, or, as a regular and significant part of the business or activity of said entity, did business with, or had matters other than ministerial matters before, any state or local agency, list the name of any such agency.]~~

	State or Position Local Agency
Position	
Organization	

5. (a) List the name, address and description of any occupation, employment (other than the employment listed under ~~[Item]~~ Question 2 above), trade, business or profession you engaged in ~~[by the reporting individual]~~. If such activity was licensed by any state or local agency, was regulated by any state regulatory agency or local agency, or, as a regular and significant part of the business or activity of said entity, did business with, or had matters other than ministerial matters before, any state or local agency, list the name of any such agency.

	Position	Name & Address of Organization	Description	State or Local Agency
10				
11				
12				
13				
14				
15				
16				

- (b) If ~~[the]~~ your spouse, domestic partner or unemancipated child ~~[of the reporting individual]~~ was engaged in any occupation, employment, trade, business or profession which activity was licensed by any state or local agency, was regulated by any state regulatory agency or local agency, or, as a regular and significant part of the business or activity of said entity, did business with, or had matters other than ministerial matters before, any state or local agency, list the name, address and description of such occupation, employment, trade, business or profession and the name of any such agency.

	Position	Name & Address of Organization	Description	State or Local Agency
26				
27				
28				
29				
30				
31				
32				
33				

6. List any [interest] ownership, right, claim or legal share, in EXCESS of ~~[\$1,000]~~ \$2,000, held by ~~[the reporting individual, such individual's]~~ you, your spouse, domestic partner or unemancipated child, ~~[or partnership of which any such person is a member, or corporation, 10% or more of the stock of which is owned or controlled by any such person,]~~ whether vested or contingent, in any contract made or executed by a state or local agency, including any interest in such a contract in excess of \$2,000 held by a partnership of which any such person is a member, or corporation, 10% or more of the stock of which is owned or controlled by any such person, and include the name of the entity which holds such interest and the relationship of ~~[the reporting individual or such individual's]~~ you, your spouse, domestic partner or such child to such entity and the interest in such contract. Do NOT include any interests in (a) bonds and notes~~[- Do NOT list any interest in]~~, (b) any such contract on which final payment has been made and all obligations under the contract except for guarantees and warranties have

been performed, ~~[provided, however, that such an interest must be listed if]~~ unless there has been an ongoing dispute during the calendar year for which this statement is filed with respect to any such guarantees or warranties ~~[. Do NOT list any interest in]~~, or (c) a contract made or executed by a local agency after public notice and pursuant to a process for competitive bidding or a process for competitive requests for proposals.

Self, Spouse, Domestic Partner or Child	Entity Which Held Interest in Contract	Relationship to Entity and Interest in Contract	Contracting State or Local Agency	Category of Value of Contract
---	---	--	--	--

~~[(In Table II)]~~

7. List any position ~~[the reporting individual]~~ you held as an officer of any political party or political organization, as a member of any political party committee, or as a political party district leader. The term "party" shall have the same meaning as "party" in the election law. The term "political organization" means any party or independent body as defined in the election law or any organization that is affiliated with or a subsidiary of a party or independent body.

8. (a) If ~~[the reporting individual practices]~~ you practice law, ~~[is]~~ are licensed by the department of state as a real estate broker or agent or ~~[practices]~~ practice a profession licensed by the department of education, or ~~[works as]~~ are a member or employee of a firm required to register pursuant to section one-e of the legislative law as a lobbyist, describe the services rendered for which compensation was paid including a general description of the principal subject areas of matters ~~[under-taken by such individual]~~ you undertook and principal duties you performed. Specifically state whether ~~[the reporting individual provides]~~ you provide services directly to clients. If you are a licensed professional but did not engage in the practice of such profession in the prior calendar year outside of your state employment, report the license and state that you did not engage in such practice. Additionally, if ~~[such an individual practices]~~ you practice with a firm or corporation and ~~[is]~~ are a partner or shareholder of the firm or corporation, give a general description of principal subject areas of matters undertaken by such firm or corporation.

~~(b) [APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER JULY FIRST, TWO THOUSAND TWELVE AND BEFORE DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER JULY FIRST, TWO THOUSAND TWELVE AND BEFORE DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN:]~~

~~If the reporting individual personally provides services to any person or entity, or works as a member or employee of a partnership or corporation that provides such services (referred to hereinafter as a "firm"), then identify each client or customer to whom the reporting individual personally provided services, or who was referred to the firm by the reporting individual, and from whom the reporting individual or his or her firm earned fees in excess of \$10,000 during the reporting period for such services rendered in direct connection with:~~

~~(i) A contract in an amount totaling \$50,000 or more from the state or any state agency for services, materials, or property;~~

~~(ii) A grant of \$25,000 or more from the state or any state agency during the reporting period;~~

~~(iii) A grant obtained through a legislative initiative during the reporting period; or~~

~~(iv) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period.~~

~~For purposes of this question, "referred to the firm" shall mean: having intentionally and knowingly taken a specific act or series of acts to intentionally procure for the reporting individual's firm or knowingly solicit or direct to the reporting individual's firm in whole or substantial part, a person or entity that becomes a client of that firm for the purposes of representation for a matter as defined in subparagraphs (i) through (iv) of this paragraph, as the result of such procurement, solicitation or direction of the reporting individual. A reporting individual need not disclose activities performed while lawfully acting pursuant to paragraphs (c), (d), (e) and (f) of subdivision seven of section seventy-three of this article.~~

~~The disclosure requirement in this question shall not require disclosure of clients or customers receiving medical or dental services, mental health services, residential real estate brokering services, or insurance brokering services from the reporting individual or his or her firm. The reporting individual need not identify any client to whom he or she or his or her firm provided legal representation with respect to investigation or prosecution by law enforcement authorities, bankruptcy, or domestic relations matters. With respect to clients represented in other matters, where disclosure of a client's identity is likely to cause harm, the reporting individual shall request an exemption from the commission on ethics and lobbying in government pursuant to section ninety-four of the executive law, provided, however, that a reporting individual who first enters public office after July first, two thousand twelve, need not report clients or customers with respect to matters for which the reporting individual or his or her firm was retained prior to entering public office.~~

~~Client _____ Nature of Services Provided _____~~

~~(b-1) APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN (FOR PURPOSES OF THIS QUESTION, "SERVICES" SHALL MEAN CONSULTATION, REPRESENTATION, ADVICE OR OTHER SERVICES):~~

~~(i) If [the reporting individual receives] you receive income from a profession, occupation or employment reportable in question 8(a) and personally [provides] provide services to any person or entity, or [works as] are a member or employee of a partnership or corporation that provides such services (referred to hereinafter as a "firm"), [the reporting individual shall] identify each client or customer to whom [the reporting individual] you personally provided services, or [who was] whom you referred to the firm [by the reporting individual], and from whom [the reporting individual] you or [his or her] your firm earned fees in excess of \$10,000 during the reporting period [in direct connection with:~~

~~(i) A contract in an amount totaling \$10,000 or more from the state or any state agency for services, materials, or property;~~

~~(ii) A grant of \$10,000 or more from the state or any state agency during the reporting period;~~

~~(iii) A grant obtained through a legislative initiative during the reporting period; or~~

~~(iv) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period].~~

For such services you rendered [by the reporting individual] directly to each such client, describe each matter that was the subject of such representation, the services actually provided, whether such client was referred to you by an individual you knew at the time to be a registered lobbyist, and the payment received. For payments received from clients you referred to the firm [by the reporting individual], if [the reporting individual] you directly received a referral fee or fees for such referral, identify the client and the payment so received.

For purposes of this question, "referred to the firm" shall mean: having intentionally and knowingly taken a specific act or series of acts to intentionally procure for the [reporting individual's] firm or having knowingly solicited or directed to the [reporting individual's] firm in whole or substantial part, a person or entity that becomes a client of that firm for the purposes of representation for a matter as defined in clauses (i) through (iv) of this subparagraph, as the result of such procurement, solicitation or direction ~~[of the reporting individual]~~. ~~[A reporting individual need]~~ Do not disclose activities performed while lawfully acting in [his or her] your capacity as provided in paragraphs (c), (d), (e) and (f) of subdivision seven of section seventy-three of this article.

Client	Matter	Nature of Services Provided	Category of Amount	<u>Referred by</u> <u>Lobbyist</u>
				[in Table I]

1 _____
 2 _____
 3 _____
 4 _____
 5 _____

6 (b-2) APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES
 7 ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN, OR
 8 FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE
 9 SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOU-
 10 SAND FIFTEEN (FOR PURPOSES OF THIS QUESTION, "SERVICES" SHALL MEAN
 11 CONSULTATION, REPRESENTATION, ADVICE OR OTHER SERVICES):

12 (i) With respect to reporting individuals who receive ten thousand
 13 dollars or more from employment or activity reportable under question
 14 8(a), for each client or customer NOT otherwise disclosed or exempted in
 15 question 8 or 13, disclose the name of each client or customer known to
 16 the reporting individual to whom the reporting individual provided
 17 services: (A) who paid the reporting individual in excess of five thou-
 18 sand dollars for such services; or (B) who had been billed with the
 19 knowledge of the reporting individual in excess of five thousand dollars
 20 by the firm or other entity named in question 8(a) for the reporting
 21 individual's services.

22 Client Services Category of Amount
 23 Actually Provided (in Table I)

24 FOLLOWING IS AN ILLUSTRATIVE, NON-EXCLUSIVE LIST OF EXAMPLES OF
 25 DESCRIPTIONS OF "SERVICES ACTUALLY PROVIDED":

- 26 * REVIEWED DOCUMENTS AND CORRESPONDENCE;
- 27 * REPRESENTED CLIENT (IDENTIFY CLIENT BY NAME) IN LEGAL PROCEEDING;
- 28 * PROVIDED LEGAL ADVICE ON CLIENT MATTER (IDENTIFY CLIENT BY NAME);
- 29 * CONSULTED WITH CLIENT OR CONSULTED WITH LAW PARTNERS/ASSOCIATES/MEMBERS
- 30 OF FIRM ON CLIENT MATTER (IDENTIFY CLIENT BY NAME);
- 31 * PREPARED CERTIFIED FINANCIAL STATEMENT FOR CLIENT (IDENTIFY CLIENT BY
- 32 NAME);
- 33 * REFERRED INDIVIDUAL OR ENTITY (IDENTIFY CLIENT BY NAME) FOR
- 34 REPRESENTATION OR CONSULTATION;
- 35 * COMMERCIAL BROKERING SERVICES (IDENTIFY CUSTOMER BY NAME);
- 36 * PREPARED CERTIFIED ARCHITECTURAL OR ENGINEERING
- 37 RENDERINGS FOR CLIENT (IDENTIFY CUSTOMER BY NAME);
- 38 * COURT APPOINTED GUARDIAN OR EVALUATOR (IDENTIFY COURT NOT CLIENT).

39 (ii) [~~With respect to reporting individuals who~~ **If you** disclosed in
 40 question 8(a) that [~~the reporting individual~~ **you** did not provide
 41 services to a client but provided services to a firm or business, iden-
 42 tify the category of amount received for providing such services and
 43 describe the services rendered.

44 Services Actually Provided Category of Amount [~~Table I~~]

45 [~~A reporting individual need~~ **Do** not disclose activities performed
 46 while lawfully acting in [~~his or her~~ **your** capacity as provided in para-

graphs (c), (d), (e) and (f) of subdivision seven of section seventy-three of this article. The disclosure requirement in ~~[questions (b-1) and (b-2)]~~ question (b) shall not require disclosing clients or customers receiving medical, pharmaceutical or dental services, mental health services, or residential real estate brokering services from ~~[the reporting individual]~~ you or ~~[his or her]~~ your firm or if federal law prohibits or limits disclosure. ~~[The reporting individual need]~~ Do not identify any client to whom ~~[he or she]~~ you or ~~[his or her]~~ your firm provided legal representation with respect to investigation or prosecution by law enforcement authorities, bankruptcy, family court, estate planning, or domestic relations matters, nor ~~[shall the reporting individual identify]~~ individuals represented pursuant to an insurance policy but ~~[the reporting individual shall]~~ in such circumstances only report the entity that provides compensation to ~~[the reporting individual]~~ you; with respect to matters in which the client's name is required by law to be kept confidential (such as matters governed by the family court act) or in matters in which ~~[the reporting individual represents]~~ you represent or ~~[provides]~~ provide services to minors, the client's name may be replaced with initials. To the extent that ~~[the reporting individual,]~~ you or ~~[his or her]~~ your firm⁷ provided legal representation with respect to an initial public offering, and professional disciplinary rules, federal law or regulations restrict the disclosure of information relating to such work, ~~[the reporting individual shall]~~ (i) disclose the identity of the client and the services provided relating to the initial public offering to the office of court administration, who will maintain such information confidentially in a locked box; and (ii) include in ~~[his or her]~~ your response to ~~[questions (b-1) and (b-2)]~~ question (b) that pursuant to this paragraph, a disclosure to the office of court administration has been made. Upon such time that the disclosure of information maintained in the locked box is no longer restricted by professional disciplinary rules, federal law or regulation, ~~[the reporting individual]~~ you shall disclose such information in an amended disclosure statement in response to the disclosure requirements in ~~[questions (b-1) and (b-2)]~~ question (b). The office of court administration shall develop and maintain a secure portal through which information submitted to it pursuant to this paragraph can be safely and confidentially stored. With respect to clients represented in other matters not otherwise exempt, ~~[the reporting individual]~~ you may request an exemption to publicly disclosing the name of that client from the commission on ethics and lobbying in government pursuant to section ninety-four of the executive law, or from the office of court administration. In such application, ~~[the reporting individual shall]~~ state the following: "My client is not currently receiving my services or seeking my services in connection with:

(i) A proposed bill or resolution in the senate or assembly during the reporting period;

(ii) A contract in an amount totaling \$10,000 or more from the state or any state agency for services, materials, or property;

(iii) A grant of \$10,000 or more from the state or any state agency during the reporting period;

(iv) A grant obtained through a legislative initiative during the reporting period; or

(v) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period."

In reviewing the request for an exemption, the commission on ethics and lobbying in government or the office of court administration may

1 consult with bar or other professional associations and the legislative
2 ethics commission for individuals subject to its jurisdiction and may
3 consider the rules of professional conduct. In making its determination,
4 the commission on ethics and lobbying in government or the office of
5 court administration shall conduct its own inquiry and shall consider
6 factors including, but not limited to: (i) the nature and the size of
7 the client; (ii) whether the client has any business before the state;
8 and if so, how significant the business is; and whether the client has
9 any particularized interest in pending legislation and if so how signif-
10 icant the interest is; (iii) whether disclosure may reveal trade
11 secrets; (iv) whether disclosure could reasonably result in retaliation
12 against the client; (v) whether disclosure may cause undue harm to the
13 client; (vi) whether disclosure may result in undue harm to the attor-
14 ney-client relationship; and (vii) whether disclosure may result in an
15 unnecessary invasion of privacy to the client.

16 The commission on ethics and lobbying in government or, as the case
17 may be, the office of court administration shall promptly make a final
18 determination in response to such request, which shall include an expla-
19 nation for its determination. The office of court administration shall
20 issue its final determination within three days of receiving the
21 request. Notwithstanding any other provision of law or any professional
22 disciplinary rule to the contrary, the disclosure of the identity of any
23 client or customer in response to this question shall not constitute
24 professional misconduct or a ground for disciplinary action of any kind,
25 or form the basis for any civil or criminal cause of action or proceed-
26 ing. A reporting individual who first enters public office after January
27 first, two thousand sixteen, need not report clients or customers with
28 respect to matters for which the reporting individual or ~~[his or her]~~
29 such individual's firm was retained prior to entering public office.

30 (c) ~~[APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE~~
31 ~~PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN, OR FOR~~
32 ~~NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE~~
33 ~~SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOU-~~
34 ~~SAND FIFTEEN:]~~

35 ~~If the reporting individual receives income of ten thousand dollars or~~
36 ~~greater from any employment or activity reportable under question 8(a),~~
37 ~~identify each registered lobbyist who has directly referred to such~~
38 ~~individual a client who was successfully referred to the reporting indi-~~
39 ~~vidual's business and from whom the reporting individual or firm~~
40 ~~received a fee for services in excess of five thousand dollars. Report~~
41 ~~only those referrals that were made to a reporting individual by direct~~
42 ~~communication from a person known to such reporting individual to be a~~
43 ~~registered lobbyist at the time the referral is made. With respect to~~
44 ~~each such referral, the reporting individual shall identify the client,~~
45 ~~the registered lobbyist who has made the referral, the category of value~~
46 ~~of the compensation received and a general description of the type of~~
47 ~~matter so referred. A reporting individual need not disclose activities~~
48 ~~performed while lawfully acting pursuant to paragraphs (c), (d), (e) and~~
49 ~~(f) of subdivision seven of section seventy-three of this article. The~~
50 ~~disclosure requirements in this question shall not require disclosing~~
51 ~~clients or customers receiving medical, pharmaceutical or dental~~
52 ~~services, mental health services, or residential real estate brokering~~
53 ~~services from the reporting individual or his or her firm or if federal~~
54 ~~law prohibits or limits disclosure. The reporting individual need not~~
55 ~~identify any client to whom he or she or his or her firm provided legal~~
56 ~~representation with respect to investigation or prosecution by law~~

~~enforcement authorities, bankruptcy, family court, estate planning, or domestic relations matters, nor shall the reporting individual identify individuals represented pursuant to an insurance policy but the reporting individual shall in such circumstances only report the entity that provides compensation to the reporting individual; with respect to matters in which the client's name is required by law to be kept confidential (such as matters governed by the family court act) or in matters in which the reporting individual represents or provides services to minors, the client's name may be replaced with initials. To the extent that the reporting individual, or his or her firm, provided legal representation with respect to an initial public offering, and federal law or regulations restricts the disclosure of information relating to such work, the reporting individual shall (i) disclose the identity of the client and the services provided relating to the initial public offering to the office of court administration, who will maintain such information confidentially in a locked box; and (ii) include in his or her response a statement that pursuant to this paragraph, a disclosure to the office of court administration has been made. Upon such time that the disclosure of information maintained in the locked box is no longer restricted by federal law or regulation, the reporting individual shall disclose such information in an amended disclosure statement in response to the disclosure requirements of this paragraph. The office of court administration shall develop and maintain a secure portal through which information submitted to it pursuant to this paragraph can be safely and confidentially stored. With respect to clients represented in other matters not otherwise exempt, the reporting individual may request an exemption to publicly disclosing the name of that client from the commission on ethics and lobbying in government pursuant to section ninety-four of the executive law, or from the office of court administration. In such application, the reporting individual shall state the following: "My client is not currently receiving my services or seeking my services in connection with:~~

~~(i) A proposed bill or resolution in the senate or assembly during the reporting period;~~

~~(ii) A contract in an amount totaling \$10,000 or more from the state or any state agency for services, materials, or property;~~

~~(iii) A grant of \$10,000 or more from the state or any state agency during the reporting period;~~

~~(iv) A grant obtained through a legislative initiative during the reporting period; or~~

~~(v) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period."~~

~~In reviewing the request for an exemption, the commission on ethics and lobbying in government or the office of court administration may consult with bar or other professional associations and the legislative ethics commission for individuals subject to its jurisdiction and may consider the rules of professional conduct. In making its determination, the commission on ethics and lobbying in government or the office of court administration shall conduct its own inquiry and shall consider factors including, but not limited to: (i) the nature and the size of the client; (ii) whether the client has any business before the state; and if so, how significant the business is; and whether the client has any particularized interest in pending legislation and if so how significant the interest is; (iii) whether disclosure may reveal trade secrets; (iv) whether disclosure could reasonably result in retaliation against the client; (v) whether disclosure may cause undue harm to the~~

~~client; (vi) whether disclosure may result in undue harm to the attorney-client relationship; and (vii) whether disclosure may result in an unnecessary invasion of privacy to the client.~~

~~The commission on ethics and lobbying in government or, as the case may be, the office of court administration shall promptly make a final determination in response to such request, which shall include an explanation for its determination. The office of court administration shall issue its final determination within three days of receiving the request. Notwithstanding any other provision of law or any professional disciplinary rule to the contrary, the disclosure of the identity of any client or customer in response to this question shall not constitute professional misconduct or a ground for disciplinary action of any kind, or form the basis for any civil or criminal cause of action or proceeding. A reporting individual who first enters public office after December thirty-first, two thousand fifteen, need not report clients or customers with respect to matters for which the reporting individual or his or her firm was retained prior to entering public office.~~

Client	Name of Lobbyist	Description of Matter	Category of Amount (in Table 1)

(d) List the name, principal address and general description or the nature of the business activity of any entity in which ~~the reporting individual~~ you or ~~such individual's~~ your spouse or domestic partner had an investment in excess of ~~[\$1,000]~~ \$2,000 excluding investments in securities and interests in real property.

Client	Name of Lobbyist	Description of Matter	Category of	Amount
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9. List each source of gifts, EXCLUDING gifts from a relative or domestic partner, reimbursements as defined in question 10, and campaign contributions, in EXCESS of [~~\$1,000~~ \$2,000], received during the reporting period for which this statement is filed by [~~the reporting individual~~ you] or [~~such individual's~~ your] spouse, domestic partner or unemancipated child from the same donor[, ~~EXCLUDING gifts from a relative~~]. INCLUDE the name and address of the donor. [~~The term "gifts" does not include reimbursements, which term is defined in item 10.~~] Indicate the value and nature of each such gift.

	Self, Spouse, Domestic Partner or Child	Name of Donor	Address	Nature of Gift	Category of Value of Gift [(In Table I)]
--	---	------------------	---------	-------------------	---

7					
8					
9					
10					
11					

10. Identify and briefly describe the source of any reimbursements for expenditures, EXCLUDING campaign expenditures and reimbursements by the state for expenditures in connection with official duties [~~reimbursed by the state~~], in EXCESS of [~~\$1,000~~] \$2,000 from each such source. For purposes of this [~~item~~] question, the term "reimbursements" shall mean any travel-related expenses provided by nongovernmental sources and for activities related to the reporting individual's official duties such as, speaking engagements, conferences, or factfinding events. The term "reimbursements" does NOT include gifts reported under [~~item~~] question 9.

	Source	Description
23		
24		
25		
26		
27		

11. List the identity and value, if reasonably ascertainable, of each interest in a retirement plan or deferred compensation plan established in accordance with the internal revenue code (e.g., 401, 403(b), 457, etc.), or other trust, estate or other beneficial interest [~~, including retirement plans (other than retirement plans of the state of New York or the city of New York), and deferred compensation plans (e.g., 401, 403(b), 457, etc.) established in accordance with the internal revenue code,~~] in which [~~the REPORTING INDIVIDUAL~~] YOU held a beneficial interest in EXCESS of [~~\$1,000~~] \$2,000 at any time during the preceding year. Do NOT report interests in (a) a retirement plan, deferred compensation plan, trust, estate or other beneficial interest established by or for [~~, or the estate of,~~] a relative or a relative's estate, (b) New York State or New York City defined benefit retirement plans, the Optional Retirement Program of the State University of New York or the City University of New York, (c) a 529 College Savings Plan or an Education IRA, or (d) deferred income in the nature of delayed compensation reportable in question 14, such as deferred or future income from the practice of a profession.

	Identity	Category of Value* [(In Table II)]
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* The value of such interest shall be reported only if reasonably ascertainable.

12. (a) Describe the terms of, and the parties to, any contract, promise, or other agreement between [~~the reporting individual~~] **you** and any person, firm, or corporation with respect to [~~the~~] **your** employment [~~of such individual~~] after leaving office or position (other than a leave of absence).

(b) Describe the parties to and the terms of any agreement providing for continuation of payments or benefits to [~~the REPORTING INDIVIDUAL~~] **YOU** in EXCESS of [~~\$1,000~~] **\$2,000** from a prior employer OTHER THAN the State. (This includes interests in or contributions to a pension fund, profit-sharing plan, or life or health insurance; buy-out agreements; severance payments; etc.)

13. List below the nature and amount of any income in EXCESS of [~~\$1,000~~] **\$2,000** from EACH SOURCE for [~~the reporting individual~~] **you** and [~~such individual's~~] **your** spouse or domestic partner for the taxable year last occurring prior to the date of filing. Each such source must be described with particularity. Nature of income includes, but is not limited to, all income (other than that received from the employment listed under [~~Item~~] **Question 2** above) from compensated employment whether public or private, directorships and other fiduciary positions, contractual arrangements, teaching income, partnerships, honorariums, lecture fees, consultant fees, bank and bond interest, dividends, income derived from a trust, real estate rents, and recognized gains from the sale or exchange of real or other property. Income from a business or profession and real estate rents shall be reported with the source identified by the building address in the case of real estate rents and otherwise by the name of the entity and not by the name of the individual customers, clients or tenants, with the aggregate net income before taxes for each building address or entity. The receipt of maintenance received in connection with a matrimonial action, alimony and child support payments shall not be listed.

Self/ Spouse	Source	Nature	Category of Amount
-----------------	--------	--------	-----------------------

1 or Domestic ~~[(In Table I)]~~
 2 Partner

3 _____
 4 _____
 5 _____
 6 _____
 7 _____

8 14. List the sources of any deferred income (not retirement income) in
 9 EXCESS of [~~\$1,000~~] \$2,000 from each source to be paid to [~~the~~
 10 ~~reporting individual~~] you following the close of the calendar year
 11 for which this disclosure statement is filed, other than deferred
 12 compensation reported in [~~item~~] question 11 [~~hereinabove~~] above.
 13 Deferred income derived from the practice of a profession shall be
 14 listed in the aggregate and shall identify as the source, the name
 15 of the firm, corporation, partnership or association through which
 16 the income was derived, but shall not identify individual clients.

17 Category
 18 Source of Amount
 19 ~~[(In Table I)]~~

20 _____
 21 _____
 22 _____
 23 _____
 24 _____

25 15. List each assignment of income in EXCESS of [~~\$1,000~~] \$2,000, and
 26 each transfer other than to a relative during the reporting period
 27 for which this statement is filed for less than fair consideration
 28 of an interest in a trust, estate or other beneficial interest,
 29 securities or real property, by [~~the reporting individual~~] you, in
 30 excess of [~~\$1,000~~] \$2,000, which would otherwise be required to be
 31 reported herein and is not or has not been so reported.

32 Item Assigned Assigned or Category
 33 or Transferred Transferred to of Value
 34 ~~[(In Table I)]~~

35 _____
 36 _____
 37 _____
 38 _____
 39 _____

40 16. List below the type and market value of securities and digital
 41 assets held by [~~the reporting individual~~] you or [~~such individual's~~]
 42 your spouse or domestic partner, INCLUDING securities and digital
 43 assets held in a retirement or deferred compensation account
 44 reported in question 11, from each issuing entity in EXCESS of
 45 [~~\$1,000~~] \$2,000 at the close of the taxable year last occurring
 46 prior to the date of filing, including the name or ticker symbol of
 47 the issuing entity exclusive of securities held by [~~the reporting~~
 48 ~~individual~~] you issued by a professional corporation. Whenever an

1 interest in securities exists through a beneficial interest in a
2 trust, the securities held in such trust shall be listed ONLY IF
3 ~~[the reporting individual has]~~ you have knowledge thereof except
4 where ~~[the reporting individual]~~ you or ~~[the reporting individual's]~~
5 your spouse or domestic partner has transferred assets to such trust
6 for ~~[his or her]~~ such spouse or domestic partner's benefit in which
7 event such securities shall be listed unless they are not ascertain-
8 able by ~~[the reporting individual]~~ you because the trustee is under
9 an obligation or has been instructed in writing not to disclose the
10 contents of the trust to ~~[the reporting individual]~~ you. Securities
11 of which ~~[the reporting individual]~~ you or ~~[the reporting individ-~~
12 ~~ual's]~~ your spouse or domestic partner is the owner of record but in
13 which such ~~[individual or the reporting individual's spouse or~~
14 ~~domestic partner]~~ owner has no beneficial interest shall not be
15 listed. Indicate percentage of ownership ONLY if ~~[the reporting~~
16 ~~person]~~ you or ~~[the reporting person's]~~ your spouse or domestic
17 partner holds more than ~~[five percent (5%)]~~ 5% of the total stock of
18 a corporation in which the stock is publicly traded or more than
19 ~~[ten percent (10%)]~~ 10% of the total stock of a corporation in which
20 the stock is NOT publicly traded. Also list securities owned for
21 investment purposes by a corporation more than ~~[fifty percent (50%)]~~
22 50% of the stock of which is owned or controlled by ~~[the reporting~~
23 ~~individual]~~ you or ~~[such individual's]~~ your spouse or domestic part-
24 ner. For the purpose of this ~~[item the term "securities"]~~ question:

25 (a) "Securities" shall mean mutual funds, bonds, mortgages, notes,
26 obligations, warrants and stocks of any class, investment interests
27 in limited or general partnerships and certificates of deposits
28 (CDs) and such other evidences of indebtedness and certificates of
29 interest as are usually referred to as securities. The market value
30 for such securities shall be reported only if reasonably ascertain-
31 able and shall not be reported if the security is an interest in a
32 general partnership that was listed in ~~[item]~~ question 8 (a) or if
33 the security is corporate stock, NOT publicly traded, in a trade or
34 business of a reporting individual or a reporting individual's
35 spouse or domestic partner.

36 (b) "Digital asset" shall mean an asset that is issued, trans-
37 ferred, or both, using distributed ledger or blockchain technology,
38 including, but not limited to, digital currencies, digital coins,
39 digital non-fungible tokens or other similar assets.

40 (c) "Digital currency" shall mean any type of digital unit that is
41 used as a medium of exchange or a form of digitally stored value.
42 Virtual currency shall be broadly construed to include digital units
43 of exchange that: (i) have a centralized repository or administra-
44 tor; (ii) are decentralized and have no centralized repository or
45 administrator; or (iii) may be created or obtained by computing,
46 manufacturing, or other similar effort.

47 (d) "Distributed ledger or blockchain technology" shall mean a
48 ledger or database that stores shared state by maintaining it across
49 a multiplicity of devices belonging to different entities and secur-
50 ing it through a combination of cryptographic and consensus proto-
51 cols, where the shared state serves to authenticate, record, share,
52 and/or synchronize transactions involving digital assets or virtual
53 currencies.

54 Percentage
55 of corporate

	Self/ Spouse or Domestic Partner	Issuing Entity	Type of Security or digital asset	stock owned or controlled (if more than 5% of pub- licly traded stock, or more than 10% if stock not publicly traded, is held)	Category of Market Value as of the close of the taxable year last occurring prior to the filing of this statement [In Table II]
14					
15					
16					
17					
18					

~~[16 a. List below the name and market value of digital assets held by the reporting individual or such individual's spouse or domestic partner in EXCESS of \$1,000 at the close of the taxable year last occurring prior to the date of filing. Whenever an interest in digital assets exists through a beneficial interest in a trust, the digital assets held in such trust shall be listed ONLY IF the reporting individual has knowledge thereof except where the reporting individual or the reporting individual's spouse or domestic partner has transferred assets to such trust for his or her benefit in which event such digital assets shall be listed unless they are not ascertainable by the reporting individual because the trustee is under an obligation or has been instructed in writing not to disclose the contents of the trust to the reporting individual. The digital assets of which the reporting individual or the reporting individual's spouse or domestic partner is the owner of record but in which such individual or the reporting individual's spouse or domestic partner has no beneficial interest shall not be listed. Also list digital assets owned for investment purposes by a corporation more than fifty percent (50%) of the stock of which is owned or controlled by the reporting individual or such individual's spouse or domestic partner. For purposes of this subdivision, the following terms shall have the following meanings:~~

~~(a) "Digital asset" shall mean an asset that is issued, transferred, or both, using distributed ledger or blockchain technology, including, but not limited to, digital currencies, digital coins, digital non-fungible tokens or other similar assets.~~

~~(b) "Digital currency" shall mean any type of digital unit that is used as a medium of exchange or a form of digitally stored value. Virtual currency shall be broadly construed to include digital units of exchange that: (i) have a centralized repository or administrator; (ii) are decentralized and have no centralized repository or administrator; or (iii) may be created or obtained by computing, manufacturing, or other similar effort.~~

~~(c) "Distributed ledger or blockchain technology" shall mean a ledger or database that stores shared state by maintaining it across a multiplicity of devices belonging to different entities and securing it through a combination of cryptographic and consensus protocols, where~~

~~the shared state serves to authenticate, record, share, and/or synchro-
nize transactions involving digital assets or virtual currencies.~~

Self/ Spouse or Domestic Partner	Type of Digital Asset	Category of Market Value as of the close of the taxable year last occurring prior to the filing of this statement (In Table II)

17. List below the location, size, general nature, acquisition date, market value and percentage of ownership of any real property, other than your or your spouse's or domestic partner's primary or secondary residence if there is no co-owner other than a relative of such residence, in which any vested or contingent interest in EXCESS of [~~\$1,000~~] \$2,000 is held by [~~the reporting individual~~] you or [~~the reporting individual's~~] your spouse or domestic partner. Also list real property owned for investment purposes by a corporation more than [~~fifty percent (50%)~~] 50% of the stock of which is owned or controlled by [~~the reporting individual~~] you or [~~such individual's~~] your spouse or domestic partner. [~~Do NOT list any real property which is the primary or secondary personal residence of the reporting individual or the reporting individual's spouse or domestic partner, except where there is a co-owner who is other than a relative.~~]

Self/ Spouse/ Domestic Partner	General Nature	Acquisition Date	Percentage of Ownership	Category of Market Value [(In Table II)]
Corporation	Location	Size		

18. List below all notes and accounts receivable, other than from goods or services sold, held by ~~the reporting individual~~ you at the close of the taxable year last occurring prior to the date of filing and other debts owed to ~~such individual~~ you at the close of the taxable year last occurring prior to the date of filing, in EXCESS of ~~\$1,000~~ \$2,000, including the name of the debtor, type of obligation, date due and the nature of the collateral securing payment of each, if any, excluding securities reported in ~~item~~ question 16

1 ~~[hereinabove]~~ above. Debts, notes and accounts receivable owed to
 2 ~~[the individual]~~ you by a relative shall not be reported.

Name of Debtor	Type of Obligation, Date Due, and Nature of Collateral, if any	Category of Amount
[(In Table II)]		

7	_____
8	_____
9	_____
10	_____
11	_____

12 19. List below all liabilities of ~~[the reporting individual]~~ you and
 13 ~~[such individual's]~~ your spouse or domestic partner, in EXCESS of
 14 ~~[\$10,000]~~ \$20,000 as of the date of filing of this statement, other
 15 than liabilities to a relative, student loans, mortgages or home
 16 equity loans on primary or secondary residences, car loans or loans
 17 for household furniture and appliances. Do NOT list liabilities
 18 incurred by, or guarantees made by, ~~[the reporting individual]~~ you
 19 or ~~[such individual's]~~ your spouse or domestic partner or by any
 20 proprietorship, partnership or corporation in which ~~[the reporting~~
 21 ~~individual]~~ you or ~~[such individual's]~~ your spouse or domestic part-
 22 ner has an interest, when incurred or made in the ordinary course of
 23 the trade, business or professional practice ~~[of the reporting indi-~~
 24 ~~vidual or such individual's spouse or domestic partner]~~. Include the
 25 name of the creditor and any collateral pledged by such individual
 26 to secure payment of any such liability. ~~[A reporting individual~~
 27 ~~shall]~~ Do not list any obligation to pay maintenance in connection
 28 with a matrimonial action, alimony or child support payments. Any
 29 loan issued in the ordinary course of business by a financial insti-
 30 tution to finance educational costs, the cost of home purchase or
 31 improvements for a primary or secondary residence, or purchase of a
 32 personally owned motor vehicle, household furniture or appliances
 33 shall be excluded. If any such reportable liability has been guaran-
 34 teed by any third person, list the liability and name the guarantor.

Name of Creditor or Guarantor	Type of Liability and Collateral, if any	Category of Amount
[(In Table II)]		

39	_____
40	_____
41	_____
42	_____
43	_____

44 The requirements of law relating to the reporting of financial
 45 interests are in the public interest and no adverse inference of
 46 unethical or illegal conduct or behavior will be drawn merely from
 47 compliance with these requirements.

48 _____	48 _____
49 (Signature of Reporting Individual)	Date (month/day/year)

TABLE [I] OF VALUES

Category A	[none]	
Category B	\$ 1 to under \$ 1,000	
Category C	\$ 1,000 to under \$ 2,000	5,000
Category [D] B	\$ 5,000 to under \$ 20,000	
Category [E] C	\$ 20,000 to under \$ [50,000] 35,000	
Category D	\$ 35,000 to under \$ 50,000	
Category [F] E	\$ 50,000 to under \$ 75,000	
Category [G] F	\$ 75,000 to under \$ 100,000	
Category [H] G	\$ 100,000 to under \$ 150,000	
Category [I] H	\$ 150,000 to under \$ 250,000	
[Category J]	\$ 250,000 to under \$ 350,000	
Category K	\$ 350,000 to under \$ 450,000	
Category L	\$ 450,000 to under \$ 550,000	
Category M	\$ 550,000 to under \$ 650,000	
Category N	\$ 650,000 to under \$ 750,000	
Category O	\$ 750,000 to under \$ 850,000	
Category P	\$ 850,000 to under \$ 950,000	
Category Q	\$ 950,000 to under \$1,050,000	
Category R	\$1,050,000 to under \$1,150,000	
Category S	\$1,150,000 to under \$1,250,000	
Category T	\$1,250,000 to under \$1,350,000	
Category U	\$1,350,000 to under \$1,450,000	
Category V	\$1,450,000 to under \$1,550,000	
Category W	\$1,550,000 to under \$1,650,000	
Category X	\$1,650,000 to under \$1,750,000	
Category Y	\$1,750,000 to under \$1,850,000	
Category Z	\$1,850,000 to under \$1,950,000	
Category AA	\$1,950,000 to under \$2,050,000	
Category BB	\$2,050,000 to under \$2,150,000	
Category CC	\$2,150,000 to under \$2,250,000	
Category DD	\$2,250,000 to under \$2,350,000	
Category EE	\$2,350,000 to under \$2,450,000	
Category FF	\$2,450,000 to under \$2,550,000	
Category GG	\$2,550,000 to under \$2,650,000	
Category HH	\$2,650,000 to under \$2,750,000	
Category II	\$2,750,000 to under \$2,850,000	
Category JJ	\$2,850,000 to under \$2,950,000	
Category KK	\$2,950,000 to under \$3,050,000	
Category LL	\$3,050,000 to under \$3,150,000	
Category MM	\$3,150,000 to under \$3,250,000	
Category NN	\$3,250,000 to under \$3,350,000	
Category OO	\$3,350,000 to under \$3,450,000	
Category PP	\$3,450,000 to under \$3,550,000	
Category QQ	\$3,550,000 to under \$3,650,000	
Category RR	\$3,650,000 to under \$3,750,000	
Category SS	\$3,750,000 to under \$3,850,000	
Category TT	\$3,850,000 to under \$3,950,000	
Category UU	\$3,950,000 to under \$4,050,000	
Category VV	\$4,050,000 to under \$4,150,000	
Category WW	\$4,150,000 to under \$4,250,000	
Category XX	\$4,250,000 to under \$4,350,000	
Category YY	\$4,350,000 to under \$4,450,000	
Category ZZ	\$4,450,000 to under \$4,550,000	
Category AAA	\$4,550,000 to under \$4,650,000	
Category BBB	\$4,650,000 to under \$4,750,000	

1	Category CCC	\$4,750,000 to under \$4,850,000
2	Category DDD	\$4,850,000 to under \$4,950,000
3	Category EEE	\$4,950,000 to under \$5,050,000
4	Category FFF	\$5,050,000 to under \$5,150,000
5	Category GGG	\$5,150,000 to under \$5,250,000
6	Category HHH	\$5,250,000 to under \$5,350,000
7	Category III	\$5,350,000 to under \$5,450,000
8	Category JJJ	\$5,450,000 to under \$5,550,000
9	Category KKK	\$5,550,000 to under \$5,650,000
10	Category LLL	\$5,650,000 to under \$5,750,000
11	Category MMM	\$5,750,000 to under \$5,850,000
12	Category NNN	\$5,850,000 to under \$5,950,000
13	Category OOO	\$5,950,000 to under \$6,050,000
14	Category PPP	\$6,050,000 to under \$6,150,000
15	Category QQQ	\$6,150,000 to under \$6,250,000
16	Category RRR	\$6,250,000 to under \$6,350,000
17	Category SSS	\$6,350,000 to under \$6,450,000
18	Category TTT	\$6,450,000 to under \$6,550,000
19	Category UUU	\$6,550,000 to under \$6,650,000
20	Category VVV	\$6,650,000 to under \$6,750,000
21	Category WWW	\$6,750,000 to under \$6,850,000
22	Category XXX	\$6,850,000 to under \$6,950,000
23	Category YYY	\$6,950,000 to under \$7,050,000
24	Category ZZZ	\$7,050,000 to under \$7,150,000
25	Category AAAA	\$7,150,000 to under \$7,250,000
26	Category BBBB	\$7,250,000 to under \$7,350,000
27	Category CCCC	\$7,350,000 to under \$7,450,000
28	Category DDDD	\$7,450,000 to under \$7,550,000
29	Category EEEE	\$7,550,000 to under \$7,650,000
30	Category FFFF	\$7,650,000 to under \$7,750,000
31	Category GGGG	\$7,750,000 to under \$7,850,000
32	Category HHHH	\$7,850,000 to under \$7,950,000
33	Category IIII	\$7,950,000 to under \$8,050,000
34	Category JJJJ	\$8,050,000 to under \$8,150,000
35	Category KKKK	\$8,150,000 to under \$8,250,000
36	Category LLLL	\$8,250,000 to under \$8,350,000
37	Category MMMM	\$8,350,000 to under \$8,450,000
38	Category NNNN	\$8,450,000 to under \$8,550,000
39	Category OOOO	\$8,550,000 to under \$8,650,000
40	Category PPPP	\$8,650,000 to under \$8,750,000
41	Category QQQQ	\$8,750,000 to under \$8,850,000
42	Category RRRR	\$8,850,000 to under \$8,950,000
43	Category SSSS	\$8,950,000 to under \$9,050,000
44	Category TTTT	\$9,050,000 to under \$9,150,000
45	Category UUUU	\$9,150,000 to under \$9,250,000
46	Category VVVV	\$9,250,000 to under \$9,350,000
47	Category WWWW	\$9,350,000 to under \$9,450,000
48	Category XXXX	\$9,450,000 to under \$9,550,000
49	Category YYYYY	\$9,550,000 to under \$9,650,000
50	Category ZZZZ	\$9,650,000 to under \$9,750,000
51	Category AAAAA	\$9,750,000 to under \$9,850,000
52	Category BBBBB	\$9,850,000 to under \$9,950,000
53	Category CCCCC	\$9,950,000 to under \$10,000,000
54	Category DDDDD	\$10,000,000 or over

55

TABLE II

1	Category A	none	
2	Category B	\$ 1 to under \$ 1,000	
3	Category C	\$ 1,000 to under \$ 5,000	
4	Category D	\$ 5,000 to under \$ 20,000	
5	Category E	\$ 20,000 to under \$ 50,000	
6	Category F	\$ 50,000 to under \$ 75,000	
7	Category G	\$ 75,000 to under \$ 100,000	
8	Category H	\$ 100,000 to under \$ 150,000	
9	Category I	\$ 150,000 to under \$ 250,000]	
10	Category [J] I	\$ 250,000 to under \$ 500,000	
11	Category [K] J	\$ 500,000 to under \$ 750,000	
12	Category [L] K	\$ 750,000 to under \$1,000,000	
13	Category [M] L	\$1,000,000 to under \$1,250,000	
14	Category [N] M	\$1,250,000 to under \$1,500,000	
15	Category [O] N	\$1,500,000 to under \$1,750,000	
16	Category [P] O	\$1,750,000 to under \$2,000,000	
17	Category [Q] P	\$2,000,000 to under \$2,250,000	
18	Category [R] Q	\$2,250,000 to under \$2,500,000	
19	Category [S] R	\$2,500,000 to under \$2,750,000	
20	Category [T] S	\$2,750,000 to under \$3,000,000	
21	Category [U] T	\$3,000,000 to under \$3,250,000	
22	Category [V] U	\$3,250,000 to under \$3,500,000	
23	Category [W] V	\$3,500,000 to under \$3,750,000	
24	Category [X] W	\$3,750,000 to under \$4,000,000	
25	Category [Y] X	\$4,000,000 to under \$4,250,000	
26	Category [Z] Y	\$4,250,000 to under \$4,500,000	
27	Category [AA] Z	\$4,500,000 to under \$4,750,000	
28	Category [BB] AA	\$4,750,000 to under \$5,000,000	
29	Category [CC] BB	\$5,000,000 to under \$5,250,000	
30	Category [DD] CC	\$5,250,000 to under \$5,500,000	
31	Category [EE] DD	\$5,500,000 to under \$5,750,000	
32	Category [FF] EE	\$5,750,000 to under \$6,000,000	
33	Category [GG] FF	\$6,000,000 to under \$6,250,000	
34	Category [HH] GG	\$6,250,000 to under \$6,500,000	
35	Category [II] HH	\$6,500,000 to under \$6,750,000	
36	Category [JJ] II	\$6,750,000 to under \$7,000,000	
37	Category [KK] JJ	\$7,000,000 to under \$7,250,000	
38	Category [LL] KK	\$7,250,000 to under \$7,500,000	
39	Category [MM] LL	\$7,500,000 to under \$7,750,000	
40	Category [NN] MM	\$7,750,000 to under \$8,000,000	
41	Category [OO] NN	\$8,000,000 to under \$8,250,000	
42	Category [PP] OO	\$8,250,000 to under \$8,500,000	
43	Category [QQ] PP	\$8,500,000 to under \$8,750,000	
44	Category [RR] QQ	\$8,750,000 to under \$9,000,000	
45	Category [SS] RR	\$9,000,000 to under \$9,250,000	
46	Category [TT] SS	\$9,250,000 to under \$9,500,000	
47	Category [UU] TT	\$9,500,000 or over	

48 4. A reporting individual who knowingly and wilfully fails to file an
49 annual statement of financial disclosure or who knowingly and wilfully
50 with intent to deceive makes a false statement or gives information
51 which such individual knows to be false on such statement of financial
52 disclosure filed pursuant to this section shall be subject to a civil
53 penalty in an amount not to exceed forty thousand dollars. Assessment of
54 a civil penalty hereunder shall be made by the commission on ethics and
55 lobbying in government or by the legislative ethics commission, as the
56 case may be, with respect to persons subject to their respective juris-

dictions. The commission on ethics and lobbying in government acting pursuant to subdivision fourteen of section ninety-four of the executive law or the legislative ethics commission acting pursuant to subdivision eleven of section eighty of the legislative law, as the case may be, may, in lieu of or in addition to a civil penalty, refer a violation to the appropriate prosecutor and upon such conviction, but only after such referral, such violation shall be punishable as a class A misdemeanor. A civil penalty for false filing may not be imposed hereunder in the event a category of "value" or "amount" reported hereunder is incorrect unless such reported information is falsely understated. Notwithstanding any other provision of law to the contrary, no other penalty, civil or criminal may be imposed for a failure to file, or for a false filing, of such statement, except that the appointing authority may impose disciplinary action as otherwise provided by law. The commission on ethics and lobbying in government and the legislative ethics commission shall each be deemed to be an agency within the meaning of article three of the state administrative procedure act and shall adopt rules governing the conduct of adjudicatory proceedings and appeals relating to the assessment of the civil penalties herein authorized. Such rules, which shall not be subject to the approval requirements of the state administrative procedure act, shall provide for due process procedural mechanisms substantially similar to those set forth in such article three but such mechanisms need not be identical in terms or scope. Assessment of a civil penalty shall be final unless modified, suspended or vacated within thirty days of imposition and upon becoming final shall be subject to review at the instance of the affected reporting individual in a proceeding commenced against the commission on ethics and lobbying in government or the legislative ethics commission, pursuant to article seventy-eight of the civil practice law and rules.

5. Nothing contained in this section shall be construed as precluding any public authority or public benefit corporation from exercising any authority or power now or hereafter existing to require any of its members, directors, officers or employees to file financial disclosure statements with such public authority or public benefit corporation that are the same as, different from or supplemental to any of the requirements contained herein and to provide only for internal employment discipline for any violation arising out of such internal filing.

6. Notwithstanding any other provision of law or any professional disciplinary rule to the contrary, the disclosure of the identity of any client or customer on a reporting individual's annual statement of financial disclosure shall not constitute professional misconduct or a ground for disciplinary action of any kind, or form the basis for any civil or criminal cause of action or proceeding.

7. With respect to an application to either the commission on ethics and lobbying in government or the office of court administration for an exemption to disclosing the name of a client or customer in response to questions 8 ~~[(b-1), 8 (b-2)]~~ (b) and 8 (c), all information which is the subject of or a part of such application shall remain confidential. The name of the client need not be disclosed by the reporting individual unless and until the commission on ethics and lobbying in government or the office of court administration formally advises the reporting individual that ~~[he or she]~~ such individual must disclose such names and the reporting individual agrees to represent the client. Any commissioner or person employed by the commission on ethics and lobbying in government or any person employed by the office of court administration who, intentionally and without authorization from a court of competent jurisdic-

tion releases confidential information related to a request for an exemption received by the commission or the office of court administration shall be guilty of a class A misdemeanor.

§ 2. Paragraph (a) of subdivision 6 of section 202 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(a) Notwithstanding the provisions of subdivision one of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year reports specified in such request that were filed under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed capacity in a position subject to confirmation by the United States senate; or, in New York state: a statewide elected official, as defined in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three a]~~ seventy-three of the public officers law; a state officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of such]~~ section seventy-three-a of the public officers law; a political party chairperson, as defined in ~~[paragraph (h) of subdivision one of such]~~ section ~~[seventy-three a]~~ seventy-three of the public officers law; a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a person appointed, pursuant to law, to serve due to vacancy or otherwise in the position of a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a member of the state legislature; or a judge or justice of the unified court system; or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity directly or indirectly controlled by any individual listed in this paragraph, whether by contract, through ownership or control of a majority interest in such entity, or otherwise, or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity of which any individual listed in this paragraph holds ten percent or more of the voting securities of such entity; provided however that, prior to furnishing any report, the commissioner shall redact any copy of a federal return (or portion thereof) attached to, or any information on a federal return that is reflected on, such report, and any social security numbers, account numbers and residential address information.

§ 3. Paragraph (a) of subdivision 16 of section 211 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(a) Notwithstanding the provisions of subdivision eight of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year reports specified in such request that were filed under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New

York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed capacity in a position subject to confirmation by the United States senate; or, in New York state: a statewide elected official, as defined in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a state officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of such]~~ section seventy-three-a of the public officers law; a political party chairperson, as defined in ~~[paragraph (h) of subdivision one of such]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a person appointed, pursuant to law, to serve due to vacancy or otherwise in the position of a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a member of the state legislature; or a judge or justice of the unified court system, or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity directly or indirectly controlled by any individual listed in this paragraph, whether by contract, through ownership or control of a majority interest in such entity, or otherwise, or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity of which any individual listed in this paragraph holds ten percent or more of the voting securities of such entity; provided however that, prior to furnishing any report, the commissioner shall redact any copy of a federal return (or portion thereof) attached to, or any information on a federal return that is reflected on, such report, and any social security numbers, account numbers and residential address information.

§ 4. Paragraph 1 of subdivision (g) of section 314 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(1) Notwithstanding the provisions of subdivision (a) of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year returns specified in such request that were filed under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed capacity in a position subject to confirmation by the United States senate; or, in New York state: a statewide elected official, as defined in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a state officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of such]~~ section seventy-three-a of the public officers law; a political party chairperson, as defined in ~~[paragraph (h) of subdivision one of such]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a person appointed, pursuant to law, to serve due to vacancy or otherwise in the position of a local elected official, as defined in subdivisions one and

1 two of section eight hundred ten of the general municipal law; a member
2 of the state legislature; or a judge or justice of the unified court
3 system, or filed by a partnership, firm, association, corporation,
4 joint-stock company, trust or similar entity directly or indirectly
5 controlled by any individual listed in this paragraph, whether by
6 contract, through ownership or control of a majority interest in such
7 entity, or otherwise, or filed by a partnership, firm, association,
8 corporation, joint-stock company, trust or similar entity of which any
9 individual listed in this paragraph holds ten percent or more of the
10 voting securities of such entity; provided however that, prior to
11 furnishing any return, the commissioner shall redact any copy of a
12 federal return (or portion thereof) attached to, or any information on a
13 federal return that is reflected on, such return, and any social securi-
14 ty numbers, account numbers and residential address information.

15 § 5. Paragraph (a) of subdivision 5 of section 437 of the tax law, as
16 amended by chapter 92 of the laws of 2019, is amended to read as
17 follows:

18 (a) Notwithstanding the provisions of subdivision one of this section,
19 upon written request from the chairperson of the committee on ways and
20 means of the United States House of Representatives, the chairperson of
21 the committee on finance of the United States Senate, or the chairperson
22 of the joint committee on taxation of the United States Congress, the
23 commissioner shall furnish such committee with any current or prior year
24 returns or reports specified in such request that were filed under this
25 article by the president of the United States, vice-president of the
26 United States, member of the United States Congress representing New
27 York state, or any person who served in or was employed by the executive
28 branch of the government of the United States on the executive staff of
29 the president, in the executive office of the president, or in an acting
30 or confirmed capacity in a position subject to confirmation by the
31 United States senate; or, in New York state: a statewide elected offi-
32 cial, as defined in [~~paragraph (a) of subdivision one of~~] section
33 [~~seventy-three-a~~] seventy-three of the public officers law; a state
34 officer or employee, as defined in [~~subparagraph (i) of paragraph (c) of~~
35 ~~subdivision one of such~~] section seventy-three-a of the public officers
36 law; a political party chairperson, as defined in [~~paragraph (h) of~~
37 ~~subdivision one of such~~] section [~~seventy-three-a~~] seventy-three of the
38 public officers law; a local elected official, as defined in subdivi-
39 sions one and two of section eight hundred ten of the general municipal
40 law; a person appointed, pursuant to law, to serve due to vacancy or
41 otherwise in the position of a local elected official, as defined in
42 subdivisions one and two of section eight hundred ten of the general
43 municipal law; a member of the state legislature; or a judge or justice
44 of the unified court system, or filed by a partnership, firm, associ-
45 ation, corporation, joint-stock company, trust or similar entity direct-
46 ly or indirectly controlled by any individual listed in this paragraph,
47 whether by contract, through ownership or control of a majority interest
48 in such entity, or otherwise, or filed by a partnership, firm, associ-
49 ation, corporation, joint-stock company, trust or similar entity of
50 which any individual listed in this paragraph holds ten percent or more
51 of the voting securities of such entity; provided however that, prior to
52 furnishing any return or report, the commissioner shall redact any copy
53 of a federal return (or portion thereof) attached to, or any information
54 on a federal return that is reflected on, such return or report, and any
55 social security numbers, account numbers and residential address infor-
56 mation.

§ 6. Paragraph 1 of subdivision (a-1) of section 499 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(1) Notwithstanding the provisions of subdivision (a) of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year returns or reports specified in such request that were filed under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed capacity in a position subject to confirmation by the United States senate; or, in New York state: a statewide elected official, as defined in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a state officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of such]~~ section seventy-three-a of the public officers law; a political party chairperson, as defined in ~~[paragraph (h) of subdivision one of such]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a person appointed, pursuant to law, to serve due to vacancy or otherwise in the position of a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a member of the state legislature; or a judge or justice of the unified court system, or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity directly or indirectly controlled by any individual listed in this paragraph, whether by contract, through ownership or control of a majority interest in such entity, or otherwise, or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity of which any individual listed in this paragraph holds ten percent or more of the voting securities of such entity; provided however that, prior to furnishing any return or report, the commissioner shall redact any copy of a federal return (or portion thereof) attached to, or any information on a federal return that is reflected on, such return or report, and any social security numbers, account numbers and residential address information.

§ 7. Paragraph (a) of subdivision 6 of section 514 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(a) Notwithstanding the provisions of subdivision one of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year returns or reports specified in such request that were filed under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of

1 the president, in the executive office of the president, or in an acting
2 or confirmed capacity in a position subject to confirmation by the
3 United States senate; or, in New York state: a statewide elected offi-
4 cial, as defined in [~~paragraph (a) of subdivision one of~~] section
5 [~~seventy-three-a~~] seventy-three of the public officers law; a state
6 officer or employee, as defined in [~~subparagraph (i) of paragraph (c) of~~
7 ~~subdivision one of such~~] section seventy-three-a of the public officers
8 law; a political party chairperson, as defined in [~~paragraph (h) of~~
9 ~~subdivision one of such~~] section [~~seventy-three-a~~] seventy-three of the
10 public officers law; a local elected official, as defined in subdivi-
11 sions one and two of section eight hundred ten of the general municipal
12 law; a person appointed, pursuant to law, to serve due to vacancy or
13 otherwise in the position of a local elected official, as defined in
14 subdivisions one and two of section eight hundred ten of the general
15 municipal law; a member of the state legislature; or a judge or justice
16 of the unified court system; or filed by a partnership, firm, associ-
17 ation, corporation, joint-stock company, trust or similar entity direct-
18 ly or indirectly controlled by any individual listed in this paragraph,
19 whether by contract, through ownership or control of a majority interest
20 in such entity, or otherwise, or filed by a partnership, firm, associ-
21 ation, corporation, joint-stock company, trust or similar entity of
22 which any individual listed in this paragraph holds ten percent or more
23 of the voting securities of such entity; provided however that, prior to
24 furnishing any return or report, the commissioner shall redact any copy
25 of a federal return (or portion thereof) attached to, or any information
26 on a federal return that is reflected on, such return or report, and any
27 social security numbers, account numbers and residential address infor-
28 mation.

29 § 8. Paragraph 1 of subsection (f-1) of section 697 of the tax law, as
30 amended by chapter 92 of the laws of 2019, is amended to read as
31 follows:

32 (1) Notwithstanding the provisions of subsection (e) of this section,
33 upon written request from the chairperson of the committee on ways and
34 means of the United States House of Representatives, the chairperson of
35 the committee on finance of the United States Senate, or the chairperson
36 of the joint committee on taxation of the United States Congress, the
37 commissioner shall furnish such committee with any current or prior year
38 reports or returns specified in such request that were filed under this
39 article by the president of the United States, vice-president of the
40 United States, member of the United States Congress representing New
41 York state, or any person who served in or was employed by the executive
42 branch of the government of the United States on the executive staff of
43 the president, in the executive office of the president, or in an acting
44 or confirmed capacity in a position subject to confirmation by the
45 United States senate; or, in New York state: a statewide elected offi-
46 cial, as defined in [~~paragraph (a) of subdivision one of~~] section
47 [~~seventy-three-a~~] seventy-three of the public officers law; a state
48 officer or employee, as defined in [~~subparagraph (i) of paragraph (c) of~~
49 ~~subdivision one of such~~] section seventy-three-a of the public officers
50 law; a political party chairperson, as defined in [~~paragraph (h) of~~
51 ~~subdivision one of such~~] section [~~seventy-three-a~~] seventy-three of the
52 public officers law; a local elected official, as defined in subdivi-
53 sions one and two of section eight hundred ten of the general municipal
54 law; a person appointed, pursuant to law, to serve due to vacancy or
55 otherwise in the position of a local elected official, as defined in
56 subdivisions one and two of section eight hundred ten of the general

1 municipal law; a member of the state legislature; or a judge or justice
2 of the unified court system; provided however that, prior to furnishing
3 any report or return, the commissioner shall redact any copy of a federal
4 return (or portion thereof) attached to, or any information on a
5 federal return that is reflected on, such report or return, and any
6 social security numbers, account numbers and residential address information.
7

8 § 9. Paragraph 1 of subsection (b-1) of section 994 of the tax law, as
9 amended by chapter 92 of the laws of 2019, is amended to read as
10 follows:

11 (1) Notwithstanding the provisions of subsection (a) of this section,
12 upon written request from the chairperson of the committee on ways and
13 means of the United States House of Representatives, the chairperson of
14 the committee on finance of the United States Senate, or the chairperson
15 of the joint committee on taxation of the United States Congress, the
16 commissioner shall furnish such committee with any current or prior year
17 reports or returns specified in such request that were filed under this
18 article by the president of the United States, vice-president of the
19 United States, member of the United States Congress representing New
20 York state, or any person who served in or was employed by the executive
21 branch of the government of the United States on the executive staff of
22 the president, in the executive office of the president, or in an acting
23 or confirmed capacity in a position subject to confirmation by the
24 United States senate; or, in New York state: a statewide elected official,
25 as defined in ~~[paragraph (a) of subdivision one of]~~ section
26 ~~[seventy-three-a]~~ seventy-three of the public officers law; a state
27 officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of~~
28 ~~subdivision one of such]~~ section seventy-three-a of the public officers
29 law; a political party chairperson, as defined in ~~[paragraph (h) of~~
30 ~~subdivision one of such]~~ section [seventy-three-a] seventy-three of the
31 public officers law; a local elected official, as defined in subdivisions
32 one and two of section eight hundred ten of the general municipal
33 law; a person appointed, pursuant to law, to serve due to vacancy or
34 otherwise in the position of a local elected official, as defined in
35 subdivisions one and two of section eight hundred ten of the general
36 municipal law; a member of the state legislature; or a judge or justice
37 of the unified court system; or filed by a partnership, firm, association,
38 corporation, joint-stock company, trust or similar entity directly or
39 indirectly controlled by any individual listed in this paragraph,
40 whether by contract, through ownership or control of a majority interest
41 in such entity, or otherwise, or filed by a partnership, firm, association,
42 corporation, joint-stock company, trust or similar entity of
43 which any individual listed in this paragraph holds ten percent or more
44 of the voting securities of such entity; provided however that, prior to
45 furnishing any report or return, the commissioner shall redact any copy
46 of a federal return (or portion thereof) attached to, or any information
47 on a federal return that is reflected on, such report or return, and any
48 social security numbers, account numbers and residential address information.
49

50 § 10. Paragraph 1 of subdivision (h) of section 1146 of the tax law,
51 as amended by chapter 92 of the laws of 2019, is amended to read as
52 follows:

53 (1) Notwithstanding the provisions of subdivision (a) of this section,
54 upon written request from the chairperson of the committee on ways and
55 means of the United States House of Representatives, the chairperson of
56 the committee on finance of the United States Senate, or the chairperson

1 of the joint committee on taxation of the United States Congress, the
2 commissioner shall furnish such committee with any current or prior year
3 returns or reports specified in such request that were filed under this
4 article by the president of the United States, vice-president of the
5 United States, member of the United States Congress representing New
6 York state, or any person who served in or was employed by the executive
7 branch of the government of the United States on the executive staff of
8 the president, in the executive office of the president, or in an acting
9 or confirmed capacity in a position subject to confirmation by the
10 United States senate; or, in New York state: a statewide elected offi-
11 cial, as defined in [~~paragraph (a) of subdivision one of~~] section
12 [~~seventy-three-a~~] seventy-three of the public officers law; a state
13 officer or employee, as defined in [~~subparagraph (i) of paragraph (c) of~~
14 ~~subdivision one of such~~] section seventy-three-a of the public officers
15 law; a political party chairperson, as defined in [~~paragraph (h) of~~
16 ~~subdivision one of such~~] section [~~seventy-three-a~~] seventy-three of the
17 public officers law; a local elected official, as defined in subdivi-
18 sions one and two of section eight hundred ten of the general municipal
19 law; a person appointed, pursuant to law, to serve due to vacancy or
20 otherwise in the position of a local elected official, as defined in
21 subdivisions one and two of section eight hundred ten of the general
22 municipal law; a member of the state legislature, or a judge or justice
23 of the unified court system; or filed by a partnership, firm, associ-
24 ation, corporation, joint-stock company, trust or similar entity direct-
25 ly or indirectly controlled by any individual listed in this paragraph,
26 whether by contract, through ownership or control of a majority interest
27 in such entity, or otherwise, or filed by a partnership, firm, associ-
28 ation, corporation, joint-stock company, trust or similar entity of
29 which any individual listed in this paragraph holds ten percent or more
30 of the voting securities of such entity; provided however that, prior to
31 furnishing any return or report, the commissioner shall redact any copy
32 of a federal return (or portion thereof) attached to, or any information
33 on a federal return that is reflected on, such report or return, and any
34 social security numbers, account numbers and residential address infor-
35 mation.

36 § 11. Paragraph 1 of subdivision (g) of section 1287 of the tax law,
37 as amended by chapter 92 of the laws of 2019, is amended to read as
38 follows:

39 (1) Notwithstanding the provisions of subdivision (a) of this section,
40 upon written request from the chairperson of the committee on ways and
41 means of the United States House of Representatives, the chairperson of
42 the committee on finance of the United States Senate, or the chairperson
43 of the joint committee on taxation of the United States Congress, the
44 commissioner shall furnish such committee with any current or prior year
45 returns specified in such request that were filed under this article by
46 the president of the United States, vice-president of the United States,
47 member of the United States Congress representing New York state, or any
48 person who served in or was employed by the executive branch of the
49 government of the United States on the executive staff of the president,
50 in the executive office of the president, or in an acting or confirmed
51 capacity in a position subject to confirmation by the United States
52 senate; or, in New York state: a statewide elected official, as defined
53 in [~~paragraph (a) of subdivision one of~~] section [~~seventy-three-a~~]
54 seventy-three of the public officers law; a state officer or employee,
55 as defined in [~~subparagraph (i) of paragraph (c) of subdivision one of~~
56 ~~such~~] section seventy-three-a of the public officers law; a political

1 party chairperson, as defined in [~~paragraph (h) of subdivision one of~~
2 ~~such~~] section [~~seventy-three-a~~] seventy-three of the public officers
3 law; a local elected official, as defined in subdivisions one and two of
4 section eight hundred ten of the general municipal law; a person
5 appointed, pursuant to law, to serve due to vacancy or otherwise in the
6 position of a local elected official, as defined in subdivisions one and
7 two of section eight hundred ten of the general municipal law; a member
8 of the state legislature; or a judge or justice of the unified court
9 system; or filed by a partnership, firm, association, corporation,
10 joint-stock company, trust or similar entity directly or indirectly
11 controlled by any individual listed in this paragraph, whether by
12 contract, through ownership or control of a majority interest in such
13 entity, or otherwise, or filed by a partnership, firm, association,
14 corporation, joint-stock company, trust or similar entity of which any
15 individual listed in this paragraph holds ten percent or more of the
16 voting securities of such entity; provided however that, prior to
17 furnishing any return, the commissioner shall redact any copy of a
18 federal return (or portion thereof) attached to, or any information on a
19 federal return that is reflected on, such return, and any social securi-
20 ty numbers, account numbers and residential address information.

21 § 12. Paragraph 1 of subdivision (f) of section 1296 of the tax law,
22 as amended by chapter 92 of the laws of 2019, is amended to read as
23 follows:

24 (1) Notwithstanding the provisions of subdivision (a) of this section,
25 upon written request from the chairperson of the committee on ways and
26 means of the United States House of Representatives, the chairperson of
27 the committee on finance of the United States Senate, or the chairperson
28 of the joint committee on taxation of the United States Congress, the
29 commissioner shall furnish such committee with any current or prior year
30 returns or reports specified in such request that were filed under this
31 article by the president of the United States, vice-president of the
32 United States, member of the United States Congress representing New
33 York state, or any person who served in or was employed by the executive
34 branch of the government of the United States on the executive staff of
35 the president, in the executive office of the president, or in an acting
36 or confirmed capacity in a position subject to confirmation by the
37 United States senate; or, in New York state: a statewide elected offi-
38 cial, as defined in [~~paragraph (a) of subdivision one of~~] section
39 [~~seventy-three-a~~] seventy-three of the public officers law; a state
40 officer or employee, as defined in [~~subparagraph (i) of paragraph (c) of~~
41 ~~subdivision one of such~~] section seventy-three-a of the public officers
42 law; a political party chairperson, as defined in [~~paragraph (h) of~~
43 ~~subdivision one of such~~] section [~~seventy-three-a~~] seventy-three of the
44 public officers law; a local elected official, as defined in subdivi-
45 sions one and two of section eight hundred ten of the general municipal
46 law; a person appointed, pursuant to law, to serve due to vacancy or
47 otherwise in the position of a local elected official, as defined in
48 subdivisions one and two of section eight hundred ten of the general
49 municipal law; a member of the state legislature; or a judge or justice
50 of the unified court system; or filed by a partnership, firm, associ-
51 ation, corporation, joint-stock company, trust or similar entity direct-
52 ly or indirectly controlled by any individual listed in this paragraph,
53 whether by contract, through ownership or control of a majority interest
54 in such entity, or otherwise, or filed by a partnership, firm, associ-
55 ation, corporation, joint-stock company, trust or similar entity of
56 which any individual listed in this paragraph holds ten percent or more

1 of the voting securities of such entity; provided however that, prior to
2 furnishing any return or report, the commissioner shall redact any copy
3 of a federal return (or portion thereof) attached to, or any information
4 on a federal return that is reflected on, such return or report, and any
5 social security numbers, account numbers and residential address infor-
6 mation.

7 § 13. Paragraph 1 of subdivision (d) of section 1299-f of the tax law,
8 as amended by chapter 92 of the laws of 2019, is amended to read as
9 follows:

10 (1) Notwithstanding the provisions of subdivision (a) of this section,
11 upon written request from the chairperson of the committee on ways and
12 means of the United States House of Representatives, the chairperson of
13 the committee on finance of the United States Senate, or the chairperson
14 of the joint committee on taxation of the United States Congress, the
15 commissioner shall furnish such committee with any current or prior year
16 returns specified in such request that were filed under this article by
17 the president of the United States, vice-president of the United States,
18 member of the United States Congress representing New York state, or any
19 person who served in or was employed by the executive branch of the
20 government of the United States on the executive staff of the president,
21 in the executive office of the president, or in an acting or confirmed
22 capacity in a position subject to confirmation by the United States
23 senate; or, in New York state: a statewide elected official, as defined
24 in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~
25 seventy-three of the public officers law; a state officer or employee,
26 as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of]~~
27 ~~such~~ section seventy-three-a of the public officers law; a political
28 party chairperson, as defined in ~~[paragraph (h) of subdivision one of]~~
29 ~~such~~ section ~~[seventy-three-a]~~ seventy-three of the public officers
30 law; a local elected official, as defined in subdivisions one and two of
31 section eight hundred ten of the general municipal law; a person
32 appointed, pursuant to law, to serve due to vacancy or otherwise in the
33 position of a local elected official, as defined in subdivisions one and
34 two of section eight hundred ten of the general municipal law; a member
35 of the state legislature; or a judge or justice of the unified court
36 system; or filed by a partnership, firm, association, corporation,
37 joint-stock company, trust or similar entity directly or indirectly
38 controlled by any individual listed in this paragraph, whether by
39 contract, through ownership or control of a majority interest in such
40 entity, or otherwise, or filed by a partnership, firm, association,
41 corporation, joint-stock company, trust or similar entity of which any
42 individual listed in this paragraph holds ten percent or more of the
43 voting securities of such entity; provided however that, prior to
44 furnishing any return, the commissioner shall redact any copy of a
45 federal return (or portion thereof) attached to, or any information on a
46 federal return that is reflected on, such return, and any social securi-
47 ty numbers, account numbers and residential address information.

48 § 14. Paragraph 1 of subdivision (i) of section 1418 of the tax law,
49 as amended by chapter 92 of the laws of 2019, is amended to read as
50 follows:

51 (1) Notwithstanding the provisions of subdivision (a) of this section,
52 upon written request from the chairperson of the committee on ways and
53 means of the United States House of Representatives, the chairperson of
54 the committee on finance of the United States Senate, or the chairperson
55 of the joint committee on taxation of the United States Congress, the
56 commissioner shall furnish such committee with any current or prior year

returns filed specified in such request that were under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed capacity in a position subject to confirmation by the United States senate; or, in New York state: a statewide elected official, as defined in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a state officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of such]~~ section seventy-three-a of the public officers law; a political party chairperson, as defined in ~~[paragraph (h) of subdivision one of such]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a person appointed, pursuant to law, to serve due to vacancy or otherwise in the position of a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a member of the state legislature; or a judge or justice of the unified court system; or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity directly or indirectly controlled by any individual listed in this paragraph, whether by contract, through ownership or control of a majority interest in such entity, or otherwise, or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity of which any individual listed in this paragraph holds ten percent or more of the voting securities of such entity; provided however that, prior to furnishing any return, the commissioner shall redact any copy of a federal return (or portion thereof) attached to, or any information on a federal return that is reflected on, such return, and any social security numbers, account numbers and residential address information.

§ 15. Paragraph 1 of subdivision (h) of section 1518 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(1) Notwithstanding the provisions of subdivision (a) of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year returns filed specified in such request that were under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed capacity in a position subject to confirmation by the United States senate; or, in New York state: a statewide elected official, as defined in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a state officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of such]~~ section seventy-three-a of the public officers law; a political party chairperson, as defined in ~~[paragraph (h) of subdivision one of such]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a local elected official, as defined in subdivisions one and two of

1 section eight hundred ten of the general municipal law; a person
2 appointed, pursuant to law, to serve due to vacancy or otherwise in the
3 position of a local elected official, as defined in subdivisions one and
4 two of section eight hundred ten of the general municipal law; a member
5 of the state legislature; or a judge or justice of the unified court
6 system, or filed by a partnership, firm, association, corporation,
7 joint-stock company, trust or similar entity directly or indirectly
8 controlled by any individual listed in this paragraph, whether by
9 contract, through ownership or control of a majority interest in such
10 entity, or otherwise, or filed by a partnership, firm, association,
11 corporation, joint-stock company, trust or similar entity of which any
12 individual listed in this paragraph holds ten percent or more of the
13 voting securities of such entity; provided however that, prior to
14 furnishing any return, the commissioner shall redact any copy of a
15 federal return (or portion thereof) attached to, or any information on a
16 federal return that is reflected on, such return, and any social securi-
17 ty numbers, account numbers and residential address information.

18 § 16. Paragraph 1 of subdivision (f) of section 1555 of the tax law,
19 as amended by chapter 92 of the laws of 2019, is amended to read as
20 follows:

21 (1) Notwithstanding the provisions of subdivision (a) of this section,
22 upon written request from the chairperson of the committee on ways and
23 means of the United States House of Representatives, the chairperson of
24 the committee on finance of the United States Senate, or the chairperson
25 of the joint committee on taxation of the United States Congress, the
26 commissioner shall furnish such committee with any current or prior year
27 returns filed specified in such request that were under this article by
28 the president of the United States, vice-president of the United States,
29 member of the United States Congress representing New York state, or any
30 person who served in or was employed by the executive branch of the
31 government of the United States on the executive staff of the president,
32 in the executive office of the president, or in an acting or confirmed
33 capacity in a position subject to confirmation by the United States
34 senate; or, in New York state: a statewide elected official, as defined
35 in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~
36 seventy-three of the public officers law; a state officer or employee,
37 as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of~~
38 ~~such]~~ section ~~seventy-three-a~~ of the public officers law; a political
39 party chairperson, as defined in ~~[paragraph (h) of subdivision one of~~
40 ~~such]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers
41 law; a local elected official, as defined in subdivisions one and two of
42 section eight hundred ten of the general municipal law; a person
43 appointed, pursuant to law, to serve due to vacancy or otherwise in the
44 position of a local elected official, as defined in subdivisions one and
45 two of section eight hundred ten of the general municipal law; a member
46 of the state legislature; or a judge or justice of the unified court
47 system; or filed by a partnership, firm, association, corporation,
48 joint-stock company, trust or similar entity directly or indirectly
49 controlled by any individual listed in this paragraph, whether by
50 contract, through ownership or control of a majority interest in such
51 entity, or otherwise, or filed by a partnership, firm, association,
52 corporation, joint-stock company, trust or similar entity of which any
53 individual listed in this paragraph holds ten percent or more of the
54 voting securities of such entity; provided however that, prior to
55 furnishing any return, the commissioner shall redact any copy of a
56 federal return (or portion thereof) attached to, or any information on a

1 federal return that is reflected on, such return, and any social securi-
2 ty numbers, account numbers and residential address information.

3 § 17. Paragraph 1 of subdivision (m) of section 11-1797 of the admin-
4 istrative code of the city of New York, as amended by chapter 92 of the
5 laws of 2019, is amended to read as follows:

6 (1) Notwithstanding the provisions of subdivision (e) of this section,
7 upon written request from the chairperson of the committee on ways and
8 means of the United States House of Representatives, the chairperson of
9 the committee on finance of the United States Senate, or the chairperson
10 of the joint committee on taxation of the United States Congress, the
11 commissioner of taxation and finance shall furnish such committee with
12 any current or prior year returns specified in such request that were
13 filed under this article by the president of the United States, vice-
14 president of the United States, member of the United States Congress
15 representing New York state, or any person who served in or was employed
16 by the executive branch of the government of the United States on the
17 executive staff of the president, in the executive office of the presi-
18 dent, or in an acting or confirmed capacity in a position subject to
19 confirmation by the United States senate; or, in New York state: a
20 statewide elected official, as defined in [~~paragraph (a) of subdivision~~
21 ~~one of~~] section [~~seventy-three-a~~] seventy-three of the public officers
22 law; a state officer or employee, as defined in [~~subparagraph (i) of~~
23 ~~paragraph (c) of subdivision one of such~~] section seventy-three-a of the
24 public officers law; a political party chairperson, as defined in [~~para-~~
25 ~~graph (h) of subdivision one of such~~] section [~~seventy-three-a~~] seven-
26 ty-three of the public officers law; a local elected official, as
27 defined in subdivisions one and two of section eight hundred ten of the
28 general municipal law; a person appointed, pursuant to law, to serve due
29 to vacancy or otherwise in the position of a local elected official, as
30 defined in subdivisions one and two of section eight hundred ten of the
31 general municipal law; a member of the state legislature; or a judge or
32 justice of the unified court system; provided however that, prior to
33 furnishing any return, the commissioner shall redact any copy of a
34 federal return (or portion thereof) attached to, or any information on a
35 federal return that is reflected on, such return, and any social securi-
36 ty numbers, account numbers and residential address information.

37 § 18. Paragraph (b) of subdivision 13 of section 94 of the executive
38 law, as added by section 2 of part QQ of chapter 56 of the laws of 2022,
39 is amended to read as follows:

40 (b) The commission shall post on its website the following documents:

41 (i) the information set forth in an annual statement of financial
42 disclosure filed pursuant to section seventy-three-a of the public offi-
43 cers law except information deleted pursuant to paragraph (g) of subdivi-
44 sion nine of this section of statewide elected officials and members
45 of the legislature, and candidates for statewide elected office and
46 members of the legislature;

47 (ii) notices of delinquency sent under subdivision nine of this
48 section;

49 (iii) notices of civil assessments imposed under this section which
50 shall include a description of the nature of the alleged wrongdoing, the
51 procedural history of the complaint, the findings and determinations
52 made by the commission, and any sanction imposed;

53 (iv) the terms of any settlement or compromise of a complaint or
54 referral which includes a fine, penalty or other remedy;

55 (v) those required to be held or maintained publicly available pursu-
56 ant to article one-A of the legislative law; and

(vi) reports issued by the commission pursuant to this section.

§ 19. Paragraph g of subdivision 7 of section 80 of the legislative law, as amended by section 4 of part QQ of chapter 56 of the laws of 2022, is amended to read as follows:

g. Make available forms for financial disclosure statements required to be filed pursuant to subdivision six of section seventy-three and section seventy-three-a of the public officers law [~~as provided by the commission on ethics and lobbying in government~~];

§ 20. This act shall take effect on the first of January next succeeding the date on which it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

PART W

Section 1. Intentionally omitted.

§ 1-a. The workers' compensation law is amended by adding two new sections 151-a and 151-b to read as follows:

§ 151-a. Fraud assessment commission. There is hereby established a fraud assessment commission, which shall consist of eleven members appointed by the governor as follows: one member designated by the executive director of the New York State Insurance Fund, one member designated by the president of the New York State AFL-CIO, three members that represent unions that primarily represent workers in New York State, two members from self-insured employers, two members from insured employers, one from an insurer, and one attorney whose practice is primarily focused on representing injured workers. The term of office shall be four years, and a member shall hold office until the appointment of a successor. The chair of the workers' compensation board, the commissioner of labor, and the workers' compensation fraud inspector general shall be ex officio voting members of the commission.

§ 151-b. Assessment for workers' compensation fraud investigations. To fund the investigation and prosecution of violations punishable under sections thirteen-a; thirteen-d; thirteen-i; thirteen-k; thirteen-l; thirteen-m; nineteen-a; twenty-four; twenty-four-a; thirty-one; fifty; fifty-two; ninety-five; ninety-six; one hundred ten; one hundred twenty-five; one hundred twenty-five-a; one hundred thirty-one; and one hundred fifty-one; and subdivisions two, three, four, and five of section one hundred fourteen of this chapter, the chair of the workers' compensation board, in consultation with the workers' compensation fraud inspector general and the fraud assessment commission shall establish, by the first day of November, two thousand twenty-six, and annually thereafter, an assessment, not greater than 0.4%, for workers' compensation fraud investigation and prosecution which shall be borne by employers securing compensation for their employees pursuant to section fifty of this chapter. The assessment for workers' compensation fraud investigation and prosecution shall be in addition to assessments for annual expenses established in section one hundred fifty-one of this article. All assessments collected pursuant to this section shall be credited to the workers' compensation fraud investigation and prosecution fund under section ninety-nine-uu of the state finance law and shall be available for the uses and purposes of such fund.

§ 1-b. The state finance law is amended by adding a new section 99-uu to read as follows:

1 § 99-uu. Workers' compensation fraud investigation and prosecution
2 fund. 1. There is hereby established in the joint custody of the chair
3 of the workers' compensation board, the commissioner of labor, and the
4 comptroller a special fund to be known as the "workers' compensation
5 fraud investigation and prosecution fund".

6 2. Such fund shall consist of monies received from the imposition of
7 the assessment for workers' compensation fraud investigation and prose-
8 cution pursuant to section one hundred fifty-one-b of the workers'
9 compensation law, and all other monies appropriated, credited, or trans-
10 ferred thereto from any other fund or source pursuant to law.

11 3. Monies in the fund, pursuant to appropriation by the legislature,
12 issuance of a certificate of availability by the director of the budget,
13 and a determination by the chair of the workers' compensation board in
14 consultation with the inspector general, with the advice and consent of
15 the fraud assessment commission as to the most effective distribution of
16 monies, may be made available for purposes of the investigation and
17 prosecution of workers' compensation fraud cases described in section
18 one hundred fifty-one-a of the workers' compensation law.

19 4. At least fifty percent of the workers' compensation fraud investi-
20 gation and prosecution fund established pursuant to this section shall
21 be distributed to district attorneys for purposes of the investigation
22 and prosecution of workers' compensation fraud described in section one
23 hundred fifty-one-a of the workers' compensation law. If a district
24 attorney is determined by the chair of the workers' compensation board
25 or the workers' compensation fraud inspector general to be unwilling or
26 unable to investigate and prosecute workers' compensation fraud
27 described in section one hundred fifty-one-a of the workers' compen-
28 sation law, the commissioner of labor shall discontinue distribution of
29 funds allocated for such county and may redistribute such funds accord-
30 ing to this section.

31 5. Monies shall be payable from the fund on the audit and warrant of
32 the comptroller on vouchers approved and certified by the commissioner
33 of labor.

34 6. Monies in the workers' compensation fraud investigation fund shall
35 be kept separate and shall not be commingled with any other monies in
36 the custody of the chair of the workers' compensation board, the commis-
37 sioner of labor and/or the comptroller.

38 7. To the extent practicable, the commissioner of labor shall ensure
39 that all monies received during a fiscal year are expended prior to the
40 end of such fiscal year.

41 8. By the thirtieth day of June, two thousand twenty-six, and annually
42 thereafter, the chair of the workers' compensation board, in consulta-
43 tion with the workers' compensation fraud inspector general or the fraud
44 assessment commission, shall develop and release a request for proposals
45 and application process for the funds outlined in this section.

46 9. The fraud assessment commission shall provide quarterly reports to
47 the speaker of the assembly, the temporary president of the senate, the
48 chair of the senate finance committee and the chair of the assembly ways
49 and means committee, on the receipts and distributions of the workers'
50 compensation investigation and prosecution fund, including an itemiza-
51 tion of such receipts and disbursements, the historical and projected
52 expenditures, and the projected fund balance.

53 § 2. This act shall take effect immediately.

1 Section 1. Section 13-a of the workers' compensation law, as added by
2 chapter 258 of the laws of 1935, subdivision 1 as amended by chapter 363
3 of the laws of 1989, subdivision 2 as amended by chapter 113 of the laws
4 of 1946, subdivision 4 as amended by chapter 473 of the laws of 2000,
5 subdivisions 5 and 6 as amended by section 8 of part CC of chapter 55 of
6 the laws of 2019, and subdivision 7 as added by chapter 6 of the laws of
7 2007, is amended to read as follows:

8 § 13-a. Selection of authorized [physician] provider by employee. (1)
9 An injured employee may, when care is required, select to treat ~~[him-or~~
10 ~~her]~~ with any [physician] provider authorized by the chair to render
11 medical care or treatment, as hereafter provided. If for any reason
12 during the period when medical care or treatment ~~[and care]~~ is required,
13 the employee wishes to transfer ~~[his-or-her]~~ their medical care or
14 treatment ~~[and care]~~ to another authorized [physician] provider, ~~[he-or~~
15 ~~she]~~ they may do so, in accordance with rules prescribed by the chair.
16 In such instance the remuneration of the [physician] provider whose
17 services are being dispensed with shall be limited to the value of
18 treatment rendered at fees as established in the schedule for ~~[his-or~~
19 ~~her]~~ their location, unless payment in higher amounts has been approved
20 as authorized in ~~[section thirteen, paragraph]~~ subdivision a of section
21 thirteen of this article. If a claimant shall receive treatment in any
22 hospital or other institution operated in whole or in part by the state
23 of New York, the employer shall be liable for food, clothing and mainte-
24 nance furnished by the hospital or other institution to such employee.
25 If the employee is unable due to the nature of the injury to select such
26 authorized [physician] provider and the emergency nature of the injury
27 requires immediate medical treatment and care, or if ~~[he-or-she does]~~
28 they do not desire to select a [physician] provider, and in writing so
29 advises the employer, the employer shall promptly provide ~~[him-or-her]~~
30 the employee with the necessary medical care or treatment, provided
31 however, that nothing herein contained shall operate to prevent such
32 employee, when subsequently able to do so, from selecting for contin-
33 uance of any medical ~~[treatment-or]~~ care or treatment required, any
34 [physician] provider authorized by the chair to render medical care or
35 treatment as hereinafter provided.

36 (2) The ~~[chairman]~~ chair shall prescribe the form of a notice inform-
37 ing employees of their privilege under this chapter, and such notice
38 shall be posted and maintained by the employer in a conspicuous place or
39 places in and about ~~[his]~~ their place or places of business.

40 (3) The employer shall have the right to transfer the care of an
41 injured employee from the attending physician, whether chosen originally
42 by the employee or by the employer, to another authorized physician (1)
43 if the interest of the injured employee necessitates the transfer or (2)
44 if the physician has not been authorized to treat injured employees
45 under this act or (3) if ~~[he]~~ the physician has not been authorized
46 under this act to treat the particular injury or condition as provided
47 by section thirteen-b (2). An authorized physician from whom the case
48 has been transferred shall have the right of appeal to an arbitration
49 committee as provided in subdivision two of section thirteen-g of this
50 article and if said arbitration committee finds that the transfer was
51 not authorized by this section, said employer shall pay to the physician
52 a sum equal to the total fee earned by the physician to whom the care of
53 the injured employee has been transferred, or such proportion of said
54 fee as the arbitration committee shall deem adequate.

55 (4) (a) No claim for medical or surgical treatment shall be valid and
56 enforceable, as against such employer, or employee, unless within

1 forty-eight hours following the first treatment the [physician] provider
2 giving such treatment furnishes to the employer and directly to the
3 chair a preliminary notice of such injury and treatment, within fifteen
4 days thereafter a more complete report and subsequent thereto progress
5 reports if requested in writing by the chair, board, employer or insur-
6 ance carrier at intervals of not less than three weeks apart or at less
7 frequent intervals if requested on forms prescribed by the chair. The
8 board may excuse failure to give such notices within the designated
9 periods when it finds it to be in the interest of justice to do so.

10 (b) Upon receipt of the notice provided for by paragraph (a) of this
11 subdivision, the employer, the carrier, and the claimant each shall be
12 entitled to have the claimant examined by a [physician] provider author-
13 ized by the chair to perform independent medical examinations in accord-
14 ance with sections thirteen-b and one hundred thirty-seven of this chap-
15 ter, at a medical facility convenient to the claimant and in the
16 presence of the claimant's [physician] provider, and refusal by the
17 claimant to submit to such independent medical examination at such time
18 or times as may reasonably be necessary in the opinion of the board,
19 shall bar the claimant from recovering compensation for any period
20 during which ~~he or she has~~ they have refused to submit to such exam-
21 ination. No hospital shall be required to produce the records of any
22 claimant without receiving its customary fees or charges for repro-
23 duction of such records.

24 (c) Where it would place an unreasonable burden upon the employer or
25 carrier to arrange for, or for the claimant to attend, an independent
26 medical examination by an authorized [physician] provider, the employer
27 or carrier shall arrange for such examination to be performed by a qual-
28 ified [physician] provider in a medical facility convenient to the
29 claimant.

30 (d) The independent medical examiner shall provide such reports and
31 shall submit to investigation as required by the chair.

32 (e) In order to qualify as admissible medical evidence, for purposes
33 of adjudicating any claim under this chapter, any report submitted to
34 the board by an independent medical examiner licensed by the state of
35 New York shall include the following:

36 (i) a signed statement certifying that the report is a full and truth-
37 ful representation of the independent medical examiner's professional
38 opinion with respect to the claimant's condition:

39 (ii) such examiner's board issued authorization number;
40 (iii) the name of the individual or entity requesting the examination;
41 (iv) if applicable, the registration number as required by section
42 thirteen-n of this article; and

43 (v) such other information as the chair may require by regulation.

44 Any report by an independent medical examiner who is not authorized,
45 and who performs an independent medical examination in accordance with
46 paragraph (c) of this subdivision, which is to be used as medical
47 evidence under this chapter, shall include in the report such informa-
48 tion as the chair may require by regulation.

49 (5) No claim for specialist consultations, surgical operations,
50 physiotherapeutic or occupational therapy procedures, x-ray examinations
51 or special diagnostic laboratory tests costing more than one thousand
52 five hundred dollars shall be valid and enforceable, as against such
53 employer, unless such special services shall have been authorized by the
54 employer or by the board, or unless such authorization has been unrea-
55 sonably withheld, or withheld for a period of more than thirty calendar
56 days from receipt of a request for authorization, or unless such special

1 services are required in an emergency, provided, however, that the basis
2 for a denial of such authorization by the employer must be based on a
3 conflicting second opinion rendered by a physician authorized by the
4 board. The board, with the approval of the superintendent of financial
5 services, shall issue and maintain a list of pre-authorized procedures
6 under this section. Such list of pre-authorized procedures shall be
7 issued and maintained for the sole purpose of expediting authorization
8 of treatment of injured workers. Such list of pre-authorized procedures
9 shall not prohibit varied treatment [~~when the treating provider demon-~~
10 ~~strates the appropriateness and medical necessity of such treatment~~] nor
11 shall the list be used as a basis to deny treatment not contained there-
12 in. Requests for varied treatment need only comply with the provisions
13 of this subdivision.

14 (6) (a) Any interference by any person with the selection by an
15 injured employee of an authorized [~~physician~~] provider to treat [~~him~~]
16 such employee, except when the selection is made pursuant to article
17 ten-A of this chapter, and the improper influencing or attempt by any
18 person improperly to influence the medical opinion of any [~~physician~~]
19 provider who has treated or examined an injured employee, shall be a
20 misdemeanor; provided, however, that it shall not constitute interfer-
21 ence or improper influence if, in the presence of such injured employ-
22 ee's [~~physician~~] provider, an employer, [~~his~~] carrier or agent should
23 recommend or provide information concerning rehabilitation services or
24 the availability thereof to an injured employee or [~~his~~] the employee's
25 family. It shall not constitute improper influence or an attempt to
26 improperly influence if a claimant's attorney or representative communi-
27 cates, verbally or in writing, with an injured employee's treating
28 provider or a claimant's medical consultant. Such communication shall
29 not serve as a basis to diminish or preclude the opinion of the treating
30 provider or claimant's consultant. It shall not be presumed that a
31 claimant's attorney or representative's communication with the injured
32 employee's treating provider or claimant's medical consultant was an
33 attempt to improperly influence the treating provider or medical
34 consultant.

35 (b) Except as otherwise permitted by law, an employer, carrier, or
36 third-party administrator shall not interfere or attempt to interfere
37 with the selection by an injured employee of, or treatment by, an
38 authorized [~~medical~~] provider, including by directing or attempting to
39 direct that the injured employee seek treatment from a specific provider
40 or type of provider selected by the employer, carrier, or third-party
41 administrator. It shall not constitute improper interference under this
42 paragraph if the direction or attempt to direct the injured employee to
43 receive treatment from a specific provider or type of provider origi-
44 nates from the employee's authorized [~~medical~~] provider while in the
45 course of providing treatment to the injured employee.

46 (i) Notwithstanding any other provision in this chapter, the chair
47 shall by regulation establish a performance standard concerning the
48 subject of any penalty imposed under this paragraph against an employer,
49 carrier or third-party administrator. The performance standard estab-
50 lished by the chair shall be used to measure compliance with this para-
51 graph by employers, carriers and third-party administrators. The chair
52 shall apply the performance standard based on multiple factors, includ-
53 ing but not limited to, findings of improper interference submitted as
54 complaints to the board's monitoring unit, unreasonable objections to
55 medical care or treatment, unwarranted objections to variances, medical
56 billing disputes, case delays brought about by employers, carriers and

1 third-party administrators, and the unreasonable denial of medical care
2 or treatment.

3 (ii) Upon validating an allegation that the employer, carrier or
4 third-party administrator has failed to meet the promulgated performance
5 standard, a penalty shall be assessed by the board upon notice to the
6 employer, carrier or third-party administrator. The board shall impose
7 such penalty against the carrier, employer or third-party administrator
8 in the amount of fifty dollars per violation identified in subparagraph
9 (i) of this paragraph. The penalties for violations identified in
10 subparagraph (i) of this paragraph, may be aggregated into a single
11 penalty upon a finding that an employer, carrier or third-party adminis-
12 trator has interfered with an injured employee's necessary medical care
13 or treatment [~~and care~~]. Such aggregate penalty or assessment shall be
14 based upon the number of violations as multiplied against the applicable
15 penalty or assessment, but may be negotiated by the chair's designee in
16 full satisfaction of the penalty or assessment. Any aggregate penalty or
17 assessment issued under this paragraph shall be issued administratively,
18 and the chair shall, by regulation, specify the method of review or
19 redetermination, and the presentment of evidence and objections shall
20 occur solely upon the documentation. Any final determination shall be
21 subject to review under section twenty-three of this article but penal-
22 ties may not be subject to a stay. A final determination that an employ-
23 er, carrier or third-party administrator has engaged in a pattern of
24 interference with an injured worker's access to medically necessary
25 medical care or treatment shall result in the imposition of an aggregate
26 penalty and publication of notice of such finding on the board's web
27 page.

28 (7)(a) Notwithstanding any other provision of this chapter to the
29 contrary, any insurance carrier authorized to transact the business of
30 workers' compensation insurance in this state, self-insurer or the state
31 insurance fund may contract with a network or networks, legally and
32 properly organized, to perform diagnostic tests, x-ray examinations,
33 magnetic resonance imaging, or other radiological examinations or tests
34 of claimants and may require claimant to obtain or undergo such diagnos-
35 tic test, x-ray examinations, magnetic resonance imaging or other radio-
36 logical examinations or tests with a provider or at a facility that is
37 affiliated with the network or networks with which the carrier
38 contracts, except if a medical emergency occurs requiring an immediate
39 diagnostic test, x-ray examination, magnetic resonance imaging or other
40 radiological examination or test or if the network with which the insur-
41 ance carrier, self-insurer or the state insurance fund contracts does
42 not have a provider or facility able to perform the examination or test
43 within a reasonable distance from the claimant's residence or place of
44 employment, as defined by regulation of the board.

45 (b) Any insurance carrier, self-insurer or the state insurance fund
46 which requires claimants to obtain or undergo diagnostic tests, x-ray
47 examinations, magnetic resonance imaging or other radiological examina-
48 tions or tests with a provider or at a facility affiliated with a
49 network or networks with which it contracts, must notify the claimant of
50 the name and contact information for the network or networks at the same
51 time the written statement of the claimant's rights as required by
52 subdivision two of section one hundred ten of this chapter or immediate-
53 ly after imposing such requirement if the time period within which the
54 written statement of the claimant's rights as required by subdivision
55 two of section one hundred ten of this chapter has expired.

(c) At the time a request for authorization for special diagnostic tests, x-ray examinations, magnetic resonance imaging or other radiological examinations or tests costing more than one thousand five hundred dollars as required by subdivision five of this section is approved, the insurance carrier, self-insurer or state insurance fund, or if so delegated the network with which the insurance carrier, self-insurer or state insurance fund has contracted, shall notify the [physician] provider requesting authorization of the requirement that the claimant obtain or undergo the special diagnostic test, x-ray examination, magnetic resonance imaging or other radiological examination or test with a provider or at a facility affiliated with the network or networks with which it has contracted, the contact information for the network and a list of the providers and facilities within the claimant's geographic location, as defined by regulation of the board. The claimant, in consultation with the provider who requested the special diagnostic test, x-ray examination, magnetic resonance imaging or other radiological test or exam, will determine the provider or facility from within the network which will perform such diagnostic test, x-ray examination, magnetic resonance imaging or other radiological examination or test.

(d) The results of the special diagnostic test, x-ray examination, magnetic resonance imaging or other radiological test or exam must be sent to the [physician] provider who requested the test or exam immediately upon completion of the report detailing the results.

(e) Any special diagnostic tests, x-ray examinations, magnetic resonance imaging or other radiological examinations or tests costing more than one thousand five hundred dollars performed by a provider who is not a member of the carrier's, self-insured's or state insurance fund's diagnostic network or networks, shall be entitled to payment at the negotiated network rate.

§ 2. Section 13-b of the workers' compensation law, as amended by section 1 of part CC of chapter 55 of the laws of 2019, paragraphs (p) and (q) of subdivision 1 and paragraph (b-1) of subdivision 2 as added by chapter 335 of the laws of 2024, and paragraph (b-2) of subdivision 2 as added by section 1 of part AA of chapter 55 of the laws of 2025, is amended to read as follows:

§ 13-b. Authorization of providers, medical bureaus and laboratories by the chair. 1. ~~[No person shall render medical care or conduct independent medical examinations under this chapter without such authorization by the chair.]~~ Any provider as defined in paragraph (m) of this subdivision shall be authorized to render medical care or treatment under this chapter. Independent medical examinations may only be performed by a physician, podiatrist, chiropractor, or psychologist authorized to perform such examinations by the chair, or as specified in regulations. No provider may conduct independent medical examinations unless performed in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter. As used in this ~~[title]~~ chapter, the following definitions shall have the following meanings unless their context requires otherwise:

(a) "Acupuncturist" shall mean licensed as having completed a formal course of study and having passed an examination in accordance with the education law, the regulations of the commissioner of education, and the requirements of the board of regents. Acupuncturists are required by the education law to advise, in writing, each patient of the importance of consulting with a physician for the condition or conditions necessitating acupuncture care, as prescribed by the education law.

1 (b) "Chair" of the board shall mean either the chair or the chair's
2 designee.

3 (c) "Chiropractor" shall mean licensed and having completed two years
4 of preprofessional college study and a four-year resident program in
5 chiropractic in accordance with the education law, and consistent with
6 the licensing requirements of the commissioner of education.

7 (d) "Dentist" shall mean licensed and having completed a four-year
8 course of study leading to a D.D.S. or D.D.M. degree, or an equivalent
9 degree, in accordance with the education law and the licensing require-
10 ments of the commissioner of education.

11 (e) "Employer" shall mean a self-insured employer or, if insured, the
12 insurance carrier.

13 (f) "Independent medical examination" shall mean an examination
14 performed by a physician, podiatrist, chiropractor or psychologist,
15 authorized under this section to perform such examination, for the
16 purpose of examining or evaluating injury or illness ~~[pursuant to]~~ in
17 accordance with paragraph (b) of subdivision four of section thirteen-a
18 and section one hundred thirty-seven of this chapter and as more fully
19 set forth in regulation.

20 (g) "Nurse practitioner" shall mean a licensed registered professional
21 nurse certified pursuant to section sixty-nine hundred ten of the educa-
22 tion law acting within their lawful scope of practice.

23 (h) "Occupational therapist" shall mean licensed as having at least a
24 bachelor's or master's degree in occupational therapy from a registered
25 program with the education department or receipt of a diploma or degree
26 resulting from completion of not less than four years of postsecondary
27 study, which includes the professional study of occupational therapy in
28 accordance with the education law and the regulations of the commis-
29 sioner of education.

30 (i) "Physical therapist" shall mean licensed in accordance with the
31 education law and the licensing requirements of the commissioner of
32 education.

33 (j) "Physician" shall mean licensed with a degree of doctor of medi-
34 cine, M.D., or doctor of osteopathic medicine, D.O., or an equivalent
35 degree in accordance with the education law and the licensing require-
36 ments of the state board of medicine and the regulations of the commis-
37 sioner of education.

38 (k) "Physician assistant" shall mean a licensed provider who is
39 licensed as a physician assistant pursuant to section sixty-five hundred
40 forty-one of the education law.

41 (l) "Podiatrist" shall mean a doctor of podiatric medicine licensed as
42 having received a doctoral degree in podiatric medicine in accordance
43 with the regulations of the commissioner of education and the education
44 law, and must satisfactorily meet all other requirements of the state
45 board for podiatric medicine.

46 (m) ~~["Provider"]~~ "Authorized provider" or "provider" shall mean a duly
47 licensed acupuncturist, chiropractor, nurse practitioner, occupational
48 therapist, physical therapist, physician, physician assistant, podia-
49 trist, psychologist, or social worker ~~[authorized by the chair]~~ as
50 defined in this section who is not currently on the exclusion list
51 pursuant to section thirteen-d of this article.

52 (n) "Psychologist" shall mean licensed as having received a doctoral
53 degree in psychology from a program of psychology registered with the
54 state education department or the substantial equivalent thereof in
55 accordance with the education law, the requirements of the state board
56 for psychology, and the regulations of the commissioner of education.

(o) "Social worker" shall mean a licensed clinical social worker. A licensed clinical social worker has completed a master's degree of social work that includes completion of a core curriculum of at least twelve credit hours of clinical courses or the equivalent post-graduate clinical coursework, in accordance with the education law and the regulations of the commissioner of education.

(p) "Physical therapist assistant" shall mean licensed in accordance with the education law and the licensing requirements of the commissioner of education.

(q) "Occupational therapy assistant" shall mean licensed in accordance with the education law and the licensing requirements of the commissioner of education.

(r) "Exclusion list" shall mean the list published and maintained by the chair in accordance with section thirteen-d of this article listing providers who are currently disqualified from rendering care or from performing independent medical examinations under this chapter.

2. Any provider [~~licensed pursuant to the education law to provide medical care and treatment in the state of New York may render emergency care and treatment in an emergency hospital or urgent care setting providing emergency treatment under this chapter without authorization by the chair under this section;~~] rendering medical care or treatment under this chapter must comply with all applicable laws, regulations and guidance, including any applicable New York Medical Treatment Guidelines and the Official New York Medical Fee Schedule(s).

(a) Such [~~licensed~~] provider as identified in this subdivision who is on staff at any hospital or urgent care center providing emergency treatment may continue such medical care or treatment under this chapter while an injured employee remains a patient in such hospital or urgent care setting[~~; and~~].

(b) Under the direct supervision of an authorized provider, medical care may be rendered by a registered nurse or other person trained in laboratory or diagnostic techniques within the scope of such person's specialized training and qualifications. This supervision shall be evidenced by signed records of instructions for treatment and signed records of the patient's condition and progress. Reports of such treatment and supervision shall be made by such provider to the chair in the format prescribed by the chair at such times as the chair may require.

(b-1) Under the direction and supervision of an authorized occupational therapist, occupational therapy services may be rendered by an occupational therapy assistant. Under the direction and supervision of an authorized physical therapist, physical therapy services may be rendered by a physical therapist assistant. Where any such care or treatment is rendered, records of the patient's condition and progress, together with records of instruction for treatment, if any, shall be maintained by the physical therapist or occupational therapist and by the referring physician, physician assistant, podiatrist, or nurse practitioner. Said records shall be submitted to the chair on forms and at such times as the chair may require.

(b-2) Under the supervision of any authorized provider, any resident or fellow who may practice medicine as an exempt person as provided for in title eight of the education law, may render medical care or treatment under this chapter so long as the supervisory requirements of the education law are met and neither the supervising provider nor resident or fellow have been prohibited from treating workers' compensation claimants pursuant to section thirteen-d of this article.

(c) Where it would place an unreasonable burden upon the employer or carrier to arrange for, or for the claimant to attend, an independent medical examination by ~~[an authorized]~~ a provider~~[,]~~ authorized to perform independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a of this article and section one hundred thirty-seven of this chapter, the employer or carrier shall arrange for such examination to be performed by a qualified provider in a medical facility convenient to the claimant.

(d) Upon the prescription or referral of ~~[an authorized]~~ a physician, physician assistant, podiatrist, or nurse practitioner who is not currently on the exclusion list pursuant to section thirteen-d of this article acting within the scope of ~~[his or her]~~ their practice, medical care or treatment may be rendered to an injured employee by ~~[an authorized]~~ a physical therapist, occupational therapist or acupuncturist who is not currently on the exclusion list pursuant to section thirteen-d of this article provided the conditions and the treatment performed are among the conditions that the physical therapist, occupational therapist or acupuncturist is authorized to treat pursuant to the education law or the regulations of the commissioner of education. Where any such medical care or treatment is rendered, records of the patient's condition and progress, together with records of instruction for treatment, if any, shall be maintained by the physical therapist, occupational therapist or acupuncturist rendering treatment and by the referring physician, physician assistant, podiatrist, or nurse practitioner. Said records shall be submitted to the chair on forms and at such times as the chair may require.

(e) A record, report or opinion of a physical therapist, occupational therapist, acupuncturist or physician assistant shall not be considered as evidence of the causal relationship of any condition to a work related accident or occupational disease under this chapter. Nor may a record, report or opinion of a physical therapist, occupational therapist or acupuncturist be considered evidence of disability. Nor may a record, report or opinion of a physician assistant be considered evidence of the presence of a permanent or initial disability or the degree thereof.

(f) An independent medical examination performed in accordance with section one hundred thirty-seven of this chapter, may only be performed by a physician, podiatrist, chiropractor or psychologist authorized to perform such examinations by the chair, or as specified in regulation, when qualified by the board.

3. ~~[A provider]~~ In order to perform independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter, a physician, podiatrist, chiropractor, or psychologist properly licensed or certified pursuant to the regulations of the commissioner of education and the requirements of the education law ~~[desirous of being authorized to render medical care under this chapter and/or to conduct independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter]~~ shall file an application for authorization under this chapter with the chair or chair's designee in the format prescribed by the chair. ~~[Prior to receiving authorization, a physician must, together with submission of an application to the chair, submit such application to the medical society of the county in which the physician's office is located or of a board designated by such county society or of a board representing duly licensed physicians of any other school of medical~~

~~practice in such county, and such medical society shall submit the recommendation to the board. In the event such county society or board fails to take action upon a physician's completed and signed application within forty-five days, the chair may complete review of the application without such approval. Upon approval of the application by the chair or the chair's designee, the applicant shall further agree to refrain from subsequently treating for remuneration, as a private patient, any person seeking medical treatment, or submitting to an independent medical examination, in connection with, or as a result of, any injury compensable under this chapter, if he or she has been removed from the list of providers authorized to render medical care or to conduct independent medical examinations under this chapter, or if the person seeking such treatment, or submitting to an independent medical examination, has been transferred from his or her care in accordance with the provisions of this chapter. This agreement shall run to the benefit of the injured person so treated or examined, and shall be available to him or her as a defense in any action by such provider for payment for treatment rendered by a provider after he or she has been removed from the list of providers authorized to render medical care or to conduct independent medical examinations under this chapter, or after the injured person was transferred from his or her care in accordance with the provisions of this chapter.]~~

4. Laboratories and bureaus engaged in x-ray diagnosis or treatment or in physiotherapy or other therapeutic procedures and which participate in the diagnosis or treatment of injured workers under this chapter shall be operated or supervised by providers authorized under this chapter and shall be subject to the provisions of section thirteen-c of this article. The person in charge of diagnostic clinical laboratories duly authorized under this chapter shall possess the qualifications established by the public health and health planning council for approval by the state commissioner of health or, in the city of New York, the qualifications approved by the board of health of said city and shall maintain the standards of work required for such approval.

§ 3. Section 13-d of the workers' compensation law, as amended by section 2 of part CC of chapter 55 of the laws of 2019, is amended to read as follows:

§ 13-d. ~~[Removal of providers from lists of those authorized to render medical care or to conduct independent medical examinations]~~ **Placement of providers on the exclusion list.** 1. ~~[The medical society of the county in which the physician's office is located at the time or a board designated by such county society or a board representing duly licensed physicians of any other school of medical practice in such county shall investigate, hear and make findings with respect to all charges as to professional or other misconduct of any authorized physician as herein provided under rules and procedure to be prescribed by the medical appeals unit, and shall report evidence of such misconduct, with their findings and recommendation with respect thereto, to the chair. Failure to commence such investigation within sixty days from the date the charges are referred to the society by the chair or submit findings and recommendations relating to the charges within one hundred eighty days from the date the charges are referred shall empower the chair to appoint, as a hearing officer, a member of the board, employee, or other qualified hearing officer to hear and report on the charges to the chair. A qualified hearing officer, who is neither a member of the board, or employee thereof shall be paid at a reasonable per diem rate to be fixed by the chair.]~~

~~Such investigation, hearing, findings, recommendation and report may be made by the society or board of an adjoining county upon the request of the medical society of the county in which the alleged misconduct or infraction of this chapter occurred, subject to the time limit and conditions set forth herein. The medical appeals unit shall review the findings and recommendation of such medical society or board, or hearing officer appointed by the chair upon application of the accused physician and may reopen the matter and receive further evidence. The findings, decision and recommendation of such society, board or hearing officer appointed by the chair or medical appeals unit shall be advisory to the chair only, and shall not be binding or conclusive upon him or her.] In accordance with this section, the chair shall publish and maintain an exclusion list of providers currently disqualified from rendering medical care or treatment under this chapter or disqualified from conducting independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter.~~

2. ~~[The chair shall remove from the list of providers authorized to render medical care under this chapter, or to conduct independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a of this article,] The exclusion list shall include~~ the name of any provider who ~~[he or she shall find]~~ is found after reasonable investigation ~~[is]~~ to be disqualified because such provider:

(a) has been guilty of professional or other misconduct or incompetency in connection with rendering medical services under the law; or

(b) has exceeded the limits of ~~[his or her]~~ their professional competence in rendering medical care or treatment or in conducting independent medical examinations under the law, or has, as applicable, made materially false statements regarding ~~[his or her]~~ their qualifications in ~~[his or her]~~ their application ~~[for the recommendation of the medical society or board as provided in section thirteen-b of this article];~~ or

(c) has failed to transmit copies of medical reports to claimant's attorney or licensed representative as provided in subdivision (f) of section thirteen of this article; or has failed to submit full and truthful medical reports of all ~~[his or her]~~ their findings to the employer, and directly to the chair or the board within the time limits provided in subdivision four of section thirteen-a of this article with the exception of injuries which do not require (1) more than ordinary first aid or more than two treatments by a provider or person rendering first aid, or (2) loss of time from regular duties of one day beyond the working day or shift; or

(d) knowingly made a false statement or representation as to a material fact in any medical report, or in any submission to the board, made pursuant to this chapter or in testifying or otherwise providing information for the purposes of this chapter; or

(e) has solicited, or has employed another to solicit for ~~[himself or herself]~~ either the provider's own benefit ~~themselves~~ or for another, professional treatment, examination or care of an injured employee in connection with any claim under this chapter; or

(f) has refused to appear before, to testify, to submit to a deposition, or to answer upon request of, the chair, board, ~~[medical appeals unit]~~ or any duly authorized officer of the state, any legal question, or to produce any relevant book or paper concerning ~~[his or her]~~ their conduct ~~[under any authorization granted to him or her]~~ in rendering medical care or treatment or in the performance of an independent

medical examination under this chapter, including when a provider has accepted payments from both the health insurer and employer or carrier and failed to reimburse the health insurer after they are given notice;
or

(g) has directly or indirectly requested, received or participated in the division, transference, assignment, rebating, splitting or refunding of a fee for, or has directly or indirectly requested, received or profited by means of a credit or other valuable consideration as a commission, discount or gratuity in connection with the furnishing of medical or surgical care, an independent medical examination, diagnosis or treatment or service, including X-ray examination and treatment, or for or in connection with the sale, rental, supplying or furnishing of clinical laboratory services or supplies, X-ray laboratory services or supplies, inhalation therapy service or equipment, ambulance service, hospital or medical supplies, physiotherapy or other therapeutic service or equipment, artificial limbs, teeth or eyes, orthopedic or surgical appliances or supplies, optical appliances, supplies or equipment, devices for aid of hearing, drugs, medication or medical supplies, or any other goods, services or supplies prescribed for medical diagnosis, care or treatment, under this chapter; except that reasonable payment, not exceeding the technical component fee permitted in the medical fee schedule, established under this chapter for X-ray examinations, diagnosis or treatment, may be made by a provider duly authorized as a roentgenologist to any hospital furnishing facilities and equipment for such examination, diagnosis or treatment, provided such hospital does not also submit a charge for the same services. Nothing contained in this paragraph shall prohibit such providers who practice as partners, in groups or as a professional corporation or as a university faculty practice corporation from pooling fees and moneys received, either by the partnership, professional corporation, university faculty practice corporation or group by the individual members thereof, for professional services furnished by any individual professional member, or employee of such partnership, corporation or group, nor shall the professionals constituting the partnerships, corporations, or groups be prohibited from sharing, dividing or apportioning the fees and moneys received by them or by the partnership, corporation or group in accordance with a partnership or other agreement[+]; or

(h) has demonstrated a repeated failure to follow the laws of this chapter and applicable laws, regulations, and guidance, including any applicable New York medical treatment guidelines and the official New York medical fee schedule(s); or

(i) has misrepresented their credentials; or

(j) has failed to timely complete any trainings required by the chair;
or

(k) had previously lost the privilege to treat injured workers by being suspended, removed, denied authorization, or by voluntarily resigning their authorization under this chapter prior to January first, two thousand twenty-eight, and whose authorization had not been restored prior to January first, two thousand twenty-eight.

3. Any person who violates or attempts to violate, and any person who aids another to violate or attempts to induce ~~[him or her]~~ them to violate the provisions of paragraph (g) of subdivision two of this section shall be guilty of a misdemeanor.

4. Nothing in this section shall be construed as limiting in any respect the power or duty of the chair to investigate instances of misconduct, either before or after investigation by a medical society or

board as herein provided, or to [~~temporarily suspend the authorization of~~] add any provider to the exclusion list that [~~he or she~~] the chair or the chair's designee may believe to be guilty of such misconduct.

5. Whenever the department of health or the department of education shall conduct an investigation with respect to charges of professional or other misconduct by a provider which results in a report, determination or consent order that includes a finding of professional or other misconduct or incompetency by such provider, the chair shall have full power and authority to [~~temporarily suspend, revoke or otherwise limit the authorization under this chapter of~~] add any provider to the exclusion list upon such finding by the department of health or the department of education that the provider has been guilty of professional or other misconduct. The recommendations of the department of health or the department of education shall be advisory to the chair only and shall not be binding or conclusive upon the chair.

6. The chair may promulgate regulations to effectuate the publication and maintenance of the exclusion list. Providers on the exclusion list may petition the board to be taken off the exclusion list in a format prescribed by the chair.

§ 4. Section 13-f of the workers' compensation law, as amended by chapter 113 of the laws of 1946, subdivision 1 as amended by chapter 353 of the laws of 1990, subdivision 2 as amended by chapter 539 of the laws of 1964, is amended to read as follows:

§ 13-f. Payment of medical fees. (1) Fees for medical services shall be payable only to a [~~physician or other qualified person~~] provider permitted by [~~sections~~] section thirteen-b[, ~~thirteen-k, thirteen-l and thirteen-m~~] of this [~~chapter~~] article or other authorized provider of health care under the education law or the public health law permitted to render medical care or treatment under this chapter, or to the agent, executor or administrator of the estate of such [~~physician~~] provider or such other qualified person. Except as provided in section thirteen-d of this [~~chapter~~] article, no provider of health care rendering medical care or treatment to a compensation claimant, shall collect or receive a fee from such claimant within this state, but shall have recourse for payment of services rendered only to the employer under the provisions of this chapter. Any compensation claimant who pays a fee to a provider of health care for medical care or treatment under this chapter shall have a cause of action against such provider of health care for the recovery of the money paid, which cause of action may be assigned to the chair in trust for the assigning claimant. All such assignments shall run to the chair. The chair may sue the physician, or other authorized provider of health care as herein described on the assigned cause of action with the benefits and subject to the provisions of existing law applying to such actions by the claimant [~~himself or herself~~]. Hospitals shall not be entitled to receive the remuneration paid to [~~physicians~~] providers on their staff for medical and surgical services.

(2) Whenever [~~his~~] their attendance at a hearing is required, the [~~physician~~] provider of the injured employee shall be entitled to receive a fee from the employer, or carrier, in an amount to be fixed by the board in addition to any fee payable under section eight thousand one of the civil practice law and rules.

§ 5. Section 13-k of the workers' compensation law is REPEALED.

§ 6. Section 13-l of the workers' compensation law is REPEALED.

§ 7. Section 13-m of the workers' compensation law is REPEALED.

§ 8. Subdivision 1 of section 13-n of the workers' compensation law, as added by chapter 473 of the laws of 2000, is amended to read as follows:

1. Any entity which derives income from independent medical examinations performed in accordance with subdivision four of section thirteen-a[~~subdivision three of section thirteen-k, subdivision three of section thirteen-1 and subdivision four of section thirteen-m~~] of this article and section one hundred thirty-seven of this chapter, whether by employing or contracting with independent examiners to conduct such independent medical examinations or by acting as a referral service or otherwise facilitating such examinations, shall register with the chair by filing a statement of registration containing such information prescribed by the chair in regulation. A fee may be imposed in accordance with regulations promulgated by the chair. Any such fees collected shall be used for the purpose of administering this section.

§ 9. Section 141 of the workers' compensation law, as amended by chapter 6 of the laws of 2007, is amended to read as follows:

§ 141. General powers and duties of the chair. The chair shall be the administrative head of the workers' compensation board and shall exercise the powers and perform the duties in relation to the administration of this chapter heretofore vested in the commissioner of labor by chapter fifty of the laws of nineteen hundred twenty-one, and acts amendatory thereof, and by this chapter excepting article six thereof, and except in so far as such powers and duties are vested by this chapter in the workers' compensation board. The chair shall preside at all meetings of the board and shall appoint all committees and panels of the board; shall designate the times and places for the hearing of claims under this chapter and shall perform all administrative functions of the board as in this chapter set forth. The chair, in the name of the board, shall enforce all the provisions of this chapter, and may make administrative regulations and orders providing for the receipt, indexing and examining of all notices, claims and reports, for the giving of notice of hearings and of decisions, for certifying of records, for the fixing of the times and places for the hearing of claims, and for providing for the conduct of hearings and establishing of calendar practice to the extent not inconsistent with the rules of the board. The chair shall issue and may revoke certificates of authorization of physicians, chiropractors ~~and~~ podiatrists ~~[as provided in sections thirteen-a, thirteen-k and thirteen-1 of this chapter, and licenses for medical bureaus and x-ray and other laboratories under the provisions of section thirteen-c of this chapter]~~, and psychologists to perform independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter, and licenses for medical bureaus and x-ray and other laboratories under the provisions of section thirteen-c of this chapter, shall publish and maintain an exclusion list, in accordance with section thirteen-d of this chapter, for providers as defined in section thirteen-b of this chapter currently disqualified from providing medical care or from performing independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter, may develop and require trainings for providers as defined in section thirteen-b of this chapter, issue stop work orders as provided in section one hundred forty-one-a of this article, and shall have and exercise all powers not otherwise provided for herein in relation to the administration of this chapter heretofore expressly conferred upon the commissioner of labor by any of the

provisions of this chapter, or of the labor law. The chair, on behalf of the workers' compensation board, shall enter into the agreement provided for in section one hundred seventy-one-h of the tax law, and shall take such other actions as may be necessary to carry out the agreement provided for in such section for matching beneficiary records of workers' compensation with information provided by employers to the state directory of new hires for the purposes of verifying eligibility for such benefits and for administering workers' compensation. The chair shall promulgate regulations to: (i) require training for providers not previously authorized to treat injured workers; (ii) require carriers or employers to reimburse providers, injured workers, and/or their representatives at rates consistent with paragraph (e) of subdivision two of section eighteen of the public health law for any and all records necessary for an injured workers' claim; (iii) prohibit preclusion of providers' reports on the basis that the provider failed to appear for a deposition; and (iv) establish that the consequences of a treating provider's failure to comply with statutory or regulatory provisions shall lie solely with the provider and shall not adversely impact the injured worker's receipt of compensation or medical treatment.

§ 10. Subdivision 5 of section 220 of the workers' compensation law, as amended by section 18 of part SS of chapter 54 of the laws of 2016, is amended to read as follows:

5. In addition to other penalties herein provided, the chair or designee shall ~~[remove from the list of physicians authorized to render medical care under the provisions of articles one to eight, inclusive, of this chapter and from the list of podiatrists authorized to render podiatric care under section thirteen-k of this chapter, and from the list of chiropractors authorized to render chiropractic care under section thirteen-l of this chapter]~~ place on the exclusion list pursuant to section thirteen-d of this chapter the name of any physician or podiatrist or chiropractor whom the chair or designee, pursuant to section two hundred twenty-one of this article, shall find, after reasonable investigation, has submitted to the employer or carrier or chair in connection with any claim for disability benefits under this article, a statement of disability that is not truthful and complete.

§ 11. Section 232 of the workers' compensation law, as amended by section 27 of part SS of chapter 54 of the laws of 2016, is amended to read as follows:

§ 232. Fees for testimony of physicians, podiatrists, chiropractors, dentists, psychologists and health care providers. Whenever ~~[his or her]~~ their attendance at a hearing, deposition or arbitration before the board or the chair's designee, pursuant to section two hundred twenty-one of this article, is required, the attending physician or attending podiatrist or attending chiropractor or attending dentist or attending psychologist or attending certified nurse midwife of the disabled employee, ~~[except such physicians as are disqualified from testifying pursuant to subdivision one of section thirteen-b, or section nineteen-a of this chapter, and except such podiatrists as are disqualified from testifying under the provisions of section thirteen-k, and except such chiropractors as are disqualified from testifying under the provisions of section thirteen-l, and except such psychologists as are disqualified from testifying under the provisions of section thirteen-m,]~~ or health care provider shall be entitled to receive a fee in accordance with regulations of the chair.

§ 12. This act shall take effect January 1, 2028.

1 PART Y

2 Intentionally Omitted

3 PART Z

4 Section 1. Subdivision (e) of section 1-e of the legislative law, as
5 amended by section 1 of part S of chapter 62 of the laws of 2003, is
6 amended to read as follows:

7 (e) (i) The first statement of registration filed annually by each
8 lobbyist for calendar years through two thousand three shall be accompa-
9 nied by a registration fee of fifty dollars except that no registration
10 fee shall be required of a public corporation. A fee of fifty dollars
11 shall be required for any subsequent statement of registration filed by
12 a lobbyist during the same calendar year; (ii) The first statement of
13 registration filed annually by each lobbyist for calendar year two thou-
14 sand four shall be accompanied by a registration fee of one hundred
15 dollars except that no registration fee shall be required from any
16 lobbyist who in any year does not expend, incur or receive an amount in
17 excess of five thousand dollars of reportable compensation and expenses,
18 as provided in paragraph five of subdivision (b) of section one-h of
19 this article, for the purposes of lobbying or of a public corporation. A
20 fee of one hundred dollars shall be required for any subsequent state-
21 ment of registration filed by a lobbyist during the same calendar year;
22 (iii) The first statement of registration filed biennially by each
23 lobbyist for the first biennial registration requirements for calendar
24 years two thousand five and two thousand six [~~and thereafter,~~] through
25 the thirty-first day of March two thousand twenty-six shall be accompa-
26 nied by a registration fee of two hundred dollars except that no regis-
27 tration fee shall be required from any lobbyist who in any year does not
28 expend, incur or receive an amount in excess of five thousand dollars of
29 reportable compensation and expenses, as provided in paragraph five of
30 subdivision (b) of section one-h of this article, for the purposes of
31 lobbying or of a public corporation. A fee of two hundred dollars shall
32 be required for any subsequent statement of registration filed by a
33 lobbyist during the same biennial period through the thirty-first day of
34 March two thousand twenty-six; (iv) The statement of registration filed
35 after the due date of a biennial registration for calendar years two
36 thousand five and two thousand six through the thirty-first day of March
37 two thousand twenty-six shall be accompanied by a registration fee that
38 is prorated to one hundred dollars for any such registration filed after
39 January first of the second calendar year covered by the biennial
40 reporting requirement~~[-]~~; (v) Beginning with the first statement of
41 registration filed by each lobbyist on or after the first day of April
42 two thousand twenty-six and thereafter, there shall be an annual regis-
43 tration fee of two hundred and fifty dollars for each calendar year in
44 which such registration remains in effect, except that no registration
45 fee shall be required from any lobbyist who in any year does not expend,
46 incur or receive an amount in excess of five thousand dollars of report-
47 able compensation and expenses, as provided in paragraph five of subdivi-
48 vision (b) of section one-h of this article, for the purposes of lobby-
49 ing or of a public corporation. An annual registration fee of two
50 hundred fifty hundred dollars shall be required for any subsequent
51 statement of registration filed by a lobbyist during the same biennial
52 period and for each calendar year in which such registration remains in

1 effect; (vi) In addition to the fees authorized by this section, the
2 commission may impose a fee for late filing of a registration statement
3 required by this section not to exceed twenty-five dollars for each day
4 that the statement required to be filed is late, except that if the
5 lobbyist making a late filing has not previously been required by statute
6 to file such a statement, the fee for late filing shall not exceed
7 ten dollars for each day that the statement required to be filed is
8 late.

9 § 2. This act shall take effect immediately.

10 PART AA

11 Section 1. The executive law is amended by adding a new section 214-j
12 to read as follows:

13 § 214-j. Critical incident policy. 1. As used in this section, the
14 following terms shall have the following meanings:

15 (a) "Critical incident" shall mean the following actions when
16 performed by a member or experienced by a member in the course of offi-
17 cial duties: (i) an action that directly causes serious physical injury
18 or death to another person or member; (ii) a discharge of a firearm by a
19 member directed at another person; (iii) a traffic accident or incident
20 involving a division vehicle, aircraft, or vessel that results in seri-
21 ous physical injury or death; or (iv) any other incident deemed appro-
22 priate by the superintendent or their designee.

23 (b) "Serious physical injury" shall mean an injury that, based on the
24 facts and circumstances reasonably known at the time of the incident,
25 appears to involve a substantial risk of death or an obvious and severe
26 impairment of a major bodily function, such that a reasonable person
27 would conclude the injury is life-threatening or significantly life-al-
28 tering, without regard to later medical findings, prognosis, or outcome.
29 The determination of a "serious physical injury" shall be made by the
30 superintendent or their designee based on the observable conditions and
31 available information at the time the supervisor arrives at the scene of
32 the critical incident, and shall not be affected by subsequent medical
33 evaluation or recovery. "Serious physical injury" shall include, but not
34 be limited to, suspected spinal cord injury or paralysis, severe pene-
35 trating head injury, massive blood loss, or loss of limb.

36 (c) "Directly involved" shall mean any member who was physically pres-
37 ent within the immediate proximity of a critical incident at the time it
38 occurred and whose direct exposure to the incident placed the member
39 within the immediate zone of operational engagement, regardless of
40 whether the member discharged a weapon or otherwise used force.

41 (d) "Primary member" means any directly involved member who justifi-
42 ably used deadly physical force during the critical incident, or whose
43 actions during the critical incident appear to be the most immediate and
44 substantial cause of death or serious physical injury to a person.

45 2. The superintendent shall develop, maintain, and disseminate to all
46 members of the division of state police a critical incident paid leave
47 policy that provides for paid critical incident leave in accordance with
48 this section.

49 3. Such critical incident paid leave policy shall guarantee: (a) paid
50 critical incident leave of at least twenty calendar days for any primary
51 member whose official actions were the direct and proximate cause of the
52 death of another person; (b) paid critical incident leave of at least
53 ten calendar days for any other member directly involved in the critical
54 incident; and (c) paid critical incident leave under such other circum-

stances the superintendent or their designee determines appropriate. Such leave shall constitute a separate category of leave and shall not count against vacation, sick, or personal leave accruals. Such leave, where appropriate, shall be designated as family and medical leave act and/or count against a member's workers compensation leave entitlement.

4. Critical incident paid leave shall begin as soon as possible after the critical incident, provided that initial supervisory inquiries of the involved members shall occur before leave commences. Critical incident leave may only be delayed to ensure minimum necessary staffing levels or protect community safety. Delays shall only be as long as necessary to address such concerns. Upon agreement of the member and the superintendent or their designee, the member shall be allowed to return to duty prior to the completion of the period of critical incident leave.

5. In any case where critical incident paid leave has been made to a member, and it is thereafter determined that a critical incident did not occur or that the member's actions that resulted in the serious physical injury or death of another person were not justified, the superintendent or their designee may order the deduction of equivalent vacation or personal leave days and/or the withholding of future paid leave to such member, provided that the amount of days deducted and/or withheld shall not be more than the critical incident paid leave days that were originally provided.

6. The superintendent shall be prohibited from taking any punitive administrative action against any member granted critical incident leave under this section solely on the basis of the provision of such leave unless the leave was provided, at least in part, based upon the member's fraud, deceit, or misrepresentation.

7. The superintendent is authorized to promulgate rules and regulations to implement, administer, and enforce the provisions of this section.

§ 2. This act shall take effect on the one hundred twentieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

PART BB

Section 1. Section 16 of chapter 1 of the laws of 2005 amending the state finance law relating to restricting contacts in the procurement process and the recording of contacts relating thereto, as amended by section 1 of part SS of chapter 55 of the laws of 2021, is amended to read as follows:

§ 16. This act shall take effect immediately; provided, however, that sections one, six, eight, nine, ten, eleven and fifteen of this act shall take effect January 1, 2006; and provided, however, the amendments to paragraph f of subdivision 9 of section 163 of the state finance law made by section fifteen of this act shall not affect the repeal of such section and shall be deemed repealed therewith; provided, further, that the amendments to article 1-A of the legislative law, made by this act, shall not affect the repeal of such article pursuant to chapter 2 of the laws of 1999, as amended, and shall be deemed repealed therewith; provided, further, that sections thirteen and fourteen of this act shall take effect January 1, 2006 and shall be deemed repealed July 31, [2026] 2028; provided, further, that effective immediately, the advisory coun-

1 cil on procurement lobbying created pursuant to section twelve of this
2 act shall be constituted no later than sixty days following the effec-
3 tive date of this act, provided that effective sixty days following the
4 effective date of this act, the advisory council on procurement lobbying
5 shall be authorized to establish model guidelines and to add, amend
6 and/or repeal any rules or regulations necessary for the implementation
7 of its duties under sections twelve and thirteen of this act, and the
8 advisory council authorized to make and complete such model guidelines
9 on or before the effective date of section thirteen of this act;
10 provided, further, that procurement contracts for which bid solicita-
11 tions have been issued prior to the effective date of this act shall be
12 awarded pursuant to the provisions of law in effect at the time of issu-
13 ance.

14 § 2. Paragraph g of subdivision 1 of section 139-j of the state
15 finance law, as amended by chapter 4 of the laws of 2010, is amended to
16 read as follows:

17 g. "Procurement contract" shall mean any contract or other agreement,
18 including an amendment, extension, renewal or change order to an exist-
19 ing contract (other than amendments, extensions, renewals, or change
20 orders that are authorized and payable under the terms of the contract
21 as it was finally awarded or approved by the comptroller, as applica-
22 ble), for an article of procurement involving an estimated annualized
23 expenditure in excess of [~~fifteen~~] **twenty-five** thousand dollars. Grants,
24 article eleven-B state finance law contracts, program contracts between
25 not-for-profit organizations, as defined in article eleven-B of this
26 chapter, and the unified court system, intergovernmental agreements,
27 railroad and utility force accounts, utility relocation project agree-
28 ments or orders, contracts governing organ transplants, contracts allow-
29 ing for state participation in trade shows, and eminent domain trans-
30 actions shall not be deemed procurement contracts.

31 § 3. Paragraph g of subdivision 1 of section 139-k of the state
32 finance law, as amended by chapter 4 of the laws of 2010, is amended to
33 read as follows:

34 g. "Procurement contract" shall mean any contract or other agreement,
35 including an amendment, extension, renewal, or change order to an exist-
36 ing contract (other than amendments, extensions, renewals, or change
37 orders that are authorized and payable under the terms of the contract
38 as it was finally awarded or approved by the comptroller, as applica-
39 ble), for an article of procurement involving an estimated annualized
40 expenditure in excess of [~~fifteen~~] **twenty-five** thousand dollars. Grants,
41 article eleven-B state finance law contracts, program contracts between
42 not-for-profit organizations, as defined in article eleven-B of this
43 chapter, and the unified court system, intergovernmental agreements,
44 railroad and utility force accounts, utility relocation project agree-
45 ments or orders, contracts governing organ transplants, contracts allow-
46 ing for state participation in a trade show, and eminent domain trans-
47 actions shall not be deemed procurement contracts.

48 § 4. This act shall take effect immediately; provided, however that
49 the amendments to sections 139-j and 139-k of the state finance law made
50 by sections two and three of this act shall not affect the repeal of
51 such sections and shall be deemed repealed therewith.

52 PART CC

53 Section 1. Subdivision 5 of section 362 of chapter 83 of the laws of
54 1995 amending the state finance law and other laws relating to bonds,

notes and revenues, as amended by section 1 of part RR of chapter 55 of the laws of 2021, is amended to read as follows:

5. Sections thirty-one through forty-two of this act shall take effect on the thirtieth day after it shall have become a law and shall be deemed to have been in full force and effect on and after April 1, 1995; provided that section 163 of the state finance law, as added by section thirty-three of this act shall remain in full force and effect until June 30, ~~2026~~ 2031 at which time it shall expire and be deemed repealed. Contracts executed prior to the expiration of such section 163 shall remain in full force and effect until the expiration of any such contract notwithstanding the expiration of certain provisions of this act.

§ 1-a. Subparagraph (i) of paragraph a of subdivision 4 of section 162 of the state finance law, as amended by section 164 of subpart B of part C of chapter 62 of the laws of 2011, is amended to read as follows:

(i) When commodities are available, in the form, function and utility required by a state agency, public authority, commission, public benefit corporation or political subdivision, said commodities ~~must~~ may be purchased first from the correctional industries program of the department of corrections and community supervision;

§ 2. This act shall take effect immediately.

PART DD

Intentionally Omitted

PART EE

Intentionally Omitted

PART FF

Section 1. The state comptroller is hereby authorized and directed to loan money in accordance with the provisions set forth in subdivision 5 of section 4 of the state finance law to the following funds and/or accounts:

1. Local government records management account (20501).
2. Child health plus program account (20810).
3. EPIC premium account (20818).
4. Transit authorities account (20851).
5. Railroad account (20852).
6. Non-MTA capital account (20853).
7. Education - New (20901).
8. VLT - Sound basic education fund (20904).
9. Sewage treatment program management and administration fund (21000).
10. Utility environmental regulatory account (21064).
11. Federal grants indirect cost recovery account (21065).
12. Low level radioactive waste account (21066).
13. Environmental regulatory account (21081).
14. Natural resource account (21082).
15. Environmental protection and oil spill compensation fund (21200).
16. Public transportation systems account (21401).
17. Metropolitan mass transportation (21402).

1 18. Operating permit program account (21451).
2 19. Mobile source account (21452).
3 20. New York state thruway authority account (21905).
4 21. Financial control board account (21911).
5 22. Regulation of racing account (21912).
6 23. State university dormitory income reimbursable account (21937).
7 24. Training, management and evaluation account (21961).
8 25. Clinical laboratory reference system assessment account (21962).
9 26. Indirect cost recovery account (21978).
10 27. Multi-agency training account (21989).
11 28. Bell jar collection account (22003).
12 29. Real property disposition account (22006).
13 30. Parking account (22007).
14 31. Courts special grants (22008).
15 32. Batavia school for the blind account (22032).
16 33. Financial oversight account (22039).
17 34. Regulation of Indian gaming account (22046).
18 35. Rome school for the deaf account (22053).
19 36. Administrative adjudication account (22055).
20 37. Cultural education account (22063).
21 38. DHCR mortgage servicing account (22085).
22 39. Voting Machine Examinations account (22099).
23 40. DHCR-HCA application fee account (22100).
24 41. Restitution account (22134).
25 42. New York State Home for Veterans in the Lower-Hudson Valley
26 account (22144).
27 43. Deferred compensation administration account (22151).
28 44. Transportation aviation account (22165).
29 45. New York State Campaign Finance Fund account (22211).
30 46. New York state medical indemnity fund account (22240).
31 47. Behavioral health parity compliance fund (22246).
32 48. Pharmacy benefit manager regulatory fund (22255).
33 49. Virtual currency assessments account (22262).
34 50. Employers assessment account (22269).
35 51. State university general income offset account (22654).
36 52. Highway safety program account (23001).
37 53. NYCCC operating offset account (23151).
38 54. Commercial gaming revenue account (23701).
39 55. Commercial gaming regulation account (23702).
40 56. New York state secure choice administrative account (23806).
41 57. New York state cannabis revenue fund (24800).
42 58. Fantasy sports administration account (24951).
43 59. Mobile sports wagering fund (24955).
44 60. Highway and bridge capital account (30051).
45 61. State university residence hall rehabilitation fund (30100).
46 62. State parks infrastructure account (30351).
47 63. Hazardous waste cleanup account (31506).
48 64. Youth facilities improvement account (31701).
49 65. Housing assistance fund (31800).
50 66. Housing program fund (31850).
51 67. Highway facility purpose account (31951).
52 68. New York racing account (32213).
53 69. Information technology capital financing account (32215).
54 70. New York environmental protection and spill remediation account
55 (32219).

- 1 71. Department of financial services IT modernization capital account
- 2 (32230).
- 3 72. Grants Reimbursement from Non-Federal Entity Account (32231).
- 4 73. Fire Island project account (32232).
- 5 74. Mental hygiene facilities capital improvement fund (32300).
- 6 75. Correctional facilities capital improvement fund (32350).
- 7 76. OGS convention center account (50318).
- 8 77. Empire Plaza Gift Shop (50327).
- 9 78. Unemployment Insurance Benefit Fund, Interest Assessment Account
- 10 (50651).
- 11 79. Centralized services fund (55000).
- 12 80. Archives records management account (55052).
- 13 81. Federal single audit account (55053).
- 14 82. Civil service administration account (55055).
- 15 83. Banking services account (55057).
- 16 84. Cultural resources survey account (55058).
- 17 85. Neighborhood work project account (55059).
- 18 86. Automation & printing chargeback account (55060).
- 19 87. Data center account (55062).
- 20 88. Intrusion detection account (55066).
- 21 89. Domestic violence grant account (55067).
- 22 90. Centralized technology services account (55069).
- 23 91. Labor contact center account (55071).
- 24 92. Human services contact center account (55072).
- 25 93. Department of law civil recoveries account (55074).
- 26 94. Executive direction internal audit account (55251).
- 27 95. CIO Information technology centralized services account (55252).
- 28 96. Health insurance internal service account (55300).
- 29 97. Civil service employee benefits division administrative account
- 30 (55301).
- 31 98. Correctional industries revolving fund (55350).
- 32 99. Employees health insurance account (60201).
- 33 100. Medicaid management information system escrow fund (60900).
- 34 101. Animal shelter regulation account.
- 35 102. Climate initiative account.
- 36 103. Responsible AI Safety and Education account.
- 37 104. Data broker account.

38 § 2. The state comptroller is hereby authorized and directed to loan
39 money in accordance with the provisions set forth in subdivision 5 of
40 section 4 of the state finance law to any account within the following
41 federal funds, provided the comptroller has made a determination that
42 sufficient federal grant award authority is available to reimburse such
43 loans:

- 44 1. Federal USDA-food and nutrition services fund (25000).
- 45 2. Federal health and human services fund (25100).
- 46 3. Federal education fund (25200).
- 47 4. Federal block grant fund (25250).
- 48 5. Federal miscellaneous operating grants fund (25300).
- 49 6. Federal unemployment insurance administration fund (25900).
- 50 7. Federal unemployment insurance occupational training fund (25950).
- 51 8. Federal emergency employment act fund (26000).
- 52 9. Federal capital projects fund (31350).

53 § 3. Notwithstanding any law to the contrary, and in accordance with
54 section 4 of the state finance law, the comptroller is hereby authorized
55 and directed to transfer, upon request of the director of the budget, on

1 or before March 31, 2027, up to the unencumbered balance or the follow-
2 ing amounts:

3 Economic Development and Public Authorities:

4 1. An amount up to the unencumbered balance from the miscellaneous
5 special revenue fund, business and licensing services account (21977),
6 to the general fund.

7 2. \$19,810,000 from the miscellaneous special revenue fund, code
8 enforcement account (21904), to the general fund.

9 3. \$3,000,000 from the general fund to the miscellaneous special
10 revenue fund, tax revenue arrearage account (22168).

11 Education:

12 1. \$2,455,000,000 from the general fund to the state lottery fund,
13 education account (20901), as reimbursement for disbursements made from
14 such fund for supplemental aid to education pursuant to section 92-c of
15 the state finance law that are in excess of the amounts deposited in
16 such fund for such purposes pursuant to section 1612 of the tax law.

17 2. \$1,106,000,000 from the general fund to the state lottery fund, VLT
18 education account (20904), as reimbursement for disbursements made from
19 such fund for supplemental aid to education pursuant to section 92-c of
20 the state finance law that are in excess of the amounts deposited in
21 such fund for such purposes pursuant to section 1612 of the tax law.

22 3. \$137,600,000 from the general fund to the New York state commercial
23 gaming fund, commercial gaming revenue account (23701), as reimbursement
24 for disbursements made from such fund for supplemental aid to education
25 pursuant to section 97-nnnn of the state finance law that are in excess
26 of the amounts deposited in such fund for purposes pursuant to section
27 1352 of the racing, pari-mutuel wagering and breeding law.

28 4. \$1,456,000,000 from the general fund to the mobile sports wagering
29 fund, education account (24955), as reimbursement for disbursements made
30 from such fund for supplemental aid to education pursuant to section
31 92-c of the state finance law that are in excess of the amounts deposit-
32 ed in such fund for such purposes pursuant to section 1367 of the
33 racing, pari-mutuel wagering and breeding law.

34 5. \$16,000,000 from the interactive fantasy sports fund, fantasy
35 sports education account (24950), to the state lottery fund, education
36 account (20901), as reimbursement for disbursements made from such fund
37 for supplemental aid to education pursuant to section 92-c of the state
38 finance law.

39 6. \$50,000,000 from the cannabis revenue fund cannabis education
40 account (24801), to the state lottery fund, education account (20901),
41 as reimbursement for disbursements made from such fund for supplemental
42 aid to education pursuant to section 99-ii of the state finance law.

43 7. An amount up to the unencumbered balance in the fund on March 31,
44 2026 from the charitable gifts trust fund, elementary and secondary
45 education account (24901), to the general fund, for payment of general
46 support for public schools pursuant to section 3609-a of the education
47 law.

48 8. Moneys from the state lottery fund (20900) up to an amount deposit-
49 ed in such fund pursuant to section 1612 of the tax law in excess of the
50 current year appropriation for supplemental aid to education pursuant to
51 section 92-c of the state finance law.

52 9. \$300,000 from the New York state local government records manage-
53 ment improvement fund, local government records management account
54 (20501), to the New York state archives partnership trust fund, archives
55 partnership trust maintenance account (20351).

1 10. \$900,000 from the general fund to the miscellaneous special revenue fund, Batavia school for the blind account (22032).

2 11. \$900,000 from the general fund to the miscellaneous special revenue fund, Rome school for the deaf account (22053).

3 12. Intentionally omitted.

4 13. \$343,400,000 from the state university dormitory income fund (40350) to the miscellaneous special revenue fund, state university dormitory income reimbursable account (21937).

5 14. \$24,000,000 from any of the state education department's special revenue and internal service funds to the miscellaneous special revenue fund, indirect cost recovery account (21978).

6 15. \$4,200,000 from any of the state education department's special revenue or internal service funds to the capital projects fund (30000).

7 16. \$8,000,000 from the general fund to the miscellaneous special revenue fund, HESC-insurance premium payments account (21960).

8 17. \$358,000,000 from the state university income fund, state university hospitals income reimbursable account (22656), and the state university income fund, state university-wide hospital reimbursable account (22658) to the general fund for the payment of SUNY Hospitals Health Insurance premiums on or before March 31, 2027.

9 18. \$5,000,000 from the general fund to the miscellaneous capital projects fund, state university of New York green energy loan fund.

10 19. \$12,000,000 from the miscellaneous special revenue fund office of professions account (22051) to the miscellaneous special revenue fund cultural education account (22063).

11 20. \$150,000 from the dedicated miscellaneous special revenue fund, gifts for the state library system account (23821) to the miscellaneous special revenue fund, love your library account (22119).

12 Environmental Affairs:

13 1. \$16,000,000 from any of the department of environmental conservation's special revenue federal funds, and/or federal capital funds, to the environmental conservation special revenue fund, federal indirect recovery account (21065).

14 2. \$5,000,000 from any of the department of environmental conservation's special revenue federal funds, and/or federal capital funds, to the conservation fund (21150) or Marine Resources Account (21151) as necessary to avoid diversion of conservation funds.

15 3. \$3,000,000 from any of the office of parks, recreation and historic preservation capital projects federal funds and special revenue federal funds to the miscellaneous special revenue fund, federal grant indirect cost recovery account (22188).

16 4. \$200,000,000 from the general fund to the environmental protection fund, environmental protection fund transfer account (30451).

17 5. \$10,000,000 from the general fund to the hazardous waste remedial fund, hazardous waste cleanup account (31506).

18 6. An amount up to or equal to the cash balance within the special revenue-other waste management & cleanup account (21053) to the capital projects fund (30000) for services and capital expenses related to the management and cleanup program as put forth in section 27-1915 of the environmental conservation law.

19 7. \$7,000,000 from the general fund to the enterprise fund, state fair account (50051).

20 8. \$3,000,000 from the waste management & cleanup account (21053) to the environmental protection fund transfer account (30451).

21 9. \$14,000,000 from the general fund to the miscellaneous special revenue fund, patron services account (22163).

1 10. \$15,000,000 from the enterprise fund, golf account (50332) to the
2 state park infrastructure fund, state park infrastructure account
3 (30351).
4 11. \$10,000,000 from the general fund to the environmental protection
5 and oil spill compensation fund (21203).
6 12. \$250,000 from the general fund to the Lake George park account
7 (22751).
8 Family Assistance:
9 1. \$7,000,000 from any of the office of children and family services,
10 office of temporary and disability assistance, or department of health
11 special revenue federal funds and the general fund, in accordance with
12 agreements with social services districts, to the miscellaneous special
13 revenue fund, office of human resources development state match account
14 (21967).
15 2. \$4,000,000 from any of the office of children and family services
16 or office of temporary and disability assistance special revenue federal
17 funds to the miscellaneous special revenue fund, family preservation and
18 support services and family violence services account (22082).
19 3. \$18,670,000 from any of the office of children and family services,
20 office of temporary and disability assistance, or department of health
21 special revenue federal funds and any other miscellaneous revenues
22 generated from the operation of office of children and family services
23 programs to the general fund.
24 4. \$225,300,000 from any of the office of temporary and disability
25 assistance or department of health special revenue funds to the general
26 fund.
27 5. \$2,500,000 from any of the office of temporary and disability
28 assistance special revenue funds to the miscellaneous special revenue
29 fund, office of temporary and disability assistance program account
30 (21980).
31 6. \$35,000,000 from any of the office of children and family services,
32 office of temporary and disability assistance, department of labor, and
33 department of health special revenue federal funds to the office of
34 children and family services miscellaneous special revenue fund, multi-
35 agency training contract account (21989).
36 7. \$205,000,000 from the miscellaneous special revenue fund, youth
37 facility per diem account (22186), to the general fund.
38 8. \$788,000 from the general fund to the combined gifts, grants, and
39 bequests fund, WB Hoyt Memorial account (20128).
40 9. \$5,000,000 from the miscellaneous special revenue fund, state
41 central registry (22028), to the general fund.
42 10. \$900,000 from the general fund to the Veterans' Remembrance and
43 Cemetery Maintenance and Operation account (20201).
44 11. \$7,000,000 from the general fund to the housing program fund
45 (31850).
46 12. \$15,000,000 from any of the office of children and family services
47 special revenue federal funds to the office of court administration
48 special revenue other federal iv-e funds account.
49 13. \$10,000,000 from any of the office of children and family services
50 special revenue federal funds to the office of indigent legal services
51 special revenue other federal iv-e funds account.
52 General Government:
53 1. \$12,000,000 from the general fund to the health insurance revolving
54 fund (55300).
55 2. \$292,400,000 from the health insurance reserve receipts fund
56 (60550) to the general fund.

1 3. \$150,000 from the general fund to the not-for-profit revolving loan
2 fund (20650).
3 4. \$150,000 from the not-for-profit revolving loan fund (20650) to the
4 general fund.
5 5. \$3,000,000 from the miscellaneous special revenue fund, surplus
6 property account (22036), to the general fund.
7 6. \$19,000,000 from the miscellaneous special revenue fund, revenue
8 arrearage account (22024), to the general fund.
9 7. \$3,828,000 from the miscellaneous special revenue fund, revenue
10 arrearage account (22024), to the miscellaneous special revenue fund,
11 authority budget office account (22138).
12 8. \$1,000,000 from the miscellaneous special revenue fund, parking
13 account (22007), to the general fund, for the purpose of reimbursing the
14 costs of debt service related to state parking facilities.
15 9. \$11,460,000 from the general fund to the agencies internal service
16 fund, central technology services account (55069), for the purpose of
17 enterprise technology projects.
18 10. \$10,000,000 from the general fund to the agencies internal service
19 fund, state data center account (55062).
20 11. \$12,000,000 from the miscellaneous special revenue fund, parking
21 account (22007), to the centralized services, building support services
22 account (55018).
23 12. \$36,000,000 from the general fund to the internal service fund,
24 business services center account (55022).
25 13. \$9,500,000 from the general fund to the internal service fund,
26 building support services account (55018).
27 14. \$1,500,000 from the combined expendable trust fund, plaza special
28 events account (20120), to the general fund.
29 15. A transfer from the general fund to the miscellaneous special
30 revenue fund, New York State Campaign Finance Fund Account (22211), up
31 to an amount equal to total reimbursements due to qualified candidates.
32 16. \$6,000,000 from the miscellaneous special revenue fund, standards
33 and purchasing account (22019), to the general fund.
34 17. \$12,400,000 from the banking department special revenue fund
35 (21970) funded by the assessment to defray operating expenses authorized
36 by section 206 of the financial services law to the IT Modernization
37 Capital Fund.
38 18. \$17,000,000 from the miscellaneous special revenue fund, New York
39 State cannabis revenue fund (24800), to the miscellaneous capital
40 projects fund, Cannabis IT subfund.
41 19. \$12,400,000 from the insurance department special revenue fund
42 (21994) funded by the assessment to defray operating expenses authorized
43 by section 206 of the financial services law to the IT Modernization
44 Capital Fund.
45 20. \$1,550,000 from the pharmacy benefits bureau special revenue fund
46 (22255) funded by the assessment to defray operating expenses authorized
47 by section 206 of the financial services law, to the IT Modernization
48 Capital Fund.
49 21. \$4,650,000 from the virtual currency special revenue fund (22262)
50 funded by the assessment to defray operating expenses authorized by
51 section 206 of the financial services law, to the IT Modernization Capital
52 Fund.
53 22. \$30,000,000 from the miscellaneous special revenue fund, workers'
54 compensation account (21995), to the miscellaneous capital projects
55 fund, workers' compensation board IT business process design fund
56 (32218).

1 Health:

- 2 1. A transfer from the general fund to the combined gifts, grants and
3 bequests fund, breast cancer research and education account (20155), up
4 to an amount equal to the monies collected and deposited into that
5 account in the previous fiscal year.
- 6 2. A transfer from the general fund to the combined gifts, grants and
7 bequests fund, prostate cancer research, detection, and education
8 account (20183), up to an amount equal to the moneys collected and
9 deposited into that account in the previous fiscal year.
- 10 3. A transfer from the general fund to the combined gifts, grants and
11 bequests fund, Alzheimer's disease research and assistance account
12 (20143), up to an amount equal to the moneys collected and deposited
13 into that account in the previous fiscal year.
- 14 4. \$3,600,000 from the miscellaneous special revenue fund, certificate
15 of need account (21920), to the miscellaneous capital projects fund,
16 healthcare IT capital subfund (32216).
- 17 5. \$4,000,000 from the miscellaneous special revenue fund, vital
18 health records account (22103), to the miscellaneous capital projects
19 fund, healthcare IT capital subfund (32216).
- 20 6. \$6,000,000 from the miscellaneous special revenue fund, profes-
21 sional medical conduct account (22088), to the miscellaneous capital
22 projects fund, healthcare IT capital subfund (32216).
- 23 7. \$126,000,000 from the HCRA resources fund (20800) to the capital
24 projects fund (30000).
- 25 8. \$6,550,000 from the general fund to the medical cannabis trust
26 fund, health operation and oversight account (23755).
- 27 9. An amount up to the unencumbered balance from the charitable gifts
28 trust fund, health charitable account (24900), to the general fund, for
29 payment of general support for primary, preventive, and inpatient health
30 care, dental and vision care, hunger prevention and nutritional assist-
31 ance, and other services for New York state residents with the overall
32 goal of ensuring that New York state residents have access to quality
33 health care and other related services.
- 34 10. \$500,000 from the miscellaneous special revenue fund, New York
35 State cannabis revenue fund (24800), to the miscellaneous special reven-
36 ue fund, environmental laboratory fee account (21959).
- 37 11. An amount up to the unencumbered balance from the public health
38 emergency charitable gifts trust fund (23816), to the general fund, for
39 payment of goods and services necessary to respond to a public health
40 disaster emergency or to assist or aid in responding to such a disaster.
- 41 12. \$1,000,000,000 from the general fund to the health care transfor-
42 mation fund (24850).
- 43 13. \$2,590,000 from the miscellaneous special revenue fund, patient
44 safety center account (22139), to the general fund.
- 45 14. \$1,000,000 from the miscellaneous special revenue fund, nursing
46 home receivership account (21925), to the general fund.
- 47 15. \$130,000 from the miscellaneous special revenue fund, quality of
48 care account (21915), to the general fund.
- 49 16. \$2,200,000 from the miscellaneous special revenue fund, adult home
50 quality enhancement account (22091), to the general fund.
- 51 17. \$8,467,000 from the general fund, to the miscellaneous special
52 revenue fund, helen hayes hospital account (22140).
- 53 18. \$1,303,000 from the general fund, to the miscellaneous special
54 revenue fund, New York city veterans' home account (22141).

19. \$606,000 from the general fund, to the miscellaneous special revenue fund, New York state home for veterans' and their dependents at oxford account (22142).

20. \$334,000 from the general fund, to the miscellaneous special revenue fund, western New York veterans' home account (22143).

21. \$1,636,000 from the general fund, to the miscellaneous special revenue fund, New York state for veterans in the lower-hudson valley account (22144).

22. \$750,000,000 from the general fund, to the miscellaneous special revenue fund, healthcare stability fund account (22267).

23. \$5,000,000 from the general fund to the occupational health clinics account (22177).

24. \$13,000 from the miscellaneous special revenue fund, veterans home assistance account (20208), to the miscellaneous special revenue fund, New York city veterans' home account (22141).

25. \$13,000 from the miscellaneous special revenue fund, veterans home assistance account (20208), to the miscellaneous special revenue fund, New York state home for veterans' and their dependents at oxford account (22142).

26. \$13,000 from the miscellaneous special revenue fund, veterans assistance account (20208), to the miscellaneous special revenue fund, western New York veterans' home account (22143).

27. \$13,000 from the miscellaneous special revenue fund, veterans assistance account (20208), to the miscellaneous special revenue fund, New York state for veterans in the lower-Hudson valley account (22144).

28. \$13,000 from the miscellaneous special revenue fund, veterans assistance account (20208), to the state university income fund, Long Island Veterans' Home Account (22652).

29. \$159,000,000 from the miscellaneous special revenue fund, healthcare stability fund account (22267) to the HCRA resources fund, HCRA program account (20807).

Labor:

1. \$600,000 from the miscellaneous special revenue fund, DOL fee and penalty account (21923), to the child performer's protection fund, child performer protection account (20401).

2. \$11,700,000 from the unemployment insurance interest and penalty fund, unemployment insurance special interest and penalty account (23601), to the general fund.

3. \$50,000,000 from the DOL fee and penalty account (21923), unemployment insurance special interest and penalty account (23601), and public work enforcement account (21998), to the general fund.

4. \$850,000 from the miscellaneous special revenue fund, DOL elevator safety program fund (22252) to the miscellaneous special revenue fund, DOL fee and penalty account (21923).

5. \$22,000,000 from the miscellaneous special revenue fund, Interest and Penalty Account (23601), to the Training and Education Program on Occupation Safety and Health Fund, OSHA Training and Education Account (21251).

6. \$1,000,000 from the miscellaneous special revenue fund, Public Work Enforcement account (21998), to the Training and Education Program on Occupation Safety and Health Fund, OSHA Training and Education Account (21251).

7. \$4,000,000 from the miscellaneous special revenue fund, Public Work Enforcement account (21998), to the Training and Education Program on Occupational Safety and Health Fund, OSHA Inspection Account (21252).

Mental Hygiene:

1 1. \$60,000,000 from the general fund, to the mental hygiene facilities
2 capital improvement fund (32300).

3 2. \$20,000,000 from the opioid settlement fund (23817) to the miscel-
4 laneous capital projects fund, opioid settlement capital account
5 (32200).

6 3. \$20,000,000 from the miscellaneous capital projects fund, opioid
7 settlement capital account (32200) to the opioid settlement fund
8 (23817).

9 Public Protection:

10 1. \$2,587,000 from the general fund to the miscellaneous special
11 revenue fund, recruitment incentive account (22171).

12 2. \$23,773,000 from the general fund to the correctional industries
13 revolving fund, correctional industries internal service account
14 (55350).

15 3. \$2,000,000,000 from any of the division of homeland security and
16 emergency services special revenue federal funds to the general fund.

17 4. Intentionally omitted.

18 5. \$138,272,000 from the general fund to the correctional facilities
19 capital improvement fund (32350).

20 6. \$5,000,000 from the general fund to the dedicated highway and
21 bridge trust fund (30050) for the purpose of work zone safety activities
22 provided by the division of state police for the department of transpor-
23 tation.

24 7. \$10,000,000 from the miscellaneous special revenue fund, statewide
25 public safety communications account (22123), to the capital projects
26 fund (30000).

27 8. Intentionally omitted.

28 9. \$1,000,000 from the general fund to the agencies internal service
29 fund, neighborhood work project account (55059).

30 10. \$7,980,000 from the miscellaneous special revenue fund, finger-
31 print identification & technology account (21950), to the general fund.

32 11. Intentionally omitted.

33 12. \$38,938,000 from the general fund to the miscellaneous special
34 revenue fund, criminal justice improvement account (21945).

35 13. \$6,000,000 from the general fund to the miscellaneous special
36 revenue fund, hazard mitigation revolving loan account (22266).

37 14. Intentionally omitted.

38 Transportation:

39 1. \$20,000,000 from the general fund to the mass transportation oper-
40 ating assistance fund, public transportation systems operating assist-
41 ance account (21401), of which \$12,000,000 constitutes the base need for
42 operations.

43 2. \$727,500,000 from the general fund to the dedicated highway and
44 bridge trust fund (30050).

45 3. \$243,250,000 from the general fund to the MTA financial assistance
46 fund, mobility tax trust account (23651).

47 4. \$477,000 from the miscellaneous special revenue fund, traffic adju-
48 dication account (22055), to the general fund.

49 5. \$5,000,000 from the miscellaneous special revenue fund, transporta-
50 tion regulation account (22067) to the general fund, for disbursements
51 made from such fund for motor carrier safety that are in excess of the
52 amounts deposited in the general fund for such purpose pursuant to
53 section 94 of the transportation law.

54 Miscellaneous:

55 1. \$250,000,000 from the general fund to any funds or accounts for the
56 purpose of reimbursing certain outstanding accounts receivable balances.

2. \$500,000,000 from the general fund to the debt reduction reserve fund (40000).

3. \$15,500,000 from the general fund, community projects account GG (10256), to the general fund, state purposes account (10050).

4. \$100,000,000 from any special revenue federal fund to the general fund, state purposes account (10050).

5. An amount up to the unencumbered balance from the special revenue federal fund, ARPA-Fiscal Recovery Fund (25546) to the general fund.

6. \$1,500,000,000 from the general fund to the hazardous waste remedial fund, hazardous waste cleanup account (31506), State parks infrastructure account (30351), environmental protection fund transfer account (30451), the correctional facilities capital improvement fund (32350), housing program fund (31850), or the Mental hygiene facilities capital improvement fund (32300), up to an amount equal to certain outstanding accounts receivable balances.

§ 4. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, on or before March 31, 2027:

1. Upon request of the commissioner of environmental conservation, up to \$12,745,400 from revenues credited to any of the department of environmental conservation special revenue funds, including \$4,000,000 from the environmental protection and oil spill compensation fund (21200), and \$1,834,600 from the conservation fund (21150), to the environmental conservation special revenue fund, indirect charges account (21060).

2. Upon request of the commissioner of agriculture and markets, up to \$3,000,000 from any special revenue fund or enterprise fund within the department of agriculture and markets to the general fund, to pay appropriate administrative expenses.

3. Upon request of the commissioner of the division of housing and community renewal, up to \$6,221,000 from revenues credited to any division of housing and community renewal federal or miscellaneous special revenue fund to the miscellaneous special revenue fund, housing indirect cost recovery account (22090).

4. Upon request of the commissioner of the division of housing and community renewal, up to \$5,500,000 may be transferred from any miscellaneous special revenue fund account, to any miscellaneous special revenue fund.

5. Upon request of the commissioner of health up to \$13,694,000 from revenues credited to any of the department of health's special revenue funds, to the miscellaneous special revenue fund, administration account (21982).

6. Upon the request of the attorney general, up to \$5,000,000 from revenues credited to the federal health and human services fund, federal health and human services account (25117) or the miscellaneous special revenue fund, recoveries and revenue account (22041), to the miscellaneous special revenue fund, litigation settlement and civil recovery account (22117).

§ 5. On or before March 31, 2027, the comptroller is hereby authorized and directed to deposit earnings that would otherwise accrue to the general fund that are attributable to the operation of section 98-a of the state finance law, to the agencies internal service fund, banking services account (55057), for the purpose of meeting direct payments from such account.

§ 6. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget and

1 upon consultation with the state university chancellor or their designee, on or before March 31, 2027, up to \$16,000,000 from the state university income fund general revenue account (22653) to the state general fund for debt service costs related to campus supported capital project costs for the NY-SUNY 2020 challenge grant program at the University at Buffalo.

7 § 7. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget and upon consultation with the state university chancellor or their designee, on or before March 31, 2027, up to \$6,500,000 from the state university income fund general revenue account (22653) to the state general fund for debt service costs related to campus supported capital project costs for the NY-SUNY 2020 challenge grant program at the University at Albany.

16 § 8. Notwithstanding any law to the contrary, the state university chancellor or their designee is authorized and directed to transfer estimated tuition revenue balances from the state university collection fund (61000) to the state university income fund, state university general revenue offset account (22655) on or before March 31, 2027.

21 § 9. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, a total of up to \$100,000,000 from the general fund to the state university income fund, state university general revenue offset account (22655) and/or the state university income fund, state university hospitals income reimbursable account (22656) during the period July 1, 2026 through June 30, 2027 to pay costs attributable to the state university health science center at Brooklyn and/or the state university of New York hospital at Brooklyn, respectively, pursuant to a plan approved by the director of the budget.

32 § 10. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, up to \$1,590,638,500 from the general fund to the state university income fund, state university general revenue offset account (22655) during the period of July 1, 2026 through June 30, 2027 to support operations at the state university.

39 § 11. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, up to \$25,000,000 from the general fund to the state university income fund, state university general revenue offset account (22655) during the period of April 1, 2026 through June 30, 2026 to support operations at the state university.

46 § 12. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, up to \$51,120,000 from the general fund to the state university income fund, state university general revenue offset account (22655) during the period of July 1, 2026 to June 30, 2027 for general fund operating support pursuant to subparagraph (4-b) of paragraph h of subdivision 2 of section three hundred fifty-five of the education law.

54 § 13. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the state university chancellor-

lor or their designee, up to \$55,000,000 from the state university income fund, state university hospitals income reimbursable account (22656), for services and expenses of hospital operations and capital expenditures at the state university hospitals; and the state university income fund, Long Island veterans' home account (22652) to the state university capital projects fund (32400) on or before June 30, 2027.

§ 14. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller, after consultation with the state university chancellor or their designee, is hereby authorized and directed to transfer moneys, in the first instance, from the state university collection fund, Stony Brook hospital collection account (61006), Brooklyn hospital collection account (61007), and Syracuse hospital collection account (61008) to the state university income fund, state university hospitals income reimbursable account (22656) in the event insufficient funds are available in the state university income fund, state university hospitals income reimbursable account (22656) to permit the full transfer of moneys authorized for transfer, to the general fund for payment of debt service related to the SUNY hospitals. Notwithstanding any law to the contrary, the comptroller is also hereby authorized and directed, after consultation with the state university chancellor or their designee, to transfer moneys from the state university income fund to the state university income fund, state university hospitals income reimbursable account (22656) in the event insufficient funds are available in the state university income fund, state university hospitals income reimbursable account (22656) to pay hospital operating costs or to permit the full transfer of moneys authorized for transfer, to the general fund for payment of debt service related to the SUNY hospitals on or before March 31, 2027.

§ 15. Notwithstanding any law to the contrary, upon the direction of the director of the budget and the chancellor of the state university of New York or their designee, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer monies from the state university dormitory income fund (40350) to the state university residence hall rehabilitation fund (30100), and from the state university residence hall rehabilitation fund (30100) to the state university dormitory income fund (40350), in an amount not to exceed \$125 million from each fund.

§ 16. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, at the request of the director of the budget, up to \$1,000,000,000 from the unencumbered balance of any special revenue fund or account, agency fund or account, internal service fund or account, enterprise fund or account, or any combination of such funds and accounts, to the general fund. The amounts transferred pursuant to this authorization shall be in addition to any other transfers expressly authorized in the 2026-27 budget. Transfers from federal funds, debt service funds, capital projects funds, the community projects fund, or funds that would result in the loss of eligibility for federal benefits or federal funds pursuant to federal law, rule, or regulation as assented to in chapter 683 of the laws of 1938 and chapter 700 of the laws of 1951 are not permitted pursuant to this authorization.

§ 17. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, at the request of the director of the budget, up to \$100 million from any non-general fund or account, or combination of funds and accounts, to the miscellaneous special revenue fund, tech-

nology financing account (22207), the miscellaneous capital projects fund, the federal capital projects account (31350), information technology capital financing account (32215), or the centralized technology services account (55069), for the purpose of consolidating technology procurement and services. The amounts transferred to the miscellaneous special revenue fund, technology financing account (22207) pursuant to this authorization shall be equal to or less than the amount of such monies intended to support information technology costs which are attributable, according to a plan, to such account made in pursuance to an appropriation by law. Transfers to the technology financing account shall be completed from amounts collected by non-general funds or accounts pursuant to a fund deposit schedule or permanent statute, and shall be transferred to the technology financing account pursuant to a schedule agreed upon by the affected agency commissioner. Transfers from funds that would result in the loss of eligibility for federal benefits or federal funds pursuant to federal law, rule, or regulation as assented to in chapter 683 of the laws of 1938 and chapter 700 of the laws of 1951 are not permitted pursuant to this authorization.

§ 18. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, at the request of the director of the budget, up to \$400 million from any non-general fund or account, or combination of funds and accounts, to the general fund for the purpose of consolidating technology procurement and services. The amounts transferred pursuant to this authorization shall be equal to or less than the amount of such monies intended to support information technology costs which are attributable, according to a plan, to such account made in pursuance to an appropriation by law. Transfers to the general fund shall be completed from amounts collected by non-general funds or accounts pursuant to a fund deposit schedule. Transfers from funds that would result in the loss of eligibility for federal benefits or federal funds pursuant to federal law, rule, or regulation as assented to in chapter 683 of the laws of 1938 and chapter 700 of the laws of 1951 are not permitted pursuant to this authorization.

§ 19. Notwithstanding any provision of law to the contrary, as deemed feasible and advisable by its trustees, the power authority of the state of New York is authorized and directed to transfer to the state treasury to the credit of the general fund up to \$10,000,000 for the state fiscal year commencing April 1, 2026, the proceeds of which will be utilized to support energy-related state activities.

§ 20. Notwithstanding any provision of law to the contrary, as deemed feasible and advisable by its trustees, the power authority of the state of New York is authorized to transfer to the state treasury to the credit of the general fund up to \$25,000,000 for the state fiscal year commencing April 1, 2026, the proceeds of which will be utilized to support programs established or implemented by or within the department of labor, including but not limited to the office of just energy transition and programs for workforce training and retraining, to prepare workers for employment for work in the renewable energy field.

§ 21. Notwithstanding any provision of law, rule or regulation to the contrary, the New York state energy research and development authority is authorized and directed to contribute \$913,000 to the state treasury to the credit of the general fund on or before March 31, 2027.

§ 22. Notwithstanding any provision of law, rule or regulation to the contrary, the New York state energy research and development authority is authorized and directed to transfer five million dollars to the cred-

1 it of the Environmental Protection Fund on or before March 31, 2027 from
2 proceeds collected by the authority from the auction or sale of carbon
3 dioxide emission allowances allocated by the department of environmental
4 conservation.

5 § 23. Subdivision 5 of section 97-rrr of the state finance law, as
6 amended by section 23 of part MM of chapter 56 of the laws of 2025, is
7 amended to read as follows:

8 5. Notwithstanding the provisions of section one hundred seventy-one-a
9 of the tax law, as separately amended by chapters four hundred eighty-
10 one and four hundred eighty-four of the laws of nineteen hundred eight-
11 y-one, and notwithstanding the provisions of chapter ninety-four of the
12 laws of two thousand eleven, or any other provisions of law to the
13 contrary, during the fiscal year beginning April first, two thousand
14 [~~twenty-five~~] ~~twenty-six~~, the state comptroller is hereby authorized and
15 directed to deposit to the fund created pursuant to this section from
16 amounts collected pursuant to article twenty-two of the tax law and
17 pursuant to a schedule submitted by the director of the budget, up to
18 [~~\$1,396,911,000~~] ~~\$1,294,911,000~~ as may be certified in such schedule as
19 necessary to meet the purposes of such fund for the fiscal year begin-
20 ning April first, two thousand [~~twenty-five~~] ~~twenty-six~~.

21 § 24. Notwithstanding any law to the contrary, the comptroller is
22 hereby authorized and directed to transfer, upon request of the director
23 of the budget, on or before March 31, 2027, the following amounts from
24 the following special revenue accounts to the capital projects fund
25 (30000), for the purposes of reimbursement to such fund for expenses
26 related to the maintenance and preservation of state assets:

27 1. \$43,000 from the miscellaneous special revenue fund, administrative
28 program account (21982).

29 2. \$1,690,000 from the miscellaneous special revenue fund, helen hayes
30 hospital account (22140).

31 3. \$219,000 from the miscellaneous special revenue fund, New York city
32 veterans' home account (22141).

33 4. \$840,000 from the miscellaneous special revenue fund, New York
34 state home for veterans' and their dependents at oxford account (22142).

35 5. \$176,000 from the miscellaneous special revenue fund, western New
36 York veterans' home account (22143).

37 6. \$492,000 from the miscellaneous special revenue fund, New York
38 state for veterans in the lower-hudson valley account (22144).

39 7. \$2,550,000 from the miscellaneous special revenue fund, patron
40 services account (22163).

41 8. \$5,000,000 from the miscellaneous special revenue fund, state
42 university general income reimbursable account (22653).

43 9. \$110,000,000 from the miscellaneous special revenue fund, state
44 university revenue offset account (22655).

45 10. \$35,000,000 from the state university dormitory income fund, state
46 university dormitory income fund (40350).

47 11. \$1,000,000 from the miscellaneous special revenue fund, litigation
48 settlement and civil recovery account (22117).

49 § 25. Notwithstanding any law to the contrary, the comptroller is
50 hereby authorized and directed to transfer, upon request of the director
51 of the budget, on or before March 31, 2027 the following amounts from
52 the following special revenue accounts or enterprise funds to the gener-
53 al fund, for the purposes of offsetting principal and interest costs,
54 incurred by the state pursuant to section 53 of part PP of chapter 56 of
55 the laws of 2023, provided that the annual amount of the transfer shall
56 be no more than the principal and interest that would have otherwise

1 been due to the power authority of the state of New York, from any state
2 agency, in a given state fiscal year. Amounts pertaining to special
3 revenue accounts assigned to the state university of New York shall be
4 considered interchangeable between the designated special revenue
5 accounts as to meet the requirements of this section and section 52 of
6 part RR of chapter 56 of the laws of 2023:

7 1. \$15,000,000 from the miscellaneous special revenue fund, state
8 university general income reimbursable account (22653).

9 2. \$5,000,000 from state university dormitory income fund, state
10 university dormitory income fund (40350).

11 3. \$5,000,000 from the enterprise fund, city university senior college
12 operating fund (60851).

13 § 26. Paragraph (a) of subdivision 2 of section 47-e of the private
14 housing finance law, as amended by section 32 of part MM of chapter 56
15 of the laws of 2025, is amended to read as follows:

16 (a) Subject to the provisions of chapter fifty-nine of the laws of two
17 thousand, in order to enhance and encourage the promotion of housing
18 programs and thereby achieve the stated purposes and objectives of such
19 housing programs, the agency shall have the power and is hereby author-
20 ized from time to time to issue negotiable housing program bonds and
21 notes in such principal amount as shall be necessary to provide suffi-
22 cient funds for the repayment of amounts disbursed (and not previously
23 reimbursed) pursuant to law or any prior year making capital appropri-
24 ations or reappropriations for the purposes of the housing program;
25 provided, however, that the agency may issue such bonds and notes in an
26 aggregate principal amount not exceeding [~~sixteen billion seven hundred~~
27 ~~seventy seven million nine hundred sixty four thousand dollars~~
28 ~~\$16,777,964,000~~] eighteen billion five hundred ninety-three million
29 seven hundred sixty-four thousand dollars \$18,593,764,000, excluding
30 bonds issued after April first, two thousand twenty-five to (i) fund one
31 or more debt service reserve funds, (ii) pay costs of issuance of such
32 bonds, and (iii) refund or otherwise repay such bonds or notes previous-
33 ly issued, provided that nothing herein shall affect the exclusion of
34 refunding debt issued prior to such date. No reserve fund securing the
35 housing program bonds shall be entitled or eligible to receive state
36 funds apportioned or appropriated to maintain or restore such reserve
37 fund at or to a particular level, except to the extent of any deficiency
38 resulting directly or indirectly from a failure of the state to appro-
39 priate or pay the agreed amount under any of the contracts provided for
40 in subdivision four of this section.

41 § 27. Subdivision 1 of section 16 of part D of chapter 389 of the laws
42 of 1997, relating to the financing of the correctional facilities
43 improvement fund and the youth facility improvement fund, as amended by
44 section 53 of part MM of chapter 56 of the laws of 2025, is amended to
45 read as follows:

46 1. Subject to the provisions of chapter 59 of the laws of 2000, but
47 notwithstanding the provisions of section 18 of section 1 of chapter 174
48 of the laws of 1968, the New York state urban development corporation is
49 hereby authorized to issue bonds, notes and other obligations in an
50 aggregate principal amount not to exceed [~~eleven billion one hundred~~
51 ~~seventeen million three hundred fifty nine thousand dollars~~
52 ~~\$11,117,359,000~~] eleven billion five hundred forty-one million five
53 hundred fifty-nine thousand dollars \$11,541,559,000, excluding bonds
54 issued after April first, two thousand twenty-five to (i) fund one or
55 more debt service reserve funds, (ii) pay costs of issuance of such
56 bonds, and (iii) refund or otherwise repay such bonds or notes previous-

ly issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date.

§ 28. Paragraph (c) of subdivision 14 of section 1680 of the public authorities law, as amended by section 34 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

(c) Subject to the provisions of chapter fifty-nine of the laws of two thousand, (i) the dormitory authority shall not deliver a series of bonds for city university community college facilities, except to refund or to be substituted for or in lieu of other bonds in relation to city university community college facilities pursuant to a resolution of the dormitory authority adopted before July first, nineteen hundred eighty-five or any resolution supplemental thereto, if the principal amount of bonds so to be issued when added to all principal amounts of bonds previously issued by the dormitory authority for city university community college facilities, except to refund or to be substituted in lieu of other bonds in relation to city university community college facilities will exceed the sum of four hundred twenty-five million dollars and (ii) the dormitory authority shall not deliver a series of bonds issued for city university facilities, including community college facilities, pursuant to a resolution of the dormitory authority adopted on or after July first, nineteen hundred eighty-five, except to refund or to be substituted for or in lieu of other bonds in relation to city university facilities and except for bonds issued pursuant to a resolution supplemental to a resolution of the dormitory authority adopted prior to July first, nineteen hundred eighty-five, if the principal amount of bonds so to be issued when added to the principal amount of bonds previously issued pursuant to any such resolution, except bonds issued to refund or to be substituted for or in lieu of other bonds in relation to city university facilities, will exceed ~~[twelve billion three hundred million three hundred sixty-eight thousand dollars \$12,300,368,000]~~ fourteen billion four hundred fifty-nine million nine hundred four thousand dollars \$14,459,904,000, excluding bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date. The legislature reserves the right to amend or repeal such limit, and the state of New York, the dormitory authority, the city university, and the fund are prohibited from covenanting or making any other agreements with or for the benefit of bondholders which might in any way affect such right.

§ 29. Subdivision 1 of section 1689-i of the public authorities law, as amended by section 35 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

1. The dormitory authority is authorized to issue bonds, at the request of the commissioner of education, to finance eligible library construction projects pursuant to section two hundred seventy-three-a of the education law, in amounts certified by such commissioner not to exceed a total principal amount of ~~[four hundred fifty-five million dollars \$455,000,000]~~ five hundred nine million dollars \$509,000,000.

§ 30. Paragraph (c) of subdivision 19 of section 1680 of the public authorities law, as amended by section 36 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

(c) Subject to the provisions of chapter fifty-nine of the laws of two thousand, the dormitory authority shall not issue any bonds for state university educational facilities purposes if the principal amount of

bonds to be issued when added to the aggregate principal amount of bonds issued by the dormitory authority on and after July first, nineteen hundred eighty-eight for state university educational facilities will exceed [~~twenty billion nine hundred forty-eight million one hundred sixty-four thousand dollars \$20,948,164,000~~] twenty-three billion four hundred sixty-eight million one hundred sixty-four thousand dollars \$23,468,164,000, excluding bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date. The legislature reserves the right to amend or repeal such limit, and the state of New York, the dormitory authority, the state university of New York, and the state university construction fund are prohibited from covenanting or making any other agreements with or for the benefit of bondholders which might in any way affect such right.

§ 31. Subdivision 10-a of section 1680 of the public authorities law, as amended by section 37 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

10-a. Subject to the provisions of chapter fifty-nine of the laws of two thousand, but notwithstanding any other provision of the law to the contrary, the maximum amount of bonds and notes to be issued after March thirty-first, two thousand two, on behalf of the state, in relation to any locally sponsored community college, shall be [~~one billion four hundred ninety-five million seven hundred seventy-four thousand dollars \$1,495,774,000~~] one billion six hundred twenty-three million eight hundred eighty-four thousand dollars \$1,623,884,000. Such amount shall be exclusive of bonds and notes issued to fund any reserve fund or funds, costs of issuance and to refund any outstanding bonds and notes, issued on behalf of the state, relating to a locally sponsored community college.

§ 31-a. Paragraph (b) of subdivision 3 and clause (B) of subparagraph (iii) of paragraph (j) of subdivision 4 of section 1 of part D of chapter 63 of the laws of 2005, relating to the composition and responsibilities of the New York state higher education capital matching grant board, as amended by section 47 of part XX of chapter 56 of the laws of 2024, are amended to read as follows:

(b) Within amounts appropriated therefor, the board is hereby authorized and directed to award matching capital grants totaling [~~four hundred twenty-five million dollars \$425,000,000~~] four hundred seventy-five million dollars \$475,000,000. Each college shall be eligible for a grant award amount as determined by the calculations pursuant to subdivision five of this section. In addition, such colleges shall be eligible to compete for additional funds pursuant to paragraph (h) of subdivision four of this section.

(B) The dormitory authority shall not issue any bonds or notes in an amount in excess of [~~four hundred twenty-five million dollars \$425,000,000~~] four hundred seventy-five million dollars \$475,000,000 for the purposes of this section; excluding bonds or notes issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued. Except for purposes of complying with the internal revenue code, any interest on bond proceeds shall only be used to pay debt service on such bonds.

§ 32. Paragraph b of subdivision 2 of section 9-a of section 1 of chapter 392 of the laws of 1973, constituting the New York state medical

1 care facilities finance agency act, as amended by section 38 of part MM
2 of chapter 56 of the laws of 2025, is amended to read as follows:

3 b. The agency shall have power and is hereby authorized from time to
4 time to issue negotiable bonds and notes in conformity with applicable
5 provisions of the uniform commercial code in such principal amount as,
6 in the opinion of the agency, shall be necessary, after taking into
7 account other moneys which may be available for the purpose, to provide
8 sufficient funds to the facilities development corporation, or any
9 successor agency, for the financing or refinancing of or for the design,
10 construction, acquisition, reconstruction, rehabilitation or improvement
11 of mental health services facilities pursuant to paragraph a of this
12 subdivision, the payment of interest on mental health services improve-
13 ment bonds and mental health services improvement notes issued for such
14 purposes, the establishment of reserves to secure such bonds and notes,
15 the cost or premium of bond insurance or the costs of any financial
16 mechanisms which may be used to reduce the debt service that would be
17 payable by the agency on its mental health services facilities improve-
18 ment bonds and notes and all other expenditures of the agency incident
19 to and necessary or convenient to providing the facilities development
20 corporation, or any successor agency, with funds for the financing or
21 refinancing of or for any such design, construction, acquisition, recon-
22 struction, rehabilitation or improvement and for the refunding of mental
23 hygiene improvement bonds issued pursuant to section 47-b of the private
24 housing finance law; provided, however, that the agency shall not issue
25 mental health services facilities improvement bonds and mental health
26 services facilities improvement notes in an aggregate principal amount
27 exceeding [~~thirteen billion six hundred thirty nine million five hundred~~
28 ~~fifty four thousand dollars \$13,639,554,000~~] fourteen billion two
29 hundred ninety-nine million four hundred fifty-two thousand dollars
30 \$14,299,452,000, excluding bonds issued after April first, two thousand
31 twenty-five to (i) fund one or more debt service reserve funds, (ii) pay
32 costs of issuance of such bonds, and (iii) refund or otherwise repay
33 such bonds or notes previously issued, provided that nothing herein
34 shall affect the exclusion of refunding debt issued prior to such date.
35 The director of the budget shall allocate the aggregate principal
36 authorized to be issued by the agency among the office of mental health,
37 office for people with developmental disabilities, and the office of
38 addiction services and supports, in consultation with their respective
39 commissioners to finance bondable appropriations previously approved by
40 the legislature.

41 § 33. Subdivision (a) of section 48 of part K of chapter 81 of the
42 laws of 2002, relating to providing for the administration of certain
43 funds and accounts related to the 2002-2003 budget, as amended by
44 section 39 of part MM of chapter 56 of the laws of 2025, is amended to
45 read as follows:

46 (a) Subject to the provisions of chapter 59 of the laws of 2000 but
47 notwithstanding the provisions of section 18 of the urban development
48 corporation act, the corporation is hereby authorized to issue bonds or
49 notes in one or more series in an aggregate principal amount not to
50 exceed [~~five hundred fifty million five hundred thousand dollars~~
51 ~~\$550,500,000~~] seven hundred eight million one hundred thousand dollars
52 \$708,100,000, excluding bonds issued to fund one or more debt service
53 reserve funds, to pay costs of issuance of such bonds, and bonds or
54 notes issued to refund or otherwise repay such bonds or notes previously
55 issued, for the purpose of financing capital costs related to homeland
56 security and training facilities for the division of state police, the

1 division of military and naval affairs, and any other state agency,
2 including the reimbursement of any disbursements made from the state
3 capital projects fund, and is hereby authorized to issue bonds or notes
4 in one or more series in an aggregate principal amount not to exceed
5 ~~[two billion one hundred sixty-eight million three hundred thirty-one~~
6 ~~thousand dollars \$2,168,331,000]~~ two billion five hundred twenty million
7 eight hundred six thousand dollars \$2,520,806,000, excluding bonds
8 issued to fund one or more debt service reserve funds, to pay costs of
9 issuance of such bonds, and bonds or notes issued to refund or otherwise
10 repay such bonds or notes previously issued, for the purpose of financ-
11 ing improvements to State office buildings and other facilities located
12 statewide, including the reimbursement of any disbursements made from
13 the state capital projects fund. Such bonds and notes of the corporation
14 shall not be a debt of the state, and the state shall not be liable
15 thereon, nor shall they be payable out of any funds other than those
16 appropriated by the state to the corporation for debt service and
17 related expenses pursuant to any service contracts executed pursuant to
18 subdivision (b) of this section, and such bonds and notes shall contain
19 on the face thereof a statement to such effect.

20 § 34. Subdivision 1 of section 47 of section 1 of chapter 174 of the
21 laws of 1968, constituting the New York state urban development corpo-
22 ration act, as amended by section 40 of part MM of chapter 56 of the
23 laws of 2025, is amended to read as follows:

24 1. Notwithstanding the provisions of any other law to the contrary,
25 the dormitory authority and the corporation are hereby authorized to
26 issue bonds or notes in one or more series for the purpose of funding
27 project costs for the office of information technology services, depart-
28 ment of law, and other state costs associated with such capital
29 projects. The aggregate principal amount of bonds authorized to be
30 issued pursuant to this section shall not exceed ~~[one billion eight~~
31 ~~hundred seventy-three million four hundred twelve thousand dollars~~
32 ~~\$1,873,412,000]~~ two billion four million one hundred twelve thousand
33 dollars \$2,004,112,000, excluding bonds issued to fund one or more debt
34 service reserve funds, to pay costs of issuance of such bonds, and bonds
35 or notes issued to refund or otherwise repay such bonds or notes previ-
36 ously issued. Such bonds and notes of the dormitory authority and the
37 corporation shall not be a debt of the state, and the state shall not be
38 liable thereon, nor shall they be payable out of any funds other than
39 those appropriated by the state to the dormitory authority and the
40 corporation for principal, interest, and related expenses pursuant to a
41 service contract and such bonds and notes shall contain on the face
42 thereof a statement to such effect. Except for purposes of complying
43 with the internal revenue code, any interest income earned on bond
44 proceeds shall only be used to pay debt service on such bonds.

45 § 35. Subdivision (b) of section 11 of chapter 329 of the laws of
46 1991, amending the state finance law and other laws relating to the
47 establishment of the dedicated highway and bridge trust fund, as amended
48 by section 41 of part MM of chapter 56 of the laws of 2025, is amended
49 to read as follows:

50 (b) Any service contract or contracts for projects authorized pursuant
51 to sections 10-c, 10-f, 10-g and 80-b of the highway law and section
52 14-k of the transportation law, and entered into pursuant to subdivision
53 (a) of this section, shall provide for state commitments to provide
54 annually to the thruway authority a sum or sums, upon such terms and
55 conditions as shall be deemed appropriate by the director of the budget,
56 to fund, or fund the debt service requirements of any bonds or any obli-

gations of the thruway authority issued to fund or to reimburse the state for funding such projects having a cost not in excess of [~~fifteen billion eight hundred twenty-two million three hundred eighty-four thousand dollars \$15,822,384,000~~] seventeen billion thirty-five million one hundred eighty-one thousand dollars \$17,035,181,000. Such limit shall exclude bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date. For purposes of this subdivision, such projects shall be deemed to include capital grants to cities, towns and villages for the reimbursement of eligible capital costs of local highway and bridge projects within such municipality, where allocations to cities, towns and villages are based on the total number of New York or United States or interstate signed touring route miles for which such municipality has capital maintenance responsibility, and where such eligible capital costs include the costs of construction and repair of highways, bridges, highway-railroad crossings, and other transportation facilities for projects with a service life of ten years or more.

§ 36. Subdivision 1 of section 53 of section 1 of chapter 174 of the laws of 1968, constituting the New York state urban development corporation act, as amended by section 42 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

1. Notwithstanding the provisions of any other law to the contrary, the dormitory authority and the urban development corporation are hereby authorized to issue bonds or notes in one or more series for the purpose of funding project costs for the acquisition of equipment, including but not limited to the creation or modernization of information technology systems and related research and development equipment, health and safety equipment, heavy equipment and machinery, the creation or improvement of security systems, and laboratory equipment and other state costs associated with such capital projects. The aggregate principal amount of bonds authorized to be issued pursuant to this section shall not exceed [~~six hundred ninety-three million dollars \$693,000,000~~] seven hundred ninety-three million dollars \$793,000,000, excluding bonds issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued. Such bonds and notes of the dormitory authority and the urban development corporation shall not be a debt of the state, and the state shall not be liable thereon, nor shall they be payable out of any funds other than those appropriated by the state to the dormitory authority and the urban development corporation for principal, interest, and related expenses pursuant to a service contract and such bonds and notes shall contain on the face thereof a statement to such effect. Except for purposes of complying with the internal revenue code, any interest income earned on bond proceeds shall only be used to pay debt service on such bonds.

§ 37. Subdivision 3 of section 1285-p of the public authorities law, as amended by section 43 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

3. The maximum amount of bonds that may be issued for the purpose of financing environmental infrastructure projects authorized by this section shall be [~~fourteen billion four hundred eighty million eight hundred sixty thousand dollars \$14,480,860,000~~] seventeen billion nine hundred ninety-one million six hundred sixty thousand dollars

1 \$17,991,660,000, exclusive of bonds issued to fund any debt service
2 reserve funds, pay costs of issuance of such bonds, and bonds or notes
3 issued to refund or otherwise repay bonds or notes previously issued.
4 Such bonds and notes of the corporation shall not be a debt of the
5 state, and the state shall not be liable thereon, nor shall they be
6 payable out of any funds other than those appropriated by the state to
7 the corporation for debt service and related expenses pursuant to any
8 service contracts executed pursuant to subdivision one of this section,
9 and such bonds and notes shall contain on the face thereof a statement
10 to such effect.

11 § 38. Subdivision 1 of section 17 of part D of chapter 389 of the laws
12 of 1997, relating to the financing of the correctional facilities
13 improvement fund and the youth facility improvement fund, as amended by
14 section 44 of part MM of chapter 56 of the laws of 2025, is amended to
15 read as follows:

16 1. Subject to the provisions of chapter 59 of the laws of 2000, but
17 notwithstanding the provisions of section 18 of section 1 of chapter 174
18 of the laws of 1968, the New York state urban development corporation is
19 hereby authorized to issue bonds, notes and other obligations in an
20 aggregate principal amount not to exceed [~~one billion two hundred seven-~~
21 ~~teen million seven hundred fifty five thousand dollars \$1,217,755,000]~~
22 one billion two hundred seventy million five hundred eighty thousand
23 dollars \$1,270,580,000, excluding bonds issued after April first, two
24 thousand twenty-five to (a) fund one or more debt service reserve funds,
25 (b) to pay costs of issuance of such bonds, and (c) refund or otherwise
26 repay such bonds or notes previously issued, provided that nothing here-
27 in shall affect the exclusion of refunding debt issued prior to such
28 date. Which authorization increases the aggregate principal amount of
29 bonds, notes and other obligations authorized by section 40 of chapter
30 309 of the laws of 1996, and shall include all bonds, notes and other
31 obligations issued pursuant to chapter 211 of the laws of 1990, as
32 amended or supplemented. The proceeds of such bonds, notes or other
33 obligations shall be paid to the state, for deposit in the youth facili-
34 ties improvement fund or the capital projects fund, to pay for all or
35 any portion of the amount or amounts paid by the state from appropri-
36 ations or reappropriations made to the office of children and family
37 services from the youth facilities improvement fund or the capital
38 projects fund for capital projects.

39 § 39. Subdivision 1 of section 386-b of the public authorities law, as
40 amended by section 45 of part MM of chapter 56 of the laws of 2025, is
41 amended to read as follows:

42 1. Notwithstanding any other provision of law to the contrary, the
43 authority, the dormitory authority and the urban development corporation
44 are hereby authorized to issue bonds or notes in one or more series for
45 the purpose of financing peace bridge projects and capital costs of
46 state and local highways, parkways, bridges, the New York state thruway,
47 Indian reservation roads, and facilities, and transportation infrastruc-
48 ture projects including aviation projects, non-MTA mass transit
49 projects, and rail service preservation projects, including work appur-
50 tenant and ancillary thereto. The aggregate principal amount of bonds
51 authorized to be issued pursuant to this section shall not exceed
52 [~~seventeen billion thirty million twenty seven thousand dollars~~
53 ~~\$17,030,027,000]~~ eighteen billion eight hundred twenty-eight million
54 four hundred eighty-five thousand dollars \$18,828,485,000, excluding
55 bonds issued to fund one or more debt service reserve funds, to pay
56 costs of issuance of such bonds, and to refund or otherwise repay such

bonds or notes previously issued. Such bonds and notes of the authority, the dormitory authority and the urban development corporation shall not be a debt of the state, and the state shall not be liable thereon, nor shall they be payable out of any funds other than those appropriated by the state to the authority, the dormitory authority and the urban development corporation for principal, interest, and related expenses pursuant to a service contract and such bonds and notes shall contain on the face thereof a statement to such effect. Except for purposes of complying with the internal revenue code, any interest income earned on bond proceeds shall only be used to pay debt service on such bonds.

§ 40. Subdivision 1 of section 44 of section 1 of chapter 174 of the laws of 1968, constituting the New York state urban development corporation act, as amended by section 46 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

1. Notwithstanding the provisions of any other law to the contrary, the dormitory authority and the corporation are hereby authorized to issue bonds or notes in one or more series for the purpose of funding project costs for the regional economic development council initiative, the economic transformation program, state university of New York college for nanoscale and science engineering, projects within the city of Buffalo or surrounding environs, the New York works economic development fund, projects for the retention of professional football in western New York, the empire state economic development fund, the clarkson-trudeau partnership, the New York genome center, the Cornell university college of veterinary medicine, the olympic regional development authority, projects at nano Utica, Onondaga county revitalization projects, Binghamton university school of pharmacy, New York power electronics manufacturing consortium, regional infrastructure projects, high tech innovation and economic development infrastructure program, high technology manufacturing projects in Chautauqua and Erie county, an industrial scale research and development facility in Clinton county, upstate revitalization initiative projects, downstate revitalization initiative, market New York projects, fairground buildings, equipment or facilities used to house and promote agriculture, the state fair, the empire state trail, the moynihan station development project, the Kingsbridge armory project, strategic economic development projects, the cultural, arts and public spaces fund, water infrastructure in the city of Auburn and town of Owasco, a life sciences laboratory public health initiative, not-for-profit pounds, shelters and humane societies, arts and cultural facilities improvement program, restore New York's communities initiative, heavy equipment, economic development and infrastructure projects, Roosevelt Island operating corporation capital projects, Lake Ontario regional projects, Pennsylvania station and other transit projects, athletic facilities for professional football in Orchard Park, New York, Rush - NY, New York AI Consortium, New York Creates UEV Tool, and other state costs associated with such projects. The aggregate principal amount of bonds authorized to be issued pursuant to this section shall not exceed [~~twenty-three billion seven hundred five million two hundred fifty-three thousand dollars \$23,705,253,000~~] twenty-five billion four hundred two million four hundred fifty-three thousand dollars \$25,402,453,000, excluding bonds issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued. Such bonds and notes of the dormitory authority and the corporation shall not be a debt of the state, and the state shall not be liable thereon, nor shall they be payable out of any funds other than

1 those appropriated by the state to the dormitory authority and the
2 corporation for principal, interest, and related expenses pursuant to a
3 service contract and such bonds and notes shall contain on the face
4 thereof a statement to such effect. Except for purposes of complying
5 with the internal revenue code, any interest income earned on bond
6 proceeds shall only be used to pay debt service on such bonds.

7 § 41. Subdivision (a) of section 28 of part Y of chapter 61 of the
8 laws of 2005, relating to providing for the administration of certain
9 funds and accounts related to the 2005-2006 budget, as amended by
10 section 47 of part MM of chapter 56 of the laws of 2025, is amended to
11 read as follows:

12 (a) Subject to the provisions of chapter 59 of the laws of 2000, but
13 notwithstanding any provisions of law to the contrary, one or more
14 authorized issuers as defined by section 68-a of the state finance law
15 are hereby authorized to issue bonds or notes in one or more series in
16 an aggregate principal amount not to exceed [~~three hundred ninety seven~~
17 ~~million dollars \$397,000,000~~] four hundred forty-two million dollars
18 \$442,000,000, excluding bonds issued to finance one or more debt service
19 reserve funds, to pay costs of issuance of such bonds, and bonds or
20 notes issued to refund or otherwise repay such bonds or notes previously
21 issued, for the purpose of financing capital projects for public
22 protection facilities in the Division of Military and Naval Affairs,
23 debt service and leases; and to reimburse the state general fund for
24 disbursements made therefor. Such bonds and notes of such authorized
25 issuer shall not be a debt of the state, and the state shall not be
26 liable thereon, nor shall they be payable out of any funds other than
27 those appropriated by the state to such authorized issuer for debt
28 service and related expenses pursuant to any service contract executed
29 pursuant to subdivision (b) of this section and such bonds and notes
30 shall contain on the face thereof a statement to such effect. Except for
31 purposes of complying with the internal revenue code, any interest
32 income earned on bond proceeds shall only be used to pay debt service on
33 such bonds.

34 § 42. Subdivision 1 of section 50 of section 1 of chapter 174 of the
35 laws of 1968, constituting the New York state urban development corpo-
36 ration act, as amended by section 48 of part MM of chapter 56 of the
37 laws of 2025, is amended to read as follows:

38 1. Notwithstanding the provisions of any other law to the contrary,
39 the dormitory authority and the urban development corporation are hereby
40 authorized to issue bonds or notes in one or more series for the purpose
41 of funding project costs undertaken by or on behalf of the state educa-
42 tion department, special act school districts, state-supported schools
43 for the blind and deaf, approved private special education schools,
44 non-public schools, community centers, day care facilities, residential
45 camps, day camps, Native American Indian Nation schools, and other state
46 costs associated with such capital projects. The aggregate principal
47 amount of bonds authorized to be issued pursuant to this section shall
48 not exceed [~~four hundred forty million three hundred ninety seven thou-~~
49 ~~sand dollars \$440,397,000~~] five hundred eighteen million four hundred
50 sixty thousand dollars \$518,460,000, excluding bonds issued to fund one
51 or more debt service reserve funds, to pay costs of issuance of such
52 bonds, and bonds or notes issued to refund or otherwise repay such bonds
53 or notes previously issued. Such bonds and notes of the dormitory
54 authority and the urban development corporation shall not be a debt of
55 the state, and the state shall not be liable thereon, nor shall they be
56 payable out of any funds other than those appropriated by the state to

1 the dormitory authority and the urban development corporation for principal, interest, and related expenses pursuant to a service contract and such bonds and notes shall contain on the face thereof a statement to such effect. Except for purposes of complying with the internal revenue code, any interest income earned on bond proceeds shall only be used to pay debt service on such bonds.

7 § 43. Subdivision 1 of section 1680-k of the public authorities law, as amended by section 49 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

10 1. Subject to the provisions of chapter fifty-nine of the laws of two thousand, but notwithstanding any provisions of law to the contrary, the dormitory authority is hereby authorized to issue bonds or notes in one or more series in an aggregate principal amount not to exceed [~~forty-one million one hundred seventy-five thousand dollars \$41,175,000~~] forty-one million two hundred ninety thousand dollars \$41,290,000, excluding bonds issued to finance one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued, for the purpose of financing the construction of the New York state agriculture and markets food laboratory. Eligible project costs may include, but not be limited to the cost of design, financing, site investigations, site acquisition and preparation, demolition, construction, rehabilitation, acquisition of machinery and equipment, and infrastructure improvements. Such bonds and notes of such authorized issuers shall not be a debt of the state, and the state shall not be liable thereon, nor shall they be payable out of any funds other than those appropriated by the state to such authorized issuers for debt service and related expenses pursuant to any service contract executed pursuant to subdivision two of this section and such bonds and notes shall contain on the face thereof a statement to such effect. Except for purposes of complying with the internal revenue code, any interest income earned on bond proceeds shall only be used to pay debt service on such bonds.

33 § 44. Subdivision 1 of section 1680-r of the public authorities law, as amended by section 50 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

36 1. Notwithstanding the provisions of any other law to the contrary, the dormitory authority and the urban development corporation are hereby authorized to issue bonds or notes in one or more series for the purpose of funding project costs for the capital restructuring financing program for health care and related facilities licensed pursuant to the public health law or the mental hygiene law and other state costs associated with such capital projects, the health care facility transformation programs, the essential health care provider program, and other health care capital project costs. The aggregate principal amount of bonds authorized to be issued pursuant to this section shall not exceed [~~six billion one hundred sixty-eight million dollars \$6,168,000,000~~] seven billion one hundred seventy-eight million dollars \$7,178,000,000, excluding bonds issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued. Such bonds and notes of the dormitory authority and the urban development corporation shall not be a debt of the state, and the state shall not be liable thereon, nor shall they be payable out of any funds other than those appropriated by the state to the dormitory authority and the urban development corporation for principal, interest, and related expenses pursuant to a service contract and such bonds and notes shall contain on

1 the face thereof a statement to such effect. Except for purposes of
2 complying with the internal revenue code, any interest income earned on
3 bond proceeds shall only be used to pay debt service on such bonds.

4 § 45. Subdivision (a) of section 27 of part Y of chapter 61 of the
5 laws of 2005, relating to providing for the administration of certain
6 funds and accounts related to the 2005-2006 budget, as amended by
7 section 52 of part MM of chapter 56 of the laws of 2025, is amended to
8 read as follows:

9 (a) Subject to the provisions of chapter 59 of the laws of 2000, but
10 notwithstanding any provisions of law to the contrary, the urban devel-
11 opment corporation is hereby authorized to issue bonds or notes in one
12 or more series in an aggregate principal amount not to exceed [~~five~~
13 ~~hundred fifty million one hundred thousand dollars \$550,100,000~~] five
14 hundred sixty-two million one hundred thousand dollars \$562,100,000,
15 excluding bonds issued to finance one or more debt service reserve
16 funds, to pay costs of issuance of such bonds, and bonds or notes issued
17 to refund or otherwise repay such bonds or notes previously issued, for
18 the purpose of financing capital projects including IT initiatives for
19 the division of state police, debt service and leases; and to reimburse
20 the state general fund for disbursements made therefor. Such bonds and
21 notes of such authorized issuer shall not be a debt of the state, and
22 the state shall not be liable thereon, nor shall they be payable out of
23 any funds other than those appropriated by the state to such authorized
24 issuer for debt service and related expenses pursuant to any service
25 contract executed pursuant to subdivision (b) of this section and such
26 bonds and notes shall contain on the face thereof a statement to such
27 effect. Except for purposes of complying with the internal revenue code,
28 any interest income earned on bond proceeds shall only be used to pay
29 debt service on such bonds.

30 § 46. Intentionally omitted.

31 § 47. Paragraph (b) of subdivision 1 and subdivision 2 of section 67-b
32 of the state finance law, as amended by section 34 of part P2 of chapter
33 62 of the laws of 2003, are amended to read as follows:

34 (b) If state-supported debt is issued to refund or otherwise affect
35 the refunding, retirement or defeasance of state-supported debt
36 originally issued on and after April first, two thousand, provided such
37 refundings are conducted in accordance with section thirteen of article
38 VII of the state constitution, the calculation of the total outstanding
39 principal amount of debt shall [~~exclude~~] include such refunding debt,
40 and shall [~~only include~~] exclude the amount of prior refunded debt, [~~as~~
41 ~~if it were still outstanding,~~] in each year until such refunding debt is
42 finally retired. Notwithstanding the foregoing, the provisions of such
43 section thirteen of article VII of the state constitution relating to
44 the maintenance or management of escrow funds and sinking funds shall
45 only be applicable to state-supported debt issued by the state comp-
46 troller. If state-supported debt is issued to refund or otherwise affect
47 the refunding, retirement or defeasance of state-supported debt issued
48 prior to April first, two thousand, then the amount of such refunding
49 debt shall be [~~excluded from~~] included in the calculation of the total
50 outstanding principal amount of debt in each year until such refunding
51 debt is finally retired. In addition, if state-supported debt is retired
52 or defeased with payments in any fiscal year made by the state that are
53 not required by mandatory payments, such debt shall be excluded from the
54 calculation of the total outstanding principal amount of debt, including
55 retirements or defeasances accomplished on an economic basis.

2. State-supported debt may not be contracted for unless, as of October thirty-first, two thousand one and as of each October thirty-first thereafter, the total amount of interest, installments of principal, contributions to sinking funds, and related payments on a cash basis of accounting for state-supported debt in the immediately preceding fiscal year is less than the designated percentage of total governmental funds receipts for such fiscal year. Nothing shall preclude the contracting of state-supported debt prior to October thirty-first of each year if, in the immediately preceding fiscal year, the total amount of interest, installments of principal, contributions to sinking funds, and related payments was less than the designated percentage of total governmental funds receipts. This shall include the total amount of payments on such debt issued on and after April first, two thousand, but shall not include payments in any fiscal year made by the state to defease or retire debt not required by mandatory payments nor payments made by the state for debt issued to refund debt that was issued prior to April first, two thousand. In addition, if state-supported debt is issued to refund or otherwise affect the refunding, retirement or defeasance of state-supported debt originally issued on and after April first, two thousand, provided such refundings are conducted in accordance with section thirteen of article VII of the state constitution, the calculation of the total amount of interest, installments of principal, contributions to sinking funds, and related payments shall ~~exclude~~ include payments made on such refunding debt, and shall ~~only include~~ exclude the payments on the prior refunded debt, ~~[as if it were still outstanding,]~~ in each year until such refunding debt is finally retired. Such designated percentage shall be seven and one-half-tenths of one percent for fiscal year two thousand--two thousand one, and shall increase by five-tenths of one percent in fiscal year two thousand one--two thousand two, by an additional four-tenths of one percent in fiscal year two thousand two--two thousand three, and by an additional one-third of one percent in each of the ten subsequent fiscal years. The designated percentage for fiscal year two thousand thirteen--two thousand fourteen and for each fiscal year thereafter shall be five percent.

§ 48. This act shall take effect immediately and shall be deemed to have been in full force and effect on and after April 1, 2026; provided, however, that the provisions of sections one, two, three, four, five, six, seven, eight, fourteen, fifteen, sixteen, seventeen, eighteen, nineteen, twenty, twenty-one and twenty-two of this act shall expire and be deemed repealed March 31, 2027.

PART GG

Section 1. 1. New York state aid and incentives for municipalities redesign task force. There is hereby created the aid and incentives for municipalities redesign task force whose membership shall consist of 7 members: the director of the division of the budget or their designee as chair; the comptroller or their designee; the executive director of the New York State Conference of Mayors or their designee; the executive director of the New York State Association of Counties or their designee; the executive director of the New York State Association of Towns or their designee; one member appointed by the temporary president of the senate; and one member appointed by the speaker of the assembly. The task force shall report to the governor, the speaker of the assembly and the temporary president of the senate no later than one year after

1 the effective date of this act. Such report shall include, but not be
2 limited to:

3 (a) A review and analysis of the current aid and incentives for muni-
4 cipalities formula and allocations;

5 (b) An analysis of available alternatives to the current aid and
6 incentives for municipalities formula and allocations, including models
7 from other states, provided, however, that such alternatives shall
8 include the allocation of funds to any municipality which is not
9 currently receiving aid and incentives for municipalities funding;

10 (c) Recommendations concerning such alternatives to the formula used
11 to determine future aid and incentives to municipalities funding allo-
12 cations, provided, however, that such recommendations shall include the
13 allocation of funds to any municipality which is not currently receiving
14 aid and incentives for municipalities funding; and

15 (d) Any other information the task force deems necessary or relevant.

16 2. All appointments to the task force shall be made no later than
17 sixty days after the effective date of this act. Any vacancy shall be
18 filled by the appointing authority. The task force shall meet as
19 frequently as it deems necessary prior to issuing its findings and
20 recommendations. The members of the task force shall serve without
21 compensation, except that members shall be allowed their necessary and
22 actual expenses incurred in the performance of their duties under this
23 section. The department of taxation and finance and the division of the
24 budget shall provide the task force with such data as the task force may
25 request to carry out its powers and duties. To the extent practicable,
26 such data shall be provided in a format in accordance with the standards
27 outlined in the New York State Open Data Handbook pursuant to executive
28 order 95 of the laws of 2013. The task force may consult with any public
29 or private entity it deems necessary in order to assist the task force
30 with information gathering, analysis, and formulating its conclusions
31 and recommendations.

32 § 2. This act shall take effect immediately and shall expire and be
33 deemed repealed December 31, 2027.

34 PART HH

35 Section 1. Legislative findings and declaration. The legislature here-
36 by finds that New York's elections are administered by a decentralized
37 network of state and county boards of elections, many of which face
38 resource constraints and limited technical staffing capacity. In light
39 of growing cybersecurity threats, sophisticated disinformation
40 campaigns, and physical threats to election infrastructure and opera-
41 tional disruptions, coordinated state support is necessary to safeguard
42 New York's election systems. To ensure that local boards of elections
43 receive technical guidance, training, and response assistance tailored
44 to their specific vulnerabilities and resource levels, the legislature
45 declares that the public interest requires that a dedicated election
46 security navigator program be established with funding adequate to
47 support the maximum number of county boards of elections who seek such
48 support.

49 § 2. The election law is amended by adding a new section 3-113 to read
50 as follows:

51 § 3-113. Election security navigator program. 1. For the purposes of
52 this section:

53 (a) "Navigator program" shall mean the election security navigator
54 program established pursuant to this section.

1 (b) "Program director" shall mean the director of the navigator
2 program.

3 2. (a) There is hereby established within the state board of elections
4 an election security navigator program. The head of such program shall
5 be the program director who shall be appointed by the state board of
6 elections. The program director shall have expertise in election
7 cybersecurity, operational security, and personnel management.

8 (b) The navigator program shall have the following functions, powers
9 and duties:

10 (i) provide assistance on a voluntary basis for local boards of
11 elections in mitigating cybersecurity threats, improving physical and
12 operational preparedness, and enhancing public confidence in the integ-
13 egrity of elections;

14 (ii) develop and operate the navigator program based on a system that
15 prioritizes requests for allocation of services that considers local
16 boards of elections' need, risk, and available resources, as determined
17 by the state board of elections;

18 (iii) employ or contract election security navigators to carry out the
19 functions and duties of the navigator program with respect to local
20 boards of elections and local jurisdictions and serve as a liaison
21 between the state board of elections, local jurisdictions, and local
22 boards of elections;

23 (iv) facilitate information sharing between the state board of
24 elections, local jurisdictions, and local boards of elections on
25 election threats, vulnerabilities, and incident reports;

26 (v) conduct or coordinate ongoing risk assessments for election
27 offices and infrastructure;

28 (vi) assist with incident response planning, continuity of operations
29 planning, and tabletop exercises;

30 (vii) provide training and standardized guidance materials to support
31 local preparedness;

32 (viii) coordinate access to appropriate and trustworthy international,
33 federal, state, multi-state, and private cybersecurity resources that
34 currently exist or have yet to be formed;

35 (ix) assist local boards of elections in applying for funding opportu-
36 nities or deploying available funds related to election security includ-
37 ing, but not limited to, federal grants under the Help America Vote Act,
38 the Homeland Security Grant Program, and the State and Local Cybersecu-
39 ity Grant Program; and

40 (x) develop an election security navigators student program in part-
41 nership with the state university of New York.

42 3. No later than three months after the effective date of this
43 section, the state board of elections shall commence the process of
44 designing the election security navigator program through a needs-based
45 assessment considering:

46 (a) state election security support and services;

47 (b) the capabilities and needs of local jurisdictions as regards local
48 boards of elections, including the needs for: cybersecurity expertise,
49 incident response coordination, incident response plan development, and
50 exercises that include incident response scenarios;

51 (c) direct consultation with a representative sample of local boards
52 of elections; and

53 (d) consultation with:

54 (i) the state office of information technology services;

55 (ii) the state division of homeland security and emergency services;

1 (iii) current and former staff of the federal Cybersecurity and
2 Infrastructure Security Agency;

3 (iv) officials administering election cybersecurity programs in other
4 states; and

5 (v) private sector, non-profit, and academic experts in cyber and
6 election security.

7 Any information contained in a needs-based assessment for any local
8 board of elections or local jurisdiction conducted under this subdivi-
9 sion shall be kept confidential and shall not be made available for
10 disclosure or inspection under the freedom of information law unless a
11 subpoena or other court order directs the state board of elections or
12 relevant local board of elections to release such assessment.

13 4. (a) No later than three months after the completion of the needs
14 assessment pursuant to subdivision three of this section, the state
15 board of elections shall promulgate regulations establishing the naviga-
16 tor program with the functions, powers and duties as set forth in subdivi-
17 vision two of this section.

18 (b) The state board of elections shall conduct no fewer than two
19 public hearings to elicit comment and feedback on the proposed regu-
20 lation establishing the navigator program, with one hearing held in
21 Albany and at least one held in New York city. Before finalizing the
22 regulations establishing the navigator program, the board of elections
23 shall consider the comments and feedback received, modify the proposed
24 regulation as appropriate in light of the comments and feedback
25 received, and issue a report indicating the manner in which it responded
26 to the comments received before finalizing its regulations establishing
27 the election security navigator program.

28 5. (a) The state board of elections shall publish on its publicly
29 available website and submit to the governor, the temporary president of
30 the senate, and the speaker of the assembly, an annual report regarding
31 the activities and performance of the election security navigator
32 program no later than March first of each year. The content of the
33 report shall include, but not be limited to:

34 (i) aggregate performance metrics;

35 (ii) services provided;

36 (iii) the types of existing and emerging risks identified;

37 (iv) any recommendations for changes to state statutes or regulations
38 affecting the navigator program; and

39 (v) any budgetary requests or other changes to navigator program
40 financing.

41 (b) In the annual report provided pursuant to this subdivision, begin-
42 ning with the report covering the second year of the program, the state
43 board of election shall report on progress in developing an election
44 security navigators student program in partnership with the state
45 university of New York.

46 6. (a) The navigator program shall be funded through a separate gener-
47 al budget allocation to the state board of elections in an amount suffi-
48 cient to provide assistance to the local boards of elections. The
49 program director shall annually submit a budget request for an amount
50 not less than one million dollars.

51 (b) The state board of elections shall be authorized to apply for and
52 receive additional federal and private sources of funding and may enter
53 into agreements with federal and state agencies to facilitate and carry
54 out the functions, powers and duties of the navigator program.

55 § 3. Severability. If any clause, sentence, paragraph, subdivision,
56 section or part of this act shall be adjudged by any court of competent

1 jurisdiction to be invalid, such judgment shall not affect, impair, or
2 invalidate the remainder thereof, but shall be confined in its operation
3 to the clause, sentence, paragraph, subdivision, section or part thereof
4 directly involved in the controversy in which such judgment shall have
5 been rendered. It is hereby declared to be the intent of the legislature
6 that this act would have been enacted even if such invalid provisions
7 had not been included herein. The provisions of this act shall be sever-
8 able and if any portion thereof or the applicability thereof to any
9 person or circumstance shall be held to be invalid, the remainder of
10 this act and the application thereof shall not be affected thereby.

11 § 4. This act shall take effect immediately.

12 PART II

13 Section 1. Subdivision 5 of section 912 of the general municipal law,
14 as added by section 1 of part III of chapter 58 of the laws of 2023, is
15 renumbered subdivision 8.

16 § 2. Section 912 of the general municipal law, as amended by section 1
17 of part III of chapter 58 of the laws of 2023 and subdivision 8 as
18 renumbered by section one of this act, is renumbered section 912-b and
19 amended to read as follows:

20 § 912-b. Orange county industrial development agency. 1. For the bene-
21 fit of the county of Orange and the inhabitants thereof, an industrial
22 development agency, to be known as the ORANGE COUNTY INDUSTRIAL DEVELOP-
23 MENT AGENCY, is hereby established for the accomplishment of any or all
24 of the purposes specified in title one of this article. It shall consti-
25 tute a body corporate and politic, and be perpetual in duration. It
26 shall have the powers and duties now or hereafter conferred by title one
27 of this article upon industrial development agencies. It shall be organ-
28 ized in a manner prescribed by and be subject to the provisions of title
29 one of this article. Its members shall be appointed by the governing
30 body of the county of Orange. The agency, its members, officers and
31 employees and its operations and activities shall in all respects be
32 governed by the provisions of title one of this article.

33 2. For purposes of this section[7]:

34 (a) "financial assistance" shall mean any financial assistance offered
35 by the Orange county industrial development agency for any project,
36 including but not limited to, a payment in lieu of taxes agreement, an
37 agreement to waive sales tax, or an agreement to waive mortgage record-
38 ing taxes.

39 (b) "monitor" shall mean the independent monitor appointed by the
40 state inspector general under paragraph (a) of subdivision three of this
41 section.

42 (c) "funding corporation" shall mean the Orange County Funding Corpo-
43 ration, a local development corporation established pursuant to section
44 fourteen hundred eleven of the not-for-profit corporation law.

45 3. (a) In accordance with the powers of the office of the state
46 inspector general established by subdivision eight of section fifty-four
47 of the executive law, the state inspector general shall appoint an inde-
48 pendent monitor to carry out the provisions of this section including
49 but not limited to providing guidance and technical assistance related
50 to the policies, practices, programs and decisions of the Orange county
51 industrial development agency and the funding corporation, including but
52 not limited to decisions, actions and policies related to contracts and
53 financial assistance agreements. The state inspector general shall
54 appoint such monitor within ninety days of the effective date of this

1 subdivision or as soon thereafter as is practicable. After such appoint-
2 ment, the inspector general may only remove the monitor for violations
3 of law.

4 (b) The reasonable and necessary expenses incurred by the monitor
5 while performing [~~his or her~~] their official duties shall be paid by the
6 industrial development agency and the funding corporation, in such
7 proportions as the monitor determines are attributable to each entity's
8 matters. Notwithstanding any other provision of law, while acting with-
9 in the scope of [~~his or her~~] their authority, the monitor shall not be
10 subject to any liability resulting from carrying out any of the powers
11 expressly given in this section, and the monitor shall be entitled to
12 defense and indemnification by the industrial development agency and the
13 funding corporation.

14 (c) The monitor shall be entitled to attend all meetings of the indus-
15 trial development agency and the funding corporation, including execu-
16 tive sessions; provided however, such monitor shall not be considered
17 for purposes of establishing a quorum of the board, provided further
18 that the monitor may be excused from executive sessions when proposed,
19 pending or current litigation involving the monitor or the office of the
20 state inspector general are being discussed. The industrial development
21 agency shall cooperate with any monitor with access, within forty-eight
22 hours of such request from the monitor, to any necessary documents and
23 records of the industrial development agency including but not limited
24 to databases and planning documents, financial assistance agreements,
25 and contracts consistent with all applicable state and federal statutes.
26 The monitor shall provide a copy of such request for any document or
27 record to the industrial development agency board.

28 (d) The board shall provide the monitor with copies of any meeting
29 agendas and all resolutions and motions on such agenda for each board
30 meeting no later than seventy-two hours prior to such board meeting. If
31 a proposed resolution or motion is for the purpose of approving a
32 contract or any financial assistance for a project, the board clerk
33 shall provide the monitor with copies of the proposed contract or finan-
34 cial assistance language at least seven days prior to such meeting.

35 (e) In the event the monitor is not provided with copies of proposed
36 resolutions or motions seventy-two hours prior to a board meeting or in
37 the case of a proposed motion or resolution for the purpose of approving
38 a contract or financial assistance, seven days prior to the next board
39 meeting, the monitor may, at their discretion, remove an item including
40 board resolutions or motions, from consideration by the board at such
41 meeting. Upon failure of the board to provide proposed resolutions or
42 motions as required by this section, the monitor shall provide notice of
43 failure to the board. An item removed from consideration by the monitor
44 may not be reconsidered by the board until the next board meeting.

45 (f) The monitor shall have the power to review any modification to the
46 industrial development agency's uniform tax exemption policy required by
47 section eight hundred seventy-four of this article, contract or finan-
48 cial assistance proposed for consideration by the industrial development
49 agency proposed by the board on or after the effective date of this
50 subdivision; provided however, that all such proposed modifications to
51 the industrial development agency's uniform tax exemption policy
52 required by section eight hundred seventy-four of this article,
53 contracts or agreements shall be provided by the industrial development
54 agency board to the monitor at least seven days prior to adoption.

55 (i) At least seventy-two hours prior to adoption by the board, the
56 monitor shall advise the board or employees of the industrial develop-

1 ment agency, in writing, of the existence of violations of the indus-
2 trial development agency's uniform tax exemption policy required by
3 section eight hundred seventy-four of this article, actual or potential
4 conflicts of interest, or violations of law arising from a proposed
5 contract or financial assistance agreement that the industrial develop-
6 ment agency shall consider before entering into any such contract or
7 agreement.

8 (ii) The board shall document for its own records the existence and
9 resolution of any actual or potential conflict of interest or other
10 violation identified by the monitor.

11 (iii) No such contract or agreement may be [~~approved or entered into~~
12 ~~by the industrial development agency unless such actual or potential~~
13 ~~conflict of interest or violation has been resolved to the satisfaction~~
14 ~~of the monitor.~~] voted on, approved or entered into by the industrial
15 development agency unless such actual or potential conflict of interest
16 or violation has been resolved to the satisfaction of the monitor, and
17 unless the monitor has advised the board or employees, in writing, of
18 their approval.

19 (iv) At least seventy-two hours prior to adoption by the board, the
20 monitor shall advise the board or employees, in writing, of [~~its~~] their
21 disapproval of any changes to the industrial development agency's
22 uniform tax exemption policy; provided additionally, that within thirty
23 days after their appointment, the monitor shall advise such board or
24 employees, in writing, of [~~its~~] their disapproval of any changes to the
25 industrial development agency's uniform tax exemption policy made by the
26 board that were made on or after the effective date of this subdivision
27 until such monitor's appointment. Any such change to the uniform tax
28 exemption policy disapproved by the monitor shall not be effective, and
29 [~~may~~] shall not be reconsidered by the board for at least ten days or
30 until the next board meeting; provided, however, that any change to the
31 uniform tax exemption policy that was made by the board on or after the
32 effective date of this subdivision until such monitor's appointment that
33 is disapproved by the monitor shall not affect the validity of any prior
34 agreement entered into prior to the monitor's appointment.

35 (v) At least seventy-two hours prior to adoption by the board, the
36 monitor shall advise the board or employees, in writing, of [~~its~~] their
37 disapproval of any proposed contract or agreement with a project apply-
38 ing for financial assistance that would permit a deviation from the
39 industrial development agency's uniform tax exemption policy required by
40 section eight hundred seventy-four of this article. Any such proposed
41 contract or financial assistance agreement that would permit a deviation
42 from such policy shall not be effective, and may not be reconsidered by
43 the board for at least ten days or until the next board meeting.

44 (vi) The monitor shall have seventy-two hours after any contract or
45 financial assistance is approved to review such financial assistance or
46 contract, and if a violation of policy related to the industrial devel-
47 opment agency's uniform tax exemption policy required by section eight
48 hundred seventy-four of this article, a conflict of interest, or a
49 violation of law is identified during such time period, the monitor
50 shall notify the industrial development agency in writing. Any such
51 contract or financial assistance so identified by the monitor shall not
52 be legally binding or effective, and may not be reconsidered by the
53 board for at least ten days or until the next board meeting.

54 (g) The board, in consultation with the monitor, shall adopt a
55 conflict of interest policy, or revise an existing conflict of interest
56 policy, that complies with all existing applicable laws, rules and regu-

lations, including article eighteen of this chapter. The conflict of interest policy shall include, but not be limited to:

(i) a definition of the circumstances that constitute a conflict of interest;

(ii) procedures for identifying, disclosing and resolving a conflict of interest to the board;

(iii) a requirement that the person with the conflict of interest not be present at or participate in board deliberations or votes on the matter giving rise to such conflict, provided that nothing in this paragraph shall prohibit the board from requesting that the person with the conflict of interest present information as background or answer questions at a board meeting prior to the commencement of deliberations or voting thereto;

(iv) a prohibition against any attempt by the person with the conflict to influence improperly the deliberation or voting on the matter giving rise to such conflict;

(v) compliance with all applicable state laws and regulations; and

(vi) a requirement that the existence and resolution of the conflict be documented in the board's records, including in the minutes of any meeting at which the conflict was discussed or voted upon.

(h) The monitor may advise the board and any industrial development agency officers, employees or agents to undergo any training as deemed necessary.

(i) (i) The funding corporation shall provide the monitor with copies of any meeting agendas and all proposed resolutions and motions to be considered by the board of directors no later than seventy-two hours prior to such meeting. If a proposed resolution or motion is for the purpose of authorizing or approving a contract, agreement, financing, issuance of bonds, notes or other obligations, property transaction, or project, the funding corporation shall provide the monitor with copies of the proposed transactional documents and material supporting documentation at least seven days prior to such meeting.

(ii) In the event the monitor is not provided with materials within the time periods required by this paragraph, the monitor may, in their discretion, remove an item from consideration by the board of directors at such meeting. An item removed from consideration by the monitor may not be reconsidered by the board of directors until the next meeting.

(iii) At least seventy-two hours prior to consideration by the board of directors, the monitor shall advise the funding corporation, in writing, of the existence of: (A) any actual or potential conflicts of interest; (B) any violations of the funding corporation's conflict of interest policy; (C) any violations of section seven hundred fifteen or section seven hundred fifteen-a of the not-for-profit corporation law; (D) any failure to comply with the funding corporation's certificate of incorporation; or (E) any other violations of law arising from a proposed transaction or project.

(iv) The board of directors shall document for its own records the existence and resolution of any actual or potential conflict of interest or other violation identified by the monitor.

(v) No such contract, agreement, financing, issuance, property transaction, or project may be voted on, approved, authorized, or entered into by the funding corporation unless such actual or potential conflict of interest or violation has been resolved to the satisfaction of the monitor and the monitor has advised the funding corporation, in writing, of the monitor's approval.

(vi) In determining whether to approve a proposed project or financing, the monitor may require the funding corporation to demonstrate that there is a commitment of funds sufficient to finance the acquisition and construction of the project, taking into consideration commitments of funds, projections of fees or other revenues, and security.

4. The monitor shall undertake an enhanced review of the budget decisions and financial assistance agreements of the industrial development agency.

(a) The board shall annually submit the industrial development agency's proposed budget for the next succeeding fiscal year to the monitor no later than forty-five days prior to its adoption. The monitor shall review the budget to ensure that it, to the greatest extent possible, is consistent with purposes and necessary activities of the Orange county industrial development agency, and that it does not substantially conflict with the long term economic interests of Orange county and its constituents.

(b) The board shall provide quarterly reports to the monitor and annual reports to the state inspector general on the operational status of the industrial development agency. In addition, the monitor shall provide semi-annual reports to the state inspector general, the governor, the temporary president of the senate, and the speaker of the assembly on the fiscal and operational status of the industrial development agency. Such semi-annual report shall include a summary of all the contracts that the board entered into throughout the year. All reports shall be subject to review by the comptroller.

(c) The monitor shall advise the board in the development and revision of the industrial development agency's goals, implementation of its priorities and budgetary recommendations.

(d) The monitor may recommend, and the board may consider by vote of a resolution at the next scheduled meeting of the board, cost saving measures including, but not limited to, shared service agreements.

(e) Upon receiving a recommendation, in writing, from the monitor, the board shall consider such recommendation and, within forty-five days of receiving such recommendation, hold a vote on accepting such recommendation. Such recommendation shall only be rejected upon at least five members of the board voting to reject such recommendation. Such recommendations requiring such a vote shall include, but not be limited to, recommendations relating to contracts, budget decisions, and financial assistance agreements.

5. The monitor shall, at their discretion, direct the board to recoup financial assistance, in full or in part, where the recipient of financial assistance failed to execute and complete the terms of a contract, agreement or understanding including, but not limited to, job creation goals and the development of promised facilities or operations.

6. The Orange county funding corporation, established by Orange county resolution number one hundred twenty-five of the year two thousand ten is a local development corporation established pursuant to section fourteen hundred eleven of the not-for-profit corporation law. The funding corporation shall comply with the applicable provisions of subdivision three of this section, and the monitor shall have the powers set forth in paragraph (i) of subdivision three of this section with respect to the funding corporation.

7. Notwithstanding any other provision of law to the contrary, the monitor may commence an action or special proceeding in any court of competent jurisdiction to enjoin unlawful acts or practices by the industrial development agency or the funding corporation and to compel

compliance with this section, including the recovery of amounts due to the monitor for reasonable and necessary expenses and costs, including but not limited to attorneys' fees and litigation costs, authorized by this section.

8. Nothing in this section shall be construed to abrogate the duties and responsibilities of the board consistent with applicable state law and regulations.

§ 3. Subdivision 8 of section 54 of the executive law, as added by section 2 of part III of chapter 58 of the laws of 2023, is amended to read as follows:

8. Appoint an independent monitor to provide guidance and technical assistance related to the policies, practices, programs and decisions of the Orange county industrial development agency and the funding corporation, as authorized in subdivisions two, three, four ~~[and]~~, five, six, seven and eight of section nine hundred ~~[twelve]~~ twelve-b of the general municipal law.

§ 4. Notwithstanding any other provision of law to the contrary, in a county with a population of at least 390,000 and no greater than 415,000 according to the latest federal decennial census, any privately-owned project receiving benefits under section 485-b of the real property tax law or a payment in lieu of taxes agreement from an industrial development agency shall be subject to the payment of no less than prevailing wages for all employees of any contractors and subcontractors utilized for such project, consistent with article 8 of the labor law; provided however, that any such privately-owned project which utilizes a project labor agreement and receives either an exemption pursuant to section 485-b of the real property tax law or a payment in lieu of taxes agreement from an industrial development agency shall not be subject to article 8 of the labor law.

§ 5. Section 3 of part III of chapter 58 of the laws of 2023, amending the general municipal law and the executive law relating to directing the state inspector general to appoint an independent monitor for the Orange county industrial development agency, is amended to read as follows:

§ 3. This act shall take effect immediately; provided however, that subdivisions two, three, four and five of section 912 of the general municipal law, as added by section one of this act, and subdivision 8 of section 54 of the executive law, as added by section two of this act, shall expire and be deemed repealed ~~[three]~~ six years after such effective date.

§ 6. Subparagraph 5 of paragraph (d) of section 1411 of the not-for-profit corporation law is amended to read as follows:

(5) A local development corporation, incorporated or reincorporated under this section, which purchases or leases real property from a county, city, town or village, shall not, without the written approval of the county, city, town or village, use such real property for any purpose except the purposes set forth in the certificate of incorporation or reincorporation of said local development corporation. In the event such real property is used in violation of the restrictions of this paragraph, the attorney-general may bring an action or special proceeding to enjoin the unauthorized use. With respect to the Orange County Funding Corporation, the independent monitor appointed pursuant to paragraph (a) of subdivision three of section nine hundred twelve-b of the general municipal law may also bring an action or special proceeding to enjoin the unauthorized use of any real property purchased

1 or leased by such corporation in violation of the restrictions of this
2 paragraph.

3 § 7. This act shall take effect immediately; provided, however, that
4 the amendments to subdivisions 2, 3, 4 and 8 of section 912-b of the
5 general municipal law made by section two of this act and the amendments
6 to subdivision 8 of section 54 of the executive law made by section
7 three of this act shall not affect the repeal of such subdivisions and
8 shall be deemed to expire therewith; and provided further, however, that
9 subdivisions 5, 6 and 7 of section 912-b of the general municipal law as
10 added by section two of this act and section four of this act and the
11 amendments to subparagraph 5 of paragraph (d) of section 1411 of the
12 not-for-profit corporation law made by section six of this act shall
13 expire and be deemed repealed on the same date and in the same manner as
14 part III of chapter 58 of the laws of 2023, takes effect.

15 PART JJ

16 Section 1. Paragraph (a) of subdivision 5 of section 242 of the mili-
17 tary law, as amended by chapter 406 of the laws of 2017, is amended to
18 read as follows:

19 (a) Every public officer or employee shall be paid [~~his or her~~] their
20 salary or other compensation as such public officer or employee for any
21 and all periods of absence while engaged in the performance of ordered
22 military duty, and while going to and returning from such duty, not
23 exceeding a total of [~~thirty~~] sixty days or [~~twenty-two~~] fifty-two work-
24 ing days, whichever is greater, in any one calendar year and not exceed-
25 ing [~~thirty~~] sixty days or [~~twenty-two~~] fifty-two working days, whichev-
26 er is greater, in any one continuous period of such absence.

27 § 2. This act shall take effect immediately.

28 PART KK

29 Section 1. The correction law is amended by adding a new section 512
30 to read as follows:

31 § 512. Identification card program. 1. For purposes of this section,
32 "identification card" shall have the same meaning as defined in section
33 four hundred ninety of the vehicle and traffic law.

34 2. The department of motor vehicles shall develop a program that would
35 allow incarcerated individuals in local correctional facilities without
36 an identification card, or who have not been issued a driver's license
37 or learner's permit by the commissioner of motor vehicles, or whose
38 driver's license or learner's permit is expired, suspended, revoked or
39 surrendered, or whose identification card is expired, to obtain an iden-
40 tification card prior to such incarcerated individual's release from a
41 local correctional facility at the option of such incarcerated individ-
42 ual.

43 3. The sentence and commitment of an incarcerated individual in a
44 local correctional facility shall be deemed sufficient to grant authori-
45 zation to the sheriff of such local correctional facility to assist such
46 incarcerated individual to apply for and obtain an identification card
47 from the department of motor vehicles.

48 4. (a) Prior to an incarcerated individual's release from a local
49 correctional facility, the sheriff of such local correctional facility
50 shall notify such incarcerated individual, verbally and in writing, of
51 the identification card program under this section. The sheriff of such
52 local correctional facility shall also document that they offered to

1 assist such incarcerated individual in obtaining an identification card
2 and if such incarcerated individual declined. The sheriff of a local
3 correctional facility shall make diligent efforts to ensure that an
4 incarcerated individual is provided with an identification card, if
5 requested, prior to or upon the release of such individual from such
6 local correctional facility.

7 (b) If an identification card is obtained with the assistance of the
8 sheriff of a local correctional facility for an incarcerated individual
9 prior to such individual's release from such local correctional facili-
10 ty, such identification card shall be kept in such incarcerated individ-
11 ual's records until such individual is released from such local correc-
12 tional facility; and upon such individual's release, such identification
13 card shall be provided to such individual.

14 § 2. Section 490 of the vehicle and traffic law is amended by adding a
15 new subdivision 4 to read as follows:

16 4. Identification card programs. Identification cards issued to incar-
17 cerated individuals pursuant to an identification card program under
18 section eleven or five hundred twelve of the correction law shall be
19 formatted identically to all other identification cards issued pursuant
20 to this section. Such identification cards shall not contain any mark-
21 ings or other indications that such identification cards were issued
22 pursuant to such an identification card program.

23 § 3. Subdivision 3 of section 491 of the vehicle and traffic law, as
24 amended by section 2 of part Q of chapter 58 of the laws of 2022, is
25 amended to read as follows:

26 3. Waiver of fee. The commissioner may waive the payment of fees
27 required by subdivision two of this section if the applicant is (a) an
28 incarcerated individual in an institution or correctional facility under
29 the jurisdiction of a state department or agency, or a local correction-
30 al facility as defined by section two of the correction law, or (b) a
31 victim of a crime and the identification card applied for is a replace-
32 ment for one that was lost or destroyed as a result of the crime.

33 § 4. This act shall take effect on the thirtieth day after it shall
34 have become a law. Effective immediately, the addition, amendment and/or
35 repeal of any rule or regulation necessary for the implementation of
36 this act on its effective date are authorized to be made and completed
37 on or before such effective date.

PART LL

39 Section 1. Legislative purpose and findings. People incarcerated in
40 institutions or local correctional facilities face unique health risks
41 during pregnancy, childbirth, postpartum, and early childcare. Lack of
42 appropriate prenatal, obstetric, and postpartum medical care, and appro-
43 priate health and safety measures, can result in serious harm to these
44 birthing parents and their children. Birthing parents and such persons'
45 young children need prenatal, obstetric, and pediatric care, as well as
46 developmentally-appropriate resources provided in a safe, healthy, and
47 nurturing environment. Unless comprehensive and compassionate laws,
48 policies, and practices are in place, the rights and care of birthing
49 parents and such persons' young children may be compromised by the
50 conditions of confinement in correctional institutions or facilities.

51 § 2. Section 611 of the correction law, as amended by chapter 242 of
52 the laws of 1930, the section heading as amended by chapter 322 of the
53 laws of 2021, subdivision 1 as amended by chapter 17 of the laws of
54 2016, paragraph (c) of subdivision 1 and subdivision 2 as separately

amended by chapters 322 and 621 of the laws of 2021, and subdivision 4 as amended by chapter 486 of the laws of 2022, is amended to read as follows:

§ 611. [~~Births to incarcerated individuals of correctional institutions and care of children of incarcerated individuals of correctional institutions~~] Rights and care of birthing parents and such persons' children. 1. For the purposes of this section, the following terms shall have the following meanings:

(a) "Birthing parent" means any person who is incarcerated and pregnant, postpartum, or with custody of a child up to twenty-four months of age.

(b) "Prenatal" means the period in which a person becomes pregnant and up until birth or other pregnancy outcome occurs.

(c) "Perinatal" means the twelve-week period immediately before birth and the twelve-week period immediately after birth.

(d) "Postpartum" means the twelve-week period after giving birth and shall include stillbirth, miscarriage, and neonatal death, in accordance with the American college of obstetricians and gynecologists.

(e) "Nursery" means a space where a birthing parent lives with their child and receives services. A nursery shall include, at a minimum, a window for natural light and the equipment and furnishings required by section 7651.17 of title 9 of the codes, rules and regulations of the state of New York.

(f) "Timely" means within the timeframe recommended by the treating medical provider, unless otherwise specified in this section.

2. (a) If a [~~woman~~] person confined in any institution or local correctional facility be pregnant and about to give birth to a child, the superintendent or sheriff in charge of such institution or facility, a reasonable time before the anticipated birth of such child, shall cause such [~~woman~~] person to be removed from such institution or facility and provided with comfortable accommodations, maintenance and medical care elsewhere, under such supervision and safeguards to prevent [~~her~~] such birthing parent's escape from custody as the superintendent or sheriff or [~~his or her~~] their designee may determine. No restraints of any kind shall be used during transport of such [~~woman~~] birthing parent, a [~~woman~~] person who is known to be pregnant by correctional personnel or personnel providing medical services to the institution or local correctional facility, or a [~~woman~~] birthing parent within eight weeks after delivery or pregnancy outcome, absent extraordinary circumstances in which:

i. the superintendent or sheriff or [~~his or her~~] their designee in consultation with the medical professional responsible for the institution has made an individualized determination that restraints are necessary to prevent such [~~woman~~] birthing parent from injuring [~~herself~~] themselves or medical or correctional personnel or others and cannot reasonably be restrained by other means, including the use of additional personnel; or

ii. the correctional personnel directly responsible for the transport of such a [~~woman~~] birthing parent determine that an emergency has arisen in which restraints are necessary because the [~~woman~~] birthing parent poses an immediate risk of serious injury to [~~herself~~] themselves or medical or correctional personnel or others and cannot reasonably be restrained by other means.

(b) If a determination has been made pursuant to subparagraph i or ii of paragraph (a) of this subdivision that extraordinary circumstances exist then restraints shall be limited to wrist restraints in front of

1 the body. The superintendent or sheriff or ~~[his or her]~~ their designee
2 pursuant to subparagraph i of paragraph (a) of this subdivision or
3 correctional personnel pursuant to subparagraph ii of paragraph (a) of
4 this subdivision shall document in writing the facts upon which the
5 finding of extraordinary circumstances were based within five days of
6 the use of such restraints and shall also document the type of
7 restraints used and the length of time such restraints were used.

8 (c) No restraints of any kind shall be used when such ~~[woman]~~ birthing
9 parent is in labor, admitted to a hospital, institution or clinic for
10 delivery, or recovering after giving birth. Any such personnel as may be
11 necessary to supervise the ~~[woman]~~ birthing parent during transport to
12 and from and during ~~[her]~~ their stay at the hospital, institution or
13 clinic shall be provided to ensure adequate care, custody and control of
14 the ~~[woman]~~ birthing parent, except that no correctional staff shall be
15 present in the delivery room during the birth of a baby unless requested
16 by the medical staff supervising such delivery or by the ~~[woman]~~ birth-
17 ing parent giving birth. The ~~[woman]~~ birthing parent shall be permitted
18 to have at least one support person of ~~[her]~~ their choosing accompany
19 ~~[her]~~ them in the delivery room and when such ~~[woman]~~ birthing parent is
20 in labor and recovering after giving birth. A support person shall not
21 need to have visited the ~~[woman]~~ birthing parent at a correctional
22 facility prior to serving as a support person. A person may not be
23 denied eligibility to serve as a support person solely on the basis of a
24 past criminal conviction or that such person is on probation, condi-
25 tional release, parole or post release supervision. Any decision by an
26 agency to deny a ~~[woman's]~~ birthing parent's request to have a specific
27 person serve as a support person shall be made with reasons specified in
28 writing within five days of ~~[her]~~ the request and promptly provided to
29 the ~~[woman]~~ birthing parent. A support person shall be notified imme-
30 diately after such ~~[woman]~~ birthing parent goes into labor, or imme-
31 diately after a caesarean section or termination is scheduled. If avail-
32 able, a doula, midwife or other birthing support specialist may also
33 assist during labor and delivery in addition to at least one support
34 person of the ~~[woman's]~~ birthing parent's choosing. Any ~~[woman]~~ birthing
35 parent confined in a state or local correctional facility shall receive
36 notice in writing in a language and manner understandable to ~~[her]~~ such
37 birthing parent about the requirements of this section upon ~~[her]~~ such
38 birthing parent's admission to such state or local correctional facility
39 and again when ~~[she]~~ the birthing parent is known to be pregnant. The
40 superintendent or sheriff shall publish notice of the requirements of
41 this section in prominent locations where medical care is provided. The
42 superintendent or sheriff or ~~[his or her]~~ their designee shall cause
43 such ~~[woman]~~ birthing parent to be subject to return to such institution
44 or local correctional facility as soon after the birth of ~~[her]~~ such
45 birthing parent's child as the state of ~~[her]~~ such birthing parent's
46 health will permit as determined by the medical professional responsible
47 for the care of such ~~[woman]~~ birthing parent. If such ~~[woman]~~ birthing
48 parent is confined in a local correctional facility, the expense of such
49 accommodation, maintenance and medical care shall be paid by such
50 ~~[woman]~~ birthing parent or ~~[her]~~ their relatives or from any available
51 funds of the local correctional facility and if not available from such
52 sources, shall be a charge upon the county, city or town in which is
53 located the court from which such incarcerated individual was committed
54 to such local correctional facility. If such ~~[woman]~~ birthing parent is
55 confined in any institution under the control of the department, the
56 expense of such accommodation, maintenance and medical care shall be

1 paid by such [woman] birthing parent or [her] their relatives and if not
2 available from such sources, such maintenance and medical care shall be
3 paid by the state. In cases where payment of such accommodations, main-
4 tenance and medical care is assumed by the county, city or town from
5 which such incarcerated individual was committed the payor shall make
6 payment by issuing payment instrument in favor of the agency or individ-
7 ual that provided such accommodations and services, after certification
8 has been made by the head of the institution to which the incarcerated
9 individual was legally confined, that the charges for such accommo-
10 dations, maintenance and medical care were necessary and are just, and
11 that the institution has no available funds for such purpose.

12 (d) Any [woman] birthing parent confined in an institution or local
13 correctional facility shall receive notice in writing in a language and
14 manner understandable to [her] such birthing parent about the require-
15 ments of this section upon [her] such birthing parent's admission to an
16 institution or local correctional facility and again when [she] such
17 birthing parent is known to be pregnant. The superintendent or sheriff
18 shall publish notice of the requirements of this section in prominent
19 locations where medical care is provided. The department and the sheriff
20 shall provide annual training on provisions of this section to all
21 correctional personnel who are involved in the transportation, super-
22 vision or medical care of incarcerated [women] individuals.

23 (e) The department shall report annually to the governor, the tempo-
24 rary president of the senate, the minority leader of the senate, the
25 speaker of the assembly, the minority leader of the assembly, the chair-
26 person of the senate crime victims, crime and correction committee and
27 the chairperson of the assembly correction committee concerning every
28 use of restraints on a [woman] birthing parent under this section,
29 including the reason such restraint was used, the type of restraint used
30 and the length of time such restraint was used pursuant to paragraph (b)
31 of this subdivision, but shall exclude individual identifying informa-
32 tion. The sheriff of each county shall report, in a form and manner
33 prescribed by the commission, every use of restraints on a [woman]
34 birthing parent under this section, including the reason such restraint
35 was used, the type of restraint used and the length of time such
36 restraint was used pursuant to paragraph (b) of this subdivision, annu-
37 ally to the commission. The commission shall include such information in
38 its annual report pursuant to section forty-five of this chapter, but
39 shall exclude identifying information from such report. Reports required
40 by this section shall be posted on the websites maintained by the
41 department and the commission.

42 ~~[2-]~~ 3. Birthing parents shall be provided with comprehensive and
43 uninterrupted access to prenatal, perinatal, and postpartum care,
44 including all necessary prenatal screening and diagnostic tests, medica-
45 tion as prescribed by medical personnel, consultation and treatment,
46 including treatment by specialists, and appropriate medical care after
47 delivery or other pregnancy outcomes, including postpartum physical,
48 mental, and reproductive health care, as recommended by the American
49 college of obstetricians and gynecologists. The commissioner shall
50 establish rules and regulations relating to conditions in the institu-
51 tion or local correctional facility, treatment and care that shall
52 include, but is not limited to:

53 (a) Regularly scheduled obstetric care appointments with a medical
54 practitioner, beginning in early pregnancy, within one week of the
55 institution or local correctional facility learning an individual is

1 pregnant, and continuing as recommended by medical personnel through the
2 postpartum period;

3 (b) An appointment to be scheduled within the first week of the insti-
4 tution or local correctional facility learning an individual is pregnant
5 and which appointment shall take place within a reasonable timeframe,
6 not to exceed four weeks. Such appointment shall include a comprehensive
7 prenatal examination appropriate to the trimester and health of such
8 individual as recommended by the American college of obstetricians and
9 gynecologists. If the medical practitioner is not a high-risk obstetri-
10 cian and determines that a referral to a high-risk obstetrician is
11 necessary, such individual shall be referred to a high-risk obstetrician
12 without delay;

13 (c) Prenatal appointments with a medical practitioner pursuant to this
14 paragraph at a frequency in line with recommendations by the American
15 college of obstetricians and gynecologists;

16 (d) Fetal ultrasound imaging conducted by a sonographer who is certi-
17 fied in or who has received a degree in sonography from a national
18 certifying or degree-granting body at a frequency determined by the
19 medical practitioner caring for such individual, including, at a mini-
20 mum: one dating ultrasound if such individual is in their first trimes-
21 ter or has not yet had or does not have records of a prior such ultra-
22 sound; one ultrasound to assess fetal anatomy between eighteen and
23 twenty-two weeks of pregnancy if such individual has not yet reached
24 twenty-two weeks of pregnancy; and within two weeks of entering custody
25 in an institution or local correctional facility if such individual
26 enters custody past twenty-two weeks of pregnancy. Such individual shall
27 be permitted to view their ultrasound imaging during the procedure and
28 shall be provided with physical images from the ultrasound to keep at
29 the institution or local correctional facility and an additional copy
30 for a person of the individual's choosing if such images are capable of
31 being generated and if such individual wants such images;

32 (e) For individuals with a high-risk pregnancy, the frequency of
33 prenatal appointments shall be determined by the high-risk obstetrician
34 caring for such individuals in line with recommendations by the American
35 college of obstetricians and gynecologists;

36 (f) Emergency access to a medical practitioner pursuant to this para-
37 graph for twenty-four hours per day seven days per week. If emergency
38 access is needed, such individuals shall be permitted to speak with such
39 practitioners directly;

40 (g) No correction staff or volunteers shall be present during these
41 examinations unless requested by the birthing parent or by the medical
42 staff when the situation poses a clear risk of danger to the medical
43 staff or others;

44 (h) At least once each trimester, a consultation with a nutritionist
45 or dietician about pregnancy appropriate nutrition and physical activ-
46 ity;

47 (i) Access to a dentist within one month of the institution or local
48 correctional facility learning such individual is pregnant. Such dentist
49 shall offer such individual a comprehensive exam, cleaning, and timely
50 referral to dental specialists if necessary, pursuant to the recommenda-
51 tions by the American college of obstetricians and gynecologists;

52 (j) At least one consultation prior to the birth between such individ-
53 ual and such individual's medical practitioner, midwife, and/or doula,
54 to discuss anticipatory guidance related to the birth and establish a
55 birth plan, including but not limited to:

1 (i) modes of delivery, possible interventions and guidance regarding
2 medical testing and fetal monitoring;

3 (ii) medication that may be employed during birth and the possible
4 side effects of such medication on such individual and their newborn
5 consistent with section twenty-five hundred three of the public health
6 law;

7 (iii) preferences for newborn feeding and care, including circumcision
8 if applicable;

9 (iv) information for maternity patients as required by section twenty-
10 eight hundred three-j of the public health law;

11 (v) information regarding the length of hospital stay for maternity
12 patients contained in section twenty-eight hundred three-n of the public
13 health law; and

14 (vi) a comprehensive postpartum appointment schedule with a medical
15 practitioner pursuant to this paragraph at a frequency determined by
16 such practitioner based on the health of such individual and any compli-
17 cations related to birth, including one appointment three weeks after a
18 vaginal birth and two weeks after a cesarean section, and another
19 appointment twelve weeks after birth, in accordance with recommendations
20 from the American college of obstetricians and gynecologists;

21 (k) Perinatal vitamins that meet the standards of the United States
22 Food and Drug Administration and that include key vitamins and minerals
23 as recommended by the American college of obstetricians and gynecolo-
24 gists in order to safely deliver a child and breast feed them;

25 (l) Evidence-based treatment and medication for opioid use disorder,
26 smoking cessation, alcohol use disorder and other substance use disor-
27 ders shall not be denied on account of pregnancy;

28 (m) Screening for HIV, hepatitis B, syphilis, chlamydial infection,
29 and Neisseria Gonorrhea, as recommended by the American academy of
30 pediatrics and the American college of obstetricians and gynecologists
31 with prior written and oral informed consent specific to the test;

32 (n) Consultation access to influenza and Tdap vaccines;

33 (o) Screening for mental health concerns and psychological and psychi-
34 atric therapy and treatment as needed, including consultation regarding
35 psychiatric medications and provision to psychiatric medications that
36 are safe during pregnancy;

37 (p) Medical care during labor and delivery, which shall include care
38 by qualified medical personnel, such as someone who has been certified
39 in obstetrics by the American board of medical specialties or a compara-
40 ble national certifying board or a midwife licensed to practice midwif-
41 ery pursuant to article one hundred forty of the education law provided
42 that such a midwife is available and such individual requests midwifery
43 care and necessary medical equipment, including full access to pain
44 management medications when safe. A birthing parent shall remain at the
45 hospital and in care by qualified medical personnel for forty-eight
46 hours after vaginal birth and ninety-six hours after cesarean birth in
47 accordance with recommendations from the American college of obstetri-
48 cians and gynecologists. Prior to release from the hospital, the birth-
49 ing parent shall receive consultations from qualified practitioners to
50 include but not be limited to a certified dietician and/or nutritionist
51 for postpartum physical activity recommendations appropriate to labor
52 and delivery outcomes of the birthing parent;

53 (q) Timely access to medications, vaccines, and prenatal, perinatal,
54 postpartum, and fetal tests as recommended by the medical practitioner
55 caring for such individual and timely access to results of such tests,

1 including tests identifying the sex of the fetus, if such individual
2 confirms they want this information;

3 (r) Appropriate hydration and nutrition. Such hydration shall include
4 distilled water for bottles and bottled filtered water for drinking.
5 Such nutrition shall include the provision of additional portions of
6 nutritious food, fresh fruits and vegetables that are safe to consume
7 during the prenatal, perinatal and postpartum periods, including breast-
8 feeding-related nutritional recommendations of the American college of
9 obstetricians and gynecologists and the American academy of pediatrics.
10 These individuals may request an additional tray of food, milk, and
11 hydration to bring back to their living area during the prenatal, peri-
12 natal and postpartum periods and while breastfeeding;

13 (s) Regular access to safe and appropriate exercise facilities for at
14 least one hour per day during the prenatal, perinatal and postpartum
15 periods as appropriate to their physical health and birth outcome, as
16 well as trips outside the institution or local correctional facility
17 guided by correctional officers for birthing parents;

18 (t) Reasonable accommodations for sleep, rest, and work requirements
19 for the prenatal, perinatal and postpartum periods and the entire period
20 the child remains with birthing parent. Reprieve from daily activities,
21 such as repeatedly climbing stairs and lifting heavy items, if the
22 medical practitioner providing care to such individual determines that
23 such activities present a risk of harm to such individual;

24 (u) Access to seating with back support in situations that require
25 sitting, including waiting for an appointment and participating in
26 programs or work duties;

27 (v) Privacy with regard to the care of prenatal, perinatal, and post-
28 partum conditions. Breastfeeding birthing parents shall have access to a
29 nursing cover;

30 (w) Prevention from exposure to substances or chemicals that could
31 present a risk of harm to the birthing parent during the prenatal, peri-
32 natal and postpartum periods or such person's fetus or infant;

33 (x) Safe and appropriate housing and living conditions, including
34 adequate bedding, clothing, and personal hygiene and self-care supplies
35 during prenatal, perinatal and postpartum periods and during the entire
36 period the child remains with the birthing parent. Bedding includes
37 additional mattresses, pillows, blankets, and sheets;

38 (y) In-person consultations with legal counsel of their choice regard-
39 ing their postpartum decisions related to the short term and long term
40 care of the child, or by telephone or video if necessary, and appropri-
41 ate peer and social support of other incarcerated parents in person or
42 online or via videoconference if necessary. Such postpartum individuals
43 shall also have access to reasonable technology to take and share photos
44 of such person's child;

45 (z) Authority to make decisions regarding their child's daily life
46 including feeding, dressing, sleeping, and hygiene, provided that such
47 decisions do not present a significant risk to the health of the child
48 or the safety and security of the institution or local correctional
49 facility; and

50 (aa) Freedom from discrimination with respect to access to services,
51 education or programming, including programming related to early release
52 or sentence-shortening options.

53 4. (a) A child ~~[so born may be returned with its mother to the correc-~~
54 ~~tional institution in which the mother is confined]~~ shall have the right
55 to return with their birthing parent and remain in the institution or
56 local correctional facility with their birthing parent:

(i) until the child is eighteen months old; provided, however, that if the birthing parent is to be paroled by the time the child becomes twenty-four months of age, such child may remain at the institution or local correctional facility until the birthing parent is paroled. If a birthing parent of a child under the age of eighteen months is incarcerated at an institution or local correctional facility, such child may accompany such person to such institution or facility if such person is physically fit to have the care of such child, subject to the provisions of this section. If any person committed to any such institution or facility at the time of such commitment is the birthing parent of, and has under their exclusive care, a child more than eighteen months of age, the justice or magistrate committing such person shall refer such child to the commissioner of public welfare or other officer or board exercising in relation to children the power of a commissioner of public welfare of the county from which the person is committed to be cared for as provided by law in the case of a child becoming dependent upon the county.

(ii) unless the chief medical officer of the [correctional] institution ~~[shall certify that the mother is physically unfit to care for the child, in which case the statement of the said medical officer shall be final. A child may remain in the correctional institution with its mother for such period as seems desirable for the welfare of such child, but not after it is one year of age, provided, however, if the mother is in a state reformatory and is to be paroled shortly after the child becomes one year of age, such child may remain at the state reformatory until its mother is paroled, but in no case after the child is eighteen months old. If a pregnant woman or mother of a child under the age of eighteen months is incarcerated at a state or local correctional facility, the department shall inform her of her ability to apply to any nursery program run by the department and the locality]~~ or local correctional facility demonstrates a finding by clear and convincing evidence that such person poses an imminent risk to the health and safety of the child.

(b) Any [woman] person confined in [a state] an institution or local correctional facility shall receive notice in writing in a language and manner understandable to [her] them about ~~[the requirements of]~~ their rights under this section upon [her] their admission to [a state] an institution or local correctional facility and again when [she is] they are known to be pregnant. The superintendent or sheriff shall publish notice of ~~[the requirements of this section]~~ such rights in prominent locations where medical care is provided. ~~[The officer in charge of such institution may cause a child cared for therein with its mother to be removed from the institution at any time before the child is one year of age. He or she shall make provision for a child removed from the institution without its mother or a child born to a woman incarcerated individual who is not returned to the institution with its mother as herein after provided. He or she]~~

(c) No child shall be removed from the nursery without the express oral and written consent of the birthing parent or a finding, by clear and convincing evidence, that the birthing parent poses an imminent risk to the health and safety of the child and that this risk cannot be mitigated through reasonable efforts on behalf of the institution or local correctional facility. The right to counsel and due process shall be afforded to the birthing parent as well as to the child prior to, or shortly after, such removal and if the finding above is not sustained, the child shall be immediately returned to the care and custody of the

birthing parent. The officer in charge of an institution or local
correctional facility may, upon proof being furnished by the [~~father~~]
non-birthing parent or other relatives of [~~their~~] such relatives' ability to properly care for and maintain such child, and with the express
written and oral consent of the birthing parent who gave birth to the
child within the previous eighteen months, give the child into the care
and custody of such [~~father~~] non-birthing parent or other relatives, who
shall thereafter maintain the same at their own expense. If it shall
appear that such [~~father~~] non-birthing parent or other relatives are
unable to properly care for and maintain such child, such officer shall
place the child in the care of the commissioner of public welfare or
other officer or board exercising in relation to children the power of a
commissioner of public welfare of the county from which such [~~incarcer-~~
~~ated individual~~] birthing parent was committed as a charge upon such
county. The officer in charge of the correctional institution shall send
to such commissioner, officer or board a report of all information
available in regard to the [~~mother~~] birthing parent and the child. Such
commissioner of public welfare or other officer or board shall care for
or place out such child as provided by law in the case of a child becoming
dependent upon the county.

~~[3. If any woman, committed to any such correctional institution at the time of such commitment is the mother of a nursing child in her care under one year of age, such child may accompany her to such institution if she is physically fit to have the care of such child, subject to the provisions of subdivision two of this section. If any woman committed to any such institution at the time of such commitment is the mother of and has under her exclusive care a child more than one year of age the justice or magistrate committing such woman shall refer such child to the commissioner of public welfare or other officer or board exercising in relation to children the power of a commissioner of public welfare of the county from which the woman is committed to be cared for as provided by law in the case of a child becoming dependent upon the county.~~

4.] 5. The birthing parent and their child in the nursery of the
correctional institution or local correctional facility shall be entitled
to the following rights and conditions:

(a) Separation or the threat of separation of a birthing parent who is
caring for their child in the nursery of the institution or local
correctional facility shall never be used as a disciplinary tool or
sanction.

(b) No person shall care for the child without the express permission
of the birthing parent.

(c) Birthing parents who are caring for their child in the nursery
while incarcerated shall have quiet and private sleeping spaces until
their child is weaned or such child consistently sleeps through the
night, whichever occurs later.

(d) Birthing parents who are caring for their child in the nursery of
the institution or local correctional facility shall have timely consul-
tations with pediatricians, including in-person consultations. These
appointments shall be conducted after birth, at one month, two months,
four months, six months, nine months, one year, fifteen months, eighteen
months, and twenty-four months, according to the American academy of
pediatrics.

(e) Birthing parents who are caring for their child in the nursery of
the institution or local correctional facility shall be provided with
appropriate over-the-counter medications for their child, regardless of
whether the birthing parent has consulted with a pediatrician.

1 (f) Birthing parents who have given birth within the previous eighteen
2 months shall be provided with counseling regarding all options open to
3 them, including all rights under this section to postpartum care, to
4 maintain the care and custody of their child while incarcerated, all
5 rights of such child to receive pediatric care and a safe, nurturing and
6 developmentally appropriate environment, and alternative care arrange-
7 ments for their child.

8 (g) Under no circumstances shall a birthing parent who has given birth
9 within the prior eighteen months and who is caring for their child while
10 incarcerated be subjected to isolation or segregated confinement, used
11 as a disciplinary tool or sanction, with or without their child.

12 6. Children born to birthing parents and who are cared for in the
13 nursery of the institution or local correctional facility shall have the
14 right to the following:

15 (a) in addition to the requirements of section 7651.17 of title 9 of
16 the codes, rules and regulations of the state of New York, appropriate
17 pediatric care, including all necessary medical and developmental test-
18 ing, as recommended by the American academy of pediatrics;

19 (b) an appointment for such child with a physician, physician assist-
20 ant, or nurse practitioner who is certified by a national certifying
21 board to provide pediatric care at the next medically appropriate point
22 after leaving the hospital in which the child was born, along with
23 appointments with such a practitioner at regular intervals as recom-
24 ended by the American academy of pediatrics and timely access to pedia-
25 tric specialists as recommended by such a practitioner. Such appoint-
26 ments shall be conducted after birth, one month, two months, four
27 months, six months, nine months, one year, fifteen months, eighteen
28 months, and twenty-four months;

29 (c) emergency access to a physician, physician assistant, or nurse
30 practitioner who is certified by a national certifying board to provide
31 pediatric care twenty-four hours per day, seven days per week. Such
32 emergency access shall include medical care for infants within two hours
33 of infant distress. A telehealth option shall be available when neces-
34 sary as a last resort;

35 (d) access to all relevant features of early intervention or other
36 special medical or developmental services when needed as determined by
37 an assessment, via experts within or outside the facility as stated in
38 article twenty-five of the public health law;

39 (e) a clean, safe and nurturing environment for children, which
40 includes safe and appropriate sleeping arrangements that reduce the risk
41 of sudden infant death syndrome, safe and appropriate playing, eating,
42 and bathing spaces, adequate hygiene and personal care supplies,
43 adequate over-the-counter medication for common conditions such as
44 colds, teething pain, and diaper rash, and daily access to natural
45 light, quiet, and music;

46 (f) access to nonprescription pediatric medications, creams, oint-
47 ments, and sprays approved by the United States Food and Drug Adminis-
48 tration upon the birthing parent's request;

49 (g) full opportunity to bond with such child's birthing parents,
50 including consistent and extensive physical skin-to-skin contact from
51 the moment of birth;

52 (h) healthy nutrition, including breastfeeding or breast milk that has
53 been pumped, stored and warmed, if such birthing parent so chooses;

54 (i) adequate quantities of age-appropriate diapers, baby clothes, baby
55 blankets, burp cloths, bibs, baby bathing equipment, and developmentally
56 appropriate toys;

1 (j) a safe place separated from the general incarcerated population;
2 (k) reasonable visiting hours from family and friends, subject to the
3 consent of the birthing parent; and
4 (l) time outdoors with their birthing parent for at least one hour per
5 day.

6 7. Upon admitting a ~~[woman]~~ person known to be pregnant, or upon
7 learning of pregnancy status, the chief medical officer of each institu-
8 tion or local correctional facility housing ~~[female incarcerated indi-~~
9 ~~viduals]~~ birthing parents, including the medical professional responsi-
10 ble for each local correctional facility housing ~~[female incarcerated~~
11 ~~individuals]~~ birthing parents, or such officer or professional's designee,
12 shall immediately inform such ~~[woman]~~ birthing parent of ~~[the~~
13 ~~option of participating in]~~ their right to comprehensive pregnancy coun-
14 seling services and the right to abortion services.

15 8. Enforcement. (a) The department or the commission shall promulgate
16 rules and regulations necessary for the implementation of this section
17 within one hundred eighty days of the effective date of this subdivi-
18 sion.

19 (b) If a birthing parent claims that either they or the child in their
20 care have suffered as a result of conduct prohibited under this section
21 or have been denied the rights provided in this section, the provisions
22 of this section shall be enforceable by a proceeding brought pursuant to
23 article seventy-eight of the civil practice law and rules.

24 § 3. Subdivision 33 of section 2 of the correction law, as added by
25 chapter 93 of the laws of 2021, is amended to read as follows:

26 33. "Special populations" means any person: (a) twenty-one years of
27 age or younger; (b) fifty-five years of age or older; (c) with a disa-
28 bility as defined in paragraph (a) of subdivision twenty-one of section
29 two hundred ninety-two of the executive law; or (d) who is pregnant, in
30 the first ~~[eight weeks]~~ twelve weeks of the ~~[post-partum]~~ postpartum
31 recovery period after giving birth, or caring for a child in a correc-
32 tional institution pursuant to ~~[subdivisions two or three of]~~ section
33 six hundred eleven of this chapter.

34 § 4. Severability. If any word, phrase, clause, sentence, paragraph,
35 section, or part of this act shall be adjudged by any court of competent
36 jurisdiction to be invalid, such judgment shall not affect, impair, or
37 invalidate the remainder thereof, but shall be confined in its operation
38 to the word, phrase, clause, sentence, paragraph, section, or part ther-
39 eof directly involved in the controversy in which such judgment shall
40 have been rendered.

41 § 5. This act shall take effect on the one hundred eightieth day after
42 it shall have become a law.

43 PART MM

44 Section 1. Paragraph (b) of subdivision 3 of section 99-ii of the
45 state finance law, as added by chapter 92 of the laws of 2021, is
46 amended to read as follows:

47 (b) Reasonable costs incurred by the office of cannabis management and
48 the cannabis control board for implementing, administering, and enforc-
49 ing the marijuana regulation and taxation act, including, but not limit-
50 ed to, the cost of implementing track and tracing of product programs.

51 § 2. This act shall take effect immediately.

52 PART NN

1 Section 1. The veterans' services law is amended by adding a new
2 section 29-f to read as follows:

3 § 29-f. Veteran-owned business directory. 1. As used in this section
4 the following terms shall have the following meanings:

5 (a) "Business owned and controlled by veterans" means a business (i)
6 not less than fifty-one percent of which is owned by one or more veter-
7 ans, or, in the case of any publicly owned business, not less than
8 fifty-one percent of the stock of which is owned by one or more veter-
9 ans; (ii) the management and daily business operations of which are
10 controlled by one or more veterans; and (iii) authorized to do business
11 in the state and which is independently owned and operated.

12 (b) "Veteran" means a person, as defined in section one of this arti-
13 cle, who served on active duty and has been discharged or released ther-
14 efrom under conditions other than dishonorable, or has a qualifying
15 condition as defined in section one of this article and has received a
16 discharge other than bad conduct or dishonorable, or is a discharged
17 LGBT veteran as defined in section one of this article and has received
18 a discharge other than bad conduct or dishonorable;

19 (c) "Service-disabled veteran" shall have the same meaning as defined
20 in section forty of this chapter;

21 (d) "Certified service-disabled veteran-owned business enterprise"
22 shall have the same meaning as defined in section forty of this chapter;
23 and

24 (e) "Veteran-owned business enterprises" shall mean businesses owned
25 and controlled by veterans, and service-disabled veteran-owned business
26 enterprises.

27 2. The department, with the aid and assistance of the division of
28 small business, the department of labor, the division of service-disa-
29 bled veterans' business development, and the office of general services,
30 shall develop, regularly update, and make available to state agencies
31 and the public a directory of veteran-owned business enterprises which
32 shall, wherever practicable, be divided into categories of labor,
33 services, supplies, equipment, materials and recognized construction
34 trades and which shall indicate areas or locations of the state where
35 such enterprises are available to perform services. Such directory
36 shall use an asterisk or other special mark to denote any veteran-owned
37 business enterprises which are service-disabled veteran-owned business
38 enterprises. Such directory shall be posted on the department's
39 website.

40 3. The office of general services shall also use this information to
41 create and regularly update an internet based, searchable centralized
42 state database to promote veteran-owned business enterprises to the
43 public and shall post such database on the office of general services'
44 website.

45 4. The department with the office of general services shall conduct
46 outreach to notify veteran-owned business enterprises of such directory
47 and database.

48 5. The department shall develop a registration process with the office
49 of general services for veteran-owned business enterprises to complete
50 in order to compile information for inclusion in the directory and data-
51 base. The department shall be responsible for verifying businesses as
52 being a business owned and controlled by veterans as defined in this
53 section including the development of rules and regulations governing the
54 approval, denial, or revocation of a business's status as a business
55 owned and controlled by veterans.

§ 2. Subdivision 7 of section 4 of the veterans' services law is amended to read as follows:

7. To provide in cooperation with the office of general services and the office of the comptroller a series of seminars, that shall be conducted four or more times per year at regional sites located throughout the state of New York for the purpose of advising veteran-owned businesses regarding the opportunities available for obtaining procurement contracts from New York state agencies, municipalities, and authorities. ~~[Furthermore--the]~~ The seminars shall provide requirements and training that will enable veteran-owned businesses to successfully participate in the procurement process. Furthermore, the seminars shall provide registration information regarding the veteran-owned business directory and database pursuant to section twenty-nine-f of this article.

§ 3. This act shall take effect on the first of April next succeeding the date upon which it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

PART 00

Section 1. Short title. This act shall be known and may be cited as the "Didarul Islam police recruitment act".

§ 2. Paragraph 2 of subdivision c of section 513 of the retirement and social security law is amended by adding a new subparagraph (iv) to read as follows:

(iv) Notwithstanding any other provision of law to the contrary, a member of the New York city police pension fund subject to this article shall be eligible to obtain credit for any period of service rendered as a New York city school safety agent or supervisor of school safety agents, a New York city corrections officer or supervisor of New York city corrections officers, a New York city traffic enforcement agent or supervisor of traffic enforcement agents, or in the New York city police department cadet program in the title of police cadet program or police cadet program II, which immediately precedes service in the uniformed force of the New York city police department, and such service shall be deemed to be in service of the uniformed force of the New York city police department for purposes of eligibility for benefits and to determine the amount of benefits under the New York city police pension fund, provided that such member pays or transfers into the New York city police pension fund all member contributions set forth in section five hundred seventeen of this article plus interest, at a rate of five percent per annum. For a member who transfers such contributions from the New York city employees' retirement system to the New York city police pension fund or for a member who withdraws such contributions from the New York city employees' retirement system, such member's membership in the New York city employees' retirement system shall cease upon such transfer or withdrawal and such member shall retain no credited service in such system.

§ 3. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

SUMMARY: This proposed legislation would provide eligible Tier 3 New York City Police Pension Fund (POLICE) members with credit for prior service as a correction officer, traffic enforcement agent, school safety agent, or police cadet that immediately precedes POLICE membership.

EXPECTED INCREASE (DECREASE) IN EMPLOYER CONTRIBUTIONS
by Fiscal Year for the first 25 years (\$ in Millions)

Year	NYC
2027	34.7
2028	35.9
2029	37.1
2030	38.3
2031	39.3
2032	40.1
2033	40.9
2034	41.8
2035	42.6
2036	43.3
2037	44.1
2038	45.0
2039	45.8
2040	46.6
2041	47.4
2042	20.5
2043	21.3
2044	21.8
2045	22.1
2046	22.7
2047	23.8
2048	25.1
2049	26.3
2050	27.5
2051	28.9

Projected contributions include future new hires that may be impacted. For Fiscal Year 2052 and beyond, the expected increase in normal cost as a level percent of pay for impacted new entrants is approximately 1.56% for each year of service purchased or transferred.

The entire increase in employer contributions will be allocated to New York City.

PRESENT VALUE OF BENEFITS: The Present Value of Benefits is the discounted expected value of benefits paid to current members if all assumptions are met, including future service accrual and pay increases. Future new hires are not included in this present value.

INITIAL INCREASE (DECREASE) IN ACTUARIAL PRESENT VALUES
as of June 30, 2025 (\$ in Millions)

Present Value (PV)	NYC
(1)PV of Employer Contributions:	261.2
(2)PV of Employee Contributions:	<u>0.7</u>
Total PV of Benefits (1)+(2):	261.9

UNFUNDED ACCRUED LIABILITY (UAL): Actuarial Accrued Liabilities are the portion of the Present Value of Benefits allocated to past service. Changes in UAL were amortized over the expected remaining working life-time of those impacted using level dollar payments.

AMORTIZATION OF UNFUNDED ACCRUED LIABILITY

	NYC
Increase (Decrease) in UAL:	244.3M
Number of Payments:	15
Amortization Payment:	27.7M

CENSUS DATA: The estimates presented herein are based on preliminary census data collected as of June 30, 2025 and was supplemented with data previously provided by the Police Benevolent Association. The census data for the impacted population is summarized below.

	POLICE
Active Members	
- Number Count:	3,159
- Average Age:	33.2
- Average Current Uniform Service:	5.3
- Average Additional Service:	2.6
- Average Salary:	117,100

For the purposes of this Fiscal Note, and due to a lack of sufficient data, it was assumed that service earned under the eligible titles was immediately preceding such members' POLICE service and would therefore be eligible for credit under the proposed legislation.

IMPACT ON MEMBER BENEFITS AND CONTRIBUTIONS: To receive service credit, eligible POLICE members will need to transfer or pay the applicable member contributions that would have otherwise been required.

Prior service may be used to determine the initial date of POLICE membership for plan or tier eligibility and would be included in the minimum service required for eligibility and payment of retirement benefits.

ASSUMPTIONS AND METHODS: The estimates presented herein have been calculated based on the Revised 2021 Actuarial Assumptions and Methods of the impacted retirement systems. In addition:

* New entrants were assumed to replace exiting members so that total payroll increases by 3% each year for impacted groups. New entrant demographics were developed based on data for recent new hires and actuarial judgement.

* Each year, 10% of new entrants are assumed to purchase an average of 2.0 years of prior service. For the purposes of this Fiscal Note, new entrant costs have been shown assuming that the entirety of the cost would be funded via normal cost.

To determine the impact of the elective nature of the proposed legislation, a subgroup of eligible members was developed based on who is assumed to benefit actuarially by comparing the net present value of future employer costs of each member's benefit before and after the assumed transfer or purchase of eligible non-uniformed service.

RISK AND UNCERTAINTY: The costs presented in this Fiscal Note depend highly on the actuarial assumptions, methods, and models used, demographics of the impacted population, and other factors such as investment, contribution, and other risks. If actual experience deviates from actuarial assumptions, the actual costs could differ from those presented herein. Quantifying these risks is beyond the scope of this Fiscal Note.

This Fiscal Note is intended to measure pension-related impacts and does not include other potential costs (e.g., administrative and Other Postemployment Benefits). This Fiscal Note does not reflect any chapter laws that may have been enacted during the current legislative session.

STATEMENT OF ACTUARIAL OPINION: Marek Tyszkiewicz and Gregory Zelikovsky are members of the Society of Actuaries and the American Academy of Actuaries. We are members of NYCERS, but do not believe it impairs our objectivity, and we meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion contained herein. To the best of our knowledge, the results contained herein have been prepared in accordance with generally accepted actuarial principles and procedures and with the Actuarial Standards of Practice issued by the Actuarial Standards Board.

FISCAL NOTE IDENTIFICATION: This Fiscal Note 2026-17 dated February 20, 2026 was prepared by the Chief Actuary for the New York City Retirement Systems and Pension Funds and is intended for use only during the 2026 Legislative Session.

1 PART PP

2 Section 1. The retirement and social security law is amended by adding
3 a new section 89-z to read as follows:

4 § 89-z. Optional twenty-five year retirement plan for certain public
5 safety dispatchers, public safety telecommunicators, 911 operators,
6 communications officers, police communication technicians, emergency
7 services operators and emergency services dispatchers employed by the
8 state, or a county or municipal emergency services department. a. A
9 member employed by the state, a county or a municipality shall be eligi-
10 ble to retire pursuant to the provisions of this section if such
11 member's employer elects to make the benefits authorized by this section
12 available as provided in subdivision j of this section, and if such
13 member is a public safety dispatcher, public safety telecommunicator,
14 911 operator, communications officers, or any similar title that is
15 responsible for receiving and managing emergency calls, and dispatching
16 appropriate emergency services, including but not limited to, law
17 enforcement, fire, and medical assistance employed by the state, or a
18 county or municipality. Such eligibility shall be an alternative to the
19 eligibility provisions available under any other plan of this article to
20 which such member is subject. The comptroller shall have the authority
21 to include positions within the provisions of this section that compre-
22 hend the same duties and responsibilities, but are named differently.

23 b. Such member shall be entitled to retire upon the completion of
24 twenty-five years of total creditable service by filing an application
25 therefor in the manner provided for in section seventy of this article.

26 c. Upon completion of twenty-five years of such service and upon
27 retirement, each such member shall receive a pension which, together
28 with an annuity which shall be the actuarial equivalent of such member's
29 accumulated contributions at the time of such member's retirement and an
30 additional pension which is the actuarial equivalent of the reserved-
31 for-increased-take-home-pay to which such member may then be entitled
32 shall be sufficient to provide such member with a retirement allowance
33 equal to one-half of such member's final average salary.

34 d. As used in this section, "creditable service" shall include any and
35 all services performed as a public safety dispatcher, public safety
36 telecommunicator, 911 operator, communications officers, police communi-
37 cation technician, emergency services operator, emergency services
38 dispatcher, or any similar title, employed by the state, or a county or
39 municipal emergency services department who is responsible for receiving
40 and managing emergency calls, and dispatching appropriate emergency

1 services, including but not limited to, law enforcement, fire, and
2 medical assistance.

3 e. Credit for service as a member or officer of the state police or as
4 a paid firefighter, police officer or officer of any organized fire
5 department or police force or department of any county, city, village,
6 town, fire district or police district, or as a criminal investigator in
7 the office of a district attorney, shall also be deemed to be creditable
8 service and shall be included in computing years of total service for
9 retirement pursuant to this section.

10 f. The officer of the state, or chief executive officer of a county or
11 municipality that makes the election provided for in subdivision j of
12 this section shall certify to the comptroller, periodically and at such
13 intervals of time as may be required of them and in such fashion as may
14 be prescribed, the identity of members in eligible titles as defined in
15 subdivisions a and d of this section.

16 g. A member contributing on the basis of this section at the time of
17 retirement may retire after the completion of twenty-five years of total
18 creditable service. Application therefor may be filed in a manner simi-
19 lar to that provided in section seventy of this article. Upon completion
20 of twenty-five years of such service and upon retirement, each such
21 member shall receive a pension which, together with an annuity which
22 shall be the actuarial equivalent of such member's accumulated contrib-
23 utions at the time of such member's retirement and an additional pension
24 which is the actuarial equivalent of the reserved-for-increased-take-
25 home-pay to which such member may be entitled shall be sufficient to
26 provide such member with a retirement allowance equal to one-half of
27 such member's final average salary. For service beyond twenty-five
28 years, the benefit shall be increased by one-sixtieth of final average
29 salary for each year of additional service credit provided, however, the
30 total allowance payable pursuant to this section shall not exceed three-
31 fourths of such member's final average salary.

32 h. In computing the twenty-five years of total service of a member
33 pursuant to this section, full credit shall be given and full allowance
34 shall be made for service of such member in time of war after World War
35 I as defined in section two of this chapter, provided such member at the
36 time of such member's entrance into the armed forces was in the service
37 of the county of such member's employer that makes the election provided
38 for in this section.

39 i. Nothing in this section shall be construed to prevent a member, who
40 does not retire pursuant to the provisions of this section, from utiliz-
41 ing service which is creditable service pursuant to the provisions of
42 this section for service credit pursuant to the provisions of any other
43 plan of this article to which such member is subject.

44 j. (1) Each employer that elects pursuant to the provisions of this
45 subdivision shall pay the cost attributable therefor.

46 (2) The benefits of this section shall be available only to those
47 members as defined in subdivisions a and d of this section whose employ-
48 er elects to provide such benefits by adopting a resolution to such
49 effect and filing a certified copy thereof with the comptroller. Such
50 resolution may also contain an election that any past services cost be
51 paid over either a five-year or ten-year period. Such resolution shall
52 be accompanied by the affidavit of the officer of the state making an
53 election pursuant to this subdivision or the chief executive officer of
54 the county or municipality that the state, county or municipality has
55 received an estimate from the retirement system of the cost of the bene-
56 fit provided by this section.

(3) Such resolution shall apply to all members defined in subdivisions a and d of this section, except those already subject to a retirement plan which permits immediate retirement with a benefit upon a specified period of service of twenty-five years or less without regard to age.

k. The provisions of this section shall be controlling notwithstanding any other provisions in this article to the contrary.

§ 2. Subdivision a of section 445 of the retirement and social security law, as amended by section 2 of part TT of chapter 55 of the laws of 2025, is amended to read as follows:

a. No member of a retirement system who is subject to the provisions of this article shall retire without regard to age, exclusive of retirement for disability, unless they are a police officer, an investigator member of the New York city employees' retirement system, firefighter, correction officer, a qualifying member as defined in section eighty-nine-t, as added by chapter six hundred fifty-seven of the laws of nineteen hundred ninety-eight, of this chapter, sanitation worker, a special officer (including persons employed by the city of New York in the title urban park ranger or associate urban park ranger), school safety agent, campus peace officer or a taxi and limousine commission inspector member of the New York city employees' retirement system or the New York city board of education retirement system, a dispatcher member of the New York city employees' retirement system, a police communications member of the New York city employees' retirement system, an EMT member of the New York city employees' retirement system, a deputy sheriff member of the New York city employees' retirement system, a correction officer of the Westchester county correction department as defined in section eighty-nine-e of this chapter or employed in Suffolk county as a peace officer, as defined in section eighty-nine-s, as added by chapter five hundred eighty-eight of the laws of nineteen hundred ninety-seven, of this chapter, employed in Suffolk county as a correction officer, as defined in section eighty-nine-f of this chapter, or employed in Nassau county as a correction officer, uniformed correction division personnel, sheriff, undersheriff or deputy sheriff, as defined in section eighty-nine-g of this chapter, or employed in Nassau county as an ambulance medical technician, an ambulance medical technician/supervisor or a member who performs ambulance medical technician related services, or a police medic, police medic supervisor or a member who performs police medic related services, as defined in section eighty-nine-s, as amended by chapter five hundred seventy-eight of the laws of nineteen hundred ninety-eight, of this chapter, or employed in Nassau county as a peace officer, as defined in section eighty-nine-s, as added by chapter five hundred ninety-five of the laws of nineteen hundred ninety-seven, of this chapter, or employed in Albany county as a sheriff, undersheriff, deputy sheriff, correction officer or identification officer, as defined in section eighty-nine-h of this chapter or is employed in St. Lawrence county as a sheriff, undersheriff, deputy sheriff or correction officer, as defined in section eighty-nine-i of this chapter or is employed in Orleans county as a sheriff, undersheriff, deputy sheriff or correction officer, as defined in section eighty-nine-l of this chapter or is employed in Jefferson county as a sheriff, undersheriff, deputy sheriff or correction officer, as defined in section eighty-nine-j of this chapter or is employed in Onondaga county as a deputy sheriff-jail division competitively appointed or as a correction officer, as defined in section eighty-nine-k of this chapter or is employed in a county which makes an election under subdivision j of section eighty-nine-p of this chapter as a sheriff, undersheriff, deputy sheriff or correction officer

1 as defined in such section eighty-nine-p or is employed in Broome County
2 as a sheriff, undersheriff, deputy sheriff or correction officer, as
3 defined in section eighty-nine-m of this chapter or is a Monroe county
4 deputy sheriff-court security, or deputy sheriff-jailor as defined in
5 section eighty-nine-n, as added by chapter five hundred ninety-seven of
6 the laws of nineteen hundred ninety-one, of this chapter or is employed
7 in Greene county as a sheriff, undersheriff, deputy sheriff or
8 correction officer, as defined in section eighty-nine-o of this chapter
9 or is a traffic officer with the town of Elmira as defined in section
10 eighty-nine-q of this chapter or is employed by Suffolk county as a park
11 police officer, as defined in section eighty-nine-r of this chapter or
12 is a peace officer employed by a county probation department as defined
13 in section eighty-nine-t, as added by chapter six hundred three of the
14 laws of nineteen hundred ninety-eight, of this chapter or is employed in
15 Rockland county as a deputy sheriff-civil as defined in section eighty-
16 nine-v of this chapter as added by chapter four hundred forty-one of the
17 laws of two thousand one, or is employed in Rockland county as a superi-
18 or correction officer as defined in section eighty-nine-v of this chap-
19 ter as added by chapter five hundred fifty-six of the laws of two thou-
20 sand one or is a paramedic employed by the police department in the town
21 of Tonawanda and retires under the provisions of section eighty-nine-v
22 of this chapter, as added by chapter four hundred seventy-two of the
23 laws of two thousand one, or is a county fire marshal, supervising fire
24 marshal, fire marshal, assistant fire marshal, assistant chief fire
25 marshal, chief fire marshal, division supervising fire marshal or fire
26 marshal trainee employed by the county of Nassau as defined in section
27 eighty-nine-w of this chapter or is employed in Monroe county as a depu-
28 ty sheriff-civil as defined in section eighty-nine-x of this chapter,
29 employed as an emergency medical technician, critical care technician,
30 advanced emergency medical technician, paramedic or supervisor of such
31 titles in a participating Suffolk county fire district as defined in
32 section eighty-nine-ss of this chapter, or is a firefighter apprentice,
33 airport firefighter I, airport firefighter II, airport firefighter III,
34 or training and safety officer employed by the division of military and
35 naval affairs as defined in section eighty-nine-y of this chapter, or is
36 employed as a public safety dispatcher, public safety telecommunicator,
37 911 operator, communications officers, police communication technician,
38 emergency services operator, emergency services dispatcher, or any simi-
39 lar title, employed by the state, or a county or municipal emergency
40 services department who is responsible for receiving and managing emer-
41 gency calls, and dispatching appropriate emergency services, including
42 but not limited to, law enforcement, fire, and medical assistance as
43 defined in section eighty-nine-z of this chapter, and is in a plan which
44 permits immediate retirement upon completion of a specified period of
45 service without regard to age. Except as provided in subdivision c of
46 section four hundred forty-five-a of this article, subdivision c of
47 section four hundred forty-five-b of this article, subdivision c of
48 section four hundred forty-five-c of this article, subdivision c of
49 section four hundred forty-five-d of this article, subdivision c of
50 section four hundred forty-five-e of this article, subdivision c of
51 section four hundred forty-five-f of this article and subdivision c of
52 section four hundred forty-five-h of this article, a member in such a
53 plan and such an occupation, other than a police officer or investigator
54 member of the New York city employees' retirement system or a firefight-
55 er, shall not be permitted to retire prior to the completion of twenty-
56 five years of credited service; provided, however, if such a member in

1 such an occupation is in a plan which permits retirement upon completion
2 of twenty years of service regardless of age, they may retire upon
3 completion of twenty years of credited service and prior to the
4 completion of twenty-five years of service, but in such event the bene-
5 fit provided from funds other than those based on such a member's own
6 contributions shall not exceed two per centum of final average salary
7 per each year of credited service.

8 § 3. Section 603 of the retirement and social security law is amended
9 by adding a new subdivision x to read as follows:

10 x. The service retirement benefit specified in section six hundred
11 four, six hundred four-c, as added by chapter ninety-six of the laws of
12 nineteen hundred ninety-five, or six hundred four-d of this article
13 shall be payable to members with twenty-five or more years of creditable
14 service, without regard to age, who are employed as public safety
15 dispatcher, public safety telecommunicator, 911 operator, communications
16 officers, police communication technician, emergency services operator,
17 emergency services dispatcher, or any similar title, employed by the
18 state, or a county or municipal emergency services department who is
19 responsible for receiving and managing emergency calls, and dispatching
20 appropriate emergency services, including but not limited to, law
21 enforcement, fire, and medical assistance as defined in section eighty-
22 nine-z of this chapter if: (i) such members have met the minimum service
23 requirements upon retirement, and (ii) in the case of a member subject
24 to the provisions of article fourteen of this chapter, such member files
25 an election therefor which provides that such member will be subject to
26 the provisions of this article and to none of the provisions of such
27 article fourteen. Such election, which is irrevocable, shall be in writ-
28 ing, duly executed and shall be filed with the comptroller within one
29 year of an election such member's employer makes or within one year
30 after entering the employment with such county, municipality or employer
31 upon which eligibility is based, whichever comes later. For the purposes
32 of this subdivision, the term "creditable service" shall have the mean-
33 ing as defined in sections eighty-nine-z and six hundred one of this
34 chapter.

35 § 4. Section 604 of the retirement and social security law is amended
36 by adding a new subdivision x to read as follows:

37 x. The early service retirement for a member who is employed by the
38 state, or in a county, municipality or employer that makes the election
39 provided for in subdivision j of section eighty-nine-z of this chapter
40 as a public safety dispatcher, public safety telecommunicator, 911 oper-
41 ator, communications officers, police communication technician, emergen-
42 cy services operator, emergency services dispatcher, or any similar
43 title, employed by the state, or a county or municipal emergency
44 services department who is responsible for receiving and managing emer-
45 gency calls, and dispatching appropriate emergency services, including
46 but not limited to, law enforcement, fire, and medical assistance, as
47 defined in section eighty-nine-z of this chapter shall be a pension
48 equal to one-fiftieth of final average salary times years of credited
49 service at the completion of twenty-five years of service, but not
50 exceeding one-half of such member's final average salary. For service
51 beyond twenty-five years, the benefits shall increase by one-sixtieth of
52 final average salary for each year of additional service credit
53 provided, however, that the total allowance payable pursuant to this
54 section shall not exceed three-fourths of such member's final average
55 salary.

1 § 5. All past service costs incurred with implementing the provisions
2 of this act shall be borne by any employer that elects to provide the
3 benefits provided by this act.

4 § 6. This act shall take effect on the first of January next succeed-
5 ing the date on which it shall have become a law.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would allow the state, counties, and municipal emergency services departments to provide members employed in a title that is responsible for receiving and managing emergency calls and dispatching appropriate emergency services, the option to retire with twenty-five years of service credit. The benefit would be one-half of final average salary (FAS) plus one-sixtieth of FAS for each additional year of creditable service, not to exceed three-fourths (75%) of FAS. Additionally, members covered under Article 14 would be permitted one year to make an irrevocable election to switch to the twenty-five-year plan benefit.

We estimate that the annual contribution required of an electing employer will increase by 7% of the salary paid to the affected members. Annual costs will vary as the billing rates and salary of the affected members change.

In addition, there will be a past service cost borne by each electing employer. This cost will vary by employer but is expected to average approximately 30% of the salary paid to the affected members. This past service cost can be borne as a one-time payment or paid over a five-year or ten-year period.

Further, we anticipate additional administrative costs to implement the provisions of this legislation.

The exact number of current members as well as future members who could be affected by this legislation cannot be readily determined. Prior to electing to provide these benefits, an employer would be required to submit a roster of eligible members to the New York State and Local Retirement System. This roster would be used to determine an exact cost to the individual employer electing to provide these benefits.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated February 11, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-40. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actu-

aries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.

1 PART QQ

2 Section 1. Subdivision 17 of section 501 of the retirement and social
3 security law, as separately amended by section 1 of part SS of chapter
4 55 and chapter 692 of the laws of 2025, is amended to read as follows:

5 17. "Normal retirement age" shall be age sixty-two, for general
6 members, the age at which a member completes or would have completed
7 twenty-two years of service, for police/fire members, New York city
8 uniformed correction/sanitation revised plan members and investigator
9 revised plan members[~~7~~]; except that for police/fire members of the New
10 York city police pension fund, normal retirement age shall be the age at
11 which a member completes or would have completed twenty years of
12 service, and the age at which a member completes twenty years of service
13 for police/fire members who are members of the New York city fire
14 department pension fund; and except that for New York city uniformed
15 correction/sanitation revised plan members, normal retirement age shall
16 be the age at which a member completes or would have completed twenty
17 years of service.

18 § 2. Subdivision d of section 503 of the retirement and social securi-
19 ty law, as separately amended by section 2 of part SS of chapter 55 and
20 chapter 692 of the laws of 2025, is amended to read as follows:

21 d. The normal service retirement benefit specified in section five
22 hundred five of this article shall be paid to police/fire members, New
23 York city uniformed correction/sanitation revised plan members and
24 investigator revised plan members without regard to age upon retirement
25 after twenty-two years of service[~~7~~]; except that the normal service
26 retirement benefit specified in section five hundred five of this arti-
27 cle shall be paid to police/fire members of the New York city police
28 pension fund, after twenty years of service; provided, however, that
29 such normal service retirement benefit for police/fire members who are
30 members of the New York city fire department pension fund shall be paid
31 to such members of the New York city fire department pension fund with-
32 out regard to age upon retirement after twenty years of service; and
33 except that the normal service retirement benefit specified in section
34 five hundred five of this article shall be paid to New York city
35 uniformed correction/sanitation revised plan members after twenty years
36 of service. Early service retirement shall be permitted upon retirement
37 after twenty years of credited service or attainment of age sixty-two,
38 provided, however, that New York city police/fire revised plan members,
39 New York city uniformed correction/sanitation revised plan members and
40 investigator revised plan members shall not be eligible to retire for
41 service prior to the attainment of twenty years of credited service.

42 § 3. Section 505 of the retirement and social security law is amended
43 by adding a new subdivision e to read as follows:

44 e. Notwithstanding anything to the contrary in any other law, New York
45 city uniformed correction/sanitation revised plan members shall be
46 eligible for a normal service retirement benefit in lieu of an early
47 service retirement benefit upon completing twenty years of service
48 pursuant to subdivision d of section five hundred three of this article.

49 § 4. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

SUMMARY: This proposed legislation would reduce the Normal Retirement Age for NYCERS Tier 3 members of the Uniformed Sanitation Force and

Uniformed Correction Force 22-Year Plans (i.e., Revised Plan members) to be the age at which a member completes or would have completed twenty years of service.

EXPECTED INCREASE (DECREASE) IN EMPLOYER CONTRIBUTIONS
by Fiscal Year for the first 25 years (\$ in Millions)

Year	NYCERS
2027	6.6
2028	7.0
2029	7.4
2030	7.8
2031	8.2
2032	8.6
2033	8.9
2034	9.3
2035	9.6
2036	9.9
2037	10.1
2038	10.4
2039	10.6
2040	10.8
2041	11.1
2042	8.3
2043	8.6
2044	8.9
2045	9.2
2046	9.4
2047	9.7
2048	10.1
2049	10.4
2050	10.7
2051	11.1

Projected contributions include future new hires that may be impacted. For Fiscal Year 2052 and beyond, the expected increase in normal cost as a level percent of pay for impacted new entrants is approximately 0.32%.

The entire increase in employer contributions will be allocated to New York City.

PRESENT VALUE OF BENEFITS: The Present Value of Benefits is the discounted expected value of benefits paid to current members if all assumptions are met, including future service accrual and pay increases. Future new hires are not included in this present value.

INITIAL INCREASE (DECREASE) IN ACTUARIAL PRESENT VALUES
as of June 30, 2025 (\$ in Millions)

Present Value (PV)	NYCERS
(1) PV of Employer Contributions:	53.4
(2) PV of Employee Contributions:	(3.5)
Total PV of Benefits (1) + (2):	49.9

UNFUNDED ACCRUED LIABILITY (UAL): Actuarial Accrued Liabilities are the portion of the Present Value of Benefits allocated to past service. Changes in UAL were amortized over the expected remaining working lifetime of those impacted using level dollar payments.

AMORTIZATION OF UNFUNDED ACCRUED LIABILITY

	NYCERS
Increase (Decrease) in UAL:	27.6 M
Number of Payments:	15
Amortization Payment:	3.1 M

CENSUS DATA: The estimates presented herein are based on preliminary census data collected as of June 30, 2025. The census data for the impacted population is summarized below.

	NYCERS
Active Members	
- Number Count:	8,609
- Average Age:	40.3
- Average Service:	7.7
- Average Salary:	109,200

IMPACT ON MEMBER BENEFITS: Currently, NYCERS Tier 3 Sanitation and Correction Revised Plan members in 22-Year Plans who retire with at least 20 years of service are eligible to receive an annual benefit that is equal to 42% of Final Average Salary (FAS), increasing to a maximum benefit of 50% of FAS after 22 years of service.

Under the proposed legislation, NYCERS Tier 3 Sanitation and Correction Revised Plan members in 22-Year Plans who retire with at least 20 years of service would be eligible to receive an annual benefit that is equal to 50% of FAS.

ASSUMPTIONS AND METHODS: The estimates presented herein have been calculated based on the Revised 2021 Actuarial Assumptions and Methods of the impacted retirement systems. In addition:

* Retirement rates were adjusted to reflect the earlier payability of the service retirement benefit associated with the proposed legislation.

* New entrants were assumed to replace exiting members so that total payroll increases by 3% each year for impacted groups. New entrant demographics were developed based on data for recent new hires and actuarial judgement.

RISK AND UNCERTAINTY: The costs presented in this Fiscal Note depend highly on the actuarial assumptions, methods, and models used, demographics of the impacted population, and other factors such as investment, contribution, and other risks. If actual experience deviates from actuarial assumptions, the actual costs could differ from those presented herein. Quantifying these risks is beyond the scope of this Fiscal Note.

This Fiscal Note is intended to measure pension-related impacts and does not include other potential costs (e.g., administrative and Other Postemployment Benefits). This Fiscal Note does not reflect any chapter laws that may have been enacted during the current legislative session.

STATEMENT OF ACTUARIAL OPINION: Marek Tyszkiewicz and Gregory Zelikovsky are members of the Society of Actuaries and the American Academy of Actuaries. We are members of NYCERS, but do not believe it impairs our objectivity, and we meet the Qualification Standards of the American

Academy of Actuaries to render the actuarial opinion contained herein. To the best of our knowledge, the results contained herein have been prepared in accordance with generally accepted actuarial principles and procedures and with the Actuarial Standards of Practice issued by the Actuarial Standards Board.

FISCAL NOTE IDENTIFICATION: This Fiscal Note 2026-02 dated January 21, 2026 was prepared by the Chief Actuary for the New York City Retirement Systems and Pension Funds and is intended for use only during the 2026 Legislative Session.

1

PART RR

2 Section 1. Subdivisions 1, 2 and 3 of section 20 of the workers'
3 compensation law are renumbered subdivisions 2, 3 and 4 and a new subdivi-
4 sion 1 is added to read as follows:

5 1. The board shall index a claim for workers' compensation immediately
6 upon the receipt of a medical report in addition to either a claim filed
7 by the injured worker or an employer's report of injury or illness.

8 § 2. Subdivision 2 of section 20 of the workers' compensation law,
9 as amended by chapter 635 of the laws of 1996 and as renumbered by
10 section one of this act, is amended to read as follows:

11 2. ~~[At any time after the expiration of the first seven days of disa-~~
12 ~~bility on the part of an injured employee, or at any time after the~~
13 ~~employee's death, a claim for compensation may be presented to the~~
14 ~~employer or to the chair. The]~~ Within sixty days after a claim for
15 compensation has been indexed, the board shall hold an initial hearing
16 for each claim in which the injured worker asserts lost wages or lost
17 time due to injury and shall have full power and authority to determine
18 all questions in relation to the payment of claims presented to it for
19 compensation under the provisions of this chapter. The chair or board
20 shall thereafter make or cause to be made such investigation as it deems
21 necessary, and upon application of either party or an attorney repres-
22 enting either party, shall order a hearing before a referee to take
23 place within forty-five calendar days of the application from either
24 party, and within thirty days after a claim for compensation is submit-
25 ted under this section, or such hearing closed, shall make or deny an
26 award, determining such claim for compensation, and file the same in the
27 office of the chair. No application for a hearing made by a party or an
28 attorney pursuant to this section shall be subject to limitations,
29 prerequisites, or penalties imposed by the board. Immediately after such
30 filing the chair shall send to the parties a copy of the decision. Upon
31 a hearing pursuant to this section either party may present evidence and
32 be represented by counsel. The decision of the board shall be final as
33 to all questions of fact, and, except as provided in section twenty-
34 three of this article, as to all questions of law. Except as provided
35 in section twenty-seven of this article, all awards of the board shall
36 draw simple interest from thirty days after the making thereof at the
37 rate provided in section five thousand four of the civil practice law
38 and rules. Whenever a hearing or proceeding for the determination of a
39 claim for compensation is begun before a referee, pursuant to the
40 provisions of this chapter, such hearing or proceeding or any adjourned
41 hearing thereon shall continue before the same referee until a final
42 determination awarding or denying compensation, except in the absence,
43 inability or disqualification to act of such referee, or for other good
44 cause, in which event such hearing or proceeding may be continued before
45 another referee by order of the chair or board.

§ 3. Paragraph (c) of subdivision 3 of section 25 of the workers' compensation law, as amended by chapter 61 of the laws of 1986, is amended to read as follows:

(c) The board shall keep an accurate record of all hearings held. All decisions shall be issued to the injured worker in their native language. Whenever a hearing must be continued or adjourned because the carrier or employer has engaged in dilatory tactics or exhibited unjustified lack of preparedness, the board shall impose a penalty of twenty-five dollars to be paid to the fund created by subdivision two of section one hundred fifty-one of this chapter and shall in addition make an award of seventy-five dollars payable to the injured worker or ~~his or her dependants~~ their dependents. Dilatory tactics may include but shall not be limited to: failing to subpoena medical witnesses or to secure an order to show cause as directed by the referee, failing to bring proper files, failing to appear, failing to produce witnesses or documents after they have been requested by the referee or examiner or as directed by the hearing notice, unnecessarily protracting the production of evidence, or engaging in a pattern of delay which unduly delays resolution, except that no penalty shall be imposed nor award made under this subdivision if the carrier or employer produces evidence sufficient to excuse its conduct to the satisfaction of the referee.

§ 4. This act shall take effect immediately.

PART SS

Section 1. Paragraph 3 of subdivision b of section 604-e of the retirement and social security law, as added by chapter 577 of the laws of 2000, is amended to read as follows:

3. Each EMT member, other than an EMT member subject to paragraph one or two of this subdivision, who becomes subject to the provisions of this article on or after the starting date of the twenty-five year retirement program shall become a participant in the twenty-five year retirement program on the date ~~he or she~~ such person becomes such an EMT member. Provided, however, a person subject to this paragraph, and who has exceeded age twenty-five upon employment as an EMT member, shall be exempt from participation in the improved twenty-five year retirement program if such person elects not to participate by filing a duly executed form with the retirement system within one hundred eighty days of becoming an EMT member. Provided further, however, that a person who has opted to be exempt pursuant to this paragraph may become a participant in the twenty-five year retirement program if such person files a duly executed election form with the retirement system within one hundred eighty days after the effective date of the chapter of the laws of two thousand twenty-six that amended this paragraph, provided such person is an EMT member on the date such election is filed, and such person shall pay all additional member contributions required pursuant to subdivision e of this section from the date that such person became an EMT member to the date such person elects to become a participant in the program together with interest computed in accordance with paragraph four of subdivision e of this section.

§ 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

SUMMARY: This proposed legislation would allow eligible Tier 4 and Tier 6 EMT Members who previously opted out of the EMT 25-Year Plan, a second opportunity to join such Plan by filing an application with the

New York City Employee's Retirement System (NYCERS) within 180 days of the effective date.

EXPECTED INCREASE (DECREASE) IN EMPLOYER CONTRIBUTIONS
by Fiscal Year for the first 25 years (\$ in Thousands)

Year	NYCERS
2027	121
2028	106
2029	101
2030	(5)
2031	(8)
2032	(10)
2033	(12)
2034	(14)
2035	(16)
2036	(17)
2037	(18)
2038	(19)
2039	(19)
2040	(20)
2041	(20)
2042	(19)
2043	(18)
2044	(17)
2045	(15)
2046	(13)
2047	(11)
2048	(10)
2049	(9)
2050	(7)
2051	(6)

Employer Contribution impact beyond Fiscal Year 2051 is not shown.

The entire increase (decrease) in employer contributions will be allocated to New York City.

PRESENT VALUE OF BENEFITS: The Present Value of Benefits is the discounted expected value of benefits paid to current members if all assumptions are met, including future service accrual and pay increases. Future new hires are not included in this present value.

INITIAL INCREASE (DECREASE) IN ACTUARIAL PRESENT VALUES
as of June 30, 2025 (\$ in Thousands)

Present Value (PV)	NYCERS
(1) PV of Employer Contributions:	157.3
(2) PV of Employee Contributions:	<u>171.7</u>
Total PV of Benefits (1) + (2):	328.9

UNFUNDED ACCRUED LIABILITY (UAL): Actuarial Accrued Liabilities are the portion of the Present Value of Benefits allocated to past service. Changes in UAL were amortized over the expected remaining working lifetime of those impacted using level dollar payments.

AMORTIZATION OF UNFUNDED ACCRUED LIABILITY

	NYCERS
Increase (Decrease) in UAL:	257.9 K
Number of Payments:	3
Amortization Payment:	101.7 K

CENSUS DATA: The estimates presented herein are based on preliminary census data collected as of June 30, 2025. The census data for the impacted population is summarized below.

	NYCERS
Active Members	
- Number Count:	5
- Average Age:	46.8
- Average Service:	25.2
- Average Salary:	97,600

IMPACT ON MEMBER BENEFITS AND CONTRIBUTIONS: This proposed legislation would provide current EMT members, who previously opted out of the EMT 25-Year Plans, a 180-day opportunity to join such plan.

Members of the EMT 25-Year Plans would be required to pay Basic Member Contributions (BMC), which vary by tier, plus Additional Member Contributions (AMC) equal to 6.25% of compensation for all service as a Plan participant until attaining 30 years of Allowable Service.

ASSUMPTIONS AND METHODS: The estimates presented herein have been calculated based on the Revised 2021 Actuarial Assumptions and Methods of the impacted retirement systems. In addition:

* Election assumptions and the rates of retirement for the EMT 25-Year Plans were assigned based on the bill's provisions including the eligibility requirements for retirement under the EMT 25-Year Plans.

* For purposes of this fiscal note, existing AMC balances, including physically taxing AMC, are assumed to offset the AMC payment required to join the EMT 25-Year Plan.

To determine the impact of the elective nature of the proposed legislation, a subgroup of EMT members was developed based on who is assumed to benefit actuarially by comparing the net present value of future employer costs of each member's benefit under their current plan and under the applicable EMT 25-Year Plan.

RISK AND UNCERTAINTY: The costs presented in this Fiscal Note depend highly on the actuarial assumptions, methods, and models used, demographics of the impacted population, and other factors such as investment, contribution, and other risks. If actual experience deviates from actuarial assumptions, the actual costs could differ from those presented herein. Quantifying these risks is beyond the scope of this Fiscal Note.

This Fiscal Note is intended to measure pension-related impacts and does not include other potential costs (e.g., administrative and Other Postemployment Benefits). This Fiscal Note does not reflect any chapter laws that may have been enacted during the current legislative session.

STATEMENT OF ACTUARIAL OPINION: Marek Tyszkiewicz and Gregory Zelikovsky are members of the Society of Actuaries and the American Academy of Actuaries. We are members of NYCERS, but do not believe it impairs our objectivity, and we meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion contained herein. To the best of our knowledge, the results contained herein have been prepared in accordance with generally accepted actuarial principles and

procedures and with the Actuarial Standards of Practice issued by the Actuarial Standards Board.

FISCAL NOTE IDENTIFICATION: This Fiscal Note 2026-29 dated March 6, 2026 was prepared by the Chief Actuary for the New York City Retirement Systems and Pension Funds and is intended for use only during the 2026 Legislative Session.

1 PART TT

2 Section 1. Section 212 of the retirement and social security law is
3 amended by adding a new subdivision 2-a to read as follows:

4 2-a. Notwithstanding the provisions of subdivision two of this
5 section, the earnings limitation for retired persons in a position of
6 public service shall be increased to fifty thousand dollars from the
7 year two thousand twenty-six and thereafter.

8 § 2. This act shall take effect immediately.

9 PART UU

10 Section 1. Section 161 of the civil service law is amended by adding a
11 new subdivision 4 to read as follows:

12 4. There shall be no reduction of benefits for skilled nursing care
13 provided to retired employees or covered dependents under such health
14 benefit plan at the time such person becomes eligible for medicare
15 coverage; provided, however, retiree benefits under such health benefit
16 plan may be coordinated with and treated as secondary insurance to medi-
17 care.

18 § 2. This act shall take effect immediately.

19 PART VV

20 Section 1. Paragraph q of subdivision 10 of section 54 of the state
21 finance law, as added by section 3 of part K of chapter 57 of the laws
22 of 2011, clause 2 of subparagraph (i) as amended by chapter 30 of the
23 laws of 2013, subparagraphs (iii) and (vii) as amended by section 1 and
24 subparagraphs (viii) and (ix) as added by section 1-a of part K of chap-
25 ter 55 of the laws of 2013, is amended to read as follows:

26 q. Local government citizens re-organization empowerment grant
27 program. (i) ~~[(1)]~~ For the purposes of this paragraph~~[7]~~:

28 (1) "local government entity" or "entity" shall mean a town, village,
29 district, special improvement district or other improvement district,
30 including, but not limited to, special districts created pursuant to
31 articles eleven, twelve, twelve-A or thirteen of the town law, library
32 districts, and other districts created by law; provided, however, that a
33 local government entity shall not include school districts, city
34 districts or special purpose districts created by counties under county
35 law.

36 (2) ~~[For the purposes of this paragraph,~~ "local government re-organi-
37 zation" shall mean the consolidation or dissolution of a local govern-
38 ment entity in accordance with article seventeen-A of the general munic-
39 ipal law or the establishment of a new coterminous town-village that
40 operates principally as a town or as a village but not as both a town
41 and a village.

42 (3) "school district scheduled for reorganization" shall mean a school
43 district scheduled to reorganize pursuant to section three hundred four-
44 teen of the education law which has complied with the requirements of

1 paragraph a of subdivision fourteen of section thirty-six hundred two of
2 the education law.

3 (4) "school district reorganization" shall mean the centralization,
4 consolidation, or annexation of two or more school districts pursuant to
5 section fifteen hundred eleven through fifteen hundred thirteen, fifteen
6 hundred twenty-four, fifteen hundred twenty-six, seventeen hundred five,
7 or eighteen hundred one through eighteen hundred three of the education
8 law.

9 (ii) Within the annual amounts appropriated therefor, the secretary of
10 state may award grants to local government entities to cover costs asso-
11 ciated with studies, plans, and implementation efforts related to local
12 government re-organization activities or to school districts scheduled
13 for reorganization to cover costs of studies and plans necessary for
14 school district reorganization that are not otherwise aidable pursuant
15 to subdivision fourteen of section thirty-six hundred two of the educa-
16 tion law.

17 (iii) Study projects shall include an examination of the potential
18 financial savings, management improvements, and service delivery changes
19 resulting from a local government re-organization or school district
20 reorganization, legal issues and impediments surrounding the re-organi-
21 zation, recommended steps to complete the re-organization, as well as
22 options for cost-savings if the re-organization is not completed.

23 (iv) Local government citizens re-organization empowerment grants
24 awarded to local government entities may be used to cover costs includ-
25 ing, but not limited to, legal and consultant services, capital improve-
26 ments, transitional personnel costs and other necessary expenses related
27 to re-organization analysis, planning and implementation. Grants awarded
28 to local government entities may be used for capital improvements, tran-
29 sitional personnel costs or joint equipment purchases only where such
30 expenses are integral to implementation of the re-organization. No part
31 of the grant shall be used by ~~the~~ any applicant for recurring expenses
32 such as salaries, except that the salaries of certain transitional
33 personnel essential for the implementation of the re-organization shall
34 be eligible for a period not to exceed three years.

35 (v) Where the electors of a local government entity have filed a peti-
36 tion pursuant to article seventeen-A of the general municipal law that
37 will require a referendum on the question of consolidation or dissol-
38 ution of the local government entity, such local government entity will
39 be eligible for an expedited grant to cover costs associated with the
40 development and dissemination to the electors of information related to
41 the re-organization question before such referendum. The secretary of
42 state shall develop processes that will permit expedited financial and
43 technical assistance to such local government entities, including but
44 not limited to pre-qualified consultants, direct technical assistance
45 from program staff and pre-established work plans.

46 (vi) The maximum cumulative grant award for a local government re-or-
47 ganization or a school district scheduled for reorganization shall not
48 exceed one hundred thousand dollars. A local government citizens re-or-
49 ganization empowerment grant for a re-organization study shall in no
50 event exceed fifty thousand dollars per application, of which up to
51 twenty-five thousand dollars may be awarded on an expedited basis. A
52 local government citizens re-organization empowerment grant for the
53 planning or implementation of a re-organization shall not exceed fifty
54 thousand dollars. In no event shall the cumulative grant awards for a
55 local government re-organization exceed one hundred thousand dollars.

(vii) Matching funds equal to at least fifty percent of the total cost of activities under the grant work plan approved by the department of state shall be required for a local government re-organization grant for a re-organization study, except for such grants that are awarded to a local government entity eligible for an expedited grant pursuant to subparagraph (v) of this paragraph. Upon implementation of the local government re-organization or school district reorganization, the local matching funds required by such grant for a re-organization study shall be refunded except for ten percent of the total cost of activities under the grant work plan approved by the department of state. Matching funds equal to at least ten percent of the total cost of activities under the grant work plan approved by the department of state shall be required for a local government re-organization grant for a re-organization study awarded to a local government entity eligible for an expedited grant pursuant to subparagraph (v) of this paragraph and for a local government re-organization grant for the implementation of a re-organization.

(viii) Within one week of the receipt of an application, the department of state shall review the application to ensure the applicant has filed the correct application, and to determine if any required sections of the application contain no information. Within one business day of determining an applicant has filed an incorrect application, or determining an application contains no information in a section required to contain information, the department shall so notify the applicant. Applicants shall be permitted to amend an application found to be missing information, and such application shall be reconsidered for approval if it is amended by the application deadline. If an applicant has submitted an incorrect application, the applicant may submit the correct application to the appropriate program by the deadline for such program for consideration. Under no circumstances shall this subparagraph be deemed to require the extension of any application deadline established by the department, nor shall it obligate the department to conduct a substantive review of the contents of any application outside of the procedures established by the department for the purposes of maintaining the competitive integrity of the grant program.

(ix) Written notice shall be provided to an applicant of a decision regarding the grant or denial of an award under this paragraph, within thirty days after such decision.

§ 2. This act shall take effect immediately.

PART WW

Section 1. Subdivision b of section 440 of the retirement and social security law, as amended by chapter 682 of the laws of 2003, is amended to read as follows:

b. The provisions of this article shall not be construed to extend coverage to an employee not otherwise eligible for membership in a retirement system or to provide an increase in benefits to a member of a retirement system other than as provided by section four hundred forty-five-d, or section four hundred forty-five-f, ~~[or]~~ section four hundred forty-five-h, section four hundred forty-five-j, or section four hundred forty-eight of this article.

§ 2. Subdivision a of section 444 of the retirement and social security law, as amended by section 141 of subpart B of part C of chapter 62 of the laws of 2011, is amended to read as follows:

a. Except as provided in subdivision c of section four hundred forty-five-a of this article, subdivision c of section four hundred forty-

1 five-b of this article, subdivision c of section four hundred forty-
2 five-c of this article, subdivision c of section four hundred
3 forty-five-d of this article as added by chapter four hundred seventy-
4 two of the laws of nineteen hundred ninety-five, subdivision c of
5 section four hundred forty-five-e of this article, subdivision c of
6 section four hundred forty-five-f of this article and subdivision c of
7 section four hundred forty-five-h of this article, and subdivision c of
8 section four hundred forty-five-j of this article, the maximum retire-
9 ment benefit computed without optional modification provided to a member
10 of a retirement system who is subject to the provisions of this article,
11 other than a police officer, a firefighter, an investigator member of
12 the New York city employees' retirement system, a member of the
13 uniformed personnel in institutions under the jurisdiction of the New
14 York city department of correction who receives a performance of duty
15 disability retirement allowance, a member of the uniformed personnel in
16 institutions under the jurisdiction of the department of corrections and
17 community supervision or a security hospital treatment assistant, as
18 those terms are defined in subdivision i of section eighty-nine of this
19 chapter, who receives a performance of duty disability retirement allow-
20 ance, a member of a teachers' retirement system, New York city employ-
21 ees' retirement system, New York city board of education retirement
22 system or a member of the New York state and local employees' retirement
23 system or a member of the New York city employees' retirement system or
24 New York city board of education retirement system employed as a special
25 officer, parking control specialist, school safety agent, campus peace
26 officer, taxi and limousine inspector ~~[or]~~, a police communications
27 member, or a member of the water supply police and who receives a
28 performance of duty disability pension, from funds other than those
29 based on a member's own or increased-take-home-pay contributions, shall,
30 before any reduction for early retirement, be sixty per centum of the
31 first fifteen thousand three hundred dollars of final average salary,
32 and fifty per centum of final average salary in excess of fifteen thou-
33 sand three hundred dollars, and forty per centum of final average salary
34 in excess of twenty-seven thousand three hundred dollars, provided,
35 however, that the benefits provided by subdivision c of section four
36 hundred forty-five-d of this article as added by chapter four hundred
37 seventy-two of the laws of nineteen hundred ninety-five based upon the
38 additional member contributions required by subdivision d of such
39 section four hundred forty-five-d shall be subject to the maximum
40 retirement benefit computations set forth in this section. The maximum
41 retirement benefit computed without optional modification payable to a
42 police officer, an investigator member of the New York city employees'
43 retirement system or a firefighter shall equal that payable upon
44 completion of thirty years of service, except that the maximum service
45 retirement benefit computed without optional modification shall equal
46 that payable upon completion of thirty-two years of service.

47 § 3. Subdivision a of section 445 of the retirement and social securi-
48 ty law, as amended by section 2 of part TT of chapter 55 of the laws of
49 2025, is amended to read as follows:

50 a. No member of a retirement system who is subject to the provisions
51 of this article shall retire without regard to age, exclusive of retire-
52 ment for disability, unless they are a police officer, an investigator
53 member of the New York city employees' retirement system, firefighter,
54 correction officer, a qualifying member as defined in section eighty-
55 nine-t of this chapter, as added by chapter six hundred fifty-seven of
56 the laws of nineteen hundred ninety-eight, ~~[of this chapter]~~ sanitation

1 worker, a special officer (including persons employed by the city of New
2 York in the title urban park ranger or associate urban park ranger),
3 school safety agent, campus peace officer or a taxi and limousine
4 commission inspector member of the New York city employees' retirement
5 system or the New York city board of education retirement system, a
6 dispatcher member of the New York city employees' retirement system, a
7 police communications member of the New York city employees' retirement
8 system, a member of the water supply police in a position referred to in
9 paragraph (o) of subdivision thirty-four of section 1.20 of the criminal
10 procedure law, an EMT member of the New York city employees' retirement
11 system, a deputy sheriff member of the New York city employees' retire-
12 ment system, a correction officer of the Westchester county correction
13 department as defined in section eighty-nine-e of this chapter or
14 employed in Suffolk county as a peace officer, as defined in section
15 eighty-nine-s of this chapter, as added by chapter five hundred eighty-
16 eight of the laws of nineteen hundred ninety-seven, [~~of this chapter,~~]
17 employed in Suffolk county as a correction officer, as defined in
18 section eighty-nine-f of this chapter, or employed in Nassau county as a
19 correction officer, uniformed correction division personnel, sheriff,
20 undersheriff or deputy sheriff, as defined in section eighty-nine-g of
21 this chapter, or employed in Nassau county as an ambulance medical tech-
22 nician, an ambulance medical technician/supervisor or a member who
23 performs ambulance medical technician related services, or a police
24 medic, police medic supervisor or a member who performs police medic
25 related services, as defined in section eighty-nine-s of this chapter,
26 as amended by chapter five hundred seventy-eight of the laws of nineteen
27 hundred ninety-eight, [~~of this chapter,~~] or employed in Nassau county as
28 a peace officer, as defined in section eighty-nine-s of this chapter, as
29 added by chapter five hundred ninety-five of the laws of nineteen
30 hundred ninety-seven, [~~of this chapter,~~] or employed in Albany county as
31 a sheriff, undersheriff, deputy sheriff, correction officer or identifi-
32 cation officer, as defined in section eighty-nine-h of this chapter or
33 is employed in St. Lawrence county as a sheriff, undersheriff, deputy
34 sheriff or correction officer, as defined in section eighty-nine-i of
35 this chapter or is employed in Orleans county as a sheriff, undersher-
36 iff, deputy sheriff or correction officer, as defined in section eight-
37 y-nine-l of this chapter or is employed in Jefferson county as a sher-
38 iff, undersheriff, deputy sheriff or correction officer, as defined in
39 section eighty-nine-j of this chapter or is employed in Onondaga county
40 as a deputy sheriff-jail division competitively appointed or as a
41 correction officer, as defined in section eighty-nine-k of this chapter
42 or is employed in a county which makes an election under subdivision j
43 of section eighty-nine-p of this chapter as a sheriff, undersheriff,
44 deputy sheriff or correction officer as defined in such section eighty-
45 nine-p or is employed in Broome County as a sheriff, undersheriff, depu-
46 ty sheriff or correction officer, as defined in section eighty-nine-m of
47 this chapter or is a Monroe county deputy sheriff-court security, or
48 deputy sheriff-jailor as defined in section eighty-nine-n of this chap-
49 ter, as added by chapter five hundred ninety-seven of the laws of nine-
50 teen hundred ninety-one, [~~of this chapter~~] or is employed in Greene
51 county as a sheriff, undersheriff, deputy sheriff or correction officer,
52 as defined in section eighty-nine-o of this chapter or is a traffic
53 officer with the town of Elmira as defined in section eighty-nine-q of
54 this chapter or is employed by Suffolk county as a park police officer,
55 as defined in section eighty-nine-r of this chapter or is a peace offi-
56 cer employed by a county probation department as defined in section

1 eighty-nine-t of this chapter, as added by chapter six hundred three of
2 the laws of nineteen hundred ninety-eight, [~~of this chapter~~] or is
3 employed in Rockland county as a deputy sheriff-civil as defined in
4 section eighty-nine-v of this chapter as added by chapter four hundred
5 forty-one of the laws of two thousand one, or is employed in Rockland
6 county as a superior correction officer as defined in section eighty-
7 nine-v of this chapter as added by chapter five hundred fifty-six of the
8 laws of two thousand one or is a paramedic employed by the police
9 department in the town of Tonawanda and retires under the provisions of
10 section eighty-nine-v of this chapter, as added by chapter four hundred
11 seventy-two of the laws of two thousand one, or is a county fire
12 marshal, supervising fire marshal, fire marshal, assistant fire marshal,
13 assistant chief fire marshal, chief fire marshal, division supervising
14 fire marshal or fire marshal trainee employed by the county of Nassau as
15 defined in section eighty-nine-w of this chapter or is employed in
16 Monroe county as a deputy sheriff-civil as defined in section eighty-
17 nine-x of this chapter, employed as an emergency medical technician,
18 critical care technician, advanced emergency medical technician,
19 paramedic or supervisor of such titles in a participating Suffolk county
20 fire district as defined in section eighty-nine-ss of this chapter, or
21 is a firefighter apprentice, airport firefighter I, airport firefighter
22 II, airport firefighter III, or training and safety officer employed by
23 the division of military and naval affairs as defined in section eight-
24 y-nine-y of this chapter and is in a plan which permits immediate
25 retirement upon completion of a specified period of service without
26 regard to age. Except as provided in subdivision c of section four
27 hundred forty-five-a of this article, subdivision c of section four
28 hundred forty-five-b of this article, subdivision c of section four
29 hundred forty-five-c of this article, subdivision c of section four
30 hundred forty-five-d of this article, subdivision c of section four
31 hundred forty-five-e of this article, subdivision c of section four
32 hundred forty-five-f of this article [~~and~~], subdivision c of section
33 four hundred forty-five-h of this article, and subdivision c of section
34 four hundred forty-five-j of this article, a member in such a plan and
35 such an occupation, other than a police officer or investigator member
36 of the New York city employees' retirement system or a firefighter,
37 shall not be permitted to retire prior to the completion of twenty-five
38 years of credited service; provided, however, if such a member in such
39 an occupation is in a plan which permits retirement upon completion of
40 twenty years of service regardless of age, they may retire upon
41 completion of twenty years of credited service and prior to the
42 completion of twenty-five years of service, but in such event the bene-
43 fit provided from funds other than those based on such a member's own
44 contributions shall not exceed two per centum of final average salary
45 per each year of credited service.

46 § 4. The retirement and social security law is amended by adding a new
47 section 445-j to read as follows:

48 § 445-j. Optional twenty-five year improved benefit retirement program
49 for water supply police members. a. Definitions. The following words and
50 phrases as used in this section shall have the following meanings unless
51 a different meaning is plainly required by the context.

52 1. "Retirement system" shall mean the New York city employees' retire-
53 ment system.

54 2. "Water supply police member" shall mean a member of the retirement
55 system who is subject to the provisions of this article, who is employed

1 by the city of New York in a position referred to by paragraph (o) of
2 subdivision thirty-four of section 1.20 of the criminal procedure law.

3 3. "Twenty-five year improved benefit retirement program" shall mean
4 all the terms and conditions of this section.

5 4. "Starting date of the twenty-five year improved benefit retirement
6 program" shall mean the effective date of this section, as such date is
7 certified pursuant to section forty-one of the legislative law.

8 5. "Participant in the twenty-five year improved benefit retirement
9 program" shall mean any water supply police member who, under the appli-
10 cable provisions of subdivision b of this section, is entitled to the
11 rights, benefits and privileges and is subject to the obligations of the
12 twenty-five year improved benefit retirement program, as applicable to
13 such member.

14 6. "Administrative code" shall mean the administrative code of the
15 city of New York.

16 7. "Accumulated deductions" shall mean accumulated deductions as
17 defined in subdivision eleven of section 13-101 of the administrative
18 code of the city of New York.

19 8. "Optional retirement provisions" shall mean the right to retire and
20 receive a retirement allowance under this section upon the completion of
21 twenty-five years of credited service.

22 b. Election of twenty-five year improved benefit retirement program.
23 1. Subject to the provisions of paragraphs five and six of this subdivi-
24 sion, any person who is a water supply police member on the starting
25 date of the twenty-five year improved benefit retirement program may
26 elect to become a participant in the twenty-five year improved benefit
27 retirement program by filing, within one hundred eighty days after such
28 starting date, a duly executed application for such participation with
29 the retirement system, provided such person is such a water supply
30 police member on the date such application is filed.

31 2. Subject to the provisions of paragraphs five and six of this subdivi-
32 sion, any person who becomes a water supply police member after the
33 starting date of the twenty-five year improved benefit retirement
34 program may elect to become a participant in the twenty-five year
35 improved benefit retirement program by filing, within one hundred eighty
36 days after becoming such a water supply police member, a duly executed
37 application for such participation with the retirement system, provided
38 such person is such a water supply police member on the date such appli-
39 cation is filed.

40 3. Any election to be a participant in the twenty-five year improved
41 benefit retirement program shall be irrevocable.

42 4. Where any participant in the twenty-five year improved benefit
43 retirement program shall cease to hold a position as a water supply
44 police member, such person shall cease to be such a participant and,
45 during any period in which such a person does not hold such a water
46 supply police position, such person shall not be a participant in the
47 twenty-five year improved benefit retirement program and shall not be
48 eligible for the benefits of subdivision c of this section.

49 5. Where any participant in the twenty-five year improved benefit
50 retirement program terminates service as a water supply police member
51 and returns to such service as a water supply police member at a later
52 date, such person shall again become such a participant on that date.

53 6. Notwithstanding any other provision of law to the contrary, any
54 person who is eligible to become a participant in the twenty-five year
55 improved benefit retirement program pursuant to paragraph one or two of
56 this subdivision for the full one hundred eighty day period provided for

1 in such applicable paragraph and who fails to timely file a duly
2 executed application for such participation with the retirement system,
3 shall not thereafter be eligible to become a participant in such
4 program.

5 c. Service retirement benefits. Notwithstanding any other provision of
6 law to the contrary, where a participant in the twenty-five year
7 improved benefit retirement program, who is otherwise qualified for a
8 retirement allowance pursuant to the optional retirement provisions set
9 forth in subdivision a of this section, has made and/or paid, while such
10 person is a water supply police member, all additional member contrib-
11 utions and interest (if any) required by subdivision d of this section,
12 then:

13 1. that participant, while such person remains a participant, shall
14 not be subject to the provisions of subdivision a of section four
15 hundred forty-five of this article; and

16 2. if that participant, while such a participant, retires from
17 service, such person shall not be subject to the provisions of section
18 four hundred forty-four of this article; and

19 3. such person's retirement allowance shall be an amount, on account
20 of the required minimum period of service, equal to the sum of (i) an
21 annuity which shall be the actuarial equivalent of the accumulated
22 deductions from such person's pay during such period, (ii) a pension for
23 increased-take-home-pay which shall be the actuarial equivalent of the
24 reserve for increased-take-home-pay to which such person may be entitled
25 for such period, and (iii) a pension which, when added to such annuity
26 and such pension for increased-take-home-pay, produces a retirement
27 allowance equal to fifty percent of such person's final average salary,
28 plus an amount for each additional year of allowable service, or frac-
29 tion thereof, beyond such required minimum period of service equal to
30 two percent of such person's final average salary; and

31 4. the maximum retirement benefit computed without optional modifica-
32 tion payable to that participant upon such person's retirement for
33 service as such a participant shall equal that payable upon completion
34 of thirty years of service.

35 d. Additional member contributions. 1. In addition to the member
36 contributions required pursuant to section 13-125 or section 13-162 of
37 the administrative code of the city of New York, each participant in the
38 twenty-five year improved benefit retirement program shall contribute,
39 subject to the applicable provisions of section 13-125.2 of the adminis-
40 trative code of the city of New York, an additional six percent of such
41 person's compensation earned from (i) all credited service, as a partic-
42 ipant in the twenty-five year improved benefit retirement program,
43 rendered on and after the starting date of the improved benefit retire-
44 ment program, and (ii) all credited service after such person ceases to
45 be a participant, but before such person again becomes a participant
46 pursuant to paragraph five of subdivision b of this section. A partic-
47 ipant in the twenty-five year improved benefit retirement program shall
48 contribute additional member contributions until the later of (i) the
49 date as of which such person is eligible to retire with twenty-five
50 years of credited service under such retirement program, or (ii) the
51 first anniversary of the starting date of the twenty-five year improved
52 benefit retirement program. The additional contributions required by
53 this paragraph shall be in lieu of additional member contributions
54 required by subdivision d of section four hundred forty-five-d of this
55 article, as added by chapter ninety-six of the laws of nineteen hundred
56 ninety-five, and no member paying additional contributions pursuant to

1 this section shall be required to pay additional contributions pursuant
2 to such subdivision d of section four hundred forty-five-d of this arti-
3 cle.

4 2. Commencing with the first full payroll period after each person
5 becomes a participant in the twenty-five year improved benefit retire-
6 ment program, additional member contributions at the rate specified in
7 paragraph one of this subdivision shall be deducted, subject to the
8 applicable provisions of section 13-125.2 of the administrative code of
9 the city of New York, from the compensation of such participant on each
10 and every payroll of such participant for each and every payroll period
11 for which such person is such a participant.

12 3. (i) Subject to the provisions of subparagraph (ii) of this para-
13 graph, where any additional member contributions required by paragraph
14 one of this subdivision are not paid by deductions from a participant's
15 compensation pursuant to paragraph two of this subdivision:

16 (A) that participant shall be charged with a contribution deficiency
17 consisting of such unpaid amounts, together with interest thereon,
18 compounded annually; and

19 (B) such interest on each amount of undeducted contributions shall
20 accrue from the end of the payroll period for which such amount would
21 have been deducted from compensation if such person had been a partic-
22 ipant at the beginning of that payroll period and such deductions had
23 been required for such payroll period until such amount is paid to the
24 retirement system; and

25 (C) (1) interest on each such amount included in such participant's
26 contribution deficiency pursuant to this subparagraph shall be calcu-
27 lated as if such additional member contributions never had been paid by
28 such participant, and such interest shall accrue from the end of the
29 payroll period to which an amount of such additional member contrib-
30 utions is attributable, compounded annually, until such amount is paid
31 to the retirement system.

32 (2) the rate of interest to be applied to each such amount during the
33 period for which interest accrues on that amount shall be equal to the
34 rate or rates of interest required by law to be used during that same
35 period to credit interest on the accumulated deductions of retirement
36 system members.

37 (ii) Except as provided in subparagraph (iii) of this paragraph, no
38 interest shall be due on any unpaid additional contributions which are
39 not attributable to the period prior to the first full payroll period
40 referred to in paragraph two of this subdivision.

41 (iii) Should any person who, pursuant to paragraph seven of this
42 subdivision, has withdrawn any additional member contributions (and any
43 interest paid thereon) again become a participant in the twenty-five
44 year improved benefit retirement program pursuant to paragraph five of
45 subdivision b of this section, an appropriate amount shall be included
46 in such participant's contribution deficiency (including interest there-
47 on as calculated pursuant to subclause two of clause (C) of subparagraph
48 (i) of this paragraph) for any credited service with respect to which
49 such person received a refund of additional member contributions
50 (including any amount of an unpaid loan balance deemed to have been
51 returned to such person pursuant to paragraph seven of this subdivi-
52 sion), as if such additional member contributions never had been paid.

53 4. The board of trustees of the retirement system may, consistent with
54 the provisions of this subdivision, promulgate regulations for the
55 payment of the additional member contributions required by this subdivi-
56 sion, and any interest thereon, by a participant in the twenty-five year

improved benefit retirement program (including the deduction of such contributions, and any interest thereon, from such person's compensation).

5. Where a participant who is otherwise eligible for service retirement pursuant to subdivision c of this section did not, prior to the effective date of retirement, pay the entire amount of a contribution deficiency chargeable to such person pursuant to paragraph three of this subdivision, or repay the entire amount of a loan of such person's additional member contributions pursuant to paragraph eight of this subdivision (including accrued interest on such loan), that participant, nevertheless, shall be eligible to retire pursuant to subdivision c of this section, provided, however, that where such participant is not entitled to a refund of additional member contributions pursuant to paragraph seven of this subdivision, such participant's service retirement benefit calculated pursuant to the applicable provisions of subdivision c of this section shall be reduced by a life annuity (calculated in accordance with the method set forth in subdivision i of section six hundred thirteen-b of this chapter) which is actuarially equivalent to:

(i) the amount of any unpaid contribution deficiency chargeable to such member pursuant to paragraph three of this subdivision; plus

(ii) the amount of any unpaid balance of a loan of such person's additional member contributions pursuant to paragraph eight of this subdivision (including accrued interest on such loan).

6. Subject to the provisions of paragraph five of this subdivision, where a participant has not paid in full any contribution deficiency chargeable to such person pursuant to paragraph three of this subdivision, and a benefit, other than a refund of a member's accumulated deductions or a refund of additional member contributions pursuant to paragraph seven of this subdivision, becomes payable by the retirement system to the participant or to such person's designated beneficiary or estate, the actuarial equivalent of any such unpaid amount shall be deducted from the benefit otherwise payable.

7. (i) All additional member contributions required by this subdivision (and any interest thereon) which are received by the retirement system shall be paid into its contingent reserve fund and shall be the property of the retirement system. Such additional member contributions (and any interest thereon) shall not for any purpose be deemed to be member contributions or accumulated deductions of a member of the retirement system under section 13-125 or section 13-162 of the administrative code of the city of New York while such person is a participant in the twenty-five year improved benefit retirement program or otherwise.

(ii) Should a participant in the twenty-five year improved benefit retirement program, who has rendered less than five years of credited service cease to hold a position as a water supply police member for any reason whatsoever, such person's accumulated additional member contributions made pursuant to this subdivision (together with any interest thereon paid to the retirement system) which remain credited to such participant's account may be withdrawn by such person pursuant to procedures promulgated in regulations of the board of trustees of the retirement system, together with interest thereon at the rate of interest required by law to be used to credit interest on the accumulated deductions of retirement system members compounded annually.

(iii) Notwithstanding any other provision of law to the contrary, (A) no person shall be permitted to withdraw from the retirement system any additional member contributions paid pursuant to this subdivision or any

1 interest paid thereon, except pursuant to and in accordance with the
2 preceding subparagraphs of this paragraph; and (B) no person, while such
3 person is a participant in the twenty-five year improved benefit retire-
4 ment program, shall be permitted to withdraw any such additional member
5 contributions or any interest paid thereon pursuant to any of the
6 preceding subparagraphs of this paragraph or otherwise.

7 8. A participant in the twenty-five year improved benefit retirement
8 program shall be permitted to borrow from such person's additional
9 member contributions, including any interest paid thereon, which are
10 credited to the additional contributions account established for such
11 participant in the contingent reserve fund of the retirement system.
12 The borrowing from such additional member contributions pursuant to this
13 paragraph shall be governed by the same rights, privileges, obligations
14 and procedures set forth in section six hundred thirteen-b of this chap-
15 ter which govern the borrowing by members subject to article fifteen of
16 this chapter of member contributions made pursuant to section six
17 hundred thirteen of this chapter. The board of trustees of the retire-
18 ment system may, consistent with the provisions of this subdivision and
19 the provisions of section six hundred thirteen-b of this chapter as made
20 applicable to this subdivision, promulgate regulations governing the
21 borrowing of such additional member contributions.

22 9. Wherever a person has an unpaid balance of a loan of such person's
23 additional member contributions pursuant to paragraph eight of this
24 subdivision at the time such person becomes entitled to a refund of such
25 person's additional member contributions pursuant to subparagraph (ii)
26 of paragraph seven of this subdivision, the amount of such unpaid loan
27 balance (including accrued interest) shall be deemed to have been
28 returned to such member, and the refund of such additional contributions
29 shall be the net amount of such contributions, together with interest
30 thereon in accordance with the provisions of such subparagraph.

31 10. Notwithstanding any other provision of law to the contrary, the
32 provisions of section one hundred thirty-eight-b of this chapter shall
33 not be applicable to the additional member contributions which are
34 required by this subdivision.

35 11. Notwithstanding any other provision of law to the contrary, the
36 additional member contributions which are required by this subdivision
37 shall not be reduced under any program for increased-take-home-pay.

38 § 5. The retirement and social security law is amended by adding a new
39 section 604-k to read as follows:

40 § 604-k. Twenty-five year retirement program for water supply police
41 members. a. Definitions. The following words and phrases as used in
42 this section shall have the following meanings unless a different mean-
43 ing is plainly required by the context.

44 1. "Water supply police member" shall mean a member of the retirement
45 system who is employed by the city of New York in a position referred to
46 by paragraph (o) of subdivision thirty-four of section 1.20 of the crim-
47 inal procedure law.

48 2. "Twenty-five year retirement program" shall mean all the terms and
49 conditions of this section.

50 3. "Starting date of the twenty-five year retirement program" shall
51 mean the effective date of this section, as such date is certified
52 pursuant to section forty-one of the legislative law.

53 4. "Participant in the twenty-five year retirement program" shall mean
54 any water supply police member who, under the applicable provisions of
55 subdivision b of this section, is entitled to the rights, benefits and

1 privileges and is subject to the obligations of the twenty-five year
2 retirement program, as applicable to such person.

3 5. "Discontinued member" shall mean a participant in the twenty-five
4 year retirement program who, while such person was a water supply police
5 member, discontinued service as such a member and has a right to a
6 deferred vested benefit under subdivision d of this section.

7 6. "Administrative code" shall mean the administrative code of the
8 city of New York.

9 b. Participation in twenty-five year retirement program. 1. Subject
10 to the provisions of paragraphs six and seven of this subdivision, any
11 person who is a water supply police member on the starting date of the
12 twenty-five year retirement program and who, as such a water supply
13 police member or otherwise last became subject to the provisions of this
14 article prior to such starting date, may elect to become a participant
15 in the twenty-five year retirement program by filing, within one hundred
16 eighty days after the starting date of the twenty-five year retirement
17 program, a duly executed application for such participation with the
18 retirement system of which such person is a member, provided such person
19 is such a water supply police member on the date such application is
20 filed.

21 2. Subject to the provisions of paragraphs six and seven of this
22 subdivision, any person who becomes a water supply police member after
23 the starting date of the twenty-five year retirement program and who, as
24 such a water supply police member or otherwise, last became subject to
25 the provisions of this article prior to such starting date, may elect to
26 become a participant in the twenty-five year retirement program by
27 filing, within one hundred eighty days after becoming such a water
28 supply police member, a duly executed application for such participation
29 with the retirement system for which such person is a member, provided
30 such person is such a water supply police member on the date such appli-
31 cation is filed.

32 3. Any election to be a participant in the twenty-five year retirement
33 program shall be irrevocable.

34 4. Each water supply police member who becomes subject to the
35 provisions of this article on or after the starting date of the twenty-
36 five year retirement program shall become a participant in the twenty-
37 five year retirement program on the date such person becomes such a
38 water supply police member. Provided, however, a person subject to this
39 paragraph who has exceeded age thirty upon employment as such a member
40 shall be exempt from participation in the twenty-five year retirement
41 program if such person elects not to participate by filing a duly
42 executed form with the retirement system within one hundred eighty days
43 of becoming such a member.

44 5. Where any participant in the twenty-five year retirement program
45 shall cease to be employed by the city of New York as a water supply
46 police member, such person shall cease to be such a participant and,
47 during any period in which such person is not so employed, such person
48 shall not be a participant in the twenty-five year retirement program
49 and shall not be eligible for the benefits of subdivision c of this
50 section.

51 6. Where any participant in the twenty-five year retirement program
52 terminates service as a water supply police member and returns to such
53 service as a water supply police member at a later date, such person
54 shall again become such a participant on that date.

55 7. Notwithstanding any other provision of law to the contrary, any
56 person who is eligible to elect to become a participant in the twenty-

1 five year retirement program pursuant to paragraph one or two of this
2 subdivision for the full one hundred eighty day period provided for in
3 such applicable paragraph and who fails to timely file a duly executed
4 application for such participation with the retirement system, shall not
5 thereafter be eligible to become a participant in such program.

6 c. Service retirement benefits. 1. A participant in the twenty-five
7 year retirement program:

8 (i) who has completed twenty-five or more years of credited service;
9 and

10 (ii) who has paid, before the effective date of retirement, all addi-
11 tional member contributions and interest (if any) required by subdivi-
12 sion e of this section; and

13 (iii) who files with the retirement system of which such person is a
14 member an application for service retirement setting forth at that time,
15 not less than thirty days subsequent to the execution and filing there-
16 of, such person desires to be retired; and

17 (iv) who shall be a participant in the twenty-five year retirement
18 program at the time so specified for such person's retirement; shall be
19 retired pursuant to the provisions of this section affording early
20 service retirement.

21 2. (i) Notwithstanding any other provision of law to the contrary, and
22 subject to the provisions of paragraph six of subdivision e of this
23 section, the early service retirement benefit for participants in the
24 twenty-five year retirement program who retire pursuant to paragraph one
25 of this subdivision shall be a retirement allowance consisting of:

26 (A) an amount, on account of the required minimum period of service,
27 equal to fifty percent of such person's final average salary; plus

28 (B) an amount on account of credited service, or fraction thereof,
29 beyond such required minimum period of service equal to two percent of
30 such person's final salary;

31 (ii) The maximum retirement allowance computed without optional
32 modification payable pursuant to subparagraph (i) of this paragraph
33 shall equal that payable upon completion of thirty years of service.

34 d. Vesting. 1. A participant in the twenty-five year retirement
35 program:

36 (i) who discontinues service as such a participant, other than by
37 death or retirement; and

38 (ii) who prior to such discontinuance, completed five but less than
39 twenty-five years of credited service; and

40 (iii) who, subject to the provisions of paragraph seven of subdivision
41 e of this section, has paid, prior to such discontinuance, all addi-
42 tional member contributions and interest (if any) required by subdivi-
43 sion e of this section; and

44 (iv) who does not withdraw in whole or in part such person's accumu-
45 lated member contributions pursuant to section six hundred thirteen of
46 this article unless such participant thereafter returns to public
47 service and repays the amounts so withdrawn, together with interest,
48 pursuant to such section six hundred thirteen; shall be entitled to
49 receive a deferred vested benefit as provided in this subdivision.

50 2. (i) Upon such discontinuance under the conditions and in compliance
51 with the provisions of paragraph one of this subdivision, such deferred
52 vested benefit shall vest automatically.

53 (ii) Such vested benefit shall become payable on the earliest date on
54 which such discontinued member could have retired for service if such
55 discontinuance had not occurred.

1 3. Subject to the provisions of paragraph seven of subdivision e of
2 this section, such deferred vested benefit shall be a retirement allow-
3 ance consisting of an amount equal to two percent of such discontinued
4 member's final average salary, multiplied by the number of years of
5 credited service.

6 e. Additional member contributions. 1. In addition to the member
7 contributions required by section six hundred thirteen of this article,
8 each participant in the twenty-five year retirement program shall
9 contribute to the retirement system of which such person is a member
10 (subject to the applicable provisions of subdivision d of section six
11 hundred thirteen of this article) an additional six percent of such
12 person's compensation earned from (i) all credited service, as a partic-
13 ipant in the twenty-five year retirement program, rendered on or after
14 the starting date of the twenty-five year retirement program, and (ii)
15 all credited service after such person ceases to be a participant, but
16 before such person again becomes a participant pursuant to paragraph six
17 of subdivision b of this section. The additional contributions required
18 by this subdivision shall be in lieu of additional member contributions
19 required by subdivision d of section six hundred four-c of this article,
20 as added by chapter ninety-six of the laws of nineteen hundred ninety-
21 five, and no member making contributions pursuant to this section shall
22 be required to make contributions pursuant to such subdivision d of
23 section six hundred four-c of this article.

24 2. A participant in the twenty-five year retirement program shall
25 contribute additional member contributions until the later of (i) the
26 first anniversary of the starting date of the twenty-five year retire-
27 ment program, or (ii) the date on which such person completes thirty
28 years of credited service as a water supply police member.

29 3. Commencing with the first full payroll period after each person
30 becomes a participant in the twenty-five year retirement program, addi-
31 tional member contributions at the rate specified in paragraph one of
32 this subdivision shall be deducted (subject to the applicable provisions
33 of subdivision d of section six hundred thirteen of this article) from
34 the compensation of such participant on each and every payroll of such
35 participant for each and every payroll period for which such person is
36 such a participant.

37 4. (i) Each participant in the twenty-five year retirement program
38 shall be charged with a contribution deficiency consisting of the total
39 amounts of additional member contributions such person is required to
40 make pursuant to paragraphs one and two of this subdivision which are
41 not deducted from such person's compensation pursuant to paragraph three
42 of this subdivision, if any, together with interest thereon, compounded
43 annually, and computed in accordance with the provisions of subpara-
44 graphs (ii) and (iii) of this paragraph.

45 (ii) (A) The interest required to be paid on each such amount speci-
46 fied in subparagraph (i) of this paragraph shall accrue from the end of
47 the payroll period for which such amount would have been deducted from
48 compensation if such person had been a participant at the beginning of
49 that payroll period and such deduction had been required for such
50 payroll period, until such amount is paid to the retirement system.

51 (B) The rate of interest to be applied to each such amount during the
52 period for which interest accrues on that amount shall be equal to the
53 rate or rates of interest required by law to be used during that same
54 period to credit interest on the accumulated deductions of retirement
55 system members.

(iii) Except as otherwise provided in paragraph five of this subdivision, no interest shall be due on any unpaid additional member contributions which are not attributable to a period prior to the first full payroll period referred to in paragraph three of this subdivision.

5. (i) Should any person who, pursuant to subparagraph (ii) of paragraph ten of this subdivision, has received a refund of such person's additional member contributions including any interest paid on such contributions, again become a participant in the twenty-five year retirement program pursuant to paragraph six of subdivision b of this section, an appropriate amount shall be included in such participant's contribution deficiency (including interest thereon as calculated pursuant to subparagraph (ii) of this paragraph) for any credited service for which such person received a refund of such additional member contributions (including any amount of an unpaid loan balance deemed to have been returned to such person pursuant to paragraph twelve of this subdivision), as if such additional member contributions never had been paid.

(ii) (A) Interest on a participant's additional member contributions included in such participant's contribution deficiency pursuant to subparagraph (i) of this paragraph shall be calculated as if such additional member contributions had never been paid by such participant, and such interest shall accrue from the end of the payroll period to which an amount of such additional member contributions is attributable, until such amount is paid to the retirement system.

(B) The rate of interest to be applied to each such amount during the period for which interest accrues on that amount shall be five percent per annum, compounded annually.

6. Where a participant who is otherwise eligible for service retirement pursuant to subdivision c of this section did not, prior to the effective date of retirement, pay the entire amount of a contribution deficiency chargeable to such person pursuant to paragraphs four and five of this subdivision, or repay the entire amount of a loan of such person's additional member contributions pursuant to paragraph eleven of this subdivision (including accrued interest on such loan), that participant, nevertheless, shall be eligible to retire pursuant to subdivision c of this section, provided, however, that such participant's service retirement benefit calculated pursuant to paragraph two of such subdivision c shall be reduced by a life annuity (calculated in accordance with the method set forth in subdivision i of section six hundred thirteen-b of this article) which is actuarially equivalent to:

(i) the amount of any unpaid contribution deficiency chargeable to such member pursuant to paragraphs four and five of this subdivision; plus

(ii) the amount of any unpaid balance of a loan of such person's additional member contributions pursuant to paragraph eleven of this subdivision (including accrued interest on such loan).

7. Where a participant who is otherwise eligible for a vested right to a deferred benefit pursuant to subdivision d of this section did not, prior to the date of discontinuance of service, pay the entire amount of a contribution deficiency chargeable to such person pursuant to paragraphs four and five of this subdivision, or repay the entire amount of a loan of such person's additional member contributions pursuant to paragraph eleven of this subdivision (including accrued interest on such loan), that participant, nevertheless, shall be eligible for a vested right to a deferred benefit pursuant to subdivision d of this section, provided, however, that the deferred vested benefit calculated pursuant to paragraph three of such subdivision d shall be reduced by a life

1 annuity (calculated in accordance with the method set forth in subdivi-
2 sion i of section six hundred thirteen-b of this article) which is actu-
3 arially equivalent to:

4 (i) the amount of any unpaid contribution deficiency chargeable to
5 such member pursuant to paragraphs four and five of this subdivision;
6 plus

7 (ii) the amount of any unpaid balance of a loan of such person's addi-
8 tional member contributions pursuant to paragraph eleven of this subdivi-
9 vision (including accrued interest on such loan).

10 8. The head of a retirement system which includes participants in the
11 twenty-five year retirement program in its membership may, consistent
12 with the provisions of this subdivision, promulgate regulations for the
13 payment of such additional member contributions, and any interest there-
14 on, by such participants (including the deduction of such contributions,
15 and any interest thereon, from the participant's compensation).

16 9. Subject to the provisions of paragraphs six and seven of this
17 subdivision, where a participant has not paid in full any contribution
18 deficiency chargeable to such person pursuant to paragraphs four and
19 five of this subdivision, and a benefit, other than a refund of member
20 contributions pursuant to section six hundred thirteen of this article
21 or a refund of additional member contributions pursuant to subparagraph
22 (ii) of paragraph ten of this subdivision, becomes payable under this
23 article to the participant or to such person's designated beneficiary or
24 estate, the actuarial equivalent of any such unpaid amount shall be
25 deducted from the benefit otherwise payable.

26 10. (i) Such additional member contributions (and any interest there-
27 on) shall be paid into the contingent reserve fund of the retirement
28 system of which the participant is a member and shall not for any
29 purpose be deemed to be member contributions or accumulated contrib-
30 utions of a member under section six hundred thirteen of this article or
31 otherwise while such person is a participant in the twenty-five year
32 retirement program or otherwise.

33 (ii) Should a participant in the twenty-five year retirement program
34 who has rendered less than five years of credited service cease to hold
35 a position as a water supply police member for any reason whatsoever,
36 such person's accumulated additional member contributions made pursuant
37 to this subdivision (together with any interest thereon paid to the
38 retirement system) may be withdrawn by such person pursuant to proce-
39 dures promulgated in regulations of the board of trustees of the retire-
40 ment system, together with interest thereon at the rate of five percent
41 per annum, compounded annually.

42 (iii) Notwithstanding any other provision of law to the contrary, (A)
43 no person shall be permitted to withdraw from the retirement system any
44 additional member contributions paid pursuant to this subdivision or any
45 interest paid thereon, except pursuant to and in accordance with the
46 preceding subparagraphs of this paragraph; and (B) no person, while such
47 person is a participant in the twenty-five year retirement program,
48 shall be permitted to withdraw any such additional member contributions
49 or any interest paid thereon pursuant to any of the preceding subpara-
50 graphs of this paragraph or otherwise.

51 11. A participant in the twenty-five year retirement program shall be
52 permitted to borrow from such person's additional member contributions
53 (including any interest paid thereon) which are credited to the addi-
54 tional contributions account established for such participant in the
55 contingent reserve fund of the retirement system. The borrowing from
56 such additional member contributions pursuant to this paragraph shall be

1 governed by the rights, privileges, obligations and procedures set forth
2 in section six hundred thirteen-b of this article which govern the
3 borrowing of member contributions made pursuant to section six hundred
4 thirteen of this article. The board of trustees of the retirement system
5 may, consistent with the provisions of this subdivision and the
6 provisions of section six hundred thirteen-b of this article as made
7 applicable to this subdivision, promulgate regulations governing the
8 borrowing of such additional member contributions.

9 12. Whenever a person has an unpaid balance of a loan of such person's
10 additional member contributions pursuant to paragraph eleven of this
11 subdivision at the time such person becomes entitled to a refund of such
12 person's additional member contributions pursuant to subparagraph (ii)
13 of paragraph ten of this subdivision, the amount of such unpaid loan
14 balance (including accrued interest) shall be deemed to have been
15 returned to such member, and the refund of such additional contributions
16 shall be the net amount of such contributions, together with interest
17 thereon in accordance with the provisions of such subparagraph (ii).

18 § 6. Subdivision d of section 613 of the retirement and social securi-
19 ty law is amended by adding a new paragraph 13 to read as follows:

20 13. (i) The city of New York shall, in the case of a water supply
21 police member (as defined in paragraph one of subdivision a of section
22 six hundred four-k of this article) who is a participant in the twenty-
23 five year retirement program (as defined in paragraph four of subdivi-
24 sion a of such section six hundred four-k), pick up and pay to the
25 retirement system of which such participant is a member, all additional
26 member contributions which otherwise would be required to be deducted
27 from such member's compensation pursuant to paragraphs one and two of
28 subdivision e of such section six hundred four-k (not including any
29 additional member contributions due for any period prior to the first
30 full payroll period referred to in paragraph three of such subdivision
31 e), and shall effect such pick up on each and every payroll of such
32 participant for each and every payroll period with respect to which such
33 paragraph three would otherwise require such deductions.

34 (ii) An amount equal to the amount of additional contributions picked
35 up pursuant to this paragraph shall be deducted by such employer from
36 the compensation of such member (as such compensation would be in the
37 absence of a pick up program applicable to such person hereunder) and
38 shall not be paid to such member.

39 (iii) The additional member contributions picked up pursuant to this
40 paragraph for any such member shall be paid by such employer in lieu of
41 an equal amount of additional member contributions otherwise required to
42 be paid by such member under the applicable provisions of subdivision e
43 of section six hundred four-k of this article, and shall be deemed to be
44 and treated as employer contributions pursuant to section 414(h) of the
45 Internal Revenue Code.

46 (iv) For the purpose of determining the retirement system rights,
47 benefits and privileges of any member whose additional member contrib-
48 utions are picked up pursuant to this paragraph, such picked up addi-
49 tional member contributions shall be deemed to be and treated as part of
50 such member's additional member contributions under the applicable
51 provisions of subdivision e of section six hundred four-k of this arti-
52 cle.

53 (v) With the exception of federal income tax treatment, the additional
54 member contributions picked up pursuant to subparagraph (i) of this
55 paragraph shall for all other purposes, including computation of retire-
56 ment benefits and contributions by employers and employees, be deemed

employee salary. Nothing contained in this subdivision shall be construed as superseding the provisions of section four hundred thirty-one of this chapter, or any similar provision of law which limits the salary base of computing retirement benefits payable by a public retirement system.

§ 7. Section 13-125.2 of the administrative code of the city of New York is amended by adding a new subdivision a-9 to read as follows:

a-9. Notwithstanding any other provision of law to the contrary, on or after the starting date for pick up, the employer responsible for pick up shall, in the case of a water supply police member (as defined in paragraph two of subdivision a of section four hundred forty-five-k of the retirement and social security law) who is a participant in the twenty-five year improved benefit retirement program (as defined in paragraph three of such subdivision a of section four hundred forty-five-k), pick up and pay to the retirement system all additional member contributions which otherwise would be required to be deducted from such member's compensation pursuant to subdivision d of such section four hundred forty-five-k, and shall effect such pick up on each and every payroll of such participant for each and every payroll period with respect to which such subdivision d would otherwise require such deductions.

§ 8. Subparagraph (ii) of paragraph 1 of subdivision c of section 13-125.2 of the administrative code of the city of New York, as amended by chapter 682 of the laws of 2003, is amended to read as follows:

(ii) the determination of the amount of such member's Tier I or Tier II nonuniformed-force member contributions eligible for pick up by the employer or additional member contributions required to be picked up pursuant to subdivision a-one, subdivision a-two, subdivision a-three, subdivision a-four, subdivision a-five, subdivision a-six, subdivision a-seven ~~[or]~~, subdivision a-eight, or subdivision a-nine of this section; and

§ 9. Subdivision d of section 13-125.2 of the administrative code of the city of New York is amended by adding a new paragraph 2-h to read as follows:

(2-h) For the purpose of determining the retirement system rights, benefits and privileges of any member who is a participant in the twenty-five year improved benefit retirement program (as defined in paragraph three of subdivision a of section four hundred forty-five-k of the retirement and social security law), the additional member contributions of such participant picked up pursuant to subdivision a-nine of this section shall be deemed to be and treated as a part of such member's additional member contributions under subdivision d of such section four hundred forty-five-k.

§ 10. Paragraph 3 of subdivision d of section 13-125.2 of the administrative code of the city of New York, as amended by chapter 682 of the laws of 2003, is amended to read as follows:

(3) Interest on contributions picked up for any Tier I or Tier II non-uniformed-force member pursuant to this section (other than additional member contributions picked up pursuant to subdivision a-one, subdivision a-two, subdivision a-three, subdivision a-four, subdivision a-five, subdivision a-six, subdivision a-seven ~~[or]~~, subdivision a-eight, or subdivision a-nine of this section) shall accrue in favor of the member and be payable to the retirement system at the same rate, for the same time periods, in the same manner and under the same circumstances as interest would be required to accrue in favor of the member and be payable to the retirement system on such contributions if they

1 were made by such member in the absence of a pick up program applicable
2 to such member under the provisions of this section.

3 § 11. Subdivision a of section 603 of the retirement and social secu-
4 rity law, as amended by section 3 of part EE of chapter 55 of the laws
5 of 2024, is amended to read as follows:

6 a. The service retirement benefit specified in section six hundred
7 four of this article shall be payable to members who have met the mini-
8 mum service requirements upon retirement and attainment of age sixty-
9 two, other than members who are eligible for early service retirement
10 pursuant to subdivision c of section six hundred four-b of this article,
11 subdivision c of section six hundred four-c of this article, subdivision
12 d of section six hundred four-d of this article, subdivision c of
13 section six hundred four-e of this article, subdivision c of section six
14 hundred four-f of this article, subdivision c of section six hundred
15 four-g of this article, subdivision c of section six hundred four-h of
16 this article, subdivision c of section six hundred four-i of this arti-
17 cle, ~~[or]~~ subdivision c of section six hundred four-j of this article,
18 or subdivision c of section six hundred four-k of this article,
19 provided, however, a member of a teachers' retirement system or the New
20 York state and local employees' retirement system who first joins such
21 system before January first, two thousand ten or a member who is a
22 uniformed court officer or peace officer employed by the unified court
23 system who first becomes a member of the New York state and local
24 employees' retirement system before April first, two thousand twelve may
25 retire without reduction of their retirement benefit upon attainment of
26 at least fifty-five years of age and completion of thirty or more years
27 of service, provided, however, that a uniformed court officer or peace
28 officer employed by the unified court system who first becomes a member
29 of the New York state and local employees' retirement system on or after
30 January first, two thousand ten and retires without reduction of their
31 retirement benefit upon attainment of at least fifty-five years of age
32 and completion of thirty or more years of service pursuant to this
33 section shall be required to make the member contributions required by
34 subdivision f of section six hundred thirteen of this article for all
35 years of credited and creditable service, provided further that the
36 preceding provisions of this subdivision shall not apply to a New York
37 city revised plan member.

38 § 12. Nothing contained in sections six and eleven of this act shall
39 be construed to create any contractual right with respect to members to
40 whom such sections apply. The provisions of such sections are intended
41 to afford members the advantages of certain benefits contained in the
42 Internal Revenue Code, and the effectiveness and existence of such
43 sections and benefits they confer are completely contingent thereon.

44 § 13. This act shall take effect immediately, provided, however that:

45 (a) The amendments to subdivision a of section 603 of the retirement
46 and social security law made by section eleven of this act shall not
47 affect the expiration of such subdivision as provided in subdivision (b)
48 of section 13 of chapter 682 of the laws of 2003, and shall expire ther-
49 ewith;

50 (b) The provisions of section six of this act shall remain in force
51 and effect only so long as, pursuant to federal law, contributions
52 picked up under section 613 of the retirement and social security law
53 are not includable as gross income of a member for federal income tax
54 purposes until distributed or made available to the member; and

55 (c) The amendments to provisions of section 13-125.2 of the adminis-
56 trative code of the city of New York made by sections seven, eight, nine

- 1 and ten of this act shall not affect the expiration of such provisions
 2 as provided for in chapter 681 of the laws of 1992, as amended.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

SUMMARY: This proposed legislation would establish 25-Year Retirement Programs within the New York City Employees' Retirement System (NYCERS) for members employed as Water Supply Police Officers (WSP).

EXPECTED INCREASE (DECREASE) IN EMPLOYER CONTRIBUTIONS
 by Fiscal Year for the first 25 years (\$ in Millions)

Year	NYCERS
2027	1.2
2028	1.1
2029	1.1
2030	1.0
2031	1.0
2032	0.9
2033	0.9
2034	0.8
2035	0.8
2036	(0.2)
2037	(0.2)
2038	(0.3)
2039	(0.3)
2040	(0.4)
2041	(0.4)
2042	(0.4)
2043	(0.5)
2044	(0.5)
2045	(0.5)
2046	(0.5)
2047	(0.6)
2048	(0.6)
2049	(0.6)
2050	(0.6)
2051	(0.7)

Projected contributions include future new hires that may be impacted. For Fiscal Year 2052 and beyond, the expected decrease in normal cost as a level percent of pay for impacted new entrants is approximately 1.91%. The decrease in future costs results from the actuarial expectation that new members mandated into the Plan will benefit less than the amount they are required to pay in additional member contributions.

The entire increase in employer contributions will be allocated to New York City.

PRESENT VALUE OF BENEFITS: The Present Value of Benefits is the discounted expected value of benefits paid to current members if all assumptions are met, including future service accrual and pay increases. Future new hires are not included in this present value.

INITIAL INCREASE (DECREASE) IN ACTUARIAL PRESENT VALUES
 as of June 30, 2025 (\$ in Millions)

Present Value (PV)	NYCERS
--------------------	--------

(1) PV of Employer Contributions:	4.3
(2) PV of Employee Contributions:	<u>2.9</u>
Total PV of Benefits (1) + (2):	7.2

UNFUNDED ACCRUED LIABILITY (UAL): Actuarial Accrued Liabilities are the portion of the Present Value of Benefits allocated to past service. Changes in UAL were amortized over the expected remaining working life-time of those impacted using level dollar payments.

AMORTIZATION OF UNFUNDED ACCRUED LIABILITY
NYCERS

Increase (Decrease) in UAL:	5.9 M
Number of Payments:	9
Amortization Payment:	0.9 M

CENSUS DATA: The estimates presented herein are based on preliminary census data collected as of June 30, 2025. The census data for the impacted population is summarized below.

Active Members	NYCERS
- Number Count:	110
- Average Age:	43.3
- Average Service:	17.6
- Average Salary:	96,200

IMPACT ON MEMBER BENEFITS: The proposed legislation would provide WSP with 25 or more years of credited service with a retirement benefit equal to 50% of Final Average Salary (FAS) for the first 25 years of credited service, plus 2% of Final Salary for each additional year of credited service, exceeding 25 years, up to a maximum of 5 additional years.

The vested benefit for members with less than 25 years of credited service would be equal to 2% of FAS for each year of credited service and is payable at what would have been their 25th year of service.

Plan participants would be required to pay Additional Member Contributions equal to 6% of compensation for all service on and after the starting date of the Plan until the later of one-year after the effective date of the Plan or 30 years of credited service as a WSP member.

Current Tier 4 and Tier 6 WSP members would have 180 days from the effective date to elect the WSP 25-Year Plan for their respective tier. WSP members who become NYCERS members after the date of enactment of the WSP 25-Year Plans would be mandated into the Tier 6 WSP 25-Year Plan unless over age 30 upon employment as a WSP member.

Once members in the Tier 4 WSP 25-Year Plan attain 25 years of credited service, they would no longer be eligible to retire under their basic plan and would lose the ability to accrue benefits after attaining 30 years of credited service.

ASSUMPTIONS AND METHODS: The estimates presented herein have been calculated based on the Revised 2021 Actuarial Assumptions and Methods of the impacted retirement systems. In addition:

* New entrants were assumed to replace exiting members so that total payroll increases by 3% each year for impacted groups. New entrant demo-

graphics were developed based on data for recent new hires and actuarial judgement.

To determine the impact of the elective nature of the proposed legislation, a subgroup of NYCERS WSP members assumed to benefit actuarially was developed based on who is assumed to benefit actuarially by comparing the net present value of future employer costs of each member's benefit under their current plan and under the WSP 25-year Plan.

RISK AND UNCERTAINTY: The costs presented in this Fiscal Note depend highly on the actuarial assumptions, methods, and models used, demographics of the impacted population, and other factors such as investment, contribution, and other risks. If actual experience deviates from actuarial assumptions, the actual costs could differ from those presented herein. Quantifying these risks is beyond the scope of this Fiscal Note.

This Fiscal Note is intended to measure pension-related impacts and does not include other potential costs (e.g., administrative and Other Postemployment Benefits). This Fiscal Note does not reflect any chapter laws that may have been enacted during the current legislative session.

STATEMENT OF ACTUARIAL OPINION: Marek Tyszkiewicz and Gregory Zelikovsky are members of the Society of Actuaries and the American Academy of Actuaries. We are members of NYCERS, but do not believe it impairs our objectivity, and we meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion contained herein. To the best of our knowledge, the results contained herein have been prepared in accordance with generally accepted actuarial principles and procedures and with the Actuarial Standards of Practice issued by the Actuarial Standards Board.

FISCAL NOTE IDENTIFICATION: This Fiscal Note 2026-21 dated February 26, 2026 was prepared by the Chief Actuary for the New York City Retirement Systems and Pension Funds and is intended for use only during the 2026 Legislative Session.

1

PART XX

2 Section 1. Subdivision a of section 381-b of the retirement and social
3 security law, as amended by section 6 of part L of chapter 58 of the
4 laws of 2024, is amended to read as follows:

5 a. Membership. (1) Every member or officer of the division of state
6 police in the executive department who enters or re-enters service in
7 the division on or after April first, nineteen hundred sixty-nine, and
8 every member or officer of the division of state police in the executive
9 department in such service on such date may elect to be covered by the
10 provisions of this section by filing an election therefor with the comp-
11 troller on or before March thirty-first, nineteen hundred seventy-two.
12 To be effective, such election shall be duly executed and acknowledged
13 on a form prepared by the comptroller for that purpose.

14 (2) Every investigator or sworn officer employed by the commission
15 created by section six of chapter eight hundred eighty-two of the laws
16 of nineteen hundred fifty-three, constituting the waterfront commission
17 act, as amended, on or after July first, two thousand twenty-three, and
18 every investigator or sworn officer employed by the New York Waterfront
19 Commission in the executive department shall be covered by the
20 provisions of this section~~], and every member or officer of the division~~
21 ~~of state police in the executive department in such service on such date~~
22 ~~may elect to be covered by the provisions of this section by filing an~~
23 ~~election therefor with the comptroller on or before March thirty-first,~~

~~nineteen hundred seventy two. To be effective, such election must be duly executed and acknowledged on a form prepared by the comptroller for that purpose].~~

(3) Every non-seasonally appointed sworn member or officer of the division of law enforcement in the department of environmental conservation, a forest ranger in the service of the department of environmental conservation, which shall mean a person who serves on a full-time basis in the title of forest ranger I, forest ranger II, forest ranger III, assistant superintendent of forest fire control, superintendent of forest fire control or any successor titles or new titles in the forest ranger title series in the department of environmental conservation, a police officer in the department of environmental conservation, the regional state park police, and university police officers shall be covered by the provisions of this section.

§ 2. Subdivision c of section 381-b of the retirement and social security law, as amended by chapter 581 of the laws of 2001, paragraph 1 as amended by chapter 187 of the laws of 2023, subparagraph (ii) of paragraph 1 as amended by section 6 of part L of chapter 58 of the laws of 2024 and paragraph 2 as amended by chapter 440 of the laws of 2017, is amended and a new subdivision h is added to read as follows:

c. Credit for previous police service. (1) Police service. In computing the years of total creditable service in such division, full credit shall be given and full allowance shall be made:

(i) for service rendered as a police officer or member of a police force or department of a state park authority or commission or an organized police force or department of a county, city, town, village, police district, authority or other participating employer or member of the capital police force in the office of general services while a member of the New York state and local police and fire retirement system, of the New York state and local employees' retirement system or of the New York city police pension fund;

(ii) for service rendered as an investigator or sworn officer of the waterfront commission of New York harbor, for service rendered as an investigator or sworn officer of the New York Waterfront Commission, for service rendered as an investigator-trainee of the waterfront commission of New York harbor, and for service rendered as an investigator-trainee of the New York Waterfront Commission, that was creditable under subdivision w of section three hundred eighty-four-d of this article; ~~and~~

(iii) for all service for which full credit has been given and full allowance made pursuant to the provisions of section three hundred seventy-five-h of this chapter provided, however, that full credit pursuant to the provisions of such section shall mean only such service as would be creditable service pursuant to the provisions of section three hundred eighty-three or section three hundred eighty-three-a or three hundred eighty-three-b enacted by chapter six hundred seventy-seven of the laws of nineteen hundred eighty-six of this chapter or pursuant to the provisions of title thirteen of the administrative code of the city of New York for any member contributing pursuant to this section who transferred to the division of state police[-

~~(2) State university police officer service. Upon completion of more than twenty years of service, and upon retirement, each such member who was previously credited with service credit in the New York state and local employees' retirement system or the New York state and local police and fire retirement system as an officer appointed by the state university pursuant to paragraph 1 of subdivision two of section three hundred fifty-five of the education law and who has successfully~~

~~completed a course of law enforcement training as provided in such section of the education law or for any such officer who retires on and after January first, two thousand eighteen who has successfully completed such course of law enforcement training within two years of his or her date of appointment shall receive for each such year of previous service, up to a total of no greater than five years of previous service, additional service credit equal to one sixtieth of his or her final average salary.]; and~~

(iv) for service rendered as a non-seasonally appointed sworn member or officer of the division of law enforcement in the department of environmental conservation, a forest ranger in the service of the department of environmental conservation, which shall mean a person who serves on a full-time basis in the title of forest ranger I, forest ranger II, forest ranger III, assistant superintendent of forest fire control, superintendent of forest fire control or any successor titles or new titles in the forest ranger title series in the department of environmental conservation, a police officer in the department of environmental conservation, the regional state park police, university police officers, and university peace officers.

(2) Notwithstanding any other provision of law to the contrary, any creditable service provided under this subdivision shall be creditable service under any other section of this chapter.

h. The provisions of this section shall be controlling, notwithstanding any provision of this article to the contrary.

§ 3. This act shall take effect July 1, 2026.

PART YY

Section 1. The executive law is amended by adding a new article 15-D to read as follows:

ARTICLE 15-D

OFFICE OF NATIVE AMERICAN AFFAIRS

Section 328-d. Office of Native American affairs.

328-e. General functions, powers and duties.

§ 328-d. Office of Native American affairs. 1. There is hereby created in the executive department an office of Native American affairs. The head of the office shall be the commissioner of Native American affairs who shall be appointed by the governor and who shall hold office at the pleasure of the governor.

2. The commissioner shall receive an annual salary to be fixed by the governor within the amount made available therefor by an appropriation and shall be allowed such commissioner's actual and necessary expenses in the performance of such commissioner's duties.

3. The commissioner shall direct the work of the office and shall be the chief executive officer of the office. The commissioner may appoint such officers and employees as such commissioner may deem necessary, prescribe their duties, fix their compensation, and provide for the reimbursement of their expenses, all within amounts made available therefor by appropriation.

§ 328-e. General functions, powers and duties. The office of Native American affairs by and through the commissioner or such commissioner's duly authorized officers and employees, shall:

1. Act as a centralized office for Native American nations to access information on state programs that are provided to Native Americans.

1 2. Develop and maintain cooperative relationships between New York
2 state's Native nations, Native organizations, Native American citizens,
3 and the state.

4 3. Establish, manage, coordinate, and facilitate Native American-re-
5 lated policies, positions, and programs.

6 4. Advise and assist state agencies in developing policies, plans, and
7 programs for Native Americans.

8 5. Serve as a connector for New York state's Native nations to other
9 state agencies and programs.

10 § 2. This act shall take effect on the one hundred eightieth day after
11 it shall have become a law.

12 PART ZZ

13 Section 1. Subdivision (e) of section 532 of the real property tax
14 law, as amended by section 1 of part WW of chapter 59 of the laws of
15 2021, is amended to read as follows:

16 (e) All lands in the counties of Rockland [~~and~~], Sullivan and Ulster
17 and in the towns of Blooming Grove, Chester, Monroe, Warwick, Cornwall,
18 Highlands, Tuxedo and Woodbury, Orange county, [~~and in the towns of~~
19 ~~Gardiner, Rochester, Shawangunk and Wawarsing, Ulster county,~~] acquired
20 for a public use by the commissioners of the Palisades Interstate park,
21 exclusive of the improvements erected thereon by the state;

22 § 2. This act shall take effect immediately.

23 PART AAA

24 Section 1. Paragraph j of subdivision 10 of section 54 of the state
25 finance law, as amended by section 4 of part I of chapter 57 of the laws
26 of 2011, is amended to read as follows:

27 j. Special aid and incentives for municipalities to the city of New
28 York. In the state fiscal year commencing April first, two thousand
29 seven a city with a population of one million or more shall receive
30 twenty million dollars on or before December fifteenth. In the state
31 fiscal year commencing April first, two thousand eight, a city with a
32 population of one million or more shall receive two hundred forty-five
33 million nine hundred forty-four thousand eight hundred thirty-four
34 dollars payable on or before December fifteenth. In the state fiscal
35 year commencing April first, two thousand nine, a city with a population
36 of one million or more shall receive three hundred one million six
37 hundred fifty-eight thousand four hundred ninety-five dollars payable on
38 or before December fifteenth. In the state fiscal year commencing April
39 first, two thousand twenty-six, and in the state fiscal year commencing
40 April first, two thousand twenty-seven, a city with a population of one
41 million or more shall receive three hundred two million dollars payable
42 on or before December fifteenth. Special aid and incentives for muni-
43 cipalities to the city of New York shall be apportioned and paid as
44 required as follows:

45 (i) Any amounts required to be paid to the city university
46 construction fund pursuant to the city university construction fund act;

47 (ii) Any amounts required to be paid to the New York city housing
48 development corporation pursuant to the New York city housing develop-
49 ment corporation act;

50 (iii) Five hundred thousand dollars to the chief fiscal officer of the
51 city of New York for payment to the trustees of the police pension fund
52 of such city;

(iv) Eighty million dollars to the special account for the municipal assistance corporation for the city of New York in the municipal assistance tax fund created pursuant to section ninety-two-d of this chapter to the extent that such amount has been included by the municipal assistance corporation for the city of New York in any computation for the issuance of bonds on a parity with outstanding bonds pursuant to a contract with the holders of such bonds prior to the issuance of any other bonds secured by payments from the municipal assistance corporation for the city of New York in the municipal assistance state aid fund created pursuant to section ninety-two-e of this chapter;

(v) The balance of the special account for the municipal assistance corporation for the city of New York in the municipal assistance state aid fund created pursuant to section ninety-two-e of this chapter;

(vi) Any amounts to be refunded to the general fund of the state of New York pursuant to the annual appropriation enacted for the municipal assistance state aid fund;

(vii) To the state of New York municipal bond bank agency to the extent provided by section twenty-four hundred thirty-six of the public authorities law; and

(viii) To the transit construction fund to the extent provided by section twelve hundred twenty-five-i of the public authorities law, and thereafter to the city of New York.

Notwithstanding any other law to the contrary, the amount paid to any city with a population of one million or more on or before December fifteenth shall be for an entitlement period ending the immediately preceding June thirtieth.

§ 2. This act shall take effect immediately.

PART BBB

Section 1. Subdivision 12 of section 102 of the real property tax law is amended by adding a new paragraph (k) to read as follows:

(k) The possessory interest of a private lessee or contractor which uses real property owned by the United States or the state of New York, except real property owned by public authorities, where the property would be subject to real property taxation if owned by such lessee or contractor, except where the use is by way of a concession which is available for the use of the general public and is located in or adjacent to a public airport, park, market, fairground, road, pier, marina, railroad, busline, subway or similar property which is available for the use of the general public.

§ 2. The section heading and subdivision 1 of section 402 of the real property tax law are amended to read as follows:

United States or state property held under lease or contract ~~[of sale]~~. 1. Whenever the legal title of real property is in the United States, or in the state of New York, but the use, occupation or possession thereof is in a person, partnership, association or corporation, or their or its successor in interest, under a lease, contract ~~[of sale],~~ option or other agreement ~~[whereby a right to acquire the premises through an option, a first privilege or a first refusal is granted, or whereby upon one or more payments the legal title thereto is to be or may be acquired by such person, partnership, association or corporation],~~ [his] such that the interest is a possessory interest described in paragraph (k) of subdivision twelve of section one hundred two of this chapter, their or its interest in such real property shall be assessed and taxed ~~[as]~~ for the same amount and to the same extent as

1 though the lessee, contractor or user were the owner of such real prop-
2 erty and shall be entered in the assessment roll in the same manner as
3 if such person, partnership, association or corporation held the legal
4 title to such property, except for the addition to the description of
5 the property of the name of the owner and of the words "interest under
6 lease", "interest under contract", "interest under option", or other
7 appropriate words descriptive of the interest in the property so
8 assessed. [~~Such assessment shall be at the full value of such inter-~~
9 ~~est.~~]

10 § 3. Subdivision 2 of section 402 of the real property tax law is
11 amended to read as follows:

12 2. [~~The assessors shall add to the assessment roll opposite the~~
13 ~~description of any such interest a notation stating that the real prop-~~
14 ~~erty itself so owned by the United States, or by the state, is not to be~~
15 ~~taxed. Every notice of sale or other process and every conveyance or~~
16 ~~other instrument affecting the title to any such property, consequent~~
17 ~~upon the non payment of any such tax, shall contain a statement that~~
18 ~~such legal title is not sold or to be sold or affected]~~ Taxes shall be
19 assessed to the lessees, contractors or users of such real property and
20 collected in the same manner as taxes assessed to owners of real proper-
21 ty, except that such taxes shall not become a lien against the real
22 property of the United States or of the state of New York. When due,
23 such taxes shall constitute a debt due and owing from the lessee,
24 contractor or user to the municipal corporation or special district for
25 which the taxes were levied and shall be recoverable by action in
26 supreme court.

27 § 4. Section 402 of the real property tax law is amended by adding two
28 new subdivisions 4 and 5 to read as follows:

29 4. Possessory interests, as described in paragraph (k) of subdivision
30 twelve of section one hundred two of this chapter, shall only be taxable
31 as provided in this section if the governing body of the municipal
32 corporation in which the possessory interests are located, after public
33 hearing, adopts a local law, ordinance or resolution so providing,
34 provided, however, the provisions of this section shall not be applica-
35 ble where a possessory interest is making payments in lieu of taxes
36 which payment is equal to the taxes that would be paid had the property
37 been taxable. Any such local law, ordinance or resolution shall apply
38 alike to all possessory interests which are located within the municipal
39 corporation. Possessory interests in existence on the effective date of
40 the local law, ordinance or resolution shall be partially exempt from
41 taxation for the next succeeding four years in accordance with this
42 section; provided, however, that (a) if the lease, contract, option or
43 other agreement is renegotiated or renewed and such renegotiation or
44 renewal becomes effective during those four years, the partial exemption
45 shall not be available subsequent to the effective date of the new
46 agreement, and (b) if the lease, contract, option or other agreement
47 contains any provision assigning liability between the parties in the
48 event that real property taxes are imposed, the partial exemption shall
49 not be available to possessory interests created thereunder. Except in
50 the instances set forth in this subdivision, for the first taxable
51 status date occurring subsequent to the effective date of the local law,
52 ordinance or resolution, taxable possessory interests shall be exempt
53 from taxation by any municipal corporation in which located to the
54 extent of eighty percent of the assessed value; for the second taxable
55 status date, to the extent of sixty percent; for the third taxable
56 status date, to the extent of forty percent; and for the fourth taxable

status date, to the extent of twenty percent. Notwithstanding any other provision of law in this chapter, possessory interests on parcels which have been designated as military land shall be fully exempt from school property tax if the school district whereupon such military land parcels are situated receives Impact Aid funds from the federal government pursuant to 30 CFR Part 222.

5. This section shall not apply to businesses with less than twenty-five employees.

§ 5. This act shall take effect on the first of January next succeeding the date on which it shall have become a law.

§ 2. Severability clause. If any clause, sentence, paragraph, subdivision, section or part of this act shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, subdivision, section or part thereof directly involved in the controversy in which such judgment shall have been rendered. It is hereby declared to be the intent of the legislature that this act would have been enacted even if such invalid provisions had not been included herein.

§ 3. This act shall take effect immediately provided, however, that the applicable effective date of Parts A through BBB of this act shall be as specifically set forth in the last section of such Parts.